INTRODUCTION

FOUR PUBLIC-FACING CONCEPTS DEMONSTRATED BY THE TURNER BOOK

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Demonstration purpose:	Public-facing explanation of how controlled AI-assisted work was authorized, structured, tested for litigation sufficiency, reviewed for legal-output integrity, replayed, audited, and withheld from reliance where required
Primary concepts:	Deterministic Intelligence Architecture, Structured Output Governance, VerdictBridge, and BriefWise

SYNTHETIC PUBLIC-FACING TECHNOLOGY AND LITIGATION-GOVERNANCE DEMONSTRATION — NOT AN ACTUAL CASE, CLIENT MATTER, SYSTEM ARCHITECTURE DISCLOSURE, LEGAL OPINION, PRODUCT SPECIFICATION, CLAIMS-HANDLING DIRECTIVE, OR RELIANCE AUTHORIZATION.

This introduction was prepared to explain the Turner demonstration in terms understandable to lawyers, claims professionals, courts, technologists, and other nontechnical readers.

The matter, evidence, experts, policies, damages, calculations, and review events described in the book are synthetic. The four concepts identified in this introduction are presented at a public and functional level. They do not disclose proprietary implementation details, internal configuration, source code, system prompts, operational thresholds, or the complete relationship among supporting systems.

The four-part map is intentionally simplified. It identifies the concepts most visible in the book and most understandable to a public legal audience. It does not imply that every function belongs exclusively to one system or that the four concepts operate only in a single linear sequence.

VerdictReady: No — the book remains a synthetic demonstration and required verification is incomplete.

FilingReady: Not applicable unless a later filing-specific legal-integrity review is activated.

Public release status: Conceptual explanation only.

1. Introduction Purpose and Control Statement

This introduction establishes a public-facing map of the principal governance concepts illustrated by the Turner book.

The book was not merely a legal-research exercise, a case summary, a damages memorandum, or a settlement evaluation. It demonstrated how AI-assisted litigation work can move through a controlled sequence involving:

- task definition;
- input organization;
- factual classification;
- contradiction detection;
- evidentiary analysis;
- litigation-sufficiency review;
- legal-authority verification;
- structured output;
- controlled recalculation;
- version history;
- reviewer approval; and
- release control.

The public-facing concepts used to explain that sequence are:

1. Deterministic Intelligence Architecture, referred to in this introduction as DIA;
2. Structured Output Governance;
3. VerdictBridge; and
4. BriefWise.

This introduction is designated:

Public-Facing Turner Demonstration Map v1.0

It supplements but does not amend the canonical synthetic record or any conclusion contained in Chapters 1–10.

No statement in this introduction changes:

- a canonical fact;
- a source classification;
- a disputed issue;
- an expert opinion;
- a damages calculation;
- an exposure band;
- a replay branch;
- a legal conclusion;
- a reviewer status; or
- an export state.

The four concepts overlap. The purpose of the map is explanatory, not architectural. It gives the reader a practical way to understand what occurred in the book without exposing the complete design or implementation of the systems involved.

2. What the Turner Book Demonstrated

The Turner book showed that generating a legal or litigation-related answer is only one part of a controlled professional workflow.

A usable litigation product may require separate consideration of:

- whether the task is authorized;
- whether the inputs are sufficiently defined;
- whether facts have been separated from allegations and opinions;
- whether contradictions remain unresolved;
- whether evidence supports the proposed conclusion;

- whether the governing law has been correctly identified;
- whether calculations depend on contested assumptions;
- whether a changed input affects unrelated conclusions;
- whether the output has been reviewed; and
- whether the proposed use has been authorized.

The demonstration therefore distinguished three events that are often treated as though they were the same:

> **Generating an output, validating an output, and authorizing reliance on an output are different events.**

A document may exist without being validated.

A document may be internally validated without being authorized for filing, mediation, carrier reporting, reserve use, or trial.

A correct calculation may remain unusable because the underlying inputs are contested.

A correct legal proposition may remain unusable because the necessary record predicate is missing.

A complete analysis may remain unreleased because no authorized reviewer has approved the destination or use.

The Turner book made those distinctions visible.

3. Public-Facing Concept Register

The following register identifies the four principal concepts used in this public explanation.

Concept ID	Public-facing concept	Plain-English role	Principal function demonstrated in the book
PF-DIA-001	Deterministic Intelligence Architecture	Controls whether a task may proceed, whether work remains provisional, and whether an output may be committed, delivered, or released	Defined task conditions, controlled paths, validation states, replay status, reviewer requirements, and final release control
PF-SOG-001	Structured Output Governance	Governs how generated work is organized, classified, labeled, challenged, reviewed, presented, and withheld before reliance	Stable identifiers, status labels, unresolved-item notices, structured tables, audit receipts, version statements, and visible export restrictions
PF-VB-001	VerdictBridge	Evaluates the substantive sufficiency and readiness of the litigation record and analysis	Liability, evidence, testimony, medical proof, damages, contradictions, comparative fault, exposure scenarios, jury issues, replay, and the final defense work queue
PF-BW-001	BriefWise	Governs legal-output and filing integrity	Authority quality, proposition support, citation accuracy, quotation fidelity, jurisdiction, posture, adverse treatment, jury instructions, and FilingReady review

These identifiers are public explanatory labels. They are not technical component identifiers, configuration records, or descriptions of proprietary implementation.

4. Deterministic Intelligence Architecture

4.1 Public-Facing Role

DIA supplies the authorization and control concept visible throughout the book.

Its principal public-facing question is:

> **May this task proceed, and may the resulting work be committed, delivered, or released for the proposed use?**

That question is different from whether the analysis is persuasive or whether the writing is complete.

DIA is reflected in the book's separation of:

- draft work from approved work;
- provisional outputs from committed outputs;
- structural replay from substantive replay;
- internal review from external reliance; and
- generated analysis from authorized delivery.

4.2 What DIA Did in the Turner Book

The clearest DIA-related examples appeared in Chapters 9 and 10.

Chapter 9 did not merely recalculate damages. It required:

- a frozen parent record;
- an identified change request;
- one changed input per branch;
- preservation of unchanged inputs;
- a contradiction recheck;
- a calculation record;
- a reviewer record; and
- an export decision.

Chapter 10 did not treat completion of the book as automatic authorization. It separately evaluated:

- attorney review;
- primary-carrier review;
- excess-carrier review;
- substantive replay;
- production replay; and
- export authorization.

The final result remained held because those approvals had not occurred.

4.3 DIA Control Examples

Book event	DIA-related control
Initial case task defined	Authorized purpose and posture identified
Synthetic record created	Work remained limited to demonstration use
Legal research performed	Filing use remained separately controlled
Exposure bands calculated	No reserve or settlement authority was created
Replay branches generated	Branches remained provisional and independent
Reviewers remained unassigned	No approval was inferred
Book reached Chapter 10	Completion did not equal release
Final state recorded	External export remained held

The book therefore illustrated a basic authorization principle:

> **A candidate output does not become a released output merely because it has been generated, formatted, recalculated, or reviewed for one limited purpose.**

5. Structured Output Governance

5.1 Public-Facing Role

Structured Output Governance controlled how the work was represented before reliance.

Its principal public-facing question is:

How should the information be organized, classified, challenged, labeled, and presented so that a reviewer can understand what is supported, disputed, provisional, or prohibited?

The Turner book did not present the litigation record as one continuous narrative. It separated information into visible categories so that repetition, formatting, or confident language could not silently change the status of a proposition.

5.2 Structured Features Used in the Book

The chapters used:

- canonical fact identifiers;
- source identifiers;
- dispute identifiers;
- contradiction and tension identifiers;
- calculation identifiers;
- authority identifiers;
- valuation-band identifiers;
- scenario identifiers;
- replay-branch identifiers;
- version designations;
- support-status labels;
- unresolved-item notices;
- audit receipts;
- work queues; and
- export classifications.

Those structures allowed the book to distinguish:

- facts from contentions;
- lay observations from expert opinions;
- documents from attorney arguments;
- calculations from evidence;
- legal propositions from record facts;
- supported conclusions from held conclusions; and
- internal analysis from externally authorized work.

5.3 Structured Status Classifications

The book repeatedly used classifications such as:

- supplied synthetic fact;
- party contention;
- lay testimony;
- expert opinion;
- documentary evidence;
- derived calculation;
- legal proposition;
- attorney argument;
- supported;
- potentially supportable;
- contested;
- held;
- unresolved;
- internal use only; and
- export prohibited.

These classifications prevented an assumption from becoming a fact merely because it appeared in a table.

They also prevented a numerical scenario from being mistaken for:

- proven damages;

- a verdict prediction;
- a reserve;
- settlement authority; or
- a coverage determination.

5.4 Structured Output Governance Examples

Book activity	Structured-output function
Creating the canonical record	Assigned stable facts, sources, and classifications
Preserving competing speed estimates	Kept both expert positions visible
Separating billed and accepted medical amounts	Prevented unlike categories from being merged
Identifying future knee replacement as contingent	Prevented possible care from becoming established care
Labeling settlement bands as legacy models	Prevented internal scenarios from becoming predictions
Freezing Chapter 8 before replay	Preserved a stable parent version
Recording passed and failed gates	Made review status visible
Marking external export as held	Prevented reliance beyond the approved purpose

Structured Output Governance therefore made the work inspectable. It allowed a reviewer to determine not only what the book said, but also:

- what kind of proposition it was;
- what supported it;
- what remained missing;
- what it could be used for; and
- what it could not establish.

6. VerdictBridge

6.1 Public-Facing Role

VerdictBridge performed the principal litigation-sufficiency analysis illustrated by the book.

Its public-facing question is:

> **Is the litigation record and the resulting analysis sufficiently supported, internally coherent, evidentially grounded, and reviewed to be treated as ready for attorney reliance?**

VerdictBridge applies structured litigation-governance controls to check posture, evidence support, contradiction risk, elements, damages, jury-instruction coverage, appellate-record completeness, replay status, and VerdictReady blockers before litigation analysis is treated as ready for attorney review.

6.2 What VerdictBridge Examined

The book used VerdictBridge-related review to address:

- collision configuration;
- driver testimony;
- claimant testimony;
- spouse testimony;
- reconstruction opinions;
- comparative fault;
- medical causation;
- impairment;
- permanency;
- future care;
- medical expenses;

- wage loss;
- future earning capacity;
- noneconomic exposure;
- evidentiary status;
- settlement posture;
- primary and excess exposure;
- sensitivity changes; and
- final readiness.

VerdictBridge did not simply ask which side had the stronger argument.

It asked whether each conclusion was supported by the type of proof required for that conclusion.

6.3 Examples from the Book

Motorcycle Speed

The book preserved:

- a plaintiff estimate of approximately 46–49 miles per hour;
- a defense estimate of approximately 52–53 miles per hour; and
- a modeled reaction interval of approximately 2.1 seconds.

VerdictBridge did not select one estimate merely because it favored a desired comparative-fault result.

It preserved:

- the competing opinions;
- the missing methodology;
- the unresolved causal effect; and
- the absence of an adjudicated fault percentage.

When Chapter 9 tested a stronger defense-speed predicate, the changed input affected the comparative-fault-adjusted calculations. It did not rewrite the injuries, medical damages, wage record, or coverage structure.

Future Knee Replacement

The book recognized that future knee replacement could materially affect high-side exposure.

It nevertheless kept the procedure held because:

- medical probability was incomplete;
- timing was unresolved;
- current imaging was not supplied; and
- the cost model depended on the disputed medical predicate.

Chapter 9 demonstrated what would happen if that support status changed. The future-care arithmetic changed. Liability and wage conclusions did not.

Future Earning Capacity

The book preserved a real tension between:

- Turner’s physical occupation and alleged residual restrictions; and
- his return to full-time work at the same hourly rate.

VerdictBridge did not force a choice between no future loss and the plaintiff’s highest future-loss model.

It separately classified:

- the same-rate return;
- the limited future-capacity theory;
- the lifetime overtime theory; and
- the larger high-side model.

Each theory required different evidence and remained subject to its own support status.

6.4 VerdictReady

The book did not receive a VerdictReady designation.

That result followed because the record still lacked, among other things:

- authenticated source materials;
- complete expert foundations;
- final wage and billing records;
- resolved evidentiary questions;
- attorney approval;
- production replay; and
- export authorization.

The absence of a VerdictReady designation did not mean that no useful analysis had been produced.

It meant that the analysis remained preliminary, qualified, and controlled.

7. BriefWise

7.1 Public-Facing Role

BriefWise governed the legal-output and filing-integrity issues visible in the book.

Its principal public-facing question is:

> **Is a proposed legal proposition sufficiently supported by verified authority, accurately stated, properly cited, jurisdictionally correct, procedurally aligned, and approved for use in a filing or other court-facing output?**

BriefWise did not perform the entire litigation analysis.

Its clearest function arose when factual and evidentiary analysis was translated into legal propositions that might later appear in:

- a motion;
- a brief;
- a memorandum;
- a motion in limine;
- a jury-instruction submission; or
- another court-facing document.

7.2 Direct Relationship to Chapter 7

Chapter 7 addressed:

- billed versus accepted medical amounts;
- reasonableness and necessity;
- collateral-source issues;
- the traffic citation;
- driver admissions;
- reconstruction testimony;
- medical-expert foundation;
- future-damages certainty;
- social-media authentication;
- motions in limine; and
- jury instructions.

Each subject could produce a legal proposition.

For example, a statement that a citation proves negligence would require more than the existence of a citation. It would require review of:

- the citation document;
- the disposition;
- the purpose for which it was offered;
- the applicable Indiana authority;

- the authority's procedural posture; and
- whether the proposition exceeded the authority's actual holding.

BriefWise-related review prevented those issues from being reduced to unsupported categorical statements.

7.3 Record Support and Authority Support

A filing-quality proposition ordinarily requires two separate forms of support:

5. record support for the factual premise; and
6. authority support for the legal proposition.

VerdictBridge principally identified whether the record supported the factual premise.

BriefWise governed whether the legal proposition was accurately supported and suitable for formal output.

A proposition could therefore fail even where the cited legal rule was correct.

For example:

> **"Future knee replacement is speculative."**

That proposition would require:

- an accurate statement of Indiana future-damages law;
- verified controlling authority;
- correct pinpoints;
- current treatment;
- the actual expert language; and
- a record showing that the required degree of medical certainty was absent.

Without the record predicate, the legal proposition could remain premature even if the cited rule were correct.

7.4 FilingReady

The internal book was not itself a filing.

Accordingly:

- FilingReady was not applicable to most internal chapters;
- filing readiness remained undetermined for any future motion or brief; and
- no court-facing output was authorized.

A later filing would require:

- identification of the requested relief;
- governing procedural rules;
- complete record citations;
- verified controlling authority;
- adverse-authority review;
- quotation fidelity;
- correct jurisdiction and posture;
- standard alignment;
- attorney approval; and
- filing-specific export authorization.

8. Relationship Among the Four Concepts

A useful public explanation is:

> **DIA supplied the authorization and control-plane concept. Structured Output Governance controlled the candidate work before reliance. VerdictBridge performed the litigation-sufficiency analysis. BriefWise governed the transition from that analysis into authority-supported, filing-eligible legal output.**

In plain language:

Concept	Public question
DIA	May the task proceed, and may the result be committed or released?
Structured Output Governance	How should the work be organized, validated, labeled, and shown before reliance?
VerdictBridge	Is the litigation record and analysis sufficiently supported?
BriefWise	Is the resulting legal output sufficiently verified for filing?

8.1 Conceptual Flow

DIA authorization and control → Structured Output Governance → VerdictBridge litigation analysis → BriefWise filing-integrity review

The arrows show the reader's conceptual journey.

They do not represent:

- a complete technical architecture;
- an exclusive assignment of functions;
- a requirement that the systems operate only in that order; or
- a statement that governance occurs only once.

In practice, authorization, structured-output control, litigation review, legal-integrity review, replay, and export control may interact throughout the work.

9. Book-Activity Map

Book activity	Principal public-facing concept or concepts
Receiving case materials and identifying the permitted task	DIA
Normalizing facts and creating the canonical record	Structured Output Governance + VerdictBridge
Assigning fact, source, dispute, calculation, and legal identifiers	Structured Output Governance
Separating facts, testimony, expert opinions, assumptions, calculations, and attorney assessments	Structured Output Governance
Holding unsupported propositions as unresolved	Structured Output Governance + VerdictBridge
Evaluating collision liability and comparative fault	VerdictBridge
Analyzing driver, claimant, and spouse testimony	VerdictBridge
Evaluating medical causation, impairment, permanency, and future care	VerdictBridge
Reconciling medical expenses, wage loss, and earning-capacity theories	VerdictBridge
Detecting contradictions and unsupported transitions	VerdictBridge + Structured Output Governance
Testing Indiana authority, admissibility, citations, and jury instructions	BriefWise
Producing bounded settlement and trial-exposure scenarios	VerdictBridge
Distinguishing internal exposure analysis from filing or trial evidence	VerdictBridge + BriefWise
Freezing a baseline and running isolated sensitivity branches	VerdictBridge + DIA
Preserving lineage, version history, reviewer status, and audit records	Structured Output Governance + DIA
Recalculating only conclusions dependent on a changed input	VerdictBridge
Determining whether work remained provisional or could be released	DIA
Refusing VerdictReady, FilingReady, carrier use, or external export	DIA + VerdictBridge or BriefWise, depending on the proposed use

No row establishes that the identified concept was the only system or control involved.

10. How the Concepts Appeared in Practice

10.1 Canonical Record Creation

The early chapters did not merely retell the accident.

They separated:

- collision facts;
- anticipated testimony;
- expert-dependent propositions;
- medical findings;
- wage information;
- economic inputs;
- disputed issues;
- calculations;
- legal questions; and
- unresolved matters.

Structured Output Governance made those categories visible.

VerdictBridge evaluated whether the classified record was sufficient for liability, medical, economic, and exposure analysis.

DIA preserved the limited demonstration purpose and prevented that preliminary record from being treated as a released real-matter product.

10.2 Unsupported Conclusions Remained Held

The book did not convert a proposition into a fact merely because it appeared repeatedly or was useful to one side.

Held or unresolved matters included:

- the defense motorcycle-speed estimate;
- collision avoidability;
- a fixed comparative-fault percentage;
- the legal significance of the traffic citation;
- the final reasonable value of medical care;
- the impairment methodology;
- future knee replacement;
- final past wage loss;
- lifetime overtime loss;
- the high future earning-capacity model; and
- final noneconomic value.

Structured Output Governance made those statuses visible.

VerdictBridge determined their effect on the litigation assessment.

DIA prevented unresolved outputs from being released beyond their authorized purpose.

10.3 Legal Propositions Received Separate Review

The book distinguished a litigation position from a filing-ready legal proposition.

A defense conclusion could be analytically reasonable and still be unsuitable for filing because:

- controlling authority had not been verified;
- the proposition was broader than the holding;
- a pinpoint was missing;
- the authority involved a different posture;
- adverse treatment remained unchecked; or
- the factual predicate was absent.

BriefWise represented that legal-integrity boundary.

10.4 Exposure Scenarios Remained Analytical

Chapter 8 produced:

- a defense target;
- a recommended settlement zone;
- a likely trial-exposure range;
- a high-side range; and
- an excess-verdict tail.

It also preserved low, central, high, and excess scenarios.

VerdictBridge used those figures as bounded litigation-analysis tools.

Structured Output Governance preserved their classification as legacy modeled scenarios.

DIA prevented their existence from automatically creating:

- a reserve;
- a settlement offer;
- settlement authority;
- carrier approval; or
- external release.

BriefWise would become relevant if anyone attempted to place those internal figures into a filing as though they were evidence, precedent, expert testimony, or an admission.

10.5 Controlled Replay Preserved Unrelated Conclusions

Chapter 9 tested three independent changes:

7. motorcycle speed;
8. future knee replacement; and
9. limited future earning capacity.

Each branch began from the same frozen baseline.

The branches were not combined.

A speed change affected comparative-fault-adjusted totals but not gross medical damages.

A knee change affected future-care calculations but not collision liability.

An earning-capacity change affected economic totals but not medical causation.

That process illustrated:

- VerdictBridge dependency control;
- Structured Output versioning;
- DIA replay and authorization concepts; and
- the continuing BriefWise requirement that any resulting legal proposition still receive proper authority and record review.

10.6 The Final Result Remained Held

The book ended with:

- VerdictReady: No;
- FilingReady: Not applicable or not yet determinable, depending on the proposed use; and
- Export held.

That result demonstrated that the book could be:

- complete as a demonstration;
- useful as an internal analytical model;
- structurally auditable; and
- arithmetically reproducible;

while still remaining unauthorized for carrier, reserve, mediation, filing, or trial reliance.

11. Public-Facing Audit Chain

The public-facing audit chain may be summarized as:

> **Authorized task → structured input → classified proposition → contradiction review → evidentiary or legal review → litigation analysis → candidate output → replay or validation → reviewer decision → release state**

Audit stage	Public-facing concept most visible	Turner-book example
Authorized task	DIA	Synthetic pretrial defense assessment
Structured input	Structured Output Governance	Canonical fact and source registers
Classified proposition	Structured Output Governance	Fact, contention, expert opinion, or calculation
Contradiction review	VerdictBridge	Competing speed, impairment, and medical-value positions
Evidentiary review	VerdictBridge	Citation, expert, medical, and social-media foundations
Legal-integrity review	BriefWise	Indiana authority and jury-instruction verification
Litigation analysis	VerdictBridge	Liability, damages, exposure, and settlement assessment
Candidate output	Structured Output Governance	Structured chapter, table, scenario, or work queue
Controlled replay	VerdictBridge + DIA	Independent speed, knee, and earning-capacity branches
Reviewer decision	DIA	Attorney and carrier review status
Release state	DIA + applicable review system	VerdictReady, FilingReady, or export held

This chain is a public explanatory model. It does not disclose the complete internal operation of any system.

12. Version-Control Statement

Artifact designation: Public-Facing Turner Demonstration Map v1.0

A later revision of this introduction should identify:

Change field	Required description
Section changed	Public-facing section affected
Prior language	Existing explanatory statement
Revised language	Replacement or qualification
Reason	Clarity, scope correction, public-safety adjustment, or updated book structure
Effect	Whether the change affects the conceptual map
Reviewer	Authorized editorial or legal reviewer
Date	Approval date
Version	New introduction or book version

A revision to the public explanation does not alter any underlying canonical fact or analytical result unless the controlling chapter is separately revised through its own version process.

13. Public-Safe Scope Limitation

This introduction describes the systems only at a functional and conceptual level.

It does not disclose:

- proprietary implementation details;

- internal prompts;
- private schemas;
- source code;
- system thresholds;
- hidden configurations;
- internal routing logic;
- audit internals;
- confidential deployment methods; or
- the complete relationship among supporting components.

The four public-facing concepts are used because they give a nontechnical legal audience a practical vocabulary for understanding the demonstration.

They should not be understood as the only systems, controls, or functions reflected in the book.

> **SIMPLIFICATION NOTICE**
>
> This four-part map is intentionally reductionist and is provided for public explanation.
>
> The Turner demonstration also reflects supporting source-lineage, evidence, deposition, contradiction, medical, damages, jury-instruction, record-preservation, audit, replay, version-control, and export-governance functions.
>
> Those functions may involve additional systems and controls.
>
> The four concepts identified in this introduction are the portions most visible and understandable to a nontechnical legal audience. They do not describe the complete architecture, every supporting system, or any proprietary implementation.

14. Introductory Conclusion

The Turner book was not only a legal-analysis demonstration.

It showed how AI-assisted professional work can be:

- authorized before execution;
- organized into a structured record;
- separated into facts, contentions, opinions, calculations, and unresolved issues;
- tested for litigation sufficiency;
- checked for legal-output integrity;
- recalculated through controlled replay;
- preserved through version and audit records;
- reviewed by designated professionals; and
- withheld from reliance when required conditions have not been satisfied.

The clean public message is:

> **This was not only a legal-analysis demonstration. It showed how AI-assisted work can be authorized, structured, tested for litigation sufficiency, checked for filing integrity, audited, replayed, and withheld from reliance when necessary.**

The central lesson is:

> **Producing work is not the same as validating it, and validating work is not the same as authorizing its use.**

VerdictReady: No

FilingReady: Not applicable unless a filing-specific review is activated

Public release status: Conceptual explanation only

Record effect: No canonical fact or analytical conclusion is changed by this introduction.

CHAPTER 1

CANONICAL SYNTHETIC RECORD AND AUDIT MAP

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Primary issue:	Evaluation of liability allocation, medical damages, wage loss, future care, permanency, noneconomic exposure, and settlement posture

SYNTHETIC DEMONSTRATION RECORD — NOT AN ACTUAL CASE, CLIENT, CLAIMANT, DRIVER, CARRIER, MEDICAL PROVIDER, EXPERT, OR COURT RECORD.

This chapter was prepared solely for a controlled law-firm demonstration.

No fact stated in this chapter is represented as true outside the synthetic hypothetical. No testimony excerpt prepared for a later chapter will be a certified transcript. No legal conclusion, valuation, reserve, settlement recommendation, or authority treatment is released for reliance without attorney review.

VerdictReady: No — synthetic demonstration and verification incomplete.

FilingReady: Not applicable unless a later filing-specific BriefWise review is activated.

The underlying Turner assessment identifies the entire case file—including the parties, caption, collision geometry, medical history, wage information, expert opinions, coverage, demands, and valuation scenarios—as invented for demonstration. The report further states that its numerical valuation bands are structured analytical scenarios rather than database-derived verdict predictions.

1. Chapter Purpose and Control Statement

This chapter establishes the **canonical synthetic matter record** for the demonstration book. It identifies the propositions currently treated as part of the hypothetical, assigns stable fact and source identifiers, distinguishes facts from opinions and arguments, preserves material disputes, and creates the foundation for later deposition excerpts, expert summaries, damages analyses, trial-risk assessments, and audit records.

The chapter is designated:

Canonical Synthetic Record v1.0

Later chapters may analyze, contest, qualify, or supplement this record. They may not silently change it.

A later chapter that changes a speed estimate, treatment date, impairment rating, wage assumption, future-care opinion, or other material input must identify the changed fact, state its prior and new values, identify the source of the change, and disclose which conclusions are affected. A later analytical output may not overwrite an unresolved issue merely because one side’s position appears more persuasive.

The purpose of this structure is not to make the synthetic facts appear real. The purpose is to show how a defense team can move from an incomplete intake to an attorney-reviewable work product while keeping the following categories separate:

- synthetic facts;
- party contentions;
- lay observations;
- documentary evidence;
- expert opinions;
- derived calculations;
- attorney arguments;
- legal propositions;
- unresolved questions; and
- release limitations.

The controlled-demonstration materials describe the intended workflow as a movement from incomplete inputs through gap detection, held conclusions, controlled sensitivity, authority review, attorney approval, and an auditable release state.

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2. Matter Overview

The synthetic matter is captioned **Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole** and is placed in Marion Superior Court, Indiana. The hypothetical is in a pretrial settlement-evaluation posture, with mediation scheduled in approximately 60 days.

The collision involves a commercial tractor-trailer making a left turn across two eastbound lanes. Michael Turner was traveling eastbound on a motorcycle and struck the passenger side of the trailer. The record describes daylight and dry roadway conditions with a posted speed limit of 45 miles per hour. The truck driver is said to have seen the motorcycle before impact but misjudged its distance and speed.

Turner is a 33-year-old industrial maintenance technician. He is married and has two children. His employment is physically demanding and includes work that may require climbing, kneeling, prolonged standing, and other industrial

tasks. The synthetic record assigns him an hourly wage of approximately $35 and an average pre-incident workweek of approximately 46 hours, although the availability and continuation of overtime are disputed.

The principal injuries are open tibia and fibula fractures, a femoral shaft fracture, an acetabular fracture, a wrist fracture, rib fractures, a pulmonary contusion, lacerations, road rash, and related soft-tissue injury. The treatment chronology includes air transportation, trauma admission, debridement, external fixation, open reduction and internal fixation of the femur and tibia, skin grafting, and wound closure. The record describes a 21-day hospitalization, approximately 12 days of inpatient rehabilitation, and approximately six months of outpatient therapy.

Turner returned to restricted duty at approximately month 11. He returned to full-time employment at the same hourly rate at approximately month 16. He reached maximum medical improvement at approximately month 19. The record nevertheless identifies residual pain, reduced endurance, retained hardware, visible scarring, reduced range of motion, and an activity-dependent limp.

Medical charges are listed as approximately **$412,640 billed** and **$247,800 accepted**. Those numbers are not interchangeable. The billed amount is not treated as the automatic measure of recoverable medical damages, and the accepted amount is not treated as proof that the services had no greater reasonable value. Competing experts offer different reasonable-value ranges.

The synthetic coverage structure is **$1 million primary coverage plus $4 million excess coverage**, with no coverage dispute. Coverage is relevant to internal exposure and settlement planning but is not treated as an admissible measure of damages.

The normalized matter summary in the Turner assessment supplies the principal collision, claimant, treatment, wage, billing, coverage, and mediation facts used in this chapter.

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3. Record Classification Key

3.1 Supplied Synthetic Fact

A supplied synthetic fact is a proposition expressly included in the controlling Turner assessment or later approved synthetic source.

It may support internal demonstration analysis. It does not establish that the proposition occurred in the real world, is admissible, or would be accepted by a court or jury.

3.2 Synthetic Source Document

A synthetic source document is a demonstration artifact created to model a type of litigation record, such as a deposition excerpt, police-report summary, medical chronology, or wage summary.

It may show how a proposition would be extracted and traced. It may not be represented as an actual report, certified transcript, authenticated record, or third-party business record.

3.3 Party Contention

A party contention is an allegation or litigation position attributed to the plaintiff or defense.

It may define an issue for analysis. It may not be treated as an admitted fact merely because it appears in a pleading, demand, report, or expert disclosure.

3.4 Lay Testimony

Lay testimony consists of synthetic statements attributed to a driver, claimant, spouse, coworker, or other nonexpert witness.

It may support personal observations, perceptions, symptoms, activities, or admissions within the witness's competence. It may not independently establish specialized medical causation, accident reconstruction, reasonable medical value, or future economic loss.

3.5 Expert Opinion

An expert opinion is a synthetic professional conclusion attributed to a qualified reconstructionist, physician, billing analyst, vocational expert, economist, or life-care planner.

It may support the proposition actually addressed by the opinion, subject to methodology, qualifications, foundation, and admissibility. It may not be converted into an undisputed fact.

3.6 Documentary Evidence

Documentary evidence includes modeled medical records, payroll records, billing summaries, photographs, diagrams, or policy documents.

It may support a proposition if the relevant document is complete, authenticated, and properly interpreted. The synthetic version demonstrates the source relationship only; it does not establish actual authentication or admissibility.

3.7 Derived Calculation

A derived calculation is a mathematical result created from identified inputs.

It may show the effect of selected assumptions. It may not establish that those assumptions are accurate or legally recoverable. A mathematically correct calculation can remain analytically unreliable if its inputs are incomplete or contested.

3.8 Legal Proposition

A legal proposition is a statement about Indiana substantive law, evidence rules, damages, comparative fault, procedure, or admissibility.

It may not be released for reliance until the source, current treatment, jurisdiction, procedural posture, pinpoints, and record-specific application are verified by counsel.

3.9 Attorney Argument

An attorney argument is a strategic interpretation of facts or evidence, including a proposed concession, impeachment theme, mediation position, or trial narrative.

It may support decision-making. It is not evidence.

3.10 Unresolved Issue

An unresolved issue is a proposition that cannot presently be confirmed, rejected, or used without qualification.

An unresolved issue must remain visible. It may not be silently assigned the value most useful to either side.

3.11 Excluded or Limited-Use Information

Excluded or limited-use information may include policy limits, settlement communications, insurance-payment references, cumulative demonstratives, or unsupported punitive themes.

Its existence may matter to internal strategy, but its use in discovery, mediation, motion practice, or trial remains subject to separate legal and evidentiary review.

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4. Canonical Fact Register

The following register classifies the material synthetic baseline contained in the Turner assessment. A listed source identifier refers to the synthetic source anticipated for a later chapter. Until that source is drafted, the Turner assessment remains the controlling demonstration source.

Fact ID	Proposition	Classification	Synthetic source	Support status	Analytical use
F-PROC-001	The synthetic caption is Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole.	Supplied synthetic fact	SYN-INT-001	Baseline established	Matter identity
F-PROC-002	The synthetic court is Marion Superior Court, Indiana.	Supplied synthetic fact	SYN-INT-001	Baseline established; real venue effects unverified	Jurisdiction and posture
F-PROC-003	The matter is in pretrial settlement evaluation with mediation in approximately 60 days.	Supplied synthetic fact	SYN-MED-SET-001	Baseline established	Timing and discovery priorities
F-LIAB-001	The tractor-trailer began a left turn across two eastbound lanes.	Supplied synthetic fact	SYN-POL-001; SYN-SCN-001	Baseline established	Primary negligence analysis
F-LIAB-002	Turner’s motorcycle struck the passenger side of the trailer.	Supplied synthetic fact	SYN-POL-001; SYN-SCN-001	Baseline established	Collision geometry
F-LIAB-003	The road was described as dry and the collision occurred in daylight.	Supplied synthetic fact	SYN-POL-001	Baseline established	Visibility and reconstruction
F-LIAB-004	The posted speed limit was 45 miles per hour.	Supplied synthetic fact	SYN-POL-001	Baseline established	Speed comparison
F-LIAB-005	The truck driver saw the motorcycle before impact but misjudged its distance and speed.	Lay testimony / driver admission	SYN-DEP-DRV-001	Material admission; transcript not yet drafted	Primary fault and credibility
F-LIAB-006	The plaintiff reconstruction estimate is approximately 46–49 miles per hour.	Expert opinion	SYN-REC-PLF-001	Contested	Plaintiff speed position
F-LIAB-007	The defense reconstruction estimate is approximately 52–53 miles per hour.	Expert opinion	SYN-REC-DEF-001	Contested	Comparative-fault argument
F-LIAB-008	The modeled reaction interval is approximately 2.1 seconds.	Expert opinion / derived calculation	SYN-REC-PLF-001; SYN-REC-DEF-001	Methodology unresolved	Avoidability analysis

Fact ID	Proposition	Classification	Synthetic source	Support status	Analytical use
F-LIAB-009	The driver was cited for failure to yield.	Supplied synthetic fact	SYN-POL-001	Use and admissibility unresolved	Traffic-rule context
F-LIAB-010	No alcohol, drug, phone-use, or protective-equipment violation is attributed to Turner.	Supplied synthetic fact	SYN-POL-001	Baseline established	Limits defense blame themes
F-LIAB-011	No hours-of-service, maintenance, or spoliation issue is attributed to defendants.	Supplied synthetic fact	SYN-INT-001	Baseline established	Limits punitive or corporate themes
F-LIAB-012	The driver has a clean driving record.	Supplied synthetic fact	SYN-DEP-DRV-001	Context only; limited liability use	Witness and corporate presentation
F-PERS-001	Turner was 33 at the time of the collision.	Supplied synthetic fact	SYN-INT-001	Baseline established	Duration of claimed impairment
F-PERS-002	Turner is married and has two children.	Supplied synthetic fact	SYN-INT-001; SYN-DEP-SP-001	Baseline established	Witness presentation; no automatic multiplier
F-PERS-003	Turner worked as an industrial maintenance technician.	Supplied synthetic fact	SYN-WAGE-001	Baseline established	Vocational and functional analysis
F-PERS-004	Turner had a stable work history and is expected to present as understated and work-oriented.	Synthetic fact plus analytical assessment	SYN-WAGE-001; SYN-DEP-PLF-001	Presentation assessment, not evidence of damages	Credibility risk
F-MED-001	Turner sustained open tibia and fibula fractures.	Supplied synthetic fact / documentary evidence	SYN-MED-001	Baseline established	Acute severity and permanency
F-MED-002	Turner sustained a femoral shaft fracture.	Supplied synthetic fact / documentary evidence	SYN-MED-001	Baseline established	Acute severity and residual function
F-MED-003	Turner sustained an acetabular fracture.	Supplied synthetic fact / documentary evidence	SYN-MED-001	Baseline established	Hip function and causation
F-MED-004	Turner sustained a wrist fracture, rib fractures, pulmonary contusion, lacerations, and road rash.	Supplied synthetic fact	SYN-MED-001	Baseline established	Acute pain and injury scope
F-MED-005	Turner was transported by air and admitted for trauma treatment.	Supplied synthetic fact	SYN-MED-001	Baseline established	Acute severity and cost
F-MED-006	Turner underwent debridement and external fixation.	Supplied synthetic fact	SYN-MED-001	Baseline established	Open-fracture treatment
F-MED-007	Turner underwent ORIF of the femur and tibia with retained hardware.	Supplied synthetic fact	SYN-MED-001	Baseline established	Surgery, permanency, future care
F-MED-008	Turner underwent skin grafting and wound closure.	Supplied synthetic fact	SYN-MED-001	Baseline established	Scarring and disfigurement
F-MED-009	Turner was hospitalized for approximately 21 days.	Supplied synthetic fact	SYN-MED-001	Baseline established	Acute pain and noneconomic exposure
F-MED-010	Turner underwent approximately 12 days of inpatient rehabilitation and six months of outpatient therapy.	Supplied synthetic fact	SYN-MED-001	Baseline established	Recovery burden and mitigation
F-MED-011	Turner reached maximum medical improvement at approximately month 19.	Supplied synthetic fact	SYN-ORTH-PLF-001; SYN-ORTH-DEF-001	Baseline established; foundation pending	Permanency analysis
F-MED-012	Plaintiff assigns a 12% whole-person impairment rating.	Expert opinion	SYN-ORTH-PLF-001	Contested	Plaintiff permanency model
F-MED-013	Defense assigns a 7% whole-person impairment rating.	Expert opinion	SYN-ORTH-DEF-001	Contested	Defense permanency model

Fact ID	Proposition	Classification	Synthetic source	Support status	Analytical use
F-MED-014	Turner has visible scars and an observable limp, although frequency and severity are disputed.	Lay observation / expert opinion	SYN-DEP-PLF-001; SYN-DEP-SP-001; orthopedic summaries	Core condition supported; extent contested	Noneconomic exposure
F-MED-015	Hardware removal is treated as probable future care, with a modeled range of approximately $28,000–$42,000.	Expert opinion / derived calculation	SYN-ORTH-PLF-001; SYN-ORTH-DEF-001	Supportable if sufficiently certain	Future-medical analysis
F-MED-016	Routine follow-up and imaging are modeled at approximately $6,000–$10,000.	Expert opinion / derived calculation	Orthopedic summaries	Foundation unresolved	Future-medical analysis
F-MED-017	Future knee replacement is possible or contingent, not established as reasonably certain.	Competing expert opinion	SYN-ORTH-PLF-001; SYN-ORTH-DEF-001	Contested	Major future-care gate
F-MED-018	The modeled additional cost for a knee replacement is approximately $125,000–$180,000.	Derived calculation based on disputed predicate	Future life-care materials	Held	High-side scenario only
F-MED-019	A remote ankle sprain and prior mild lumbar complaints are identified, but no prior femur, tibia, knee, or hip condition is documented in the synthetic baseline.	Supplied synthetic fact	SYN-MED-001	Baseline established	Prior-condition analysis
F-WAGE-001	Turner earned approximately $35 per hour.	Supplied synthetic fact	SYN-WAGE-001	Baseline established	Past wage calculation
F-WAGE-002	Turner historically averaged approximately 46 hours per week.	Supplied synthetic fact	SYN-WAGE-001	Baseline established; duration and consistency require source data	Overtime analysis
F-WAGE-003	Turner returned to restricted duty at approximately month 11.	Supplied synthetic fact	SYN-WAGE-001	Baseline established	Past loss and mitigation
F-WAGE-004	Turner returned to full-time work at the same hourly rate at approximately month 16.	Supplied synthetic fact	SYN-WAGE-001	Baseline established	Future-capacity defense
F-WAGE-005	Plaintiff contends that restrictions will reduce future overtime, promotion opportunities, and job options.	Party contention / expert opinion	SYN-DEP-PLF-001; vocational materials	Contested	Future earning capacity
F-WAGE-006	The defense contends that same-rate full-time work and trade skills preserve substantial earning capacity.	Attorney argument / expert opinion	SYN-WAGE-001; defense vocational analysis	Contested	Defense future-loss position
F-DAM-001	Gross billed medical charges total approximately $412,640.	Documentary evidence	SYN-BILL-001	Amount supplied; recoverability unresolved	Medical-expense anchor
F-DAM-002	Amounts accepted total approximately $247,800.	Documentary evidence	SYN-BILL-001	Amount supplied; foundation and use unresolved	Reasonable-value analysis
F-DAM-003	Health-insurance payments are modeled at approximately $211,500.	Documentary evidence	SYN-BILL-001	Limited-use; collateral-source treatment unresolved	Payment reconciliation
F-DAM-004	Plaintiff responsibility or liens are modeled at approximately $36,300.	Documentary evidence	SYN-BILL-001	Lien enforceability unresolved	Settlement payoff
F-DAM-005	Defense reasonable-value opinion is approximately $225,000–$255,000.	Expert opinion	SYN-BILL-001	Contested; methodology required	Defense medical-damages model
F-DAM-006	Plaintiff reasonable-value opinion is approximately $340,000–$390,000.	Expert opinion	SYN-BILL-001	Contested; methodology required	Plaintiff medical-damages model

Fact ID	Proposition	Classification	Synthetic source	Support status	Analytical use
F-PERS-005	Social-media material depicts family travel, fishing, and light home projects.	Documentary evidence / contextual evidence	SYN-SOC-001	Context required; authentication unresolved	Functional calibration
F-PERS-006	The record indicates no return to motorcycling.	Lay testimony / documentary evidence	SYN-DEP-PLF-001; SYN-SOC-001	Baseline supplied	Loss-of-enjoyment claim
F-COV-001	Primary coverage is $1 million.	Supplied synthetic fact	SYN-COV-001	Internal use only	Excess exposure
F-COV-002	Excess coverage is $4 million.	Supplied synthetic fact	SYN-COV-001	Internal use only	Excess exposure
F-COV-003	No coverage dispute is identified.	Supplied synthetic fact	SYN-COV-001	Baseline established	Settlement planning

The treatment chronology, return-to-work dates, and MMI date are drawn from the Turner medical chronology. The impairment, medical-value, future-care, future-capacity, and social-media entries remain expressly contested or limited in use.

5. Synthetic Source Index

Each source below is an anticipated demonstration document. None has the status of an actual certified, authenticated, or third-party record unless and until separately created and clearly labeled.

Source ID	Anticipated contents and permissible support	Propositions it may not establish	Type / admissibility
SYN-INT-001	Matter identity, parties, posture, supplied facts, coverage, requested analysis	Truth of collision mechanics, medical causation, admissibility	Attorney work product; not evidence
SYN-POL-001	Modeled scene description, traffic conditions, citation, reported statements	Final fault, negligence per se, expert speed analysis	Synthetic documentary summary; admissibility unresolved
SYN-SCN-001	Diagram of lanes, truck turn, motorcycle path, impact point	Precise measurements not otherwise supplied	Demonstrative; foundation unresolved
SYN-DEP-DRV-001	Driver’s observations, admission that he saw the motorcycle and misjudged distance or speed, driving history	Technical reconstruction, plaintiff speed, medical damages	Synthetic lay testimony; not certified
SYN-DEP-PLF-001	Symptoms, recovery, work history, restrictions, activities, loss of enjoyment	Medical probability, impairment methodology, future costs	Synthetic lay testimony; not certified
SYN-DEP-SP-001	Observed recovery, household effects, gait, family impact	Medical diagnosis, economic-loss calculation, automatic derivative damages	Synthetic lay testimony; not certified
SYN-MED-001	Injury and treatment chronology, procedures, rehabilitation, prior conditions	Reasonable medical value, legal necessity, future certainty without opinion	Synthetic medical summary; authentication unresolved
SYN-ORTH-PLF-001	Plaintiff orthopedic diagnoses, permanency, 12% impairment, future-care opinions	Billing value, vocational loss, reconstruction	Synthetic expert summary; methodology and admissibility unresolved
SYN-ORTH-DEF-001	Defense orthopedic opinions, 7% impairment, retained function, hardware-removal assessment	Definitive rejection of subjective symptoms or all future care	Synthetic expert summary; methodology and admissibility unresolved
SYN-REC-PLF-001	Plaintiff speed estimate, perception-reaction analysis, avoidability opinion	Medical injury, damages, legal fault allocation	Synthetic expert summary; inputs and methodology unresolved
SYN-REC-DEF-001	Defense speed estimate and speed-based avoidability analysis	Adjudicated comparative fault or proof the collision would not have occurred	Synthetic expert summary; inputs and methodology unresolved

Source ID	Anticipated contents and permissible support	Propositions it may not establish	Type / admissibility
SYN-WAGE-001	Hourly rate, workweek history, absence period, return-to-work dates, overtime data	Lifetime capacity without vocational and economic foundation	Synthetic documentary summary; foundation unresolved
SYN-BILL-001	Billed, accepted, paid, written-off, lien, and expert reasonable-value figures	Automatic recoverability or legal admissibility	Synthetic billing summary; legal and evidentiary review required
SYN-SOC-001	Contextual family travel, fishing, light projects, and lack of return to motorcycling	Absence of pain, unrestricted work capacity, dishonesty	Synthetic documentary summary; authentication and completeness unresolved
SYN-COV-001	Primary and excess limits, no-coverage-dispute assumption, authority status	Trial damages, admissible fault evidence, settlement value by itself	Internal attorney/carrier material; limited use
SYN-MED-SET-001	Demand, offer, authority, mediation objectives, disputed components, negotiation plan	Admissible liability or damages proof	Attorney work product / settlement material

6. Liability Issue Map

Largely Undisputed Synthetic Collision Facts

The truck began a left turn across two eastbound lanes, and the motorcycle struck the passenger side of the trailer. The driver saw the motorcycle before impact. No impairment, distraction, or protective-equipment violation is attributed to Turner. No hours-of-service, maintenance, or spoliation issue is attributed to defendants.

Driver Admission

The most important anticipated driver admission is that he saw the motorcycle but misjudged its distance and speed. That admission materially favors the plaintiff and makes an aggressive defense effort to shift primary responsibility to Turner strategically hazardous.

Plaintiff Contentions

Plaintiff’s intended position is that the driver created an unavoidable crossing hazard and left Turner only seconds to react. Plaintiff’s reconstruction places the motorcycle near the posted speed limit and treats the left turn as the dominant cause.

Defense Comparative-Fault Contention

The defense reconstruction places the motorcycle approximately seven to eight miles per hour above the posted limit. The defense position is that the additional speed reduced perception, reaction, and stopping opportunity and may support a modest comparative-fault allocation.

This is a contention, not an adjudicated allocation.

Reconstruction Disagreement

The speed difference—approximately 46–49 miles per hour versus 52–53 miles per hour—depends on reconstruction inputs, assumptions, timing, roadway evidence, and reaction modeling. The approximate 2.1-second reaction interval must not be treated as an uncontested physical fact unless both experts accept its basis.

Evidentiary Limitations

The citation, driver statement, reconstruction opinions, diagram, and speed assumptions each require separate foundation and use analysis. A citation does not substitute for full fault analysis. An expert's mathematical model does not establish the accuracy of its input data.

Strategic Defense Concession

The strongest current defense posture is to acknowledge that the truck driver bears primary responsibility while preserving a narrowly framed speed-based comparative-fault argument. The Turner assessment considers a modest allocation arguable but warns that overstatement may undermine defense credibility.

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7. Medical and Causation Issue Map

The existence and collision causation of the principal fractures and surgeries are not meaningful defense disputes within the synthetic baseline. Objective imaging, operative treatment, hospitalization, rehabilitation, and scarring create strong injury proof.

The principal medical disputes concern **extent**, **permanency**, **future progression**, and **future cost**.

Plaintiff's modeled whole-person impairment rating is 12%. The defense rating is 7%. Both are expert opinions. Neither percentage is a fact merely because it appears in an expert report.

Hardware removal is treated as a supportable future-care component if the anticipated testimony establishes probability, timing, causal connection, and cost. Knee replacement is different. The synthetic record describes it as possible or contingent, and the additional cost model depends on a disputed medical predicate. It must remain held unless sufficiently certain testimony supports it.

The remote ankle sprain and mild lumbar history do not presently create a strong alternative-causation defense for the leg fractures. The absence of prior femur, tibia, knee, or hip impairment favors plaintiff on causation.

Several injuries—the ribs, pulmonary contusion, and much of the wrist complaint—are described as resolved or of limited future significance. The leg fractures, hip stiffness, hardware, scars, gait changes, and activity restrictions remain material.

Turner's return to full-time same-rate work does not eliminate pain or permanency. It does, however, constrain claims of total disability and must be reconciled with any expert assertion of major lifetime vocational loss.

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8. Damages Issue Map

Billed Medical Charges

The $412,640 billed figure is a material trial and mediation anchor. It is not automatically the recoverable amount. Its use depends on current Indiana law, foundation, and the evidence admitted.

Accepted or Paid Amounts

The $247,800 accepted amount is relevant to reasonable-value analysis but must not be presented as proof that the treatment was unnecessary or of little value. References to health-insurance payments or write-offs require separate collateral-source and evidentiary review.

Reasonable Medical Value

The defense range is approximately $225,000–$255,000. The plaintiff range is approximately $340,000–$390,000. Those are competing expert opinions. Their reliability depends on source data, methodology, geographic comparisons, treatment coding, and permissible use of billed and paid amounts.

Past Wage Loss

Past wage loss is potentially supportable from the $35 hourly rate, historical hours, absence period, and return-to-work chronology. The complete payroll record is not yet represented as verified. A later calculation must identify the weeks, hours, overtime assumptions, disability payments, and mitigation credits used.

Overtime Assumptions

The average 46-hour workweek supports some historical overtime. It does not establish that six overtime hours would have remained available every week for Turner’s entire work life.

Future Earning Capacity

Plaintiff contends that restrictions reduce access to heavier industrial work, overtime, promotions, and alternative jobs. The defense relies on same-rate full-time employment, trade certifications, and continued employability. A future-loss model of approximately $250,000–$425,000 appears in the synthetic assessment as a disputed plaintiff theory, not a canonical loss.

Future Medical Care

Probable hardware removal and routine follow-up should be separated from the contingent knee-replacement claim. Combining them into one undifferentiated future-medical figure would conceal the differing levels of support.

Permanency, Pain, Scarring, and Loss of Function

The injuries, surgeries, scars, limp, retained hardware, and restrictions create meaningful noneconomic exposure. The precise value is not a fact and should not be created by multiplying medical expenses. Plaintiff’s ability to work, travel, fish, and perform light projects moderates a total-loss narrative but does not disprove chronic pain.

Spouse and Family Evidence

Spouse and family testimony may describe observed recovery, household disruption, and activity changes. Family status must not be used as an automatic damages multiplier.

Mitigation

Return to restricted duty and later full-time work support mitigation and work ethic. Consistent therapy and return-to-work efforts favor plaintiff’s credibility even while limiting parts of the economic claim.

Collateral-Source and Admissibility Questions

The admissibility and permitted framing of billed, paid, accepted, written-off, and lien amounts remain subject to current Indiana authority and the actual evidentiary foundation. No legal proposition governing those categories is treated as verified in this chapter.

The controlled-demo materials expressly limit the medical-expense authority overlay: it may inform billed-versus-accepted reasonable-value issues but does not establish whole-case value, noneconomic damages, future loss, liability, reserve, or settlement range.

9. Contradiction and Dispute Register

Issue ID	Plaintiff position	Defense position	Record status	Required resolution
D-001 Motorcycle speed	Approximately 46–49 mph	Approximately 52–53 mph	Competing expert opinions	Reconstruction files, measurements, calculations, cross-examination
D-002 Avoidability	Driver's turn left insufficient reaction time	Lower speed may have increased stopping margin	Unresolved	Expert methodology and demonstratives
D-003 Comparative fault	Zero or minimal plaintiff fault	Modest speed-based allocation	Contested; not adjudicated	Jury instruction, expert proof, credibility assessment
D-004 Reasonable medical value	Approximately $340k–$390k	Approximately $225k–$255k	Competing expert opinions	Source data, methodology, Indiana evidence law
D-005 Impairment	12% whole person	7% whole person	Competing expert opinions	Reports, examination findings, methodology
D-006 Functional capacity	Permanent restrictions materially limit industrial work	Full-time same-rate employment shows substantial capacity	Mixed evidence	Updated function records, employer testimony, vocational analysis
D-007 Future knee replacement	Arthritis risk makes replacement probable or reasonably anticipated	Procedure is contingent and timing uncertain	Held	Treating orthopedist testimony and medical foundation
D-008 Lifetime overtime loss	Reduced overtime will persist over work life	Short post-return history and workplace demand do not prove lifetime loss	Held	Complete payroll, employer data, vocational and economic foundation
D-009 Chronic pain	Persistent pain materially affects daily life	Intermittent, activity-dependent pain compatible with substantial function	Mixed	Treatment records, medication, testimony, examination
D-010 Social media	Activities show effort to resume normal life	Activities demonstrate retained function	Context-sensitive	Complete posts, dates, frequency, examination testimony
D-011 Noneconomic characterization	Lifelong loss of physical freedom and visible permanency	Serious but bounded injury with substantial recovery	Attorney arguments	Trial evidence, witness presentation, jury instructions

10. Missing-Variable and Verification Register

The following items would be required before the chapter could be converted from a synthetic demonstration record into a real attorney-reliance product:

Pleadings and Procedural Record

- **UNRESOLVED — record support required:** Actual complaint, answer, affirmative defenses, amendments, case-management orders, and pending motions.
- **UNRESOLVED — verification required:** Actual county, court assignment, judge, trial date, mediation order, and procedural deadlines.

Collision Evidence

- **UNRESOLVED — record support required:** Complete police report, photographs, measurements, body-camera material, witness statements, vehicle inspections, downloads, and scene evidence.
- **UNRESOLVED — record support required:** Reconstruction source files, formulas, assumptions, error ranges, and demonstratives.
- **UNRESOLVED — verification required:** Citation disposition and permissible evidentiary use.

Testimony

- **UNRESOLVED — record support required:** Certified driver, claimant, spouse, employer, treating-provider, and expert transcripts.
- **UNRESOLVED — verification required:** Transcript corrections, exhibits, objections, and errata.

Medical Proof

- **UNRESOLVED — record support required:** Authenticated hospital, rehabilitation, therapy, imaging, operative, pharmacy, and follow-up records.
- **UNRESOLVED — record support required:** Current examination, photographs, gait video, restrictions, MMI basis, and impairment methodology.
- **UNRESOLVED — record support required:** Treating-provider testimony establishing probability, timing, causation, and cost of hardware removal or knee replacement.

Medical Expenses and Liens

- **UNRESOLVED — record support required:** Itemized bills, coding, payment ledgers, accepted amounts, write-offs, patient responsibility, and lien documents.
- **UNRESOLVED — verification required:** Billing-expert datasets, geographic benchmarks, methodology, and assumptions.
- **UNRESOLVED — controlling authority required:** Current Indiana law concerning billed, accepted, discounted, paid, and collateral-source evidence.

Wage and Earning Capacity

- **UNRESOLVED — record support required:** Payroll, tax, overtime, benefits, absence, disability-payment, return-to-work, and current-hour records.
- **UNRESOLVED — record support required:** Employer testimony about overtime availability, accommodations, promotions, and continued employment.
- **UNRESOLVED — verification required:** Vocational and economic methodology, work-life assumptions, mitigation, and present-value calculations.

Expert Proof

- **UNRESOLVED — verification required:** Qualifications, reports, reliance materials, methodology, testing, error rates, and admissibility of each expert.
- **UNRESOLVED — record support required:** Life-care plan source records distinguishing physician-directed care from planner assumptions.

Legal and Trial Materials

- **UNRESOLVED — controlling authority required:** Current Indiana comparative-fault, damages, medical-expense, future-damages, expert, collateral-source, and evidence authority.
- **UNRESOLVED — controlling authority required:** Current Indiana pattern instructions and any case-specific instruction language.
- **UNRESOLVED — verification required:** Citator treatment, official pinpoints, negative history, and jurisdictional fit.
- **UNRESOLVED — verification required:** Motions-in-limine strategy and preservation requirements.

Comparable Outcomes and Venue

- **UNRESOLVED — verification required:** Approved verdict and settlement sources.
- **UNRESOLVED — verification required:** Material similarity of venue, injury, fault, treatment, work loss, policy posture, and evidentiary rulings.
- **UNRESOLVED — verification required:** Methodology for using comparable outcomes without false precision.

Insurance and Carrier Requirements

- **UNRESOLVED — record support required:** Actual policies, endorsements, limits, reservation letters, exhaustion terms, and excess reporting requirements.
- **UNRESOLVED — verification required:** Carrier guidelines, reserve procedures, settlement authority, lien treatment, and reporting format.

Release Authorization

- **UNRESOLVED — verification required:** Designated attorney reviewer.
- **UNRESOLVED — verification required:** Reviewer approval of facts, assumptions, sources, legal propositions, changes, and destination.
- **UNRESOLVED — verification required:** Final replay and audit receipt for the completed demonstration book.

The Turner assessment similarly identifies treating-orthopedist testimony, payroll history, billing source data, function records, reconstruction files, photographs, life-care source records, and lien verification as priority discovery.

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11. Audit Chain

The intended audit chain is:

Synthetic source → extracted proposition → classification → contradiction review → admissibility status → analytical use → calculation or conclusion → attorney review → release state

Audit example	Source and proposition	Classification / contradiction	Analytical use	Review and release
Driver admission	SYN-DEP-DRV-001: driver saw motorcycle and misjudged distance/speed	Lay admission; consistent with primary fault; transcript synthetic	Liability assessment and concession strategy	Attorney review required; not trial evidence
Motorcycle speed	SYN-REC-PLF-001 and SYN-REC-DEF-001: 46–49 versus 52–53 mph	Competing expert opinions	Comparative-fault sensitivity	Held pending methodology and admissibility
Medical charges	SYN-BILL-001: $412,640 billed; $247,800 accepted	Documentary amounts; legal use disputed	Reasonable-value analysis	Held pending foundation and Indiana-law review

Audit example	Source and proposition	Classification / contradiction	Analytical use	Review and release
Future knee replacement	Plaintiff orthopedic/life-care materials versus defense orthopedist	Competing expert opinion; predicate disputed	High-side future-care scenario only	Not authorized as established future loss
Return to work	SYN-WAGE-001: restricted duty month 11; full-time same-rate work month 16	Documentary and lay support; consistent with impairment but inconsistent with total disability	Past-loss boundary and future-capacity defense	Attorney review required
Social-media activity	SYN-SOC-001: travel, fishing, light projects	Contextual evidence; does not disprove pain	Functional calibration and cross-examination	Limited use; no montage or character attack
Coverage	SYN-COV-001: $1M primary plus $4M excess	Internal insurance fact; inadmissibility concerns	Excess reporting and settlement planning	Restricted from trial-facing output

The demonstration materials require the audit record to preserve the input version, changed facts, configuration, jurisdiction, sources, authority treatment, reviewer, output version, change history, authorization, and export state.

12. Version-Control Statement

Artifact designation: Canonical Synthetic Record v1.0

No later chapter may alter a material fact without a change entry containing:

Required change field	Description
Changed fact ID	Existing identifier affected
Prior value	Exact prior proposition
New value	Exact replacement or qualification
Source	New synthetic or verified source
Reason for change	Correction, supplementation, testimony, new opinion, or controlled sensitivity
Affected conclusions	Liability, damages, credibility, valuation, motion, or release consequences
Reviewer	Attorney or authorized reviewer
Date	Date of approval
Output version	New chapter or book version

A changed expert opinion does not overwrite the opposing opinion. It creates a new opinion entry or modifies the status of an existing disputed issue.

A controlled sensitivity run must identify which facts changed and confirm which facts remained unchanged. The controlled-demo materials treat visible change history and unchanged held states as central to the audit demonstration.

13. Preliminary Gatekeeper Result

VerdictBridge Assessment

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial settlement and mediation evaluation

Runtime Mode: Defense-side trucking assessment

Case / Motion / Trial Issue: Liability, medical damages, wage loss, future care, permanency, jury exposure, and settlement posture

Preliminary Result

Canonical synthetic record established for demonstration use.

VerdictReady: No

FilingReady, if BriefWise mode active: Not applicable

Gatekeeper Findings

Runtime: Demonstration use only. The matter is wholly synthetic and is not a production case execution.

Input normalization: Pass for the synthetic baseline. Parties, posture, collision, medical treatment, economic categories, coverage, and dispute states have been assigned identifiers.

Contradiction: Material disputes preserved. Speed, avoidability, impairment, medical value, future knee replacement, overtime loss, function, and noneconomic characterization have not been artificially resolved.

Evidence admissibility: Not verified. No synthetic source is treated as authenticated or admitted evidence.

Authority / fact support: Synthetic factual support mapped. Legal authority, citator treatment, pinpoints, and record-specific application remain incomplete.

Claim / defense elements: Preliminary only. The record supports issue identification but not final element or defense validation.

Standard alignment: Verification required. Current Indiana burdens, standards, evidentiary rules, and procedural requirements have not been fully mapped.

Damages: Disputed and incomplete. Billed, accepted, paid, reasonable-value, wage, future-care, earning-capacity, lien, and noneconomic categories require separate proof.

Jury instructions: Not verified.

Appellate record: Not applicable to the present pretrial demonstration posture.

Replay / audit: Structure established. Fact IDs, source IDs, dispute states, audit chain, and version controls are defined. A completed production execution receipt has not been created.

Export: Attorney-review demonstration only. Carrier-, reserve-, settlement-, mediation-, or filing-ready release is not authorized by this chapter.

Failed Gates / Runtime State

Failed gate: Evidence, legal-authority, damages-support, jury-instruction, replay-completion, and attorney-authorization requirements remain incomplete.

Runtime state: REVIEW REQUIRED / EXPORT HELD

Export effect: No reliance release authorized.

Required Fixes Before VerdictReady

VerdictReady cannot be confirmed because the matter is synthetic and required factual, legal, evidentiary, damages, replay, and attorney verification is incomplete.

Before any comparable real-matter output could be considered for attorney reliance, the reviewing team would need to:

1. replace demonstration facts with verified matter records;
2. authenticate and cite the controlling evidence;
3. resolve or preserve all material contradictions;
4. validate expert foundations and admissibility;
5. verify current Indiana law and jury instructions;
6. complete the damages and lien record;
7. confirm venue and any comparable-outcome methodology;
8. complete attorney review and change approval;
9. execute replay and audit validation; and
10. obtain express export authorization.

Adversarial Risk

High on liability credibility if the defense overstates comparative fault. High on noneconomic exposure if visible injuries, scars, limp, and work-oriented claimant presentation are minimized. Moderate to high on medical-value, future-care, and wage disputes depending on the quality of expert foundations.

Evidentiary Issues

The principal evidentiary issues concern reconstruction inputs, use of the traffic citation, billed and accepted medical amounts, collateral-source references, future-procedure certainty, lifetime overtime assumptions, social-media context, demonstrative proportionality, and expert methodology.

Record / Appellate Issues

No real record has been assembled. Pleadings, transcripts, authenticated exhibits, rulings, objections, jury materials, and preservation events remain absent or not applicable.

Confidence / Hallucination Risk

Confidence in transcription of the synthetic baseline: High.

Confidence in real-world legal or factual applicability: Not determinable.

Hallucination risk if the chapter is mislabeled or detached from its synthetic-source notice: High.

Attorney review required.

CHAPTER 2

SYNTHETIC INTAKE, SCENE RECORD, AND COLLISION CHRONOLOGY

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Artifact designation:	Synthetic Collision Record v1.0
Controlling source:	Canonical Synthetic Record v1.0
Preparation status:	Controlled law-firm demonstration
Intended audience:	Transportation-defense attorneys, claims professionals, primary carrier, and excess carrier
Release status:	Attorney-review demonstration only

SYNTHETIC DEMONSTRATION RECORD — NOT AN ACTUAL POLICE REPORT, INVESTIGATION, COURT RECORD, CLIENT FILE, DRIVER STATEMENT, WITNESS STATEMENT, OR ACCIDENT-RECONSTRUCTION RECORD.

This chapter was prepared solely for a controlled law-firm demonstration.

All names, entities, events, measurements, statements, and documents are synthetic. No synthetic document is authenticated, certified, sworn, or admissible. No official police-report format, agency insignia, badge number, government seal, report number, signature block, or accident-report certification is used.

No new fact becomes canonical merely because it appears in this chapter. Any additional factual detail must be expressly classified and routed for attorney approval before it can supplement the canonical synthetic record.

VerdictReady: No — synthetic demonstration and verification incomplete.

FilingReady: Not applicable.

This chapter supplements but does not amend **Canonical Synthetic Record v1.0**. Chapter 1 established the controlling fact identifiers, source identifiers, dispute classifications, and change-control requirements. The Turner assessment independently labels the caption, collision geometry, speed estimates, reaction-time model, citation, medical record, financial figures, coverage, and expert opinions as invented solely for the demonstration.

1. Chapter Control and Record Status

1.1 Controlling-record rule

The following hierarchy governs this chapter:

1. **Canonical Synthetic Record v1.0**
2. **VerdictBridge Turner Trucking Defense Assessment**
3. Existing controlled-demonstration materials concerning missing-variable control, attorney review, change tracking, and export limitations
4. This chapter's source expansions

If this chapter appears to conflict with Chapter 1, Chapter 1 controls unless a formal change record is approved.

Existing fact identifiers are preserved. Existing source identifiers are preserved. No identifier is reused for a different proposition.

1.2 Approved classifications

Each proposition in this chapter is classified as one of the following:

- Supplied synthetic fact
- Proposed synthetic detail — attorney approval required
- Party contention
- Lay statement or anticipated lay testimony
- Expert-dependent proposition
- Derived calculation
- Analytical assumption
- Attorney assessment or strategy
- Unresolved
- Excluded from canonical record

A proposed synthetic detail is not a fact. An expert-dependent proposition is not an admitted fact. An analytical assumption is not evidence. An attorney assessment is not testimony.

1.3 Current collision status

The current record supports the following preliminary characterization:

- The tractor-trailer's left-turn movement presents substantial primary-liability exposure.
- The driver's reported observation and misjudgment are material.
- The motorcycle-speed dispute may support a limited comparative-fault argument.
- The comparative-fault argument depends on reliable reconstruction proof.
- The present record does not establish an adjudicated allocation of fault.
- Missing scene, vehicle, electronic, and testimony evidence prevents a final collision-mechanics conclusion.

2. Chapter Purpose and Litigation Function

This chapter models the first structured transportation-defense record created after notice of a serious collision. It is intended to show how counsel can organize an incomplete intake before depositions, expert reports, mediation, dispositive motions, or trial preparation.

A collision intake record is not a final liability opinion. Its function is to preserve the distinction between what is known, what is reported, what is disputed, and what has not yet been obtained.

The record performs ten principal litigation functions.

2.1 Immediate fact preservation

The chapter identifies physical, electronic, testimonial, and documentary evidence that would require prompt preservation in a real matter. It does not assume that any specific source exists.

2.2 Early liability assessment

The record identifies the left-turn movement, driver observation, speed dispute, reaction-time model, impact geometry, and citation as the principal liability variables.

2.3 Rapid-response planning

The work queue identifies which tasks should occur immediately, before the driver deposition, before reconstruction reports, before mediation, and before trial.

2.4 Primary and excess reporting

The record distinguishes trial-facing evidence from internal coverage and exposure information. Coverage is included for internal planning only.

2.5 Expert retention

The chapter identifies the reconstruction inputs that would be needed before an expert could reliably address speed, perception, reaction, visibility, stopping opportunity, or avoidability.

2.6 Deposition preparation

The source record identifies the questions that should be developed through the driver, claimant, witnesses, employer, investigating personnel, and reconstruction experts.

2.7 Comparative-fault screening

The record preserves the speed-based comparative-fault theory while preventing it from being overstated before the reconstruction foundation is known.

2.8 Spoliation prevention

Potential evidence sources are identified for preservation. The record does not claim that spoliation occurred or that every listed source exists.

2.9 Medical and damages separation

The intake acknowledges serious injury and potential excess exposure without converting the collision chapter into a final damages valuation.

2.10 Mediation preparation

The chapter identifies what liability evidence must be developed before mediation and which liability conclusions should remain held.

The controlled-demonstration workflow is designed to make the refusal to fill missing facts useful: the held conclusion generates a concrete work queue, an explanation of what would change the analysis, and an attorney-controlled release state.

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3. SYNTHETIC INITIAL INTAKE MEMORANDUM — SYN-INT-001

3.1 Matter identification

Matter: Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole
Jurisdiction: Indiana
Synthetic court: Marion Superior Court
Posture: Pretrial defense evaluation
Mediation: Approximately 60 days
Perspective: Defense counsel, primary carrier, and excess carrier
Current use: Internal synthetic demonstration
Reliance status: Attorney review required

Intake question

What can the defense responsibly conclude about collision responsibility, comparative fault, preservation needs, expert development, and mediation preparation from the presently supplied synthetic record?

Current answer

The supplied record indicates substantial primary-liability exposure arising from the tractor-trailer’s left-turn movement and the driver’s reported misjudgment of the motorcycle’s distance and speed. A motorcycle-speed dispute may support a limited comparative-fault argument, but the present record lacks the physical, electronic, testimonial, and methodological foundation needed to determine whether speed contributed to occurrence, avoidability, severity, or only available reaction time.

3.2 Reported collision description

The synthetic baseline describes a commercial tractor-trailer beginning a left turn across two eastbound lanes. Michael Turner approached eastbound on a motorcycle. The motorcycle struck the passenger side of the trailer.

The collision occurred in daylight on a dry roadway with a posted speed limit of 45 miles per hour. The exact road, intersection, traffic controls, roadway grade, curvature, lane widths, truck staging position, visibility distance, impact location, and final-rest positions are unresolved.

The driver reportedly saw the motorcycle before impact but misjudged its distance and speed. The plaintiff reconstruction position estimates the motorcycle's speed at approximately 46–49 miles per hour. The defense reconstruction position estimates approximately 52–53 miles per hour.

The baseline also contains a modeled reaction interval of approximately 2.1 seconds. That figure is expert-dependent and has not been independently verified through source measurements, video, electronic data, or completed expert reports.

The driver was reportedly cited for failure to yield. The citation's disposition, admissibility, and permissible civil use remain unresolved.

The Turner assessment uses a modeled sequence beginning approximately eight seconds before impact, with a left turn beginning near T–5 seconds, driver observation near T–3 seconds, lane occupation and reaction near T–2.1 seconds, impact with the passenger side of the trailer, and emergency transport afterward. Those time points are a synthetic analytical chronology, not independently measured event times.

3.3 Initial liability characterization

The driver's left-turn conduct creates substantial primary-liability exposure. The most consequential reported fact is that the driver saw the motorcycle but misjudged its distance and speed. That proposition may permit plaintiff's counsel to frame the collision as a preventable failure to yield rather than a sudden, unseen hazard.

The defense speed estimate may provide a comparative-fault issue. It does not presently establish that Turner caused the collision or that the impact would have been avoided at the posted limit. Those propositions require expert analysis grounded in reliable inputs.

A defensible early posture is therefore:

- acknowledge the seriousness of the left-turn conflict;
- avoid an unsupported denial of primary responsibility;
- preserve the speed and avoidability issues;
- demand full reconstruction proof;
- and avoid a categorical blame-the-rider narrative.

An aggressive comparative-fault position may offer a mathematical reduction if accepted, but it also carries credibility risk. The Turner assessment warns that a high allocation may appear inconsistent with the driver's admission and the short modeled reaction interval.

3.4 Injury and damages alert

Although this chapter is directed principally to collision evidence, the intake must recognize the seriousness of the claimed loss.

The synthetic record includes:

- open tibia and fibula fractures;
- femoral shaft fracture;
- acetabular fracture;
- wrist fracture;
- rib fractures;
- pulmonary contusion;
- lacerations and road rash;
- air transport;
- approximately 21 days of hospitalization;
- inpatient rehabilitation;
- outpatient therapy;
- external fixation and debridement;
- ORIF of the femur and tibia;
- skin grafting and wound closure;
- residual hardware, scars, gait complaints, and impairment disputes;
- approximately $412,640 billed medical charges;
- approximately $247,800 accepted amounts;
- disputed wage and overtime losses;
- and disputed future care.

These facts create a material risk that liability credibility will affect the damages outcome. A defense that overreaches on collision fault may impair its ability to obtain a disciplined jury response on medical value, future care, earning capacity, and noneconomic damages.

No final damages, settlement, reserve, or trial-exposure conclusion is made in this chapter.

3.5 Coverage and reporting posture

INTERNAL / LIMITED USE — NOT TRIAL EVIDENCE

The synthetic record contains:

- **Primary coverage:** $1 million
- **Excess coverage:** $4 million
- **Coverage dispute:** None modeled

Coverage does not establish liability or damages. It is included solely because a serious-injury claim with substantial primary-liability exposure requires coordinated primary and excess reporting.

The coverage figures must be excluded from trial-facing demonstratives, witness materials, and liability analysis except as permitted for internal attorney and carrier use.

3.6 Immediate defense objectives

The following objectives would apply at intake in a comparable real matter:

1. Issue appropriate preservation notices.
2. Determine whether the tractor, trailer, motorcycle, and relevant components remain available.
3. Identify whether ECM, EDR, telematics, dash-camera, mobile-device, dispatch, or other electronic sources exist.
4. Obtain the complete police and supplemental investigative record.
5. Secure available scene photographs, measurements, video, and witness information.
6. Obtain the driver's complete factual account without manufacturing or shaping testimony.
7. Identify and preserve any claimant statements.
8. Retain a qualified reconstruction expert before physical evidence changes.
9. Confirm the truck route, turn plan, load, dimensions, and operational condition.
10. Separate ordinary driver-error issues from unsupported corporate or punitive theories.
11. Preserve defenses concerning medical value, future care, wage loss, mitigation, and causation.
12. Confirm primary and excess reporting requirements.
13. Establish a mediation evidence deadline.
14. Avoid unsupported concessions beyond the present record.
15. Avoid unsupported denials contradicted by the driver's reported admission.

3.7 Intake limitations

This memorandum is based on a synthetic baseline. It does not establish:

- the accuracy of any reported statement;
- the authenticity of any document;
- the admissibility of the citation;
- the motorcycle's actual speed;
- the truck's speed;
- the precise timing of perception or reaction;
- the existence or absence of braking;
- the accuracy of any reconstruction opinion;
- a comparative-fault percentage;
- or final exposure.

Intake result: Primary truck fault is the strongest current assessment. Comparative fault remains arguable but unresolved. Collision-mechanics export remains held.

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4. SUPPLIED-FACT AND SOURCE-CONTROL REGISTER

Intake item	Fact ID	Proposition	Original classification	Current source	Verification state	Permitted use	Prohibited use
Caption	F-PROC-001	Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole	Supplied synthetic fact	SYN-INT-001	Canonical synthetic baseline	Matter identification	Representing as a real case
Court	F-PROC-002	Marion Superior Court, Indiana	Supplied synthetic fact	SYN-INT-001	Synthetic; real venue effects unverified	Demonstration posture	Venue prediction

Intake item	Fact ID	Proposition	Original classification	Current source	Verification state	Permitted use	Prohibited use
Mediation posture	F-PROC-003	Pretrial evaluation; mediation in approximately 60 days	Supplied synthetic fact	SYN-MED-SET-001	Canonical synthetic baseline	Work sequencing	Claiming an actual deadline
Truck movement	F-LIAB-001	Tractor-trailer began a left turn across two eastbound lanes	Supplied synthetic fact	SYN-POL-001; SYN-SCN-001	Canonical synthetic baseline	Preliminary negligence analysis	Precise path or timing conclusion
Impact geometry	F-LIAB-002	Motorcycle struck passenger side of trailer	Supplied synthetic fact	SYN-POL-001; SYN-SCN-001	Canonical synthetic baseline	General collision configuration	Precise point-of-impact calculation
Conditions	F-LIAB-003	Daylight and dry roadway	Supplied synthetic fact	SYN-POL-001	Canonical synthetic baseline	General visibility context	Claim of unobstructed sight distance
Posted speed	F-LIAB-004	Posted limit was 45 mph	Supplied synthetic fact	SYN-POL-001	Canonical synthetic baseline	Compare expert speed opinions	Prove causation or avoidability
Driver observation	F-LIAB-005	Driver saw motorcycle and misjudged distance and speed	Lay statement / admission	SYN-DEP-DRV-001	Material statement; no certified testimony	Preliminary fault and deposition planning	Treating exact language as sworn testimony
Plaintiff speed	F-LIAB-006	Plaintiff estimate 46–49 mph	Expert opinion	SYN-REC-PLF-001	Contested; methodology absent	Identify plaintiff reconstruction position	Treating as measured fact
Defense speed	F-LIAB-007	Defense estimate 52–53 mph	Expert opinion	SYN-REC-DEF-001	Contested; methodology absent	Comparative-fault screening	Establishing causal fault without analysis
Reaction interval	F-LIAB-008	Modeled reaction interval approximately 2.1 seconds	Expert-dependent derived calculation	SYN-REC-PLF-001; SYN-REC-DEF-001	Not independently verified	Sensitivity and issue identification	Treating as an undisputed physical fact
Citation	F-LIAB-009	Driver reportedly cited for failure to yield	Supplied synthetic fact	SYN-POL-001	Citation disposition and use unresolved	Investigation and legal-review flag	Treating as civil adjudication
Rider conduct	F-LIAB-010	No alcohol, drug, phone, or protective-equipment violation attributed to Turner	Supplied synthetic fact	SYN-POL-001	Negative attribution only	Limits unsupported blame themes	Claiming completed forensic exclusion
Corporate issues	F-LIAB-011	No HOS, maintenance, or spoliation issue attributed to defendants	Supplied synthetic fact	SYN-INT-001	Synthetic baseline only	Preliminary issue boundary	Claiming real investigation found none
Driver history	F-LIAB-012	Driver has a clean driving history	Supplied synthetic fact	SYN-DEP-DRV-001	Context only	Witness presentation	Proof that driver was non-negligent here
Claimant age	F-PERS-001	Turner was 33	Supplied synthetic fact	SYN-INT-001	Canonical synthetic baseline	General matter description	Automatic damages multiplier
Occupation	F-PERS-003	Industrial maintenance technician	Supplied synthetic fact	SYN-WAGE-001	Canonical synthetic baseline	Damages alert	Collision fault analysis
Injury severity	F-MED-001–F-MED-010	Multiple fractures, surgeries, hospitalization, and rehabilitation	Supplied synthetic facts	SYN-MED-001	Synthetic medical baseline	Exposure alert	Final medical causation or value
Billed charges	F-DAM-001	Approximately $412,640 billed	Documentary synthetic fact	SYN-BILL-001	Recoverability unresolved	Severity and discovery alert	Treating as recoverable amount
Accepted amount	F-DAM-002	Approximately $247,800 accepted	Documentary synthetic fact	SYN-BILL-001	Foundation and use unresolved	Medical-value issue identification	Treating as exclusive reasonable value
Primary coverage	F-COV-001	$1 million primary	Supplied synthetic fact	SYN-COV-001	Internal synthetic baseline	Excess reporting	Trial-facing use
Excess coverage	F-COV-002	$4 million excess	Supplied synthetic fact	SYN-COV-001	Internal synthetic baseline	Excess reporting	Trial-facing use
No coverage dispute	F-COV-003	No coverage dispute modeled	Supplied synthetic fact	SYN-COV-001	Synthetic baseline	Internal planning	Real coverage conclusion
Primary-fault assessment	No new fact ID	Truck fault is presently strongest view	Attorney assessment	Chapter 1 liability map	Preliminary	Strategy and work planning	Representing as adjudication
Comparative-fault theory	D-001–D-003	Limited speed-based argument may remain	Attorney assessment based on expert-dependent propositions	SYN-REC-PLF-001; SYN-REC-DEF-001	Unresolved	Expert and mediation planning	Fixed allocation

The liability facts and source classifications above preserve the identifiers established in Chapter 1.

5. SYNTHETIC POLICE-REPORT SUMMARY — TRAINING ARTIFACT ONLY

5.1 Nature of reported event

The synthetic record describes a serious-injury collision involving a commercial tractor-trailer and a motorcycle.

No dispatch time, agency, unit number, investigating officer, incident number, or precise location has been supplied. None is inferred.

Classification: Synthetic documentary summary
Canonical effect: None beyond the facts already adopted in Chapter 1
Admissibility: Unresolved and not asserted

5.2 Reported roadway conditions

The approved baseline identifies:

- daylight;
- dry pavement;
- a posted speed limit of 45 miles per hour;
- two eastbound lanes implicated in the truck’s crossing movement;
- and eastbound motorcycle travel.

The following remain unresolved:

- exact roadway;
- exact intersection;
- traffic-control device;
- grade;
- curvature;
- lane width;
- shoulder configuration;
- sight distance;
- obstructions;
- lighting detail;
- sun position;
- and signage beyond the posted speed.

The statement that the collision occurred in daylight does not establish that visibility was unobstructed. The statement that the pavement was dry does not establish friction values, braking performance, or stopping distance.

5.3 Vehicle-movement summary

The tractor-trailer began a left turn across two eastbound lanes. Turner’s motorcycle approached eastbound. The motorcycle struck the passenger side of the trailer.

This general geometry supports a left-turn conflict. It does not independently establish:

- the truck’s starting position;
- the angle or radius of the turn;
- the truck’s acceleration;
- the time the trailer occupied the lane;
- the motorcycle’s pre-impact path;
- whether braking occurred;
- or whether impact was avoidable.

5.4 Driver-reported information

The canonical synthetic baseline attributes the following proposition to the driver:

The driver saw the motorcycle before impact but misjudged its distance and speed.

This chapter does not create a quotation. The exact words, sequence, context, recipient, and timing of the statement are unresolved.

The proposition is currently classified as a lay statement or anticipated admission. It is material to primary fault but requires development through a synthetic deposition source in the next chapter.

Proposed synthetic testimony language — not canonical: None added in this chapter.

5.5 Rider-related information

The current baseline does not attribute to Turner:

- alcohol use;
- drug impairment;
- phone use;
- or a protective-equipment violation.

This is a negative attribution within the synthetic record. It is not equivalent to proof that:

- toxicology testing was performed;
- phone records were analyzed;
- a forensic download occurred;
- all protective equipment was inspected;
- or investigators excluded every rider-related issue.

The present record therefore supports only this limited statement:

No such violation is currently identified in the synthetic baseline.

5.6 Citation

The driver was reportedly cited for failure to yield.

The citation:

- is not a final adjudication of civil fault;
- does not establish the citation's ultimate disposition;
- does not replace scene, vehicle, witness, or expert analysis;
- and may be subject to evidentiary limitations.

UNRESOLVED — verification required: Citation document, issuing basis, disposition, statements incorporated into the citation, and permitted civil use.

5.7 Injury and transport entry

Turner sustained serious injuries and required emergency medical transport.

The police-summary function is limited to the occurrence of serious injury and transport. Detailed diagnoses, procedures, hospitalization, rehabilitation, permanency, and medical costs belong in the medical and damages source chapters.

5.8 Evidence not presently supplied

The following items are not supplied as part of the present synthetic police record:

- scene photographs;
- vehicle photographs;
- measurements;
- scaled diagram;
- witness statements;
- body-camera material;
- dash-camera material;
- surveillance footage;
- motorcycle inspection;
- tractor inspection;
- trailer inspection;
- ECM or EDR data;
- telematics;
- mobile-device evidence;
- skid or yaw measurements;
- debris-field record;
- gouge-mark record;
- final-rest positions;

- citation disposition;
- traffic-control information;
- roadway-maintenance information;
- supplemental reports;
- and chain-of-custody records.

Absence from the current record does not prove that an item did not exist.

5.9 Police-summary audit table

Police-summary proposition	Related fact ID	Classification	Current support	Verification required	Analytical effect
Tractor-trailer and motorcycle collision	F-LIAB-001; F-LIAB-002	Supplied synthetic fact	Canonical baseline	Complete investigative report	General collision classification
Left turn across eastbound lanes	F-LIAB-001	Supplied synthetic fact	Chapter 1 and Turner assessment	Scene and testimony evidence	Primary-liability issue
Passenger-side trailer impact	F-LIAB-002	Supplied synthetic fact	Canonical baseline	Photographs and inspection	Reconstruction input
Daylight and dry pavement	F-LIAB-003	Supplied synthetic fact	Canonical baseline	Scene record and photographs	General visibility and roadway context
Posted 45-mph limit	F-LIAB-004	Supplied synthetic fact	Canonical baseline	Signage or report	Speed comparison
Driver observed motorcycle	F-LIAB-005	Lay statement	Anticipated driver source	Certified testimony and prior statements	Primary-fault assessment
Distance/speed misjudgment	F-LIAB-005	Lay admission	Anticipated driver source	Context and exact wording	Credibility and fault
Citation for failure to yield	F-LIAB-009	Supplied synthetic fact	Canonical baseline	Citation and disposition	Limited traffic-rule context
No rider violation attributed	F-LIAB-010	Negative synthetic fact	Canonical baseline	Toxicology, phone, and equipment evidence if relevant	Limits unsupported blame themes
Serious injury and emergency transport	F-MED-005	Supplied synthetic fact	Medical baseline	Transport and hospital records	Injury alert only

6. ROADWAY AND SCENE RECORD — SYN-SCN-001

6.1 Known scene conditions

The synthetic record establishes only the following scene conditions:

1. The collision occurred in daylight.
2. The roadway was dry.
3. The posted speed limit was 45 miles per hour.
4. Two eastbound lanes were implicated in the tractor-trailer’s left-turn crossing movement.
5. Turner approached eastbound on a motorcycle.
6. The tractor-trailer crossed the motorcycle’s path.
7. The motorcycle struck the passenger side of the trailer.

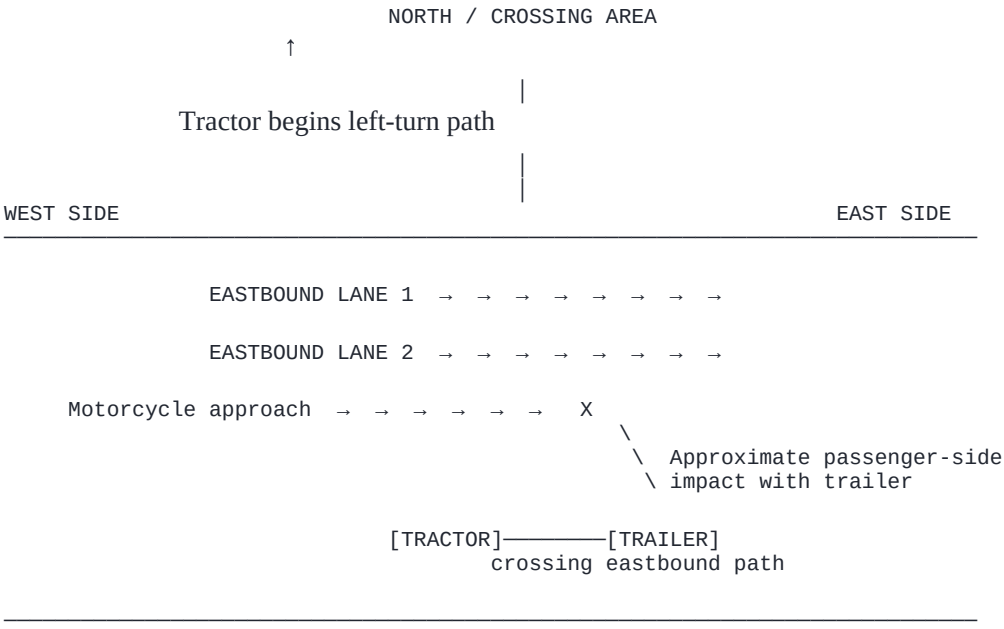
These facts permit a conceptual depiction of the reported movements. They do not permit an engineering reconstruction.

6.2 Unknown scene conditions

Scene variable	Current status	Why it matters	Required source
Exact roadway	Unresolved	Determines geometry, jurisdiction, signage, and available records	Police report, pleadings, scene materials
Exact intersection	Unresolved	Determines traffic control and turning configuration	Police report, mapping, scene inspection
Traffic-control device	Unresolved	May affect duties and sequencing	Scene photographs, report, video
Road grade	Unresolved	May affect visibility and speed analysis	Survey, measurements, expert inspection
Road curvature	Unresolved	May affect line of sight	Survey, photographs, mapping
Lane width	Unresolved	Affects movement path and trailer occupancy	Measurements or scaled plan
Shoulder	Unresolved	May affect avoidance options	Scene inspection and photographs
Sight obstructions	Unresolved	Central to driver observation and perception	Photographs, video, measurements
Sun position	Unresolved	May affect glare or visibility	Precise date, time, orientation, weather data
Lighting	General daylight only	Does not resolve shadows, glare, or contrast	Photographs, environmental data
Signage	45-mph limit supplied; other signs unresolved	May affect driver and rider expectations	Photographs and report
Truck staging position	Unresolved	Affects turn time and observation opportunity	Video, testimony, measurements
Turn radius	Unresolved	Affects trailer path and lane occupancy	Vehicle dimensions and reconstruction
Trailer length	Unresolved	Affects clearance and occupancy time	Vehicle specifications and inspection
Cargo weight	Unresolved	May affect acceleration and movement	Bill of lading, load records
Impact location	Passenger side only; exact point unresolved	Important for speed and timing analysis	Photographs and vehicle inspection
Debris field	Unresolved	May assist impact and final-rest analysis	Scene documentation
Braking evidence	Unresolved	Central to reaction and avoidability	Scene evidence, motorcycle inspection, data
Skid or yaw marks	Unresolved	May support speed or control analysis	Measurements and photographs
Gouge marks	Unresolved	May identify impact or slide path	Scene documentation
Truck final rest	Unresolved	May assist sequence reconstruction	Diagram, photographs, testimony
Motorcycle final rest	Unresolved	May assist impact and energy analysis	Diagram, photographs, testimony
Surveillance sources	Unresolved	Could independently establish timing and movement	Canvass, preservation, subpoena
Weather-station data	Not supplied	Could corroborate general conditions	Official weather data, if relevant
Road friction	Unresolved	Required for stopping calculations	Testing or accepted expert assumptions

6.3 Textual collision diagram

NOT TO SCALE — CONCEPTUAL SYNTHETIC DIAGRAM



The diagram displays only the reported relative movement:

- eastbound motorcycle approach;
- left-turn tractor-trailer movement;
- trailer crossing the eastbound path;
- and passenger-side trailer impact.

It assigns no measurements, angles, scale, lane widths, time, distance, speed, point of rest, or sight line.

6.4 Diagram limitations

The conceptual diagram cannot support an opinion concerning:

- motorcycle speed;
- truck speed;
- stopping distance;
- visibility;
- sight distance;
- perception time;
- reaction time;
- braking;
- impact severity;
- lane occupancy duration;
- or avoidability.

It is a record-orientation tool only.

Export status: Internal synthetic use only.

7. SECOND-BY-SECOND COLLISION CHRONOLOGY

The following chronology expands the Turner assessment's analytical sequence. The time markers are synthetic modeling points, not independently verified measurements.

Time marker	Reported event	Classification	Source	Plaintiff significance	Defense significance	Reliability / limitation
T–8 seconds	Motorcycle approaches eastbound in daylight on a dry roadway with a posted 45-mph limit	Mixed: canonical conditions plus modeled time marker	SYN-POL-001; SYN-SCN-001; reconstruction summaries	Establishes approaching favored-direction vehicle and general visibility context	Preserves speed and visibility inquiry	No exact distance; time marker analytical
T–5 seconds	Tractor-trailer begins left turn across two eastbound lanes	Canonical movement with modeled time marker	SYN-POL-001; SYN-SCN-001	Creates crossing hazard and yield issue	Requires analysis of turn initiation, acceleration, and available sight	Exact start time and staging position unresolved
T–3 seconds	Driver sees motorcycle but misjudges distance and speed	Canonical reported statement with modeled timing	SYN-DEP-DRV-001	Strong admission supporting primary fault	Context and exact observation timing may affect interpretation	Exact words and time unresolved
T–2.1 seconds	Trailer enters or occupies Turner's lane; modeled reaction sequence begins	Expert-dependent proposition / derived chronology	SYN-REC-PLF-001; SYN-REC-DEF-001	Supports limited avoidance opportunity	Allows analysis of whether lower speed changed margin	Figure not independently verified
Impact	Motorcycle strikes passenger side of trailer	Supplied synthetic fact	SYN-POL-001; SYN-SCN-001	Supports left-turn conflict and visual proof	Exact damage location may inform reconstruction	No detailed vehicle inspection supplied
Immediate aftermath	Turner requires emergency transport; driver reportedly cited for failure to yield	Supplied synthetic facts	SYN-POL-001; SYN-MED-001	Reinforces serious injury and traffic-rule narrative	Citation use should be limited; injury not proof of fault	Dispatch, transport, citation, and report materials absent

7.1 T–8 seconds: approach phase

At the opening analytical marker, Turner is modeled as approaching eastbound. The record supports daylight, dry pavement, and a 45-mph posted limit.

The record does not support an exact distance between the motorcycle and the conflict point. It also does not establish the rider's lane, acceleration state, throttle position, braking, visibility, or observable conspicuity.

The principal questions are:

- Where was the motorcycle when it became observable?
- Where was the truck?
- Was the driver stationary, rolling, or already turning?
- What could each operator see?
- What speed was the motorcycle traveling?
- What cues were available to estimate closing speed?

No answer is supplied in this chapter.

7.2 T–5 seconds: turn-initiation phase

The truck begins the left-turn movement across two eastbound lanes.

This creates the central conflict. The truck's movement must be evaluated in light of:

- the driver's observation;
- the available sight line;
- the motorcycle's approach;
- the truck's acceleration;
- the trailer's length and path;

- and the time required to clear the lane.

The exact T–5 marker is part of the synthetic chronology and is not independently measured.

7.3 T–3 seconds: driver-observation phase

The driver sees the motorcycle but misjudges distance and speed.

The significance is not merely that the motorcycle was visible. The reported statement suggests that the driver perceived the motorcycle and made an incorrect evaluation before or during the turn.

A deposition must determine:

- when the observation occurred;
- where the truck was at that moment;
- where the motorcycle appeared;
- what the driver believed about its speed;
- whether the driver continued, paused, or accelerated;
- what mirrors or sight lines were used;
- and whether any later statement changed.

The current source does not provide those details.

7.4 T–2.1 seconds: reaction phase

The modeled chronology places the trailer in or entering Turner’s lane approximately 2.1 seconds before impact.

This is an expert-dependent proposition. It is not a universal human-reaction conclusion and does not determine avoidability by itself.

The analysis would require:

- the point at which Turner perceived the hazard;
- whether the hazard was recognizable before lane occupation;
- perception and reaction assumptions;
- motorcycle speed;
- braking capabilities;
- roadway friction;
- rider inputs;
- available escape paths;
- and truck movement.

7.5 Impact

The motorcycle strikes the passenger side of the trailer.

The exact contact area is not supplied. Damage photographs and inspections would be needed to determine:

- impact angle;
- motorcycle orientation;
- contact sequence;

- speed loss;
- rotation;
- rider trajectory;
- and post-impact movement.

7.6 Immediate aftermath

Turner requires emergency transport. The driver is reportedly cited for failure to yield.

The seriousness of injury may affect jury perception but does not itself establish fault. The citation may affect the narrative but does not replace the civil evidence analysis.

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8. COLLISION MECHANICS AND RECONSTRUCTION QUESTIONS

No final reconstruction opinion is issued in this chapter.

8.1 Core reconstruction questions

A qualified reconstruction analysis would need to address:

1. What was the motorcycle's approach speed?
2. What is the basis for the plaintiff's 46–49-mph estimate?
3. What is the basis for the defense's 52–53-mph estimate?
4. Is either range supported by physical evidence?
5. Was there pre-impact braking?
6. When did the hazard become perceivable?
7. When did Turner begin reacting?
8. Is the 2.1-second interval measured, derived, or assumed?
9. When did the truck begin moving?
10. What was the truck's speed and acceleration?
11. What was the trailer's path?
12. How long did the trailer occupy Turner's lane?
13. What was the driver's line of sight?
14. Were there obstructions?
15. What visual-search pattern did the driver use?
16. Was the motorcycle's lighting operating?
17. What conspicuity cues were present?
18. What was the roadway geometry?
19. Would the collision have occurred at 45 mph?
20. Would the collision have occurred at 46–49 mph?
21. Would the collision have occurred at 52–53 mph?
22. Would lower speed have prevented impact, delayed impact, changed the contact point, or only reduced severity?
23. Could Turner have safely steered around the trailer?
24. Did the truck driver have an opportunity to abort or accelerate through the turn?
25. Is there electronic evidence capable of resolving timing?
26. Does the passenger-side impact location support one timing model over another?

8.2 Reconstruction-input table

Reconstruction input	Plaintiff position	Defense position	Current source	Verification status	Effect if changed
Motorcycle speed	Approximately 46–49 mph	Approximately 52–53 mph	SYN-REC-PLF-001; SYN-REC-DEF-001	Competing opinions; methodology absent	Alters comparative-fault and reaction analysis
Posted limit	45 mph	45 mph	SYN-POL-001	Canonical synthetic baseline	Comparison point only
Truck turn initiation	Turn created crossing hazard	Timing may affect available response	SYN-SCN-001; chronology	Exact time unresolved	Alters available sight and reaction window
Driver observation	Driver saw motorcycle before impact	Context of observation remains material	SYN-DEP-DRV-001	Exact wording and timing unresolved	Affects primary fault and credibility
Distance estimate	Driver misjudged distance	May be explored for visual context	SYN-DEP-DRV-001	No measured distance	Affects negligence narrative
Reaction interval	Short interval limited avoidance	Speed may affect remaining margin	SYN-REC-PLF-001; SYN-REC-DEF-001	Approximately 2.1 seconds, unverified	Major avoidability variable
Pre-impact braking	Not presently established	Not presently established	None supplied	Unresolved	Could affect speed and reaction analysis
Road friction	Not established	Not established	None supplied	Unresolved	Required for stopping model
Truck acceleration	Not established	Not established	None supplied	Unresolved	Affects trailer occupancy time
Trailer length	Not established	Not established	None supplied	Unresolved	Affects clearing time
Sight distance	Truck should have observed approach	Possible scene limitations must be assessed	None supplied	Unresolved	Affects driver perception analysis
Obstructions	None established	None established	None supplied	Unresolved	Could change observation opportunity
Motorcycle lighting	Plaintiff may argue visibility	Defense must verify rather than assume	None supplied	Unresolved	Affects conspicuity
Impact point	Passenger side of trailer	Exact location may affect timing	SYN-POL-001; SYN-SCN-001	General only	May support or undermine timing model
Electronic data	Not identified	Potentially important	None supplied	Existence unresolved	Could confirm movement and timing
Surveillance	Not identified	Potentially dispositive	None supplied	Existence unresolved	Could resolve sequence without inference

No stopping-distance calculation is performed because the necessary inputs are absent.

9. PRELIMINARY LIABILITY EVIDENCE MATRIX

Evidence item	Source ID	Plaintiff use	Defense use	Weight	Admissibility / foundation	Risk of overstatement
Driver observation and misjudgment	SYN-DEP-DRV-001	Primary admission supporting failure to yield	Concede error; distinguish negligence from recklessness	High	Exact statement and context required	High if defense minimizes or recharacterizes without support
Failure-to-yield citation	SYN-POL-001	Reinforces traffic-rule narrative	Limit use; emphasize civil analysis is independent	Medium	Citation, disposition, and evidentiary rule required	High if treated as conclusive
Left-turn geometry	SYN-POL-001; SYN-SCN-001	Truck crossed favored lane	Test exact geometry and timing	High	Scene and vehicle foundation required	Medium
Passenger-side trailer impact	SYN-POL-001; SYN-SCN-001	Consistent with blocked travel path	Exact impact location may assist timing defense	Medium–High	Photographs and inspection required	Medium
Plaintiff speed estimate	SYN-REC-PLF-001	Near-limit approach; minimizes comparative fault	Challenge assumptions and range	Medium	Full methodology required	High if accepted without source data
Defense speed estimate	SYN-REC-DEF-001	Plaintiff attacks as blame shifting	Supports limited comparative-fault inquiry	Medium	Full methodology and cross-examination required	High if equated with causation
2.1-second reaction model	Reconstruction summaries	Limited meaningful avoidance opportunity	Test effect of speed on remaining margin	Medium	Timing inputs and human-factors foundation required	High if presented as exact fact
Protective equipment	SYN-POL-001	Responsible-rider narrative	No material defense fault theme	Medium	Inspection or report foundation required	Medium
Absence of alcohol or drug attribution	SYN-POL-001	Eliminates impairment theme	Avoid unsupported implication	Medium	Toxicology status unresolved	High if converted into completed investigation
Absence of phone-use attribution	SYN-POL-001	Eliminates distraction theme	Preserve only if forensic proof later supports	Medium	Phone evidence unresolved	High
Clean driver history	SYN-DEP-DRV-001	Limited relevance to collision negligence	Humanizes driver; rebuts systemic theme	Low–Medium	Relevance and admissibility review required	High if used to prove non-negligence
No HOS issue modeled	SYN-INT-001	Plaintiff may seek contrary discovery	Defines current issue boundary	Low	Logs and dispatch evidence absent	High if stated as verified
No maintenance issue modeled	SYN-INT-001	Plaintiff may seek vehicle records	Defines current issue boundary	Low	Inspection and records absent	High if stated as verified
No spoliation issue modeled	SYN-INT-001	Plaintiff may investigate preservation	Establish preservation work queue	Unresolved	Chain and preservation evidence absent	Very high
Conceptual scene diagram	SYN-SCN-001	Illustrates crossing narrative	Orients defense analysis	Low	Demonstrative only; not to scale	High if used quantitatively
Police-summary artifact	SYN-POL-001	Organizes reported facts	Identifies missing evidence and limits	Low	Synthetic training artifact	Very high if presented as official
Missing physical and electronic evidence	Pending	Plaintiff may argue defense lacks support for speed	Defense should obtain or preserve evidence	Unresolved	Requires actual investigation	High if absence is treated as favorable proof

Weight qualification

Every weight in this table is provisional. “High” means important to the present synthetic analysis, not automatically admissible, conclusive, or credible.

10. DRIVER CONDUCT AND CORPORATE-DEFENSE BOUNDARY

The present record supports an **ordinary driver-error theory**: a left-turn decision involving an observed approaching motorcycle and a misjudgment of distance or speed.

The record does not presently support a punitive, systemic, corporate-policy, maintenance, hours-of-service, or spoliation theory.

That distinction must remain explicit.

Potential theory	Present record status	Evidence required	Defense treatment
Driver negligence	Substantially implicated by left turn and reported admission	Testimony, scene evidence, traffic controls, reconstruction	Evaluate candidly; preserve context
Reckless driver conduct	Not supported by present baseline	Evidence of conscious disregard, extreme conduct, or repeated warnings	Do not concede; test factual basis
Negligent hiring	Not supported	Application, background, qualifications, notice of risk	Treat as unsupported unless evidence emerges
Negligent retention	Not supported	Prior incidents, discipline, notice, employment history	Preserve records; avoid unsupported assurances
Negligent training	Not supported	Training materials, testing, supervision, policy compliance	Produce and evaluate if relevant
Corporate negligence	Not supported	Policies, dispatch decisions, supervision, operational control	Separate from driver-error theory
Hours-of-service violation	No issue modeled	Logs, ELD, dispatch, duty history	Verify; do not claim absence without records
Maintenance violation	No issue modeled	Inspection, maintenance, defect evidence	Verify; do not claim absence without records
Overloading or cargo issue	Unresolved	Cargo documents, weights, securement	Investigate if movement or braking is contested
Punitive damages	Not supported	Evidence exceeding ordinary negligence	Oppose unsupported escalation
Spoliation	No issue modeled; preservation incomplete	Notices, custody, data retention, vehicle preservation	Implement preservation immediately
Vicarious liability	Relationship assumed within synthetic posture but not analyzed	Employment and scope evidence	Address separately in pleadings and stipulations
Negligent entrustment	Not supported	Vehicle authorization, competence, notice	Do not expand without factual basis

The absence of an issue in this synthetic model does not prove that a real investigation would find none. It means only that the issue is not part of the current canonical baseline.

11. COMPARATIVE-FAULT ISSUE MAP

Comparative fault is disputed and not adjudicated.

The defense position should be calibrated to the quality of the reconstruction evidence. Primary truck fault may be acknowledged while preserving a limited argument that excess motorcycle speed reduced available reaction time or contributed to the occurrence or severity.

The defense should not claim that speed caused the collision merely because one expert estimates 52–53 mph. Causal contribution requires more than a speed estimate. It requires a reliable analysis of timing, distance, visibility, braking, vehicle movement, and avoidability.

Comparative-fault theory	Evidence required	Strategic benefit	Credibility risk	Present status
No plaintiff allocation	Left-turn evidence dominates; speed proof weak or excluded	Preserves defense credibility for damages	Surrenders mathematical reduction	Plausible
Modest allocation	Reliable speed estimate plus some effect on reaction or avoidance	Preserves limited reduction without making rider central villain	Moderate if causation is thin	Arguable
Meaningful allocation	Strong speed, perception, braking, and avoidability evidence	Larger reduction if accepted	Significant inconsistency with driver admission and short interval	Unresolved and evidence-dependent
Aggressive allocation	Compelling proof that rider conduct materially caused occurrence	Maximum potential reduction	High risk of jury rejection and distrust	Not supported by current record

Attorney assessment

The current strategic value of comparative fault may be less than its theoretical mathematical value if pursuing it causes the jury to distrust the defense’s position on damages.

The Turner assessment identifies a limited allocation as the strongest credibility-adjusted position and warns against presenting speed as proof that the collision necessarily would not have occurred.

12. COLLISION-RECORD CONTRADICTION REGISTER

The identifiers below supplement, but do not replace, Chapter 1 dispute IDs. Each Chapter 2 contradiction is cross-referenced to the corresponding canonical dispute.

Contradiction ID	Chapter 1 reference	Proposition A	Proposition B	Source A	Source B	Current state	Required resolution	Downstream effect
C2-D001	D-001	Motorcycle speed approximately 46–49 mph	Motorcycle speed approximately 52–53 mph	SYN-REC-PLF-001	SYN-REC-DEF-001	Open	Full expert files and physical evidence	Comparative-fault strength
C2-D002	D-002	Truck's turn left Turner little meaningful reaction time	Lower speed may have increased reaction or stopping margin	Plaintiff reconstruction	Defense reconstruction	Open	Timing, distance, braking, human-factors analysis	Avoidability
C2-D003	D-002	2.1 seconds is meaningful reaction interval	2.1 seconds may be a modeled assumption dependent on inputs	Reconstruction summaries	Source-data review	Open	Derivation and validation	Expert admissibility and weight
C2-D004	D-003	Speed was incidental to a dominant left-turn failure	Speed materially contributed to occurrence or severity	Plaintiff position	Defense position	Open	Causation analysis	Fault allocation
C2-D005	D-003	Driver admission establishes primary failure to yield	Admission may require context about observation and timing	SYN-DEP-DRV-001	Defense examination	Open but plaintiff-favorable	Certified testimony and prior statements	Credibility
C2-D006	D-003	Citation reinforces fault	Citation is limited and not civil adjudication	SYN-POL-001	Evidentiary analysis	Open legal issue	Citation document, disposition, authority	Trial presentation
C2-D007	D-002	Impact was effectively unavoidable once trailer occupied lane	Different speed or earlier perception may have changed outcome	Plaintiff reconstruction	Defense reconstruction	Open	Complete simulation and source inputs	Comparative fault
C2-D008	D-003	Modest comparative fault improves defense position	Pursuing comparative fault may reduce defense credibility	Defense arithmetic theory	Trial strategy assessment	Open strategic issue	Mock presentation, expert strength, attorney judgment	Mediation and trial theme

Contradiction count: Eight collision-specific contradiction events preserved.

No contradiction is resolved by preference alone.

13. MISSING-EVIDENCE AND RAPID-RESPONSE WORK QUEUE

13.1 Immediate preservation

A comparable real matter should trigger prompt investigation of whether the following evidence exists:

- tractor;
- trailer;
- motorcycle;
- ECM or EDR information, where applicable;
- telematics;
- dash-camera data;
- mobile-device data;
- dispatch records;
- ELD and duty logs;
- maintenance and inspection records;
- load and cargo information;
- scene photographs;
- vehicle photographs;
- roadway evidence;
- surveillance sources;
- witness identities and statements;
- internal communications;
- insurer communications subject to privilege and work-product review;
- driver post-collision statements;
- and citation materials.

The chapter does not state that these sources exist.

13.2 Before driver deposition

Develop:

- route and destination;
- dispatch purpose;
- prior familiarity with the route;
- pre-trip inspection;
- truck and trailer configuration;
- load status;
- staging position;
- turn planning;
- mirror and visual search;
- turn-signal use;
- first observation of motorcycle;
- perceived distance;
- perceived speed;
- decision to proceed;
- ability to stop or abort;
- communications before and after impact;
- training;
- prior driving history;
- and all prior statements.

13.3 Before reconstruction reports

Obtain, where available:

- scene measurements;
- scaled photographs;
- vehicle inspections;
- motorcycle inspection;
- truck and trailer dimensions;
- mass and load;
- impact damage;
- final-rest positions;
- debris;
- gouge and tire marks;
- road geometry;
- friction information;
- sight-line evidence;
- visibility conditions;
- electronic data;
- video;
- and reliable time references.

13.4 Before mediation

Complete or materially advance:

- driver deposition;
- plaintiff deposition;
- material witness testimony;
- preliminary reconstruction opinions;
- medical chronology;
- injury and permanency record;
- wage and overtime record;
- billing and accepted-amount record;
- lien verification;
- policy confirmation;
- primary and excess reporting;
- current demand;
- current authority;
- and a record-based mediation assessment.

13.5 Before trial

Complete:

- final expert opinions;
- expert-admissibility analysis;
- evidentiary rulings;
- motions in limine;
- demonstrative foundation;
- jury instructions;
- verdict form;
- witness sequencing;
- preserved objections;
- and trial-record citations.

13.6 Work-queue table

Work item	Priority	Owner	Source needed	Deadline trigger	Gate affected	Completion state
Preserve vehicles	Immediate preservation	Owner: Unassigned	Custody and storage information	Immediately upon notice	Evidence / chain	Not started
Preserve electronic vehicle data	Immediate preservation	Owner: Unassigned	ECM, EDR, telematics availability	Immediately upon notice	Reconstruction	Existence unresolved
Preserve dash-camera data	Immediate preservation	Owner: Unassigned	Carrier and vehicle systems	Immediately upon notice	Evidence	Existence unresolved
Preserve mobile-device evidence	Immediate preservation	Owner: Unassigned	Device and carrier records	Immediately upon notice	Distraction / timing	Existence unresolved
Obtain police materials	Immediate preservation	Owner: Unassigned	Main and supplemental reports	Before depositions	Fact support	Not obtained
Scene canvass and surveillance inquiry	Immediate preservation	Owner: Unassigned	Businesses, residences, roadway systems	Before overwrite	Reconstruction	Not performed
Secure driver statement inventory	Before driver deposition	Owner: Unassigned	Carrier, police, insurer, counsel files	Before examination	Contradiction	Not completed
Confirm route and dispatch	Before driver deposition	Owner: Unassigned	Dispatch and route records	Before examination	Driver conduct	Not completed
Obtain training and qualification file	Before driver deposition	Owner: Unassigned	Employment records	Before examination	Corporate-boundary issues	Not completed
Inspect tractor and trailer	Before reconstruction reports	Owner: Unassigned	Vehicle access	Before alteration or repair	Reconstruction	Not completed
Inspect motorcycle	Before reconstruction reports	Owner: Unassigned	Vehicle access	Before alteration	Reconstruction	Not completed
Obtain roadway measurements	Before reconstruction reports	Owner: Unassigned	Scene survey	Before expert deadline	Reconstruction	Not completed
Obtain photographs and damage mapping	Before reconstruction reports	Owner: Unassigned	Scene and vehicle images	Before expert deadline	Reconstruction	Not completed
Validate speed estimates	Before reconstruction reports	Owner: Unassigned	Expert source files	Before report exchange	Comparative fault	Not completed
Validate reaction-time model	Before reconstruction reports	Owner: Unassigned	Inputs and methodology	Before report exchange	Avoidability	Not completed
Depose driver	Before mediation	Owner: Unassigned	Complete statement and evidence record	Before mediation submission	Liability	Pending
Depose Turner	Before mediation	Owner: Unassigned	Medical, activity, and collision materials	Before mediation submission	Liability and damages	Pending
Complete medical chronology	Before mediation	Owner: Unassigned	Authenticated records	Before mediation submission	Damages	Pending
Complete wage record	Before mediation	Owner: Unassigned	Payroll and employer testimony	Before mediation submission	Damages	Pending
Verify billing and liens	Before mediation	Owner: Unassigned	Bills, ledgers, lien documents	Before mediation submission	Damages	Pending
Confirm coverage documents	Before mediation	Owner: Unassigned	Policies and endorsements	Before authority request	Export / reporting	Pending
Finalize expert methodology	Before trial	Owner: Unassigned	Final reports and reliance files	Expert deadline	Admissibility	Pending
Verify Indiana authority	Before trial	Owner: Unassigned	Official legal sources	Motion and instruction deadlines	Standard / authority	Pending
Prepare jury instructions	Before trial	Owner: Unassigned	Current approved instructions	Court deadline	Jury coverage	Pending
Prepare motions in limine	Before trial	Owner: Unassigned	Final evidence inventory	Court deadline	Admissibility	Pending
Complete replay and audit record	Before any reliance release	Owner: Unassigned	Final inputs and versions	Before export	Replay / export	Pending

14. FACT-TO-SOURCE AUDIT MAP

Fact ID	Proposition	Source ID	Extraction status	Contradiction status	Admissibility status	Analytical use	Reviewer state	Export state
F-PROC-001	Synthetic caption	SYN-INT-001	Imported	None	Not applicable as evidence	Matter identity	Unreviewed	Internal synthetic use only
F-PROC-002	Marion Superior Court	SYN-INT-001	Imported	Real venue effect unresolved	Not applicable	Jurisdiction label	Unreviewed	Internal synthetic use only
F-PROC-003	Mediation in 60 days	SYN-MED-SET-001	Imported	None	Settlement material	Scheduling	Unreviewed	Attorney review required
F-LIAB-001	Left turn across two eastbound lanes	SYN-POL-001; SYN-SCN-001	Imported	Timing unresolved	Not verified	Primary negligence	Unreviewed	Attorney review required
F-LIAB-002	Passenger-side trailer impact	SYN-POL-001; SYN-SCN-001	Imported	Exact point unresolved	Not verified	Collision geometry	Unreviewed	Attorney review required
F-LIAB-003	Daylight and dry roadway	SYN-POL-001	Imported	Visibility detail unresolved	Not verified	General conditions	Unreviewed	Internal synthetic use only
F-LIAB-004	Posted speed 45 mph	SYN-POL-001	Imported	None within baseline	Not verified	Speed comparison	Unreviewed	Attorney review required
F-LIAB-005	Driver saw motorcycle and misjudged distance and speed	SYN-DEP-DRV-001	Imported as anticipated statement	Context unresolved	No certified testimony	Primary fault	Unreviewed	Held
F-LIAB-006	Plaintiff speed 46–49 mph	SYN-REC-PLF-001	Imported	Conflicts with F-LIAB-007	Expert foundation absent	Plaintiff reconstruction	Unreviewed	Held
F-LIAB-007	Defense speed 52–53 mph	SYN-REC-DEF-001	Imported	Conflicts with F-LIAB-006	Expert foundation absent	Comparative fault	Unreviewed	Held
F-LIAB-008	2.1-second reaction interval	Reconstruction sources	Imported	Derivation unresolved	Expert foundation absent	Avoidability	Unreviewed	Held
F-LIAB-009	Failure-to-yield citation	SYN-POL-001	Imported	Weight disputed	Legal use unresolved	Traffic-rule context	Unreviewed	Excluded from trial-facing output pending review
F-LIAB-010	No rider violation attributed	SYN-POL-001	Imported	Investigation completeness unresolved	Foundation absent	Limits unsupported themes	Unreviewed	Attorney review required
F-LIAB-011	No HOS, maintenance, or spoliation issue modeled	SYN-INT-001	Imported	Actual evidence absent	Not verified	Theory boundary	Unreviewed	Internal synthetic use only
F-LIAB-012	Clean driving record	SYN-DEP-DRV-001	Imported	Relevance limited	Admissibility unresolved	Witness presentation	Unreviewed	Held
F-MED-005	Emergency transport	SYN-MED-001	Imported	None material to collision	Medical foundation absent	Severity alert	Unreviewed	Attorney review required
F-COV-001	$1M primary	SYN-COV-001	Imported	None	Internal only	Excess reporting	Unreviewed	Excluded from trial-facing output
F-COV-002	$4M excess	SYN-COV-001	Imported	None	Internal only	Excess reporting	Unreviewed	Excluded from trial-facing output
F-COV-003	No coverage dispute modeled	SYN-COV-001	Imported	Real policy record absent	Internal only	Planning	Unreviewed	Internal synthetic use only

15. CHAPTER-LEVEL SENSITIVITY EXAMPLES

15.1 Example A — Motorcycle speed

This controlled example changes only the speed position used for analysis.

Changed input	Prior status	New status	Potential effect	Unchanged conclusions	Required verification
Motorcycle speed	Plaintiff range: approximately 46–49 mph	Defense range: approximately 52–53 mph	May strengthen inquiry into reaction margin and comparative fault	Truck made left turn; driver reportedly saw motorcycle; passenger-side impact; primary truck exposure remains	Reconstruction source data, methodology, physical evidence, causation analysis

Result

The speed change does not establish that Turner caused the collision. It activates the expert and comparative-fault gates. It may alter the strength of the defense argument concerning available reaction time, but it does not remove the driver's reported misjudgment or the left-turn conflict.

15.2 Example B — Driver observation timing

This controlled example changes only the timing of the driver's first observation. No new time is assigned.

Changed input	Prior status	New status	Potential effect	Unchanged conclusions	Required verification
First driver observation	Timing unresolved; chronology models observation before impact	Reliable evidence establishes observation occurred earlier or later	Earlier observation may increase time available to reassess or stop; later observation may raise sight-line or visual-search issues	Truck's left-turn movement, motorcycle approach, and impact geometry remain	Driver testimony, prior statements, video, scene visibility, expert analysis

Result

The directional effect depends on context. Earlier observation could strengthen plaintiff's argument that the driver had time to avoid the conflict. A later observation could support either a visibility issue or a failure to maintain an adequate lookout. The changed timing cannot be evaluated without scene and testimony evidence.

15.3 Example C — New surveillance evidence

This controlled example assumes only that reliable surveillance footage becomes available. It does not assume what the footage shows.

Changed input	Prior status	New status	Potential effect	Unchanged conclusions	Required verification
Surveillance evidence	None identified	Reliable footage located	Could resolve movement timing, visibility, braking, signal use, truck path, motorcycle approach, and impact sequence	Synthetic status, attorney review, and evidentiary foundation remain	Authenticity, completeness, timing calibration, chain of custody, expert interpretation

Result

The availability of surveillance could materially reduce uncertainty. The footage would not automatically favor either party. It would become a new source requiring authentication, preservation, contradiction testing, and expert review.

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16. CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Synthetic Intake, Scene Record, and Collision Chronology
Artifact version	Synthetic Collision Record v1.0
Controlling source version	Canonical Synthetic Record v1.0
Matter	Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole
Jurisdiction label	Indiana
Court label	Marion Superior Court, synthetic
Facts imported	F-PROC-001–F-PROC-003; F-LIAB-001–F-LIAB-012; relevant F-PERS, F-MED, F-DAM, and F-COV facts
Facts changed	None
New canonical facts created	None
Proposed synthetic details	None integrated; all missing scene and investigative details remain held
Core sources expanded	SYN-INT-001; SYN-POL-001; SYN-SCN-001
Sources referenced but pending	SYN-DEP-DRV-001; SYN-DEP-PLF-001; SYN-REC-PLF-001; SYN-REC-DEF-001; SYN-MED-001; SYN-WAGE-001; SYN-BILL-001; SYN-COV-001; SYN-MED-SET-001
Collision contradictions preserved	Eight
Scene variables unresolved	Exact roadway, intersection, controls, geometry, measurements, visibility, vehicle data, physical evidence, and surveillance
Admissibility review	Not completed
Attorney reviewer	Unassigned
Reviewer status	Not reviewed
Change history	Initial chapter creation only
Replay status	Structural only; no production execution receipt
Export status	Attorney-review demonstration only
Trial-facing status	Held
Carrier-facing status	Held
Mediation reliance status	Held
VerdictReady	No
FilingReady	Not applicable

17. VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial settlement and mediation evaluation

Runtime Mode: Defense-side trucking collision review

Case / Motion / Trial Issue: Collision mechanics, driver conduct, comparative fault, evidence preservation, and liability posture

Preliminary Result

Synthetic intake, scene record, and collision chronology established for demonstration use.

VerdictReady: No

FilingReady, if BriefWise mode active: Not applicable

Gatekeeper Findings

Runtime

Demonstration use only. The matter is wholly synthetic. The record is not a production case execution, legal opinion, certified investigation, reconstruction report, or evidence file.

Input normalization

Pass for the canonical synthetic collision baseline.

The matter identity, posture, collision facts, source identifiers, fact identifiers, dispute states, missing evidence, and release limitations are normalized.

Contradiction

Material collision disputes preserved.

The following remain unresolved:

- motorcycle speed;
- avoidability;
- perception and reaction timing;
- causal significance of speed;
- weight of the driver’s admission;
- permitted use of the citation;
- and strategic value of comparative fault.

Evidence admissibility

Not verified.

No synthetic police summary, scene record, driver statement, expert estimate, coverage record, diagram, or chronology is treated as authenticated or admissible.

Authority / fact support

Synthetic factual map created. Legal verification remains incomplete.

No current Indiana authority has been researched or validated in this chapter.

Claim / defense elements

Preliminary negligence and comparative-fault review only.

The record identifies potential driver negligence and comparative-fault issues. It does not complete a final element matrix, corporate-liability analysis, punitive-damages assessment, or legal-defense validation.

Standard alignment

Current Indiana verification required.

The governing comparative-fault rules, evidentiary standards, citation treatment, expert requirements, burdens, and jury instructions remain unresolved.

Damages

Outside the principal scope of this chapter.

The serious injury, billing, wage, permanency, and excess-risk facts are identified as intake alerts only. No damages total or valuation is authorized.

Jury instructions

Not verified.

Appellate record

Not applicable to the present pretrial synthetic posture.

Replay / audit

Chapter structure established. Fact-to-source mapping, contradiction tracking, change control, sensitivity examples, work queue, and export status are recorded.

No production replay receipt has been completed.

Export

Attorney-review demonstration only.

No carrier-, reserve-, settlement-, mediation-, filing-, or trial-facing reliance release is authorized.

Failed Gates / Runtime State

VerdictReady: No

Failed gates: Evidence verification, admissibility, reconstruction support, authority verification, attorney review, replay completion, and export authorization.

Runtime state: REVIEW REQUIRED / EXPORT HELD

Export effect: No reliance release authorized.

Required Fixes Before VerdictReady

The following would be required before a comparable real-matter collision analysis could be considered for attorney reliance:

1. Verified investigative record
2. Authenticated police and supplemental reports
3. Authenticated scene and vehicle evidence
4. Preservation and chain-of-custody confirmation
5. Certified driver and claimant testimony
6. Complete witness record
7. Vehicle inspections
8. Available electronic and video evidence
9. Reliable reconstruction inputs
10. Validated expert methodology
11. Admissibility analysis
12. Current Indiana authority
13. Current jury instructions
14. Attorney review of all facts and assumptions
15. Contradiction resolution or express preservation
16. Replay validation
17. Express export authorization

Required Fixes Before FilingReady

Not applicable. No filing-specific BriefWise mode is active.

Adversarial Risk

Driver-admission risk

The driver’s reported observation and misjudgment may become the dominant liability fact. Attempts to evade or minimize a clear admission may increase plaintiff’s credibility advantage.

Speed-overstatement risk

The defense may lose credibility if it treats the 52–53-mph estimate as proof that Turner caused the collision. Speed must be connected to occurrence, avoidability, or severity through reliable methodology.

Missing-evidence risk

If physical, electronic, or video evidence is unavailable, the defense comparative-fault theory may rest too heavily on expert assumptions.

Citation risk

The plaintiff may overstate the failure-to-yield citation as a complete fault determination. The defense may also lose credibility if it argues the citation is meaningless. Its use requires a calibrated evidentiary position.

Corporate-theory distraction

Unsupported corporate, maintenance, HOS, punitive, or spoliation themes could expand the case without supporting evidence. Conversely, the defense must not claim those issues have been disproven when they have merely not been included in the synthetic baseline.

Damages-credibility interaction

An overaggressive liability defense may impair the defense's stronger arguments concerning reasonable medical value, contingent future care, lifetime overtime assumptions, and bounded noneconomic loss.

Evidentiary Issues

The principal evidentiary issues are:

- authenticity and completeness of investigative materials;
- use of the driver's statements;
- use and disposition of the citation;
- scene and vehicle foundation;
- expert methodology;
- source data for speed estimates;
- derivation of the reaction interval;
- demonstrative accuracy;
- preservation and chain of custody;
- and the distinction between absence of an allegation and affirmative proof that an issue was investigated and excluded.

Record / Appellate Issues

No real pleadings, certified transcripts, authenticated exhibits, evidentiary rulings, objections, jury instructions, verdict form, or appellate-preservation record exists.

Appellate completeness: Not applicable and not assessed.

Confidence / Hallucination Risk

Confidence in consistency with Canonical Synthetic Record v1.0: 96/100

Confidence in real-world applicability: Not determinable

Hallucination risk if unresolved scene details are silently completed: High

Hallucination risk within the expressly limited synthetic baseline: Low to moderate

Attorney-review status: Not reviewed

Release status: Held

FINAL CHAPTER STATUS

The synthetic intake, scene record, chronology, evidence matrix, contradiction register, work queue, and audit map are established. No new canonical fact was added. Primary truck fault remains the strongest preliminary assessment. Comparative fault remains limited, disputed, and reconstruction-dependent.

VerdictReady: No
Runtime state: REVIEW REQUIRED / EXPORT HELD
Attorney review required.

CHAPTER 3

SYNTHETIC DRIVER DEPOSITION, ADMISSIONS, CONTRADICTIONS, AND LIABILITY ASSESSMENT

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Witness:	David Cole, synthetic tractor-trailer driver defendant
Artifact designation:	Synthetic Driver Deposition Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Source identifier expanded:	SYN-DEP-DRV-001
Preparation status:	Controlled law-firm demonstration
Intended audience:	Transportation-defense attorneys, claims professionals, primary carrier, and excess carrier
Release status:	Attorney-review demonstration only
Facts changed:	None
New canonical facts created:	None

SYNTHETIC DEPOSITION DEMONSTRATION — NOT AN ACTUAL, SWORN, CERTIFIED, REPORTED, OR ADMISSIBLE DEPOSITION TRANSCRIPT.

This chapter was prepared solely for a controlled law-firm demonstration.

David Cole is a synthetic person in a synthetic matter. No testimony is represented as having been given under oath. No court reporter, notary, transcript certification, appearance page, reporter number, signature page, errata sheet, official caption, exhibit sticker, or authentic transcript formatting is used.

The question-and-answer passages are training artifacts. No answer becomes canonical merely because it appears in this chapter.

Answers supported by the controlling record are identified as:

[Canonical synthetic testimony]

Answers that restate an existing fact without purporting to reproduce exact words are identified as:

[Paraphrase of canonical proposition]

Topics for which the controlling record supplies no answer are identified as:

[UNRESOLVED — no canonical testimony supplied]

No optional testimony has been integrated into the canonical examination. Any later illustrative language must be separately labeled:

[Proposed synthetic testimony — attorney approval required]

No legal conclusion, fault allocation, carrier report, reserve, settlement recommendation, or trial position is released for reliance without attorney review.

VerdictReady: No — synthetic demonstration and verification incomplete.

FilingReady: Not applicable.

This chapter supplements but does not amend Chapters 1 or 2. Chapter 1 established the canonical fact and source identifiers, including the driver-observation and misjudgment proposition. Chapter 2 preserved the unresolved timing, scene, vehicle, electronic, and reconstruction questions that must not be completed through invented testimony.

The provisional table of contents places Chapter 3 at the transition from collision intake to driver testimony, admissions, contradiction analysis, rehabilitation, and liability significance.

1. CHAPTER CONTROL AND RECORD STATUS

1.1 Source hierarchy

The following hierarchy controls this chapter:

1. Canonical Synthetic Record v1.0
2. Synthetic Collision Record v1.0
3. VerdictBridge Turner Trucking Defense Assessment
4. Existing controlled-demonstration materials concerning fact preservation, missing variables, attorney review, auditability, and release limitations
5. This chapter’s examination and analysis

If this chapter conflicts with an existing canonical fact, Chapter 1 controls unless a formal change record is approved.

If this chapter appears to answer a subject Chapter 2 classified as unresolved, the unresolved classification controls unless the answer is expressly supported by an existing canonical proposition.

1.2 Preserved identifiers

The following existing identifiers remain unchanged:

- F-PROC-001 through F-PROC-003
- F-LIAB-001 through F-LIAB-012
- F-COV-001 through F-COV-003
- F-MED-005 where emergency transport is referenced
- D-001 through D-003
- C2-D001 through C2-D008
- SYN-INT-001
- SYN-POL-001
- SYN-SCN-001
- SYN-DEP-DRV-001
- SYN-REC-PLF-001
- SYN-REC-DEF-001
- SYN-MED-001
- SYN-COV-001
- SYN-MED-SET-001

New testimony-specific contradiction identifiers begin with C3-D001. They supplement rather than replace existing disputes.

1.3 Current testimony state

The controlling record supports only a limited core of driver testimony:

- David Cole is the synthetic driver defendant associated with the tractor-trailer.
- He operated the tractor-trailer involved in the synthetic collision.
- The truck began a left turn across two eastbound lanes.
- Turner approached eastbound on a motorcycle.
- The motorcycle struck the passenger side of the trailer.
- The collision occurred in daylight on a dry roadway.
- The posted speed limit was 45 miles per hour.
- Cole saw the motorcycle before impact.
- Cole misjudged its distance and speed.

- Cole was reportedly cited for failure to yield.
- The synthetic baseline describes Cole’s prior driving history as clean.

The controlling record does not supply detailed testimony concerning Cole’s background, training, route, dispatch, vehicle, cargo, fatigue, electronic devices, visual-search process, signal use, exact timing, braking, ability to abort, post-collision statements, citation disposition, discipline, or retraining.

2. CHAPTER PURPOSE AND LITIGATION FUNCTION

This chapter models the preparation, examination, and analysis of a commercial driver’s deposition in a serious transportation case.

Its principal functions are to:

- preserve the driver’s material admissions;
- separate personal observation from expert reconstruction;
- expose unanswered subjects;
- prevent expert speed opinions from being placed in the driver’s mouth;
- test the sequence between observation and turn commitment;
- detect potential inconsistencies;
- identify impeachment sources;
- prepare plaintiff examination themes;
- prepare proper defense rehabilitation;
- assess the testimony’s effect on primary negligence and comparative fault;
- and trace each material answer to a fact identifier, source, contradiction state, and release status.

This chapter is not:

- a certified transcript;
- a witness statement;
- a summary of testimony actually given;
- proof that Cole would use the words shown;
- a final liability opinion;
- an expert reconstruction;
- or a substitute for attorney-supervised witness preparation.

The synthetic Q&A is intentionally incomplete where the source record is incomplete. That incompleteness is part of the audit demonstration.

3. WITNESS AND SOURCE-STATUS SUMMARY

Field	Current synthetic status	Source	Limitation
Witness name	David Cole	F-PROC-001; SYN-INT-001	Synthetic identity only
Witness role	Driver defendant associated with the tractor-trailer	Caption and canonical baseline	Detailed agency and employment foundation unresolved
Operation of tractor-trailer	Cole operated the involved tractor-trailer	SYN-DEP-DRV-001 baseline	Vehicle identification and configuration unresolved

Field	Current synthetic status	Source	Limitation
Collision movement	Tractor-trailer began a left turn across two eastbound lanes	F-LIAB-001	Exact path, timing, speed, and staging position unresolved
Motorcycle movement	Turner approached eastbound	F-LIAB-001; SYN-SCN-001	Exact lane, distance, and speed unresolved
Impact	Motorcycle struck passenger side of trailer	F-LIAB-002	Exact point, angle, and damage pattern unresolved
Conditions	Daylight and dry roadway	F-LIAB-003	Glare, shadows, visibility, and obstructions unresolved
Posted speed	45 mph	F-LIAB-004	Does not establish either vehicle’s actual speed
Observation	Cole saw the motorcycle before impact	F-LIAB-005	Exact point, time, distance, and visual cues unresolved
Misjudgment	Cole misjudged distance and speed	F-LIAB-005	No precise estimate or exact words supplied
Citation	Reportedly cited for failure to yield	F-LIAB-009	Citation document, disposition, and admissibility unresolved
Driving history	Clean within synthetic baseline	F-LIAB-012	Does not establish qualifications, training, or absence of all prior events
Employment relationship	Driver defendant associated with Hoosier Freight Logistics	Caption and posture	Agency, scope, tenure, and employment documents unresolved
Commercial qualifications	Unresolved	Qualification file pending	CDL class, endorsements, medical qualification, and experience unknown
Training	Unresolved	Training file pending	No canonical curriculum, dates, or testing supplied
Route	Unresolved	Dispatch and route records pending	Origin, destination, purpose, and familiarity unknown
Pre-trip inspection	Unresolved	Inspection record pending	No canonical testimony or document supplied
Hours of service	No violation attributed in baseline; detailed facts unresolved	F-LIAB-011; Chapter 2 work queue	Absence of an attributed issue is not proof of compliance
Vehicle condition	No maintenance issue attributed; detailed condition unresolved	F-LIAB-011	No inspection, repair, or defect evidence supplied
Phone use	Unresolved as to Cole	Mobile-device evidence pending	F-LIAB-010 concerns Turner, not Cole
Post-collision statements	Unresolved	Statement inventory pending	No statement text, recipient, or recording supplied
Disciplinary history	Unresolved	Employment file pending	Clean driving history does not resolve employment discipline

The caption and baseline identify Cole as the driver defendant. They do not complete the detailed employment, agency, qualification, or scope-of-employment foundation.

4. TESTIMONY CLASSIFICATION AND USE RULES

4.1 Personal-knowledge testimony

Cole may potentially testify from personal knowledge about what he personally saw, heard, did, believed, or remembered.

Personal knowledge may include:

- his operation of the truck;
- the movement he initiated;
- his observation of the motorcycle;
- his subjective judgment;
- his conduct before and after impact;

- and his communications.

The present synthetic record supplies only part of that testimony.

4.2 Admission

A driver admission is a statement that may materially affect the liability analysis. The most significant current admission is that Cole saw the motorcycle but misjudged its distance and speed.

For this chapter, classification as an admission means only that the proposition is important to the internal analysis. It is not a final ruling on admissibility, legal effect, or evidentiary weight.

4.3 Reconstruction-dependent subject

Cole’s personal impression of distance or speed is not equivalent to an engineering reconstruction.

He may potentially describe:

- what he believed;
- whether that belief proved inaccurate;
- and the circumstances of his observation.

He may not establish through lay testimony:

- Turner’s actual speed;
- stopping distance;
- perception-reaction time;
- lane-occupancy duration;
- collision avoidability;
- or a comparative-fault percentage.

4.4 Legal conclusion

Statements such as the following would not replace legal analysis:

- “I was negligent.”
- “Turner had the right of way.”
- “Turner was ten percent at fault.”
- “The collision was unavoidable.”
- “The citation proves liability.”

The facts, governing law, instructions, and evidentiary record determine the legal analysis.

4.5 Unresolved testimony

An unresolved answer is not treated as “no,” “I do not remember,” or any other substantive response.

It means only:

The controlling record does not supply a canonical answer.

4.6 Proposed synthetic testimony

No proposed testimony has been integrated into this chapter.

A later version may add illustrative testimony only if:

- separately labeled;
- reviewed for consistency;
- approved by an attorney;
- recorded in the change log;
- and excluded from canonical analysis until approval.

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5. DRIVER DEPOSITION PREPARATION MAP

Examination topic	Canonical facts available	Missing testimony	Plaintiff objective	Defense objective	Related IDs
Identity and role	Cole is synthetic driver defendant	Employment and agency details	Establish control and party status	Preserve scope limitations	F-PROC-001
Qualifications	Clean driving history	CDL, endorsements, experience, medical qualification	Test competence and notice	Prevent unsupported qualification attack	F-LIAB-012
Employer relationship	Association with Hoosier Freight	Tenure, scope, supervision	Support vicarious and corporate theories	Separate driver error from unsupported corporate claims	F-PROC-001
Route	None	Origin, destination, familiarity	Test planning and visibility	Preserve missing-data objection	C2 work queue
Dispatch	None	Purpose, timing, instructions	Test pressure or company control	Prevent unsupported pressure theory	F-LIAB-011
Vehicle	Tractor-trailer involved	Model, configuration, dimensions	Establish operating characteristics	Reserve expert and document foundation	F-LIAB-001
Cargo	None	Type and weight	Test acceleration and stopping	Avoid speculation	C2 reconstruction questions
Pre-trip	None	Inspection and defects	Test safety compliance	Require records before inference	F-LIAB-011
Hours and fatigue	No HOS issue attributed	Duty time, rest, fatigue	Explore impairment or company practices	Distinguish absence from verified compliance	F-LIAB-011
Road familiarity	None	Prior use and knowledge	Test expectation and planning	Preserve testimony	C2 work queue
Approach	Daylight, dry, 45 mph	Lane, staging, truck speed	Establish available observation	Require precise foundation	F-LIAB-003–004
Visual search	Cole saw motorcycle	Where, when, how often	Show inadequate lookout	Develop actual sequence	F-LIAB-005
First observation	Before impact	Exact point and time	Establish opportunity to wait	Preserve contextual timing	C2-D005
Distance judgment	Misjudged	Believed distance and cues	Show unsafe decision	Separate subjective belief from measurement	F-LIAB-005
Speed judgment	Misjudged	Believed speed and basis	Show no reliable speed foundation	Keep actual speed with experts	D-001
Left-turn decision	Turn began	Decision sequence	Show decision after observation	Determine whether observation preceded commitment	F-LIAB-001; C2-D005
Signal	None	Use and timing	Test statutory and credibility issue	Avoid negative inference without evidence	Unresolved
Mirrors	None	Use and sequence	Test visual search	Preserve actual recollection	Unresolved
Stop or abort	None	Available options	Show preventability	Require reconstruction and testimony	D-002
Trailer movement	Crossed two eastbound lanes	Speed and occupancy time	Show blocked roadway	Reserve expert analysis	F-LIAB-001

Examination topic	Canonical facts available	Missing testimony	Plaintiff objective	Defense objective	Related IDs
Impact	Passenger side	Exact point and awareness	Confirm geometry	Develop damage foundation	F-LIAB-002
Aftermath	Emergency transport; citation	Conduct and statements	Show consciousness or admission	Prevent unsupported implication	F-MED-005; F-LIAB-009
Police contact	Citation only	Statements and report	Impeachment	Obtain complete statement inventory	C2-D006
Prior statements	None	Recorded, written, oral statements	Lock testimony	Identify consistency before deposition	C2-D005
Training	None	Left-turn and motorcycle training	Expand fault or corporate case	Require actual records	F-LIAB-011
Safety history	Clean driving record	Prior events and discipline	Challenge completeness	Limit use to proper context	F-LIAB-012
Corporate policies	None	Applicable policies	Establish standard and control	Prevent policy from becoming legal standard	F-LIAB-011
Preservation	No spoliation issue attributed	Custody and retention facts	Test evidence loss	Document preservation chain	F-LIAB-011
Current recollection	Core baseline only	Present memory and refreshment	Lock witness	Distinguish memory from document-assisted testimony	SYN-DEP-DRV-001

6. SYNTHETIC EXAMINATION — WITNESS IDENTITY AND ROLE

Q3-001. Please state your name for this synthetic demonstration record.

A3-001. David Cole.
[Canonical synthetic testimony]

Q3-002. Are you identified as a defendant in the synthetic matter involving Michael Turner?

A3-002. Yes.
[Canonical synthetic testimony]

Q3-003. Were you operating the tractor-trailer involved in the collision described in this synthetic record?

A3-003. Yes.
[Canonical synthetic testimony]

Q3-004. Were you the driver associated with the left-turn movement at issue?

A3-004. Yes.
[Canonical synthetic testimony]

Q3-005. Were you employed by Hoosier Freight Logistics, Inc. on the date of the collision?

A3-005. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-006. Are you currently employed by Hoosier Freight Logistics, Inc.?

A3-006. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-007. Were you acting within the course and scope of an employment or agency relationship?

A3-007. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-008. Does the synthetic baseline identify your driving history as clean before this event?

A3-008. Yes, within the synthetic baseline.
[Canonical synthetic testimony]

Q3-009. How old were you on the date of the collision?

A3-009. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-010. What was your home address?

A3-010. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Examination significance

The canonical testimony establishes Cole's synthetic identity and operational role. It does not establish the detailed employment, agency, or scope foundation.

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7. DRIVER BACKGROUND, QUALIFICATIONS, AND TRAINING

7.1 Synthetic Q&A

Q3-011. What class of commercial driver's license did you hold?

A3-011. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-012. What endorsements did you hold?

A3-012. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-013. Was your commercial license valid on the date of the collision?

A3-013. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-014. Did you hold a current medical qualification?

A3-014. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-015. How many years had you driven commercial vehicles?

A3-015. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-016. How long had you driven tractor-trailers?

A3-016. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-017. How long had you worked with Hoosier Freight Logistics?

A3-017. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-018. What training had you received concerning left turns across multiple lanes?

A3-018. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-019. What training had you received concerning motorcycles?

A3-019. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-020. What defensive-driving training had you completed?

A3-020. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-021. Had you received any prior driving discipline?

A3-021. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-022. Had you been involved in prior commercial-vehicle collisions?

A3-022. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-023. Had you received prior traffic citations?

A3-023. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

Q3-024. What documents were maintained in your driver-qualification file?

A3-024. UNRESOLVED — no canonical testimony supplied.
[UNRESOLVED — no canonical testimony supplied]

7.2 Background-status table

Background issue	Testimony status	Why it matters	Source required	Liability effect if adverse
CDL class	Unresolved	Legal qualification and vehicle authorization	License and qualification file	May support qualification challenge
Endorsements	Unresolved	Scope of authorized operation	License documents	May affect competence theory
Medical qualification	Unresolved	Fitness to operate	Medical card and file	May affect driver-fitness theory
Experience	Unresolved	Familiarity with tractor-trailer operation	Employment history	May affect credibility of claimed misjudgment
Left-turn training	Unresolved	Safety preparation for crossing movements	Training materials	May support or limit negligent-training theme
Motorcycle awareness	Unresolved	Recognition of smaller-profile road users	Training records	May affect foreseeability and visual-search analysis
Prior discipline	Unresolved	Notice and retention	Personnel file	May affect corporate theory

Background issue	Testimony status	Why it matters	Source required	Liability effect if adverse
Prior crashes	Unresolved	Experience and notice	Motor-vehicle and carrier records	May affect credibility and corporate notice
Prior citations	Unresolved	Driving-history completeness	Official driving record	May qualify F-LIAB-012
Safety policies	Unresolved	Expected company process	Policy manuals	May affect examination but not automatically establish legal duty

The clean-driving-history proposition does not establish Cole’s qualifications, training, testing, disciplinary record, or complete safety history.

8. PRE-TRIP, DISPATCH, ROUTE, HOURS, AND VEHICLE CONDITION

8.1 Synthetic Q&A

Q3-025. What time were you dispatched?

A3-025. UNRESOLVED — no canonical testimony supplied.

Q3-026. Where did the route begin?

A3-026. UNRESOLVED — no canonical testimony supplied.

Q3-027. What was your destination?

A3-027. UNRESOLVED — no canonical testimony supplied.

Q3-028. Had you traveled the route before?

A3-028. UNRESOLVED — no canonical testimony supplied.

Q3-029. What dispatch instructions did you receive?

A3-029. UNRESOLVED — no canonical testimony supplied.

Q3-030. What cargo was in the trailer?

A3-030. UNRESOLVED — no canonical testimony supplied.

Q3-031. What was the cargo weight?

A3-031. UNRESOLVED — no canonical testimony supplied.

Q3-032. What tractor were you operating?

A3-032. UNRESOLVED — no canonical testimony supplied.

Q3-033. What trailer were you pulling?

A3-033. UNRESOLVED — no canonical testimony supplied.

Q3-034. Did you perform a pre-trip inspection?

A3-034. UNRESOLVED — no canonical testimony supplied.

Q3-035. Were the tractor and trailer lights operating?

A3-035. UNRESOLVED — no canonical testimony supplied.

Q3-036. Were the brakes operating properly?

A3-036. UNRESOLVED — no canonical testimony supplied.

Q3-037. Were the tires in proper condition?

A3-037. UNRESOLVED — no canonical testimony supplied.

Q3-038. Were the mirrors properly adjusted?

A3-038. UNRESOLVED — no canonical testimony supplied.

Q3-039. Were the turn signals operating?

A3-039. UNRESOLVED — no canonical testimony supplied.

Q3-040. How long had you been on duty?

A3-040. UNRESOLVED — no canonical testimony supplied.

Q3-041. How much rest had you received?

A3-041. UNRESOLVED — no canonical testimony supplied.

Q3-042. Were you fatigued?

A3-042. UNRESOLVED — no canonical testimony supplied.

Q3-043. Had you taken any medication?

A3-043. UNRESOLVED — no canonical testimony supplied.

Q3-044. Did the tractor or trailer have an ECM, EDR, telematics system, or dash camera?

A3-044. UNRESOLVED — no canonical testimony supplied.

8.2 Examination map

The absence of canonical answers does not prove:

- that the truck had no electronic data;
- that Cole complied or failed to comply with hours-of-service requirements;
- that the vehicle was defect-free;
- that Cole was fatigued;
- or that dispatch and cargo played no role.

Chapter 2 identifies these subjects as preservation and investigation items. They remain source-dependent.

9. APPROACH TO THE TURN

9.1 Synthetic Q&A

Q3-045. Did the collision occur during daylight?

A3-045. Yes.
[Canonical synthetic testimony]

Q3-046. Was the roadway described as dry?

A3-046. Yes.
[Canonical synthetic testimony]

Q3-047. Was the posted speed limit 45 miles per hour?

A3-047. Yes.
[Canonical synthetic testimony]

Q3-048. What was the exact roadway or intersection?

A3-048. UNRESOLVED — no canonical testimony supplied.

Q3-049. What traffic-control device governed the movement?

A3-049. UNRESOLVED — no canonical testimony supplied.

Q3-050. In what lane or position was the tractor-trailer before the turn?

A3-050. UNRESOLVED — no canonical testimony supplied.

Q3-051. How fast was the tractor-trailer traveling?

A3-051. UNRESOLVED — no canonical testimony supplied.

Q3-052. Was the tractor-trailer stopped before the turn?

A3-052. UNRESOLVED — no canonical testimony supplied.

Q3-053. What visual scan did you perform before beginning the turn?

A3-053. UNRESOLVED — no canonical testimony supplied.

Q3-054. Which mirrors did you use?

A3-054. UNRESOLVED — no canonical testimony supplied.

Q3-055. Did you activate a turn signal?

A3-055. UNRESOLVED — no canonical testimony supplied.

Q3-056. Were there sight obstructions?

A3-056. UNRESOLVED — no canonical testimony supplied.

Q3-057. What was your available line of sight?

A3-057. UNRESOLVED — no canonical testimony supplied.

Q3-058. Did the tractor-trailer begin a left turn across two eastbound lanes?

A3-058. Yes.
[Canonical synthetic testimony]

Q3-059. Was Turner’s motorcycle approaching eastbound?

A3-059. Yes.
[Canonical synthetic testimony]

9.2 Examination analysis

Plaintiff use

Plaintiff can combine daylight, dry roadway, the left-turn movement, and Cole’s observation to argue that the hazard should have been recognized and avoided.

Defense use

The defense should require proof of:

- exact geometry;
- traffic control;
- staging position;
- line of sight;
- truck movement;
- and observation timing.

Unresolved questions

The record does not establish whether Cole stopped, signaled, checked mirrors, encountered an obstruction, or had a clear sight line.

Relevant sources

- police materials;
- photographs;
- video;
- scene measurements;
- Cole’s actual testimony;
- and reconstruction analysis.

Credibility risk

An unsupported attempt to fill these gaps with favorable testimony would be readily impeachable if later records differed.

10. OBSERVATION OF THE MOTORCYCLE

10.1 Synthetic Q&A

Q3-060. Did you see Turner’s motorcycle before the impact?

A3-060. Yes.
[Canonical synthetic testimony]

Q3-061. Was that observation made before the collision occurred?

A3-061. Yes.
[Canonical synthetic testimony]

Q3-062. Where were you looking when you first saw the motorcycle?

A3-062. UNRESOLVED — no canonical testimony supplied.

Q3-063. At what point in the truck’s movement did you first see it?

A3-063. UNRESOLVED — no canonical testimony supplied.

Q3-064. How long before impact did you first see it?

A3-064. UNRESOLVED — no canonical testimony supplied.

Q3-065. How far away was the motorcycle when you first saw it?

A3-065. UNRESOLVED — no canonical testimony supplied.

Q3-066. What visual cues did you use to assess the motorcycle?

A3-066. UNRESOLVED — no canonical testimony supplied.

Q3-067. Could you see whether its headlight was operating?

A3-067. UNRESOLVED — no canonical testimony supplied.

Q3-068. Did you form a judgment about the motorcycle’s distance?

A3-068. Yes, and that judgment was inaccurate.
[Paraphrase of canonical proposition]

Q3-069. Did you form a judgment about the motorcycle’s speed?

A3-069. Yes, and that judgment was inaccurate.
[Paraphrase of canonical proposition]

Q3-070. Did you look at the motorcycle more than once?

A3-070. UNRESOLVED — no canonical testimony supplied.

Q3-071. What did you do after observing it?

A3-071. UNRESOLVED — no canonical testimony supplied.

10.2 Liability significance

The observation itself is important, but the sequence remains incomplete. The testimony does not establish:

- whether Cole saw Turner before deciding to turn;
- whether he saw Turner only after the truck was committed;
- how long he observed Turner;
- whether he reassessed the approach;
- or what action followed.

That sequence is central to C2-D005 and the testimony-specific contradiction register below.

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11. LEFT-TURN DECISION

11.1 Synthetic Q&A

Q3-072. Did you begin the tractor-trailer's left turn across the eastbound lanes?

A3-072. Yes.
[Canonical synthetic testimony]

Q3-073. When did you decide to begin the turn?

A3-073. UNRESOLVED — no canonical testimony supplied.

Q3-074. Did you decide to turn before or after first seeing Turner?

A3-074. UNRESOLVED — no canonical testimony supplied.

Q3-075. Did you believe the turn could be completed safely?

A3-075. UNRESOLVED — no canonical testimony supplied.

Q3-076. What information did you rely on in making that decision?

A3-076. UNRESOLVED — no canonical testimony supplied.

Q3-077. Did you consider waiting for the motorcycle to pass?

A3-077. UNRESOLVED — no canonical testimony supplied.

Q3-078. Did you pause during the turn?

A3-078. UNRESOLVED — no canonical testimony supplied.

Q3-079. Did you accelerate after recognizing the conflict?

A3-079. UNRESOLVED — no canonical testimony supplied.

Q3-080. Could you stop the movement before entering Turner's lane?

A3-080. UNRESOLVED — no canonical testimony supplied.

Q3-081. Could you abort the turn?

A3-081. UNRESOLVED — no canonical testimony supplied.

Q3-082. When did the trailer enter or occupy Turner's lane?

A3-082. UNRESOLVED — no canonical testimony supplied.

11.2 Critical unresolved sequence

The current record does not establish whether:

1. Cole saw Turner and then decided to turn;
2. Cole began turning and then saw Turner;
3. Cole saw Turner before commitment but believed the motorcycle was far enough away;
4. or Cole's first meaningful recognition occurred only after the trailer entered the lane.

Those scenarios have materially different implications. None is selected as canonical.

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12. DISTANCE-AND-SPEED MISJUDGMENT

12.1 What Cole perceived

Q3-083. Did you perceive Turner's motorcycle before impact?

A3-083. Yes.
[Canonical synthetic testimony]

Q3-084. Did you form a judgment about its distance?

A3-084. Yes.
[Canonical synthetic testimony]

12.2 What Cole believed

The record does not supply the numerical distance or the words Cole would use to describe his belief.

Q3-085. Was your judgment of the distance accurate?

A3-085. No. I misjudged the distance.
[Canonical synthetic testimony]

Q3-086. Did you also form a judgment about the motorcycle's speed?

A3-086. Yes.
[Canonical synthetic testimony]

12.3 What proved inaccurate

Q3-087. Was your judgment of its speed accurate?

A3-087. No. I misjudged the speed.
[Canonical synthetic testimony]

The canonical proposition does not define whether Cole believed Turner was moving slowly, was farther away, or could be cleared before the turn was completed. Those details remain unresolved.

12.4 What Cole cannot reliably quantify from the canonical record

Q3-088. What was the motorcycle's actual distance when you first saw it?

A3-088. UNRESOLVED — no canonical testimony supplied.

Q3-089. What was the motorcycle's actual speed?

A3-089. UNRESOLVED — no canonical testimony supplied. Cole may not establish actual speed through this synthetic lay testimony.

Q3-090. Do you adopt the plaintiff expert's estimate of approximately 46–49 miles per hour?

A3-090. UNRESOLVED — no canonical testimony supplied.

Q3-091. Do you adopt the defense expert's estimate of approximately 52–53 miles per hour?

A3-091. UNRESOLVED — no canonical testimony supplied.

Q3-092. What percentage of legal fault do you assign to yourself or Turner?

A3-092. UNRESOLVED — no canonical testimony supplied. Legal allocation is not established through this lay examination.

12.5 Relationship to expert reconstruction

Testimony proposition	Canonical status	Fact ID	Expert issue implicated	Permitted analytical use	Prohibited use
Cole saw motorcycle	Canonical	F-LIAB-005	Observation timing	Primary-fault analysis	Exact sight-distance proof
Cole judged distance	Canonical by necessary paraphrase	F-LIAB-005	Initial separation	Subjective decision process	Measured distance
Distance judgment was wrong	Canonical	F-LIAB-005	Timing and clearing analysis	Admission and credibility	Exact error calculation
Cole judged speed	Canonical by necessary paraphrase	F-LIAB-005	Closing-speed perception	Subjective decision process	Actual speed
Speed judgment was wrong	Canonical	F-LIAB-005	Comparative-fault context	Admission and credibility	Adoption of expert range
Actual speed	Not driver-established	F-LIAB-006–007	Reconstruction methodology	Expert issue only	Lay conclusion
Reaction interval	Not driver-established	F-LIAB-008	Human factors and reconstruction	Expert issue only	Personal measurement
Legal fault	Not established	D-003	Comparative-fault law	Attorney and jury analysis	Witness percentage

The defense should not rehabilitate Cole by having him adopt the 52–53-mph expert estimate. Doing so would blur the line between personal recollection and later expert analysis.

13. PERCEPTION AND REACTION SEQUENCE

13.1 Synthetic Q&A

Q3-093. When did you recognize that the motorcycle and trailer were in conflict?

A3-093. UNRESOLVED — no canonical testimony supplied.

Q3-094. After recognizing the conflict, did you decide to continue the turn?

A3-094. UNRESOLVED — no canonical testimony supplied.

Q3-095. Did you attempt to stop?

A3-095. UNRESOLVED — no canonical testimony supplied.

Q3-096. Did you attempt to accelerate through the turn?

A3-096. UNRESOLVED — no canonical testimony supplied.

Q3-097. How long was the trailer occupying Turner's lane?

A3-097. UNRESOLVED — no canonical testimony supplied.

Q3-098. Did you observe Turner react to the trailer?

A3-098. UNRESOLVED — no canonical testimony supplied.

Q3-099. Did you see Turner brake?

A3-099. UNRESOLVED — no canonical testimony supplied.

Q3-100. What was Turner's reaction time?

A3-100. UNRESOLVED — no canonical testimony supplied. Cole may not establish Turner's reaction time.

Q3-101. Did you personally measure or calculate a 2.1-second interval?

A3-101. UNRESOLVED — no canonical testimony supplied.

Q3-102. Is the 2.1-second figure your personal reconstruction opinion?

A3-102. UNRESOLVED — no canonical testimony supplied. The canonical record classifies the figure as expert-dependent, not driver testimony.

Q3-103. Did the motorcycle strike the passenger side of the trailer?

A3-103. Yes.
[Canonical synthetic testimony]

13.2 Sequence table

Sequence stage	Canonical testimony	Unresolved testimony	Expert-dependent issue	Liability significance
Pre-turn observation	Cole saw motorcycle before impact	Exact first-observation point	Sight distance and timing	Primary-fault context
Turn initiation	Truck began left turn	Whether observation preceded decision	Truck movement and commitment	Central negligence sequence
Judgment	Cole misjudged distance and speed	Precise belief and basis	Closing speed and clearing time	Material admission
Conflict recognition	None	When Cole realized impact risk	Perception-recognition analysis	Opportunity to respond
Driver response	None	Stop, pause, accelerate, steer, warn	Vehicle capabilities	Avoidability
Turner response	None	Braking or steering	Human factors	Comparative fault
Lane occupation	Trailer crossed eastbound path	Occupancy duration	Reconstruction	Available reaction window
Reaction interval	None from Cole	Whether he knew any timing	Approximately 2.1 seconds	Expert-only issue
Impact	Passenger-side trailer impact	Exact location and angle	Damage analysis	Collision geometry

14. IMPACT AND IMMEDIATE AFTERMATH

14.1 Synthetic Q&A

Q3-104. What did you personally hear or feel at impact?

A3-104. UNRESOLVED — no canonical testimony supplied.

Q3-105. Did the synthetic record place the impact on the passenger side of the trailer?

A3-105. Yes.
[Paraphrase of canonical proposition]

Q3-106. What was the exact point of contact?

A3-106. UNRESOLVED — no canonical testimony supplied.

Q3-107. Did you stop immediately?

A3-107. UNRESOLVED — no canonical testimony supplied.

Q3-108. Did you exit the truck?

A3-108. UNRESOLVED — no canonical testimony supplied.

Q3-109. What did you observe concerning Turner?

A3-109. UNRESOLVED — no canonical testimony supplied.

Q3-110. Did you request emergency assistance?

A3-110. UNRESOLVED — no canonical testimony supplied.

Q3-111. Does the synthetic record state that Turner required emergency transport?

A3-111. Yes.
[Paraphrase of canonical proposition]

Q3-112. With whom did you communicate at the scene?

A3-112. UNRESOLVED — no canonical testimony supplied.

Q3-113. What did you tell the investigating personnel?

A3-113. UNRESOLVED — no canonical testimony supplied.

Q3-114. Were you reportedly cited for failure to yield?

A3-114. Yes.
[Canonical synthetic testimony]

Q3-115. Did you undergo post-collision testing?

A3-115. UNRESOLVED — no canonical testimony supplied.

Q3-116. Did the company discipline or retrain you?

A3-116. UNRESOLVED — no canonical testimony supplied.

14.2 Limitations

The emergency-transport fact establishes serious injury context. It does not establish that Cole personally observed the full nature of Turner's injuries.

The chapter does not create:

- a rescue narrative;
- an apology;
- an admission at the scene;
- or a post-collision conduct theme.

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15. CITATION AND STATEMENTS

15.1 Synthetic Q&A

Q3-117. Were you reportedly issued a citation arising from the collision?

A3-117. Yes.
[Canonical synthetic testimony]

Q3-118. Was the reported citation for failure to yield?

A3-118. Yes.
[Canonical synthetic testimony]

Q3-119. What did you understand the citation to mean?

A3-119. UNRESOLVED — no canonical testimony supplied.

Q3-120. Did you contest the citation?

A3-120. UNRESOLVED — no canonical testimony supplied.

Q3-121. What was the citation's disposition?

A3-121. UNRESOLVED — no canonical testimony supplied.

Q3-122. What statements did you give the police?

A3-122. UNRESOLVED — no canonical testimony supplied.

Q3-123. What statements did you give your employer?

A3-123. UNRESOLVED — no canonical testimony supplied.

Q3-124. What statements did you give an insurer?

A3-124. UNRESOLVED — no canonical testimony supplied.

Q3-125. What communications did you have with counsel?

A3-125. UNRESOLVED — no canonical testimony supplied. Privilege and work-product review may apply.

Q3-126. Did you provide a recorded statement?

A3-126. UNRESOLVED — no canonical testimony supplied.

Q3-127. Did you provide any written statement?

A3-127. UNRESOLVED — no canonical testimony supplied.

Q3-128. Did you apologize or admit legal fault?

A3-128. UNRESOLVED — no canonical testimony supplied.

15.2 Citation and statement analysis

The reported citation is not treated as a civil adjudication.

The following remain unresolved:

- citation document;
- factual basis;
- disposition;
- plea or payment;
- related statements;
- and permitted evidentiary use.

No prior statement may be quoted or characterized until the statement inventory is complete.

CHAPTER 3

SYNTHETIC DRIVER DEPOSITION, ADMISSIONS, CONTRADICTIONS, AND LIABILITY ASSESSMENT

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Witness:	David Cole, synthetic tractor-trailer driver defendant
Artifact designation:	Synthetic Driver Deposition Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Source identifier expanded:	SYN-DEP-DRV-001
Preparation status:	Controlled law-firm demonstration
Intended audience:	Transportation-defense attorneys, claims professionals, primary carrier, and excess carrier
Release status:	Attorney-review demonstration only
Facts changed:	None
New canonical facts created:	None

SYNTHETIC DEPOSITION DEMONSTRATION — NOT AN ACTUAL, SWORN, CERTIFIED, REPORTED, OR ADMISSIBLE DEPOSITION TRANSCRIPT.

This chapter was prepared solely for a controlled law-firm demonstration.

David Cole is a synthetic person in a synthetic matter. No testimony is represented as having been given under oath. No court reporter, notary, transcript certification, appearance page, reporter number, signature page, errata sheet, official caption, exhibit sticker, or authentic transcript formatting is used.

The question-and-answer passages are training artifacts. No answer becomes canonical merely because it appears in this chapter.

Answers supported by the controlling record are identified as:

[Canonical synthetic testimony]

Answers that restate an existing fact without purporting to reproduce exact words are identified as:

[Paraphrase of canonical proposition]

Topics for which the controlling record supplies no answer are identified as:

[UNRESOLVED — no canonical testimony supplied]

No optional testimony has been integrated into the canonical examination. Any later illustrative language must be separately labeled:

[Proposed synthetic testimony — attorney approval required]

No legal conclusion, fault allocation, carrier report, reserve, settlement recommendation, or trial position is released for reliance without attorney review.

VerdictReady: No — synthetic demonstration and verification incomplete.

FilingReady: Not applicable.

This chapter supplements but does not amend Chapters 1 or 2. Chapter 1 established the canonical fact and source identifiers, including the driver-observation and misjudgment proposition. Chapter 2 preserved the unresolved timing, scene, vehicle, electronic, and reconstruction questions that must not be completed through invented testimony.

The provisional table of contents places Chapter 3 at the transition from collision intake to driver testimony, admissions, contradiction analysis, rehabilitation, and liability significance.

16. CANONICAL ADMISSION REGISTER

16.1 Direct canonical admissions

Admission ID	Testimony proposition	Fact ID	Source status	Plaintiff significance	Defense treatment	Risk if minimized
ADM-DRV-001	Cole was the driver associated with the tractor-trailer	F-PROC-001	Canonical synthetic baseline	Establishes party and operator	Confirm without unnecessary qualification	High
ADM-DRV-002	The truck began a left turn across two eastbound lanes	F-LIAB-001	Canonical	Establishes crossing movement	Acknowledge; develop geometry	High
ADM-DRV-003	Cole saw the motorcycle before impact	F-LIAB-005	Canonical	Supports opportunity to evaluate approach	Preserve timing context	Very high
ADM-DRV-004	Cole misjudged the motorcycle’s distance	F-LIAB-005	Canonical	Supports unsafe evaluation	Acknowledge ordinary error; avoid evasion	Very high
ADM-DRV-005	Cole misjudged the motorcycle’s speed	F-LIAB-005	Canonical	Undermines lay speed reliability	Keep actual speed with experts	Very high
ADM-DRV-006	Motorcycle struck passenger side of trailer	F-LIAB-002	Canonical	Supports roadway-blocking narrative	Develop exact geometry through evidence	Medium–high
ADM-DRV-007	Cole was reportedly cited for failure to yield	F-LIAB-009	Canonical report status	Reinforces plaintiff traffic narrative	Preserve disposition and legal limitations	High if denied or trivialized

16.2 Contextual admissions

The following are contextual rather than dispositive:

- daylight conditions;
- dry roadway;
- 45-mph posted speed;
- clean driving history.

They may affect presentation but do not establish legal fault.

16.3 Expert-dependent subjects

The following are not driver admissions:

- 46–49-mph plaintiff estimate;
- 52–53-mph defense estimate;
- 2.1-second reaction model;
- avoidability;
- stopping distance;
- and comparative-fault percentage.

16.4 Unresolved potential admissions

Potential admissions remain unresolved concerning:

- the observation-decision sequence;
- ability to wait;
- ability to stop or abort;
- turn-signal use;
- mirror use;
- post-collision statements;
- and citation disposition.

17. PLAINTIFF EXAMINATION THEMES

Plaintiff theme	Supporting canonical facts	Missing proof	Likely rhetorical use	Defense risk
Favored-direction motorcycle	Turner approached eastbound; truck crossed lanes	Exact traffic control and legal priority	“The truck crossed his path”	High
Motorcycle was visible	Cole saw motorcycle	Observation point and duration	“You saw him before you turned”	High unless sequence developed
Misjudgment	Distance and speed were misjudged	Exact belief	“You guessed wrong”	Very high
Decision to proceed	Truck turned	Whether decision followed observation	“You went anyway”	High if timing supports it
Failure to wait	Turn occurred before passage	Whether waiting was feasible	“Nothing prevented you from waiting”	High if unanswered
Trailer blocked lanes	Left turn across two lanes; passenger-side impact	Lane-occupancy duration	“Your trailer became a wall”	High, though rhetoric may overstate
Limited reaction interval	2.1-second model	Methodology	“You left him seconds”	High if expert foundation accepted
Citation	Failure-to-yield citation	Disposition and admissibility	“The investigating officer cited you”	Moderate to high
Responsibility versus excuse	Admission and serious injury	Full decision context	“This was not the rider’s decision”	High
Training	None supplied	Training file	“You were trained to wait”	Unresolved
Safety rules	None supplied	Policy and legal foundation	“Company rules required more”	Unresolved
Company control	Caption and driver association	Agency and operational evidence	Expand corporate case	Currently unsupported
No reliable lay speed estimate	Cole misjudged speed	Exact testimony	“You cannot blame a speed you misread”	High
Clean history does not erase event	F-LIAB-012	Relevance	“A clean record does not change this turn”	Low defense benefit on occurrence

Plaintiff’s strongest examination is likely to remain simple:

1. Cole saw the motorcycle.
2. Cole judged its distance and speed.
3. Both judgments were wrong.
4. The truck nevertheless entered the eastbound path.
5. The motorcycle struck the trailer.

The defense should expect that sequence and avoid complicating the admission with unsupported explanation.

18. DEFENSE REHABILITATION THEMES

Rehabilitation theme	Proper use	Improper overreach	Source needed	Credibility effect
Candid acknowledgment	Admit the observation and misjudgment	Deny or redefine clear baseline facts	Actual testimony	Positive if sincere
Ordinary error	Distinguish negligence issue from conscious disregard	Suggest ordinary error means no liability	Full factual context	Helps punitive boundary
Expert boundary	State Cole cannot establish actual speed	Have Cole adopt defense expert range	Reconstruction reports	Strong credibility protection
Observation context	Develop when and where Cole observed Turner	Manufacture a favorable timing sequence	Testimony and scene evidence	Potentially important
Citation limitation	Acknowledge citation; preserve disposition and legal effect	Claim citation is meaningless	Citation and authority	Balanced

Rehabilitation theme	Proper use	Improper overreach	Source needed	Credibility effect
Clean history	Use only as limited humanizing context	Argue it proves non-negligence	Verified driving record	Modest benefit
No punitive record	Point out absence of established reckless or systemic facts	Claim investigation conclusively disproved all such issues	Employment and operational records	Helps issue containment
Comparative-fault restraint	Preserve speed issue for experts	Make Cole the source of rider speed	Expert methodology	Protects jury credibility
Damages credibility	Be candid on collision while contesting unsupported damage components	Trade factual candor for broad liability denial	Full damages record	Potentially significant
Memory boundary	Let Cole say what he actually recalls	Supply answers from counsel’s theory	Witness preparation record	Essential

Rehabilitation must not coach Cole into testimony that is unsupported by actual recollection. In a real matter, preparation may review documents, explain process, and identify subjects, but it may not create memory.

19. DRIVER-CREDIBILITY ASSESSMENT

The following are presentation scenarios, not canonical facts.

Presentation scenario	Plaintiff use	Defense effect	Risk	Preparation boundary
Candid and accountable	Plaintiff obtains clean admissions	Defense may preserve broader credibility	Admission remains damaging	Do not script apology or legal concession
Defensive or minimizing	Plaintiff portrays evasion	Weakens all defense themes	High	Correct only through truthful preparation
Uncertain but credible	Plaintiff highlights missing memory	Defense may distinguish memory from speculation	Moderate	Do not fill gaps
Overly rehearsed	Plaintiff attacks coaching	May make accurate answers appear artificial	High	Use concepts, not scripts
Unable to remember	Plaintiff relies on documents and prior statements	Defense avoids speculation	Depends on record	Refresh only through proper sources
Inconsistent with prior statements	Plaintiff impeaches directly	Potential major credibility loss	Very high	Complete statement inventory first

Preparation boundary

Counsel may properly prepare Cole to:

- distinguish memory from assumption;
- identify when an answer is based on a document;
- avoid adopting expert opinions;
- answer the question asked;
- and acknowledge established facts.

Counsel may not prepare Cole to:

- invent a signal;
- invent a mirror check;
- select a favorable observation time;
- adopt an expert speed estimate;
- deny a canonical admission;
- or create an explanation absent from his recollection.

20. DEPOSITION CONTRADICTION REGISTER

Contradiction ID	Existing cross-reference	Testimony proposition A	Testimony proposition B	Source status	Current state	Required resolution	Downstream effect
C3-D001	C2-D005; F-LIAB-005	Cole saw Turner before beginning the turn	Cole first saw Turner only after turn commitment	Neither sequence supplied	Potential contradiction to test	Actual testimony and prior statements	Primary negligence strength
C3-D002	F-LIAB-005	Cole misjudged distance	Cole misjudged both distance and speed	Canonical record supports both	Resolved at baseline level	Exact words and context still needed	Scope of admission
C3-D003	C2-D005	Cole had time to wait	Turn was already committed when risk became apparent	Neither supplied	Potential contradiction to test	Timing, scene, and testimony	Preventability
C3-D004	D-002; C2-D007	Cole could stop or abort	Stopping or aborting was not feasible	Neither supplied	Potential contradiction to test	Vehicle movement and reconstruction	Avoidability
C3-D005	D-002	Cole observed Turner brake or react	Cole did not observe Turner's response	Neither supplied	Potential contradiction to test	Testimony, video, physical evidence	Comparative fault
C3-D006	D-001; C2-D004	Cole personally estimated Turner's speed	Speed range was supplied later by experts	Personal estimate unresolved; expert ranges canonical	Open boundary issue	Testimony and expert-source chronology	Lay/expert separation
C3-D007	F-LIAB-008; C2-D003	Cole personally knew the 2.1-second interval	The figure is expert-derived	Canonical record supports expert-dependent status	No established testimony contradiction	Confirm source of figure	Expert admissibility
C3-D008	F-LIAB-009; C2-D006	Citation is treated as acceptance of responsibility	Citation is treated only as police action	Disposition and understanding unresolved	Potential contradiction to test	Citation record and testimony	Credibility and evidentiary use
C3-D009	F-LIAB-012	Clean driving history suggests safe driver	Current collision reflects a material judgment error	Both can coexist	Not a factual contradiction	Proper relevance framing	Witness presentation
C3-D010	D-003; C2-D008	Comparative fault provides useful reduction	Comparative-fault theme undermines defense credibility	Strategic positions	Open strategic contradiction	Expert strength and attorney judgment	Mediation and trial themes

No new factual inconsistency is declared where the source supplies only one side or neither side. Such entries are expressly classified as potential contradictions to test.

21. IMPEACHMENT AND CONSISTENCY MAP

Potential impeachment source	Present availability	Proposition affected	Use if consistent	Use if inconsistent	Verification required
Police report	Not supplied	Observation, turn, statements, citation	Corroborates testimony	Prior inconsistency	Complete report and foundation
Citation	Reported only	Yield conduct and police action	Confirms issuance	Challenges denial or characterization	Citation document and disposition
Scene diagram	Conceptual synthetic diagram only	General movement	Orients testimony	Cannot properly impeach on measurements	Accurate scene foundation
Photographs	Not supplied	Visibility, damage, impact point	Corroborates geometry	Contradicts description	Authentication and completeness
Recorded statement	Existence unresolved	Observation and decision sequence	Supports consistency	Direct impeachment	Recording, transcript, chain
Carrier statement	Existence unresolved	Operational facts	Supports consistency	Impeachment subject to issues	Statement inventory and privilege review
Dispatch records	Not supplied	Route, timing, instructions	Corroborates trip	Contradicts route or schedule	Authentic records
ELD	Existence unresolved	Hours and movement	Supports compliance and timing	Contradicts testimony	Data validation
Telematics	Existence unresolved	Truck speed and movement	Supports reconstruction	Contradicts subjective account	System and calibration foundation

Potential impeachment source	Present availability	Proposition affected	Use if consistent	Use if inconsistent	Verification required
Dash camera	Existence unresolved	Visibility and sequence	Strong corroboration	Strong impeachment	Authenticity and completeness
Mobile-device evidence	Not supplied	Distraction and communications	May exclude use	May contradict denial	Forensic foundation
ECM or EDR	Existence unresolved	Vehicle movement	Supports timing	Contradicts movement account	Applicability and data interpretation
Surveillance	None identified	Sequence and visibility	Independent corroboration	Independent impeachment	Preservation, chain, timing
Reconstruction reports	Positions supplied; reports not complete	Speed, timing, avoidability	Places lay testimony in context	Shows physical inconsistency	Methodology and source files
Deposition testimony	This chapter synthetic only	All driver topics	Creates controlled baseline	Future inconsistency if improperly treated as real	Actual certified transcript required

22. LIABILITY SIGNIFICANCE ASSESSMENT

22.1 Primary negligence exposure

The left-turn movement and misjudgment remain the dominant driver facts.

The risk is not based merely on the occurrence of a collision. It arises from the combined proposition that:

- Cole observed the motorcycle;
- formed a judgment concerning distance and speed;
- that judgment was wrong;
- and the trailer entered the eastbound path.

The exact sequence remains unresolved, but the canonical admission creates substantial primary-liability exposure.

22.2 Comparative-fault value

Cole’s testimony may preserve comparative fault only if it remains within proper limits.

His testimony can potentially establish:

- what he observed;
- what he believed;
- and what he did.

It cannot establish actual motorcycle speed.

The defense comparative-fault theory therefore depends primarily on:

- reliable reconstruction;
- physical or electronic evidence;
- timing;
- braking;
- and causation.

If Cole attempts to supply the expert speed estimate, the testimony may appear reconstructed after the fact.

22.3 Recklessness and punitive boundary

The present record supports a judgment error. It does not establish:

- intoxication;
- distraction;
- intentional conduct;
- conscious disregard;
- repeated warnings;
- systemic safety failure;
- HOS misconduct;
- maintenance misconduct;
- or evidence destruction.

The driver admission may support negligence. It does not, without more, establish reckless or punitive conduct.

22.4 Corporate-theory boundary

Cole’s deposition may create discovery paths concerning:

- training;
- qualification;
- supervision;
- dispatch;
- route planning;
- hours;
- vehicle condition;
- and post-collision action.

The current absence of answers does not establish corporate negligence. It identifies subjects requiring evidence.

22.5 Jury credibility

A defense that denies or minimizes the visible left-turn conflict may lose credibility.

A more credible posture may be to:

- acknowledge the driver’s human error;
- contest unsupported legal escalation;
- preserve a narrow expert-based speed issue;
- and focus substantial effort on damages proof.

That posture remains an attorney strategy, not an automatic conclusion.

22.6 Mediation effect

The actual deposition could:

- increase certainty concerning primary truck fault;
- determine whether Cole saw Turner before turn commitment;
- strengthen or weaken the speed-based theory;
- reduce the value of an aggressive comparative-fault position;
- narrow punitive or corporate theories;
- and shift defense emphasis toward medical value, future care, earning capacity, and noneconomic exposure.

No settlement number or authority recommendation is issued in this chapter.

23. MISSING-TESTIMONY WORK QUEUE

Testimony issue	Current status	Witness or source	Priority	Gate affected	Completion state
Employment relationship	Unresolved	Cole; employer records	Before deposition	Fact support	Pending
Scope and agency	Unresolved	Cole; corporate witness	Before mediation	Claim/defense elements	Pending
CDL and endorsements	Unresolved	Cole; qualification file	Before deposition	Witness foundation	Pending
Medical qualification	Unresolved	Qualification file	Before deposition	Witness foundation	Pending
Experience	Unresolved	Cole; employment records	During deposition	Credibility	Pending
Training	Unresolved	Cole; training file	Before deposition	Corporate boundary	Pending
Route	Unresolved	Cole; dispatch records	During deposition	Collision context	Pending
Dispatch purpose	Unresolved	Cole; dispatcher	During deposition	Corporate boundary	Pending
Pre-trip inspection	Unresolved	Cole; inspection report	During deposition	Vehicle condition	Pending
Hours on duty	Unresolved	Cole; ELD and logs	Before deposition	HOS / admissibility	Pending
Fatigue	Unresolved	Cole; duty record	During deposition	Driver condition	Pending
Medication	Unresolved	Cole; permitted discovery	During deposition	Driver condition	Pending
Phone possession and use	Unresolved	Cole; device evidence	Before deposition	Distraction	Pending
Signal use	Unresolved	Cole; video or witnesses	During deposition	Driver conduct	Pending
Mirror use	Unresolved	Cole	During deposition	Visual search	Pending
Traffic control	Unresolved	Police and scene record	Before deposition	Standard alignment	Pending
Observation timing	Unresolved	Cole; prior statements; video	During deposition	Contradiction	Critical
Observation point	Unresolved	Cole; scene evidence	During deposition	Reconstruction	Critical
Distance belief	Misjudgment canonical; detail unresolved	Cole	During deposition	Admission scope	Critical
Speed belief	Misjudgment canonical; detail unresolved	Cole	During deposition	Admission scope	Critical
Decision sequence	Unresolved	Cole	During deposition	Primary negligence	Critical
Ability to wait	Unresolved	Cole; reconstruction	During deposition	Avoidability	Pending
Ability to stop	Unresolved	Cole; reconstruction	During deposition	Avoidability	Pending
Ability to accelerate	Unresolved	Cole; reconstruction	During deposition	Avoidability	Pending
Observation of braking	Unresolved	Cole; physical evidence	During deposition	Comparative fault	Pending
Impact recollection	General geometry canonical; detail unresolved	Cole	During deposition	Reconstruction	Pending
Post-collision statements	Unresolved	Statement inventory	Before deposition	Impeachment	Critical
Citation disposition	Unresolved	Court or agency record	Before mediation	Admissibility	Pending

Testimony issue	Current status	Witness or source	Priority	Gate affected	Completion state
Post-collision testing	Unresolved	Carrier and testing record	After deposition	Driver condition	Pending
Discipline	Unresolved	Personnel file	Before mediation	Corporate boundary	Pending
Retraining	Unresolved	Personnel and training file	Before mediation	Remedial-measure review	Pending
Preservation steps	Unresolved	Corporate witness and custody records	Before mediation	Chain / spoliation	Critical
Current recollection	Unresolved beyond canonical core	Cole	During deposition	Testimony reliability	Critical
Transcript review	No actual transcript	Certified reporter record	After deposition	Record support	Not started
Errata	No actual transcript	Witness and reporter	After deposition	Contradiction	Not applicable yet
Trial preservation	Not begun	Counsel	Before trial	Appellate record	Pending

24. FACT-TO-TESTIMONY AUDIT MAP

Fact ID	Canonical proposition	Deposition question ID	Answer classification	Contradiction status	Analytical use	Reviewer state	Export state
F-PROC-001	Cole is named driver defendant	Q3-001–004	Canonical	None	Identity and role	Unreviewed	Internal synthetic use only
F-PROC-002	Marion Superior Court, synthetic	Control page	Canonical record label	Venue effects unresolved	Posture	Unreviewed	Internal synthetic use only
F-PROC-003	Mediation in approximately 60 days	Control page	Canonical record label	None	Work sequencing	Unreviewed	Attorney review required
F-LIAB-001	Truck began left turn across two eastbound lanes	Q3-058; Q3-072	Canonical	Observation-decision sequence unresolved	Primary negligence	Unreviewed	Attorney review required
F-LIAB-002	Motorcycle struck passenger side of trailer	Q3-103; Q3-105	Canonical / paraphrase	Exact point unresolved	Geometry	Unreviewed	Attorney review required
F-LIAB-003	Daylight and dry roadway	Q3-045–046	Canonical	Detailed visibility unresolved	General conditions	Unreviewed	Internal synthetic use only
F-LIAB-004	Posted speed limit 45 mph	Q3-047	Canonical	Actual speed unresolved	Speed context	Unreviewed	Attorney review required
F-LIAB-005	Cole saw motorcycle before impact	Q3-060–061; Q3-083	Canonical	C3-D001	Primary fault	Unreviewed	Held
F-LIAB-005	Cole misjudged distance	Q3-068; Q3-084–085	Canonical / paraphrase	Exact belief unresolved	Admission	Unreviewed	Held
F-LIAB-005	Cole misjudged speed	Q3-069; Q3-086–087	Canonical / paraphrase	Lay/expert boundary open	Admission	Unreviewed	Held
F-LIAB-006	Plaintiff estimate 46–49 mph	Q3-090	Unresolved as driver testimony	Conflicts with F-LIAB-007	Expert issue	Unreviewed	Held
F-LIAB-007	Defense estimate 52–53 mph	Q3-091	Unresolved as driver testimony	Conflicts with F-LIAB-006	Comparative-fault issue	Unreviewed	Held
F-LIAB-008	Approximate 2.1-second model	Q3-101–102	Expert-dependent; not driver testimony	C2-D003; C3-D007	Avoidability	Unreviewed	Held
F-LIAB-009	Reported failure-to-yield citation	Q3-114; Q3-117–118	Canonical	Disposition and use unresolved	Traffic context	Unreviewed	Excluded from trial-facing output pending review
F-LIAB-010	No rider violation attributed	No affirmative Cole testimony	Not converted to witness fact	Investigation completeness unresolved	Limits unsupported themes	Unreviewed	Attorney review required
F-LIAB-011	No HOS, maintenance, or spoliation issue attributed	Q3-034–044; unresolved	Baseline boundary only	Actual evidence absent	Limits unsupported escalation	Unreviewed	Internal synthetic use only
F-LIAB-012	Clean driving history	Q3-008	Canonical	Relevance limited	Witness context	Unreviewed	Held

Fact ID	Canonical proposition	Deposition question ID	Answer classification	Contradiction status	Analytical use	Reviewer state	Export state
F-MED-005	Turner required emergency transport	Q3-111	Paraphrase of canonical fact	Personal observation unresolved	Serious-injury context	Unreviewed	Attorney review required
F-COV-001	$1 million primary	Not used in testimony	Internal only	None	Reporting context	Unreviewed	Excluded from trial-facing output
F-COV-002	$4 million excess	Not used in testimony	Internal only	None	Reporting context	Unreviewed	Excluded from trial-facing output
F-COV-003	No coverage dispute modeled	Not used in testimony	Internal only	Actual policy record absent	Planning	Unreviewed	Internal synthetic use only

25. TESTIMONY SENSITIVITY EXAMPLES

25.1 Example A — Observation before turn commitment

Changed testimony	Prior status	New status	Potential effect	Unchanged facts	Required verification
Observation timing	Cole saw Turner before impact; sequence unresolved	Reliable testimony establishes Cole saw Turner before beginning the turn	Strengthens argument that Cole had an opportunity to wait or reassess; may increase primary-liability certainty	Left turn, eastbound motorcycle, misjudgment, passenger-side impact	Actual testimony, prior statements, scene evidence, reconstruction

This change would not establish the exact amount of available time or prove that the turn could have been safely aborted. It would make the decision process more plaintiff-favorable.

25.2 Example B — Observation after turn commitment

Changed testimony	Prior status	New status	Potential effect	Unchanged facts	Required verification
Observation timing	Sequence unresolved	Reliable testimony establishes first observation occurred after turn initiation	May shift inquiry toward visual search, sight obstruction, staging, and whether the motorcycle should have been seen earlier	Cole saw motorcycle before impact; misjudgment; left-turn conflict	Scene evidence, testimony, video, expert analysis

This change would not necessarily improve the defense position. A late observation may raise an inadequate-lookout issue unless the scene explains why earlier observation was not possible.

25.3 Example C — Cole disclaims ability to estimate speed

Changed testimony	Prior status	New status	Potential effect	Unchanged facts	Required verification
Personal speed estimate	Canonical record says Cole misjudged speed; exact estimate unresolved	Cole reliably testifies he cannot quantify Turner’s speed	Clarifies that actual speed must come from experts; may protect Cole from overreach but weaken any lay speed narrative	Observation, distance-and-speed misjudgment, left turn, impact	Actual certified testimony and expert record

The expert speed dispute would remain. Comparative fault would not disappear, but it would rest entirely on reconstruction rather than Cole’s numerical estimate.

No sensitivity example amends the canonical record.

26. CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Synthetic Driver Deposition, Admissions, Contradictions, and Liability Assessment
Artifact version	Synthetic Driver Deposition Record v1.0
Controlling factual source	Canonical Synthetic Record v1.0
Controlling collision source	Synthetic Collision Record v1.0
Source expanded	SYN-DEP-DRV-001
Matter	Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole
Witness	David Cole, synthetic driver defendant
Facts imported	F-PROC-001–F-PROC-003; F-LIAB-001–F-LIAB-012; F-MED-005; relevant F-COV identifiers
Existing disputes preserved	D-001–D-003
Existing collision contradictions preserved	C2-D001–C2-D008
Facts changed	None
New canonical facts	None
Q&A units drafted	128
Canonical or canonical-paraphrase answer units	26
Unresolved answer units	102
Proposed synthetic testimony	None integrated; held for attorney approval
Direct canonical admissions identified	Seven
New testimony-specific contradiction entries	Ten
Established new factual contradictions	None
Potential contradictions to test	Identified and expressly labeled
Sources referenced	SYN-INT-001; SYN-POL-001; SYN-SCN-001; SYN-DEP-DRV-001; SYN-REC-PLF-001; SYN-REC-DEF-001; SYN-MED-001; SYN-COV-001; SYN-MED-SET-001
Sources pending	Actual transcript, prior statements, police record, scene evidence, vehicle data, electronic evidence, qualification file, training records, citation record, expert files
Transcript status	Synthetic, unsworn, uncertified, and inadmissible
Attorney reviewer	Unassigned
Review status	Not reviewed
Replay status	Structural only; no production execution receipt
Export status	Attorney-review demonstration only
Carrier-facing status	Held
Mediation reliance status	Held
Trial-facing status	Held
VerdictReady	No
FilingReady	Not applicable

27. VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial settlement and mediation evaluation

Runtime Mode: Defense-side driver deposition and liability review

Case / Motion / Trial Issue: Driver observation, left-turn decision, admissions, credibility, comparative fault, and testimony preservation

Preliminary Result

Synthetic driver deposition record and liability assessment established for demonstration use.

VerdictReady: No

FilingReady, if BriefWise mode active: Not applicable

Gatekeeper Findings

Runtime

Demonstration use only.

David Cole is a synthetic witness. The examination is not sworn, certified, reported, authenticated, or admissible.

Input normalization

Pass for the canonical driver-related baseline.

The chapter normalizes:

- witness identity;
- operational role;
- canonical admissions;
- unresolved testimony;
- expert boundaries;
- contradiction states;
- impeachment sources;
- and release limitations.

Contradiction

Testimony disputes and unanswered subjects are preserved.

The chapter does not silently resolve:

- observation timing;
- decision timing;
- sight line;
- signal use;
- mirror use;
- ability to wait;
- ability to stop or abort;
- Turner’s reaction;
- actual speed;
- reaction time;
- citation disposition;
- or prior statements.

Evidence admissibility

Not verified.

No actual transcript, exhibit, statement, citation record, police report, photograph, electronic record, or reconstruction file is admitted or authenticated.

Authority / fact support

Canonical testimony is mapped to fact identifiers. No certified transcript exists.

Legal treatment of:

- party admissions;
- citation evidence;
- prior inconsistent statements;
- refreshing recollection;
- recorded statements;
- lay opinion;
- expert opinion;
- privilege;
- and work product

remains unverified.

Claim / defense elements

Preliminary negligence and comparative-fault assessment only.

The current record supports substantial primary-negligence exposure but does not complete:

- a final negligence-element analysis;
- a comparative-fault allocation;
- a corporate-negligence claim;
- a punitive-damages claim;
- or a dispositive-motion assessment.

Standard alignment

Current Indiana verification required.

No governing evidence rule, comparative-fault instruction, negligence instruction, or deposition-use rule is verified in this chapter.

Damages

Referenced only for strategic context.

The serious injuries and emergency transport increase the importance of defense credibility. This chapter does not assess recoverable damages or settlement value.

Jury instructions

Not verified.

Appellate record

Not applicable to the present synthetic pretrial posture.

No actual transcript, objection, ruling, offer of proof, exhibit, instruction, or preserved record exists.

Replay / audit

Question, answer, fact, source, contradiction, admission, and release mapping is established.

The chapter contains:

- 128 identified Q&A units;
- 26 canonical or canonical-paraphrase answer units;
- 102 unresolved answer units;
- seven direct admission entries;
- ten testimony-specific contradiction entries;
- and no silent factual amendments.

Production replay has not been completed.

Export

Attorney-review demonstration only.

No carrier-, reserve-, settlement-, mediation-, filing-, or trial-facing reliance release is authorized.

Failed Gates / Runtime State

VerdictReady: No

Failed gates: Actual testimony, record support, admissibility, reconstruction support, authority verification, attorney review, replay completion, and export authorization.

Runtime state: REVIEW REQUIRED / EXPORT HELD

Export effect: No reliance release authorized.

Required Fixes Before VerdictReady

A comparable real-matter deposition assessment would require:

1. Actual sworn testimony
2. Certified transcript
3. Appearance and exhibit record
4. Transcript corrections and errata
5. Complete prior-statement inventory
6. Police and supplemental investigative materials
7. Citation document and disposition
8. Authenticated scene and vehicle evidence
9. Available electronic and video evidence
10. Qualification and training files
11. Dispatch and route evidence
12. Hours-of-service and duty records
13. Vehicle inspection and maintenance evidence
14. Reconstruction source files and methodology
15. Admissibility analysis
16. Current Indiana authority
17. Attorney review of all testimony classifications
18. Contradiction resolution or express preservation
19. Replay validation
20. Express export authorization

Required Fixes Before FilingReady

Not applicable. No filing-specific BriefWise mode is active.

Adversarial Risk

Driver-admission dominance

The admission that Cole saw the motorcycle but misjudged distance and speed may become the principal liability fact.

Minimization risk

An effort to deny or minimize the admission could damage defense credibility across liability and damages.

Observation-sequence risk

The record does not establish whether Cole observed Turner before or after committing to the turn. That missing sequence may materially change the liability analysis.

Lay-versus-expert risk

The defense speed estimate must not be placed in Cole’s mouth. Doing so could make the testimony appear coached or reconstructed.

Comparative-fault overreach

An aggressive speed-based argument may appear inconsistent with the driver’s own misjudgment and the short expert-modeled interval.

Citation risk

Plaintiff may overstate the citation as conclusive. The defense may also lose credibility by treating it as irrelevant. Its actual use requires a balanced, verified position.

Corporate-expansion risk

Unanswered qualification, training, dispatch, hours, and preservation topics may invite broader corporate discovery. They do not presently establish corporate misconduct.

Damages-strategy risk

An overaggressive liability defense may impair stronger defense arguments concerning medical value, future-care certainty, earning capacity, and noneconomic characterization.

Evidentiary Issues

The principal unresolved evidentiary issues include:

- party admissions;
- personal-knowledge foundation;
- lay speed or distance opinion;
- expert-versus-lay boundaries;
- prior inconsistent statements;
- completeness of recorded statements;
- refreshing recollection;
- citation use;
- citation disposition;
- police-report use;
- authentication;
- statement adoption;
- privilege;
- work product;
- transcript certification;
- errata;
- and preservation of deposition objections.

No final admissibility conclusion is issued.

Record / Appellate Issues

No real deposition record exists.

The following are absent:

- actual notice;
- appearances;
- oath;
- certified transcript;
- exhibits;
- objections;
- errata;
- signature decision;
- rulings;
- deposition designations;
- counter-designations;
- and trial-preservation record.

Appellate completeness: Not applicable and not assessed.

Confidence / Hallucination Risk

Confidence in consistency with Canonical Synthetic Record v1.0: High
Confidence in consistency with Synthetic Collision Record v1.0: High
Confidence in real-world applicability: Not determinable
Hallucination risk if unresolved answers are silently completed: High
Hallucination risk if proposed testimony is treated as canonical: High
Hallucination risk within the expressly identified canonical answers: Low
Attorney-review status: Not reviewed
Release status: Held

FINAL CHAPTER STATUS

The synthetic driver examination, admission register, contradiction map, impeachment inventory, rehabilitation strategy, liability assessment, missing-testimony work queue, and audit receipt are established.

No canonical fact was added or changed.

Cole’s observation and distance-and-speed misjudgment remain the principal driver admissions. The sequence between observation and turn commitment remains unresolved. The speed and reaction-time disputes remain expert-dependent. Primary truck fault remains the strongest preliminary assessment, while comparative fault remains limited, contested, and sensitive to credibility.

VerdictReady: No
Runtime state: REVIEW REQUIRED / EXPORT HELD
Attorney review required.

CHAPTER 4

SYNTHETIC CLAIMANT AND SPOUSE TESTIMONY, FUNCTION, AND CREDIBILITY ASSESSMENT

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Claimant:	Michael Turner, synthetic plaintiff
Additional witness:	Turner's synthetic spouse
Artifact designation:	Synthetic Claimant and Spouse Testimony Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Controlling driver-testimony source:	Synthetic Driver Deposition Record v1.0
Sources expanded:	SYN-DEP-PLF-001; SYN-DEP-SP-001; SYN-SOC-001
Related sources:	SYN-MED-001; SYN-WAGE-001; SYN-ORTH-PLF-001; SYN-ORTH-DEF-001
Facts changed:	None
New canonical facts created:	None
Release status:	Attorney-review demonstration only

SYNTHETIC CLAIMANT AND SPOUSE TESTIMONY DEMONSTRATION — NOT ACTUAL, SWORN, CERTIFIED, REPORTED, OR ADMISSIBLE TESTIMONY.

Michael Turner and his spouse are synthetic persons in a synthetic matter. No testimony is represented as having been given under oath. No synthetic answer becomes canonical merely because it appears in this chapter.

No lay witness may establish medical probability, impairment methodology, future-care certainty, economic calculations, or legal fault.

VerdictReady: No — synthetic demonstration and verification incomplete.

FilingReady: Not applicable.

This chapter supplements but does not amend Chapters 1–3. Chapter 1 supplies the controlling claimant, medical, wage, social-media, and dispute identifiers. Chapter 2 preserves the unresolved collision and reconstruction subjects. Chapter 3 maintains the boundary between personal observation, expert opinion, and legal conclusion.

1. CHAPTER CONTROL AND TESTIMONY STATUS

This chapter expands three synthetic sources:

- **SYN-DEP-PLF-001:** Turner's symptoms, recovery, work history, restrictions, activities, and claimed loss of enjoyment.
- **SYN-DEP-SP-001:** Potential spouse observations concerning recovery, gait, household activity, and family effects.
- **SYN-SOC-001:** Contextual social-media evidence depicting family travel, fishing, light home projects, and no return to motorcycling.

The chapter preserves:

- F-PERS-001 through F-PERS-006;
- F-MED-001 through F-MED-019;
- F-WAGE-001 through F-WAGE-006;
- D-001 through D-003;
- D-005 through D-011;
- and relevant Chapter 2 and Chapter 3 contradiction identifiers.

No claimant or spouse answer may overwrite:

- the competing reconstruction opinions;
- the 2.1-second expert-dependent model;
- either impairment rating;
- the medical probability of future surgery;
- medical-value opinions;
- or economic-loss calculations.

Unanswered testimony remains unresolved rather than being converted into a favorable or unfavorable response.

2. CLAIMANT PROFILE AND TESTIMONY STATUS

Field	Canonical status	Source	Testimony limitation
Age	Turner was 33 at the time of the collision	F-PERS-001; SYN-INT-001	Birth date not supplied
Marital and family status	Married with two children	F-PERS-002	Spouse and children remain unnamed
Occupation	Industrial maintenance technician	F-PERS-003; SYN-WAGE-001	Employer and exact duties not supplied
Physical work	Work described as physically demanding	Chapter 1 baseline	Exact essential functions unresolved
Hourly rate	Approximately $35 per hour	F-WAGE-001	Payroll foundation pending
Historical workweek	Approximately 46 hours per week	F-WAGE-002	Duration and consistency require records
Work history	Stable	F-PERS-004	Exact tenure and employer history unresolved
Principal injuries	Multiple orthopedic and associated traumatic injuries	F-MED-001–004	Medical records must establish diagnoses
Treatment course	Air transport, hospitalization, surgeries, rehabilitation, therapy	F-MED-005–010	Exact dates and technical details require medical records
Restricted-duty return	Approximately month 11	F-WAGE-003	Exact restrictions and accommodations unresolved
Full-time return	Approximately month 16 at same hourly rate	F-WAGE-004	Hours, overtime, and performance details unresolved

Field	Canonical status	Source	Testimony limitation
Maximum medical improvement	Approximately month 19	F-MED-011	Medical foundation pending
Residual conditions	Pain, reduced endurance, hardware, scars, reduced range of motion, activity-dependent limp	F-MED-014 and canonical baseline	Frequency and severity remain disputed
Social-media activities	Family travel, fishing, and light home projects	F-PERS-005; SYN-SOC-001	Dates, frequency, context, and authentication unresolved
Motorcycling	No return to motorcycling	F-PERS-006	Reason and duration not supplied
Claimant deposition	No actual sworn transcript	SYN-DEP-PLF-001	Synthetic testimony only
Spouse deposition	No detailed canonical testimony supplied	SYN-DEP-SP-001	Observation topics remain unresolved

Turner's anticipated presentation as understated and work-oriented is an **analytical presentation assessment — not canonical testimony**. It may affect strategy, but it cannot be treated as a proven demeanor fact.

3. CLAIMANT BACKGROUND AND PRE-COLLISION FUNCTION

3.1 Selected synthetic claimant examination

Q4-PLF-001. How old were you at the time of the collision?

A4-PLF-001. I was 33.
[Canonical synthetic testimony]

Q4-PLF-002. Were you married at that time?

A4-PLF-002. Yes.
[Canonical synthetic testimony]

Q4-PLF-003. Did you have children?

A4-PLF-003. Yes. I had two children.
[Canonical synthetic testimony]

Q4-PLF-004. What type of work did you perform?

A4-PLF-004. I worked as an industrial maintenance technician.
[Canonical synthetic testimony]

Q4-PLF-005. Was the work physically demanding?

A4-PLF-005. Yes.
[Paraphrase of canonical proposition]

Q4-PLF-006. What was your hourly rate?

A4-PLF-006. Approximately $35 per hour.
[Canonical synthetic testimony]

Q4-PLF-007. How many hours did you historically average in a workweek?

A4-PLF-007. Approximately 46 hours.
[Canonical synthetic testimony]

Q4-PLF-008. Did the synthetic record describe your work history as stable?

A4-PLF-008. Yes.
[Paraphrase of canonical proposition]

The record does not supply Turner's employer, exact tenure, education, certifications, job description, pre-collision household division, or particular recreational schedule.

3.2 Testimony significance

Plaintiff credibility value

A stable work history and return to employment may support a narrative that Turner was productive before the collision and attempted to resume work despite substantial injury.

His family status may assist the jury in understanding his circumstances but does not independently establish the extent or value of any loss.

Defense relevance

The same work record provides significant defense evidence:

- Turner ultimately resumed full-time work;
- he returned at the same hourly rate;
- he retained substantial employability;
- and the record does not presently establish complete occupational displacement.

Missing employer evidence

The following remain necessary:

- authenticated payroll;
- complete overtime history;
- essential job functions;
- accommodations;
- post-return hours;
- attendance;
- productivity;
- promotion history;
- and employer testimony.

A claimant's stable employment history may increase credibility, but neither work ethic nor family status should operate as an automatic damages multiplier.

4. COLLISION RECOLLECTION AND LAY-TESTIMONY BOUNDARY

4.1 Selected synthetic claimant examination

Q4-PLF-009. Were you traveling eastbound on a motorcycle before the collision?

A4-PLF-009. Yes.
[Canonical synthetic testimony]

Q4-PLF-010. Did your motorcycle strike the passenger side of the trailer?

A4-PLF-010. Yes.
[Canonical synthetic testimony]

Q4-PLF-011. What did you first observe concerning the tractor-trailer?

A4-PLF-011. UNRESOLVED — no canonical testimony supplied.

Q4-PLF-012. Did you brake or attempt to steer around the trailer?

A4-PLF-012. UNRESOLVED — no canonical testimony supplied.

Q4-PLF-013. What speed were you traveling?

A4-PLF-013. UNRESOLVED — no canonical testimony supplied. Actual speed remains an expert-dependent and evidence-dependent issue.

Q4-PLF-014. Do you assign any legal percentage of fault to yourself or the defendants?

A4-PLF-014. UNRESOLVED — no canonical testimony supplied. Legal allocation is not established through claimant lay testimony.

The synthetic baseline attributes no alcohol, drug, phone-use, or protective-equipment violation to Turner. That limited proposition does not establish that every forensic or investigative source was completed.

4.2 Lay boundary

Turner may potentially describe:

- what he saw;
- what he perceived;
- what he did;
- what he remembers;
- and what he experienced.

He may not establish through lay testimony:

- actual motorcycle speed;
- perception-reaction time;
- stopping distance;
- physical avoidability;
- reconstruction methodology;

- or comparative-fault allocation.

Those subjects remain governed by D-001 through D-003, C2-D001 through C2-D004, C2-D007, and the expert-boundary analysis preserved in Chapter 3.

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5. HOSPITALIZATION AND ACUTE RECOVERY

5.1 Selected synthetic claimant examination

Q4-PLF-015. Were you transported by air for trauma treatment?

A4-PLF-015. Yes.
[Canonical synthetic testimony]

Q4-PLF-016. Were you admitted to the hospital?

A4-PLF-016. Yes.
[Canonical synthetic testimony]

Q4-PLF-017. Does the synthetic medical record identify open fractures of the tibia and fibula?

A4-PLF-017. Yes.
[Paraphrase of canonical proposition]

Q4-PLF-018. Does it also identify a femoral shaft fracture and acetabular fracture?

A4-PLF-018. Yes.
[Paraphrase of canonical proposition]

Q4-PLF-019. Were additional injuries identified involving your wrist, ribs, lung, skin, and soft tissues?

A4-PLF-019. Yes.
[Paraphrase of canonical proposition]

Q4-PLF-020. Did the treatment include debridement and external fixation?

A4-PLF-020. Yes.
[Canonical synthetic testimony]

Q4-PLF-021. Did the treatment include open reduction and internal fixation of the femur and tibia?

A4-PLF-021. Yes.
[Canonical synthetic testimony]

Q4-PLF-022. Did the treatment also include skin grafting and wound closure?

A4-PLF-022. Yes.
[Canonical synthetic testimony]

Q4-PLF-023. Approximately how long were you hospitalized?

A4-PLF-023. Approximately 21 days.
[Canonical synthetic testimony]

The chapter does not attribute technical knowledge of the procedures to Turner. The medical record and qualified providers must establish the diagnoses, procedure details, causal relationship, necessity, and prognosis.

5.2 Recovery proof boundary

Recovery subject	Lay testimony permitted	Medical proof required	Current status
Pain experience	Turner may describe personally experienced pain	Diagnosis, causal relationship, treatment necessity	General pain canonical; exact intensity and frequency unresolved
Hospitalization burden	Turner may describe being hospitalized and his personal experience	Admission dates and treatment course	Approximately 21 days supplied
Surgery experience	Turner may state that procedures occurred and describe personal experience	Operative details and medical necessity	Procedures supplied
Wound care	Turner may describe observable care and personal experience	Technical wound status and prognosis	Skin grafting and closure supplied; details unresolved
Mobility assistance	Turner may describe devices or assistance he personally used	Medical restrictions and prescribed devices	**UNRESOLVED — no canonical testimony supplied**
Discharge restrictions	Turner may describe instructions he recalls	Actual discharge orders	**UNRESOLVED — no canonical testimony supplied**
Inpatient rehabilitation	Turner may describe participation and burden	Rehabilitation records and goals	Approximately 12 days supplied
Outpatient therapy	Turner may describe attendance and experience	Therapy records and objective progress	Approximately six months supplied
Long-term causation	Not established by lay testimony	Treating or qualified expert opinion	Expert-dependent

The objective injury and treatment record strongly supports the seriousness of the acute phase. The principal disputes concern later function, permanency, future treatment, and the extent of ongoing loss.

6. REHABILITATION AND RETURN TO WORK

6.1 Selected synthetic claimant examination

Q4-PLF-024. Did you participate in inpatient rehabilitation after the hospitalization?

A4-PLF-024. Yes, for approximately 12 days.
[Canonical synthetic testimony]

Q4-PLF-025. Did you later participate in outpatient therapy?

A4-PLF-025. Yes, for approximately six months.
[Canonical synthetic testimony]

Q4-PLF-026. When did you return to restricted-duty work?

A4-PLF-026. At approximately month 11.
[Canonical synthetic testimony]

Q4-PLF-027. When did you return to full-time work?

A4-PLF-027. At approximately month 16.
[Canonical synthetic testimony]

Q4-PLF-028. Did you return at the same hourly rate?

A4-PLF-028. Yes.
[Canonical synthetic testimony]

Q4-PLF-029. When did the synthetic medical record place you at maximum medical improvement?

A4-PLF-029. At approximately month 19.
[Paraphrase of canonical proposition]

6.2 Analytical significance

Mitigation and work ethic

The rehabilitation and return-to-work history support meaningful mitigation. They may also strengthen Turner's credibility by showing effort to resume employment rather than remain absent indefinitely.

Past wage loss

The month-11 restricted-duty return and month-16 full-time return create boundaries for the past-loss analysis. Complete payroll and disability-payment records remain necessary.

Future earning capacity

Full-time same-rate employment materially limits a total-disability or complete-loss-of-capacity theory. It does not resolve:

- overtime availability;
- physical sustainability;
- future promotions;
- job options;
- accommodations;
- or reduced access to heavier work.

Pain and permanency

A return to work does not establish the absence of pain, scars, hardware, reduced range of motion, or impairment. It does provide countervailing functional evidence that must be reconciled with claims of severe continuing occupational restriction.

The controlling dispute register describes functional capacity as mixed, lifetime overtime loss as held, and chronic pain as requiring reconciliation with substantial continued function.

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7. CURRENT SYMPTOMS AND FUNCTIONAL LIMITATIONS

7.1 Selected synthetic claimant examination

Q4-PLF-030. Does the synthetic record identify continuing pain?

A4-PLF-030. Yes.
[Canonical synthetic testimony]

Q4-PLF-031. Does it identify reduced endurance?

A4-PLF-031. Yes.
[Canonical synthetic testimony]

Q4-PLF-032. Do you retain orthopedic hardware?

A4-PLF-032. Yes.
[Canonical synthetic testimony]

Q4-PLF-033. Does the record identify visible scarring?

A4-PLF-033. Yes.
[Canonical synthetic testimony]

Q4-PLF-034. Does the record identify reduced range of motion?

A4-PLF-034. Yes.
[Canonical synthetic testimony]

Q4-PLF-035. Does the record identify an activity-dependent limp?

A4-PLF-035. Yes.
[Canonical synthetic testimony]

Q4-PLF-036. Have you returned to motorcycling?

A4-PLF-036. No.
[Canonical synthetic testimony]

No canonical testimony supplies exact pain scores, symptom frequency, walking tolerance, standing tolerance, lifting restriction, medication use, sleep effects, or recovery time after activity.

7.2 Residual-condition matrix

Claimed residual condition	Canonical support	Lay-testimony role	Expert role	Defense issue
Pain	Canonical residual condition	Describe subjective experience	Diagnose source, prognosis, and medical consistency	Frequency, severity, treatment, and activity relationship unresolved
Reduced endurance	Canonical residual condition	Describe experienced fatigue or limitation	Assess objective restrictions and capacity	Exact tolerance and job effect unresolved
Retained hardware	Medical baseline	Describe awareness and personal experience	Establish placement, need, removal probability	Hardware does not alone establish future removal cost
Visible scarring	F-MED-014	Describe and display if properly permitted	Medical explanation may address treatment and permanence	Dimensions, visibility, and disfigurement effect unresolved
Reduced range of motion	Canonical residual condition	Describe perceived limitation	Measure and explain medical significance	Objective values not supplied
Activity-dependent limp	F-MED-014	Turner and observers may describe occurrence	Assess cause and permanence	Frequency and severity disputed
No return to motorcycling	F-PERS-006	Describe loss of activity	Generally no expert needed for occurrence	Pre-collision frequency and reason for nonreturn unresolved

Claimed residual condition	Canonical support	Lay-testimony role	Expert role	Defense issue
Impairment	12% plaintiff; 7% defense	Turner may not select percentage	Expert methodology required	D-005 remains contested
Future hardware removal	Expert record treats as probable or supportable	Turner may describe what he was told only with foundation	Medical probability, timing, and necessity required	Lay expectation cannot establish certainty
Future knee replacement	Possible or contingent	Turner may not establish probability	Treating and defense experts must address	D-007 remains held

Claimant testimony can establish subjective experience. It cannot establish the 12% or 7% impairment rating, the probability of future surgery, or the cost of treatment.

8. RECREATIONAL AND HOUSEHOLD ACTIVITIES

The synthetic record identifies family travel, fishing, light home projects, and no return to motorcycling. It does not establish how frequently these activities occurred, how long they lasted, whether Turner required assistance, whether he experienced symptoms afterward, or whether they represented ordinary capacity.

Activity evidence	Plaintiff interpretation	Defense interpretation	Missing context	Proper use
Family travel	Effort to remain engaged with family despite injury	Demonstrates ability to tolerate some travel	Distance, duration, transportation, breaks, symptoms	Calibrate function, not prove unrestricted capacity
Fishing	Partial return to valued activity	Demonstrates retained recreational function	Type of fishing, frequency, duration, assistance	Test claimed scope of recreational loss
Light home projects	Attempt to resume ordinary life	Demonstrates ability to perform some physical tasks	Nature of project, duration, tools, assistance, recovery	Compare activity with claimed restrictions
No return to motorcycling	Supports loss of enjoyment and activity abandonment	May be influenced by reasons other than physical inability	Pre-collision frequency, medical advice, personal choice	Assess specific recreational loss without assuming total loss
Household activity	No detailed canonical evidence	No defense conclusion available	Prior division of labor and current contribution	Hold pending claimant and spouse testimony

Activity evidence calibrates claimed function; it does not automatically disprove injury.

A person may travel, fish, or complete a light project while still experiencing pain or reduced endurance. Conversely, evidence of repeated, sustained activity may become material if inconsistent with a broader claim of near-total functional incapacity.

9. SOCIAL-MEDIA EVIDENCE — SYN-SOC-001

The synthetic social-media source identifies only general categories of activity:

- family travel;
- fishing;
- light home projects;
- and no return to motorcycling.

It does not include actual posts, images, captions, dates, usernames, metadata, comments, or authentication evidence.

Social-media proposition	Current support	Permitted analytical use	Prohibited inference	Verification needed
Family travel depicted	F-PERS-005	Test functional capacity and context	Turner had no pain or limitation	Complete post, date, surrounding content, testimony
Fishing depicted	F-PERS-005	Compare claimed recreational restriction with observed activity	Full return to pre-collision recreation	Frequency, duration, physical demands
Light projects depicted	F-PERS-005	Examine ability to perform selected tasks	Unrestricted industrial work capacity	Nature of task, assistance, timing, recovery
No return to motorcycling	F-PERS-006	Support specific loss-of-enjoyment inquiry	Every other recreation was abandoned	Pre-collision and post-collision history
Overall social-media presentation	Context-sensitive	Identify possible impeachment or corroboration	Dishonesty based on selected images alone	Authentication, completeness, chronology

9.1 Authentication and completeness

No post should be used without verifying:

- authorship;
- date;
- completeness;
- original format;
- surrounding content;
- and relationship to the treatment and work chronology.

9.2 Selective-presentation risk

A montage of favorable moments may omit:

- preparation;
- assistance;
- breaks;
- shortened participation;
- symptoms afterward;
- or long periods of inactivity.

The same content may also reveal genuine retained function. The correct use is comparative and contextual.

9.3 Jury-presentation risk

Overuse may create the impression that the defense is punishing Turner for attempting to resume family life. That risk is particularly significant where the objective injury record is severe and undisputed.

D-010 remains context-sensitive: plaintiff may characterize the material as effort to resume normal life, while the defense may use it as evidence of retained function. Complete posts, dates, frequency, and examination testimony are required.

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10. SPOUSE TESTIMONY AND OBSERVATION BOUNDARY

10.1 Selected synthetic spouse examination

Q4-SP-001. Are you Michael Turner’s spouse?

A4-SP-001. Yes.
[Canonical synthetic testimony]

Q4-SP-002. Did you and Turner have two children within the synthetic baseline?

A4-SP-002. Yes.
[Canonical synthetic testimony]

Q4-SP-003. Did you observe Turner during his hospitalization and recovery?

A4-SP-003. UNRESOLVED — no canonical testimony supplied.

Q4-SP-004. Did you observe changes in his gait, household activities, or recreational activity?

A4-SP-004. UNRESOLVED — no canonical testimony supplied.

Q4-SP-005. Did you observe pain behavior or reduced endurance?

A4-SP-005. UNRESOLVED — no canonical testimony supplied.

Q4-SP-006. Do you offer an opinion concerning Turner's medical diagnosis, impairment rating, or probability of future surgery?

A4-SP-006. No such canonical expert opinion is supplied.
[Expert-dependent proposition — not lay testimony]

10.2 Spouse-observation matrix

Spouse topic	Canonical testimony available	Proper lay scope	Prohibited scope	Current status
Marital relationship	Yes	Identify relationship and opportunity to observe	Automatic damages enhancement	Canonical
Two children	Yes	General family context	Child-specific harm without evidence	Canonical
Hospitalization observations	None detailed	What spouse personally saw	Medical diagnosis or necessity	Unresolved
Mobility	None detailed	Observed assistance, walking, or devices	Medical restriction or prognosis	Unresolved
Household activity	None detailed	Observed tasks before and after	Economic valuation without foundation	Unresolved
Gait	General limp exists in record	Describe observable gait changes	Medical causation or impairment percentage	Detailed spouse testimony unresolved
Scars	Visible scars in record	Describe observable appearance	Medical permanency opinion	Detailed spouse testimony unresolved
Pain behavior	None detailed	Describe observable conduct	Quantify subjective pain or diagnose condition	Unresolved
Sleep	None	Describe personal observations if available	Medical sleep diagnosis	Unresolved
Parenting	None	Describe observed participation	Emotional or developmental conclusions about children	Unresolved
Emotional effects	None	Describe observable behavior	Psychiatric diagnosis	Unresolved
Marriage effects	None	Describe firsthand changes if relevant and supported	Invent intimacy or relationship claims	Unresolved
Recreation	General activity record exists	Describe observed participation and limitations	Infer total incapacity	Unresolved
Work observations	Return chronology supplied	Describe observed preparation or effects	Establish wage or vocational loss	Unresolved

Spouse testimony may corroborate observable recovery, gait, activity, and behavior. It may not establish diagnosis, causation, impairment methodology, future medical probability, or economic loss.

Family evidence must remain tied to actual observation rather than generalized sympathy.

11. CREDIBILITY STRENGTHS AND VULNERABILITIES

Credibility factor	Plaintiff use	Defense use	Risk of overstatement
Stable work history	Demonstrates productivity and reliability	Requires objective employer verification	Treating work history as proof of all claimed losses
Restricted-duty return	Shows effort despite limitations	Establishes mitigation and functional improvement	Assuming restricted duty was equivalent to full capacity
Full-time same-rate return	Shows determination and residual employability	Strong counterweight to total disability and major future-loss claims	Treating same rate as proof of no limitation
Rehabilitation completion	Supports compliance and recovery effort	Shows improvement over time	Assuming therapy completion means complete recovery
Serious objective injuries	Strong credibility anchor	Defense should generally acknowledge	Contesting obvious injuries without basis
Visible scars	Supports permanency and noneconomic loss	Examine actual extent and visibility	Minimizing scars in a manner that appears insensitive
Activity-dependent limp	Supports continuing functional effect	Frequency and severity remain testable	Claiming constant limp where record says activity-dependent
Continued travel and fishing	Shows effort to resume normal life	Demonstrates retained function	Equating selected activity with absence of pain
Light home projects	Shows partial recovery	Tests scope of claimed restriction	Comparing light projects directly to industrial labor
No return to motorcycling	Supports specific loss of enjoyment	Reason and pre-collision frequency require development	Treating nonreturn as proof of complete recreational loss
Disputed future loss	Supports plaintiff's future-risk narrative	Same-rate work and incomplete records weaken certainty	Treating a contention as a calculated loss
Understated, work-oriented presentation	May enhance jury trust	Requires careful, respectful cross-examination	Treating predicted demeanor as proven fact

Analytical presentation assessment — not canonical testimony: Turner may present as understated and work-oriented.

A claimant who returns to work may become more credible on pain and permanency because the return demonstrates effort and mitigation. At the same time, that return may substantially weaken claims of total disability, complete loss of earning capacity, or pervasive functional incapacity.

12. DEFENSE CROSS-EXAMINATION BOUNDARIES

Cross-examination theme	Legitimate objective	Required foundation	Overreach risk
Current work status	Establish retained capacity and mitigation	Payroll and employer testimony	Suggesting employment eliminates injury
Overtime history	Test past and future overtime assumptions	Complete pre- and post-collision records	Extrapolating from isolated weeks
Restrictions	Clarify actual limitations	Medical restrictions and testimony	Asking Turner to provide medical conclusions
Family travel	Determine duration, accommodations, and symptoms	Complete posts and testimony	Portraying family participation as dishonesty
Fishing	Compare actual activity with claimed recreational loss	Frequency, duration, physical demands	Treating one occasion as full recovery

Cross-examination theme	Legitimate objective	Required foundation	Overreach risk
Light home projects	Test practical function	Nature of tasks and assistance	Equating light work with heavy industrial work
Social media	Identify inconsistencies or retained function	Authentication and complete context	Misleading montage or selective editing
Motorcycling	Clarify pre-collision frequency and reason for nonreturn	Claimant testimony and records if any	Assuming fear, medical inability, or choice
Treatment compliance	Test mitigation and symptom reporting	Complete medical and therapy record	Suggesting gaps without establishing them
Prior conditions	Identify relevant alternative causes	Medical records	Overstating remote ankle or mild lumbar history
Future surgery	Separate personal expectation from medical probability	Treating and expert testimony	Having Turner establish medical certainty
Future earnings	Test factual basis for overtime or promotion claims	Payroll, employer, vocational evidence	Asking Turner to perform economic calculations
Household effects	Define actual before-and-after changes	Claimant and spouse testimony	Inventing family hardship or minimizing supported changes
Chronic pain	Clarify frequency, triggers, treatment, and effects	Medical record and testimony	Implying malingering without evidentiary support

Recommended defense theme

Acknowledge the serious injury and meaningful recovery while testing the claimed degree of continuing limitation, future loss, and functional restriction.

A disciplined cross-examination should distinguish between:

- serious injury and total incapacity;
- pain and inability to function;
- activity and unrestricted capacity;
- possible future care and reasonably established future care;
- and lost opportunity versus documented economic loss.

13. CLAIMED LOSS VERSUS DEMONSTRATED FUNCTION

Claimed loss or limitation	Supporting evidence	Countervailing evidence	Current classification	Required resolution
Chronic pain	Canonical residual pain; major orthopedic injuries	Full-time work and continued activities	Partially supported / D-009 mixed	Testimony, treatment records, medication history, examination
Reduced endurance	Canonical residual condition	Travel, fishing, projects, and employment	Partially supported	Exact tolerances, frequency, work effect
Limp	Observable, activity-dependent limp	Not described as constant	Supported as condition; extent contested	Witness testimony, examination, gait evidence
Reduced range of motion	Canonical residual condition	Continued employment and activity	Supported; functional effect unresolved	Objective measurements and job demands
Scarring	Visible scarring after grafting and wound care	Extent and visibility not supplied	Supported	Photographs, examination, testimony
Loss of motorcycling	No return to motorcycling	Other activities resumed	Supported as nonreturn; value unresolved	Pre-collision frequency and reason for nonreturn
Household limitations	No detailed evidence	Light home projects depicted	Unresolved	Claimant and spouse testimony
Recreational limitations	No return to motorcycling; residual symptoms	Fishing and family travel	Partially supported	Activity history, frequency, accommodations
Future overtime loss	Historical 46-hour average; plaintiff contention	Same-rate full-time return; post-return records incomplete	Held / D-008	Payroll, employer, vocational and economic analysis

Claimed loss or limitation	Supporting evidence	Countervailing evidence	Current classification	Required resolution
Promotion or job-option loss	Plaintiff contention concerning restrictions	Stable same-rate employment and trade skills	Contested	Employer, vocational proof, actual opportunities
Hardware removal	Expert record treats as probable or supportable	Medical certainty and timing still require foundation	Expert-dependent	Treating and defense orthopedic testimony
Future knee replacement	Arthritis-risk theory	Described as possible or contingent	Held / D-007	Qualified medical probability evidence
Whole-person impairment	Plaintiff 12%; defense 7%	Competing expert opinions	Contested / D-005	Reports, methodology, examination
Noneconomic characterization	Severe injury, surgeries, scars, limp, lost motorcycling	Substantial recovery, work return, retained activities	Contested attorney characterization / D-011	Trial testimony, demonstratives, instructions

The current record supports a serious injury with lasting consequences. It does not support treating Turner as either fully recovered or totally disabled.

14. CLAIMANT AND SPOUSE TESTIMONY CONTRADICTION REGISTER

Tension ID	Existing cross-reference	Proposition A	Proposition B	Classification	Required resolution	Analytical effect
C4-D001	D-009	Turner experiences continuing pain	Turner maintains employment and selected activities	Functional tension to test — not established contradiction	Symptom frequency, treatment, activity context	Noneconomic exposure and credibility
C4-D002	D-006	Residual limitations materially affect physical work	Turner returned full-time at the same hourly rate	Functional tension to test — not established contradiction	Employer, restrictions, actual duties	Future-capacity analysis
C4-D003	D-008	Overtime loss will persist	Post-return overtime and workplace demand are incomplete	Unresolved economic tension	Payroll and employer evidence	Future-loss claim remains held
C4-D004	D-010; D-011	Turner claims recreational loss	Travel and fishing continued	Functional tension to test — not established contradiction	Pre- and post-collision frequency and accommodations	Scope of loss-of-enjoyment claim
C4-D005	F-MED-014; D-006	Limp and reduced endurance remain	Activity level varies and some function is retained	Functional tension to test — not established contradiction	Gait observations, duration, activity context	Permanency presentation
C4-D006	SYN-DEP-PLF-001; SYN-DEP-SP-001	Claimant may describe limitations	No detailed spouse testimony exists to corroborate or qualify them	Unresolved corroboration issue	Actual spouse examination	Witness consistency
C4-D007	D-010	Social-media content may depict meaningful function	Posts may omit pain, assistance, and recovery	Context tension	Complete authenticated content and testimony	Impeachment weight
C4-D008	D-007	Turner may expect future treatment	Medical probability remains expert-dependent	Lay/expert boundary, not factual contradiction	Treating-provider testimony	Future-care gate

Established new contradictions: None.

Functional tensions preserved: Eight.

15. CONSOLIDATED UNRESOLVED-TESTIMONY REGISTER

Testimony topic	Witness	Present status	Source required	Effect on analysis
First perception of trailer	Turner	UNRESOLVED — no canonical testimony supplied	Actual testimony, scene evidence	Liability and avoidability

Testimony topic	Witness	Present status	Source required	Effect on analysis
Braking or steering	Turner	Unresolved	Testimony, physical evidence, reconstruction	Comparative fault
Memory of impact	Turner	Unresolved	Actual testimony	Credibility and narrative
Pain frequency and intensity	Turner	Unresolved	Testimony and medical records	Noneconomic exposure
Medication use	Turner	Unresolved	Pharmacy and medical records	Symptom severity
Sleep effects	Turner / spouse	Unresolved	Actual testimony and records	Daily-life impact
Physical tolerances	Turner	Unresolved	Functional examination and testimony	Work and activity capacity
Household responsibilities	Turner / spouse	Unresolved	Both witnesses	Household-loss claim
Parenting effects	Turner / spouse	Unresolved	Both witnesses	Family-impact evidence
Spouse observations	Spouse	Unresolved beyond relationship	Actual spouse testimony	Corroboration
Recreational frequency	Turner	Unresolved	Testimony and complete activity record	Loss-of-enjoyment scope
Social-media context	Turner	Unresolved	Authenticated posts and examination	Impeachment value
Post-return overtime	Turner / employer	Unresolved	Payroll and employer testimony	Future economic loss
Job accommodations	Turner / employer	Unresolved	Employer records	Functional capacity
Promotion history	Turner / employer	Unresolved	Personnel and employer evidence	Future job-option claim
Emotional effects	Turner / spouse	Unresolved	Testimony and treatment records if any	Noneconomic damages
Future-treatment understanding	Turner	Unresolved as lay testimony	Treating-provider evidence	Future-care analysis

16. TESTIMONY SOURCE AND AUDIT TABLE

Fact ID	Proposition	Source ID	Testimony status	Dispute status	Analytical use	Export state
F-PERS-001	Turner was 33	SYN-DEP-PLF-001	Canonical	None	Claimant profile	Attorney review required
F-PERS-002	Married with two children	SYN-DEP-PLF-001; SYN-DEP-SP-001	Canonical	Family effects unresolved	Witness context	Attorney review required
F-PERS-003	Industrial maintenance technician	SYN-WAGE-001; SYN-DEP-PLF-001	Canonical	Exact duties unresolved	Vocational context	Attorney review required
F-PERS-004	Stable work history; understated/work-oriented assessment	SYN-WAGE-001; SYN-DEP-PLF-001	Work history canonical; demeanor analytical	Presentation unverified	Credibility analysis	Internal synthetic use only
F-PERS-005	Travel, fishing, and light projects depicted	SYN-SOC-001	Contextual documentary proposition	D-010	Functional calibration	Held
F-PERS-006	No return to motorcycling	SYN-DEP-PLF-001; SYN-SOC-001	Canonical	Reason and prior frequency unresolved	Loss of enjoyment	Attorney review required
F-LIAB-001	Turner approached eastbound; truck turned across lanes	SYN-DEP-PLF-001; collision sources	Limited claimant testimony	D-001–003 remain	Collision context only	Held
F-LIAB-002	Motorcycle struck passenger side of trailer	SYN-DEP-PLF-001	Canonical	Exact mechanics unresolved	Lay collision account	Attorney review required
F-LIAB-010	No prohibited rider conduct attributed	SYN-POL-001	Baseline proposition, not complete investigation	Verification unresolved	Limit unsupported blame themes	Held
F-MED-001–004	Principal injuries	SYN-MED-001; SYN-DEP-PLF-001	Claimant may describe generally	Technical proof medical	Acute severity	Attorney review required
F-MED-005	Air transport and trauma admission	SYN-MED-001; SYN-DEP-PLF-001	Canonical	Authentication pending	Acute severity	Attorney review required
F-MED-006	Debridement and external fixation	SYN-MED-001	Canonical occurrence	Technical details medical	Treatment burden	Attorney review required

Fact ID	Proposition	Source ID	Testimony status	Dispute status	Analytical use	Export state
F-MED-007	ORIF and retained hardware	SYN-MED-001	Canonical occurrence	Future effect disputed	Permanency and future care	Attorney review required
F-MED-008	Skin grafting and wound closure	SYN-MED-001	Canonical occurrence	Scar extent unresolved	Disfigurement	Attorney review required
F-MED-009	Approximately 21-day hospitalization	SYN-MED-001; SYN-DEP-PLF-001	Canonical	Exact dates pending	Acute noneconomic exposure	Attorney review required
F-MED-010	Rehabilitation and therapy	SYN-MED-001; SYN-DEP-PLF-001	Canonical duration	Details pending	Recovery and mitigation	Attorney review required
F-MED-011	MMI around month 19	Orthopedic sources	Expert/documentary proposition	Foundation pending	Permanency timing	Held
F-MED-012–013	12% versus 7% impairment	Orthopedic sources	Not lay testimony	D-005 contested	Permanency analysis	Held
F-MED-014	Visible scars and activity-dependent limp	Claimant, spouse, orthopedic sources	General condition supported	Frequency and severity disputed	Noneconomic exposure	Attorney review required
F-MED-015–018	Future medical components	Orthopedic and life-care sources	Not established by claimant testimony	D-007 and predicate disputes	Future-care analysis	Held
F-WAGE-001–002	$35 rate and 46-hour average	SYN-WAGE-001; SYN-DEP-PLF-001	Canonical baseline	Source history pending	Wage analysis	Attorney review required
F-WAGE-003	Restricted duty around month 11	SYN-WAGE-001; SYN-DEP-PLF-001	Canonical	Exact restrictions unresolved	Mitigation and past loss	Attorney review required
F-WAGE-004	Full-time same-rate work around month 16	SYN-WAGE-001; SYN-DEP-PLF-001	Canonical	Hours and accommodations unresolved	Functional capacity	Attorney review required
F-WAGE-005–006	Competing future-capacity positions	Claimant, wage, and vocational sources	Contentions, not established loss	D-006 and D-008	Future-loss analysis	Held

17. CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Synthetic Claimant and Spouse Testimony, Function, and Credibility Assessment
Artifact version	Synthetic Claimant and Spouse Testimony Record v1.0
Controlling versions	Chapters 1–3 v1.0
Sources expanded	SYN-DEP-PLF-001; SYN-DEP-SP-001; SYN-SOC-001
Related sources	SYN-MED-001; SYN-WAGE-001; SYN-ORTH-PLF-001; SYN-ORTH-DEF-001
Facts changed	None
New canonical facts	None
Material claimant Q&A units	36
Material spouse Q&A units	6
Unresolved testimony	Consolidated in Section 15
Established new contradictions	None
Functional tensions	Eight
Claimant testimony boundary	Lay observation and experience only
Spouse testimony boundary	Lay observation only
Expert matters preserved	Impairment, future care, medical causation, reconstruction, economic calculations
Attorney reviewer	Unassigned
Review status	Not reviewed
Replay status	Structural only

Audit field	Chapter result
Export status	Attorney-review demonstration only
Carrier-facing status	Held
Mediation reliance status	Held
Trial-facing status	Held
VerdictReady	No
FilingReady	Not applicable

18. VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial settlement and mediation evaluation

Runtime Mode: Defense-side claimant and spouse testimony review

Case / Motion / Trial Issue: Injury presentation, recovery, current function, work capacity, social-media context, credibility, and noneconomic exposure

Preliminary Result

Synthetic claimant and spouse testimony record established for demonstration use.

VerdictReady: No

FilingReady: Not applicable

Gatekeeper Findings

Runtime

Demonstration use only. No testimony is sworn, certified, authenticated, or admitted.

Input normalization

Pass for the canonical claimant baseline.

The chapter maps:

- claimant profile;
- acute treatment;
- rehabilitation;
- return to work;
- residual conditions;
- activities;
- social media;
- spouse-observation boundaries;
- credibility issues;
- and functional tensions.

Contradiction

Functional tensions are preserved without unsupported resolution.

No new factual contradiction is declared. Continued work and activity are treated as countervailing functional evidence, not automatic disproof of pain or permanency.

Evidence admissibility

Not verified.

No claimant transcript, spouse transcript, medical record, wage record, social-media post, photograph, or expert report is treated as authenticated or admissible.

Authority / fact support

The canonical lay-testimony map is established. No certified transcript exists.

Current legal treatment of social media, lay opinion, demonstrative scars, collateral matters, future damages, and witness limitations remains outside this chapter.

Claim / defense elements

Preliminary credibility and damages-support review only.

This chapter does not complete a final negligence, comparative-fault, medical-causation, or damages-element analysis.

Standard alignment

Current Indiana verification required.

Damages

Lay testimony is mapped, but the damages proof remains incomplete.

The chapter supports:

- serious acute injury;
- substantial treatment;
- meaningful recovery burden;
- some residual impairment evidence;
- work return;
- and retained activity.

It does not establish:

- impairment percentage;
- recoverable medical value;
- future surgery probability;
- lifetime overtime loss;
- or a final noneconomic value.

Jury instructions

Not verified.

Appellate record

Not applicable to the present synthetic pretrial posture.

Replay / audit

Chapter-level fact, source, testimony, tension, and export mapping is established.

Production replay and attorney authorization remain incomplete.

Export

Attorney-review demonstration only.

No carrier-, reserve-, settlement-, mediation-, filing-, or trial-facing reliance release is authorized.

Failed Gates / Runtime State

VerdictReady: No

Failed or incomplete gates: Actual testimony, record support, evidence admissibility, medical support, wage support, future-care support, authority verification, attorney review, replay validation, and export authorization.

Runtime state: REVIEW REQUIRED / EXPORT HELD

Export effect: No reliance release authorized.

Required Fixes Before VerdictReady

A comparable real-matter assessment would require:

1. Actual sworn claimant testimony
2. Actual sworn spouse testimony
3. Certified transcripts and exhibits
4. Authenticated medical and rehabilitation records
5. Current treating and defense medical opinions
6. Objective functional measurements
7. Authenticated payroll and employer evidence
8. Post-return overtime and accommodation records
9. Complete and authenticated social-media evidence
10. Reliable future-care and vocational foundations
11. Admissibility analysis
12. Current Indiana authority
13. Attorney review
14. Replay validation
15. Express export authorization

Adversarial Risk

Objective-injury credibility

The fractures, surgeries, grafting, hospitalization, and rehabilitation provide substantial objective support. A defense that appears to dispute the obvious may lose credibility.

Return-to-work dual effect

The work return supports mitigation and may strengthen Turner's personal credibility. It also provides material defense evidence against total disability and unbounded future earning loss.

Activity-evidence risk

Travel, fishing, and light projects may demonstrate retained function. Overstating them as proof of no pain may create jury backlash.

Social-media risk

Selective use without complete context may appear misleading or unfair. Authentication and chronology are essential.

Spouse-testimony risk

Spouse testimony may effectively corroborate observable recovery and limitation. It may also become cumulative or exaggerated if it extends beyond actual observation.

Future-loss risk

Claims involving lifetime overtime, promotion opportunities, or future surgery may exceed the present lay record and require stronger documentary and expert support.

Noneconomic-presentation risk

Turner's age, objective injuries, scars, limp, work ethic, and loss of motorcycling may create significant noneconomic appeal. The defense should distinguish serious lasting injury from total loss of physical freedom without minimizing the underlying trauma.

Confidence / Hallucination Risk

Confidence in consistency with Chapters 1–3: High

Confidence in real-world applicability: Not determinable

Hallucination risk if symptom frequency, medication, sleep, emotional effects, household changes, or spouse observations are invented: High

Hallucination risk if social-media summaries are treated as authenticated posts: High

Hallucination risk within the expressly identified canonical baseline: Low

Attorney-review status: Not reviewed

Release status: Held

FINAL CHAPTER STATUS

The synthetic claimant profile, acute-recovery testimony, return-to-work record, residual-function analysis, social-media framework, spouse-observation boundary, credibility assessment, cross-examination limits, functional-tension register, and audit record are established.

No canonical fact was added or changed.

The record supports a serious objective injury and substantial recovery burden, followed by meaningful but incomplete recovery. Turner’s return to work and continued activities provide material evidence of retained function but do not eliminate pain, scars, limp, reduced endurance, or permanency. Future knee replacement, lifetime overtime loss, precise impairment, and the full extent of household and noneconomic loss remain unresolved or expert-dependent.

VerdictReady: No
Runtime state: REVIEW REQUIRED / EXPORT HELD
Attorney review required.

CHAPTER 5

MEDICAL RECORD, CAUSATION, AND PERMANENCY

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Claimant:	Michael Turner, synthetic plaintiff
Artifact designation:	Synthetic Medical, Causation, and Permanency Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Controlling driver-testimony source:	Synthetic Driver Deposition Record v1.0
Controlling claimant-testimony source:	Synthetic Claimant and Spouse Testimony Record v1.0
Sources expanded:	SYN-MED-001; SYN-ORTH-PLF-001; SYN-ORTH-DEF-001
Related sources:	SYN-DEP-PLF-001; SYN-DEP-SP-001; SYN-WAGE-001; SYN-BILL-001; SYN-SOC-001
Facts changed:	None
New canonical facts created:	None
Release status:	Attorney-review demonstration only

SYNTHETIC MEDICAL AND ORTHOPEDIC DEMONSTRATION RECORD — NOT AN ACTUAL MEDICAL RECORD, OPERATIVE REPORT, IMAGING REPORT, PHYSICIAN OPINION, IMPAIRMENT EVALUATION, LIFE-CARE PLAN, OR ADMISSIBLE EXPERT REPORT.

Michael Turner, all providers, all experts, and all medical events are synthetic. No medical source is authenticated, certified, sworn, or admissible. No synthetic narrative becomes canonical merely because it appears in this chapter.

Lay testimony does not establish diagnosis, causation, impairment methodology, medical probability, future-care certainty, or cost. Expert opinions remain opinions subject to qualifications, source support, methodology, examination, and admissibility.

VerdictReady: No — synthetic demonstration and verification incomplete.

FilingReady: Not applicable.

This chapter supplements but does not amend Chapters 1–4. Chapter 1 establishes the medical fact identifiers, treatment history, competing impairment ratings, future-care classifications, and prior-condition baseline. Chapter 4 preserves the distinction between serious objective injury, subjective symptoms, retained function, work return, and context-sensitive activity evidence.

5.1 MEDICAL CHRONOLOGY

The chronology uses relative periods only. No exact collision, admission, procedure, discharge, examination, or treatment date has been supplied.

Relative period	Medical event	Fact ID	Source ID	Classification	Current significance	Unresolved proof
Collision and immediate aftermath	Serious traumatic injury followed by air transport	F-MED-001–005	SYN-MED-001	Canonical synthetic medical fact	Supports acute severity and immediate treatment relationship	Transport record, emergency documentation, exact chronology
Initial trauma admission	Hospital admission for treatment of multiple orthopedic and associated injuries	F-MED-005; F-MED-009	SYN-MED-001	Synthetic medical-record summary	Establishes significant acute-care burden	Admission findings, imaging, consultation notes
Early operative phase	Debridement and external fixation	F-MED-006	SYN-MED-001	Canonical synthetic medical fact	Supports serious open-fracture treatment	Procedure details, necessity, complication status
Operative repair phase	ORIF of the femur and tibia	F-MED-007	SYN-MED-001	Canonical synthetic medical fact	Principal structural repair; permanency and hardware issues	Operative reports, imaging, implant details
Wound-management phase	Skin grafting and wound closure	F-MED-008	SYN-MED-001	Canonical synthetic medical fact	Supports wound severity, scarring, and disfigurement issues	Graft details, wound dimensions, healing record
Acute hospitalization	Approximately 21 days of hospitalization	F-MED-009	SYN-MED-001	Canonical synthetic medical fact	Material acute pain, treatment, and noneconomic exposure	Exact dates, daily course, complications, discharge status
Inpatient rehabilitation	Approximately 12 days	F-MED-010	SYN-MED-001	Canonical synthetic medical fact	Supports recovery burden and mitigation	Rehabilitation goals, functional measurements, discharge level
Outpatient rehabilitation	Approximately six months of therapy	F-MED-010	SYN-MED-001	Canonical synthetic medical fact	Supports continued recovery effort	Attendance, objective progress, discharge findings
Approximately month 11	Return to restricted duty	F-WAGE-003	SYN-WAGE-001; SYN-DEP-PLF-001	Canonical synthetic fact	Evidence of mitigation and partial functional recovery	Exact restrictions, duties, hours, accommodations
Approximately month 16	Return to full-time employment at same hourly rate	F-WAGE-004	SYN-WAGE-001; SYN-DEP-PLF-001	Canonical synthetic fact	Strong retained-function evidence	Actual duties, overtime, attendance, sustainability
Approximately month 19	Maximum medical improvement	F-MED-011	SYN-ORTH-PLF-001; SYN-ORTH-DEF-001	Expert-supported synthetic fact; foundation pending	Establishes permanency-evaluation point	MMI basis, examinations, imaging, restrictions
Current condition	Pain, reduced endurance, retained hardware, visible scarring, reduced range of motion, and activity-dependent limp	F-MED-014 and canonical baseline	Medical, orthopedic, claimant, and spouse sources	Objective condition supported; extent disputed	Current examination, measurements, photographs, gait evidence	
Future-care evaluation	Hardware removal treated as probable or supportable	F-MED-015	Orthopedic sources	Expert-dependent proposition	Potential supported future-care component	Probability language, timing, procedure scope, cost
Future follow-up	Routine follow-up and imaging	F-MED-016	Orthopedic sources	Expert-dependent proposition / derived cost model	Bounded ongoing-care component	Medical need, frequency, duration, cost source

Relative period	Medical event	Fact ID	Source ID	Classification	Current significance	Unresolved proof
Contingent future issue	Possible knee replacement	F-MED-017–018	Orthopedic and future-care materials	Held pending medical probability and foundation	High-side medical scenario only	Current imaging, progression, probability, timing, causation

The principal treatment facts and residual-condition baseline are contained in F-MED-001 through F-MED-019. The source record treats the acute fractures and operative care as substantially collision-related while reserving disputes over impairment, future progression, function, and future treatment.

5.1.1 Acute trauma and stabilization

The first phase consists of the collision-related injuries, air transport, trauma admission, debridement, external fixation, and initial wound management.

Within the synthetic baseline, this phase supplies strong temporal and clinical linkage between the collision and the principal injuries. The defense has no meaningful present basis to argue that the open fractures, femoral fracture, acetabular fracture, associated injuries, or initial operative care arose independently of the collision.

The precise clinical presentation remains unsupported because no actual emergency, imaging, consultation, or operative record is included.

5.1.2 Operative repair and rehabilitation

The second phase includes ORIF, retained hardware, skin grafting, wound closure, hospitalization, inpatient rehabilitation, and outpatient therapy.

These events support a substantial recovery burden. They do not, without underlying records, establish:

- the exact medical necessity of each intervention;
- complications;
- healing rate;
- objective progress;
- or the degree of final impairment.

5.1.3 Permanency and future-care evaluation

The third phase begins with return to work, MMI, residual symptoms, competing impairment ratings, and future-care analysis.

This phase contains the principal medical disputes:

- 12% versus 7% whole-person impairment;
- the degree of functional restriction;
- the relationship between symptoms and retained function;
- the probability and timing of hardware removal;
- and whether knee replacement is merely possible or sufficiently probable to support a future-care claim.

A treatment event is a historical proposition. Permanency, medical probability, impairment, and future care are expert opinions requiring a separate foundation.

5.2 INJURY-BY-INJURY MATRIX

Injury or condition	Acute treatment	Current status	Causation status	Permanency issue	Future-care issue	Defense significance
Open tibia and fibula fractures	Debridement, external fixation, later operative repair	Material lower-extremity condition with residual issues	Substantially supported within synthetic baseline	Impairment, range of motion, gait, pain	Hardware removal; possible degenerative progression	Acknowledge severity; test degree of permanent limitation
Femoral shaft fracture	ORIF	Structurally repaired; residual functional relevance remains	Substantially supported	Pain, endurance, gait, impairment	Hardware-related care where medically supported	Successful repair and work return do not establish complete recovery
Acetabular fracture	Trauma and orthopedic treatment within supplied chronology	Hip-related function remains analytically material	Substantially supported	Hip stiffness or reduced motion; functional effect	Follow-up and progression depend on expert proof	Requires objective findings and distinction from knee complaints
Wrist fracture	Treatment included in acute record	Much of future significance described as limited in current analytical baseline	Substantially supported acutely	Residual wrist impairment not established	No separate future-care component supplied	Avoid expanding unresolved wrist complaints
Rib fractures	Acute trauma care	Limited future significance in current analytical baseline	Substantially supported acutely	No specific permanent rib analytical baseline	Substantially supported acutely	No specific permanent rib condition supplied
Pulmonary contusion	Acute trauma care	Limited future significance in current analytical baseline	Substantially supported acutely	No continuing pulmonary impairment supplied	None established	Do not concede a continuing pulmonary condition absent records
Lacerations and road rash	Wound care	Relationship to visible scarring may remain material	Substantially supported	Appearance, tenderness, and permanency unresolved	Cosmetic or wound care not separately modeled	Photographic and provider foundation required
Skin-graft and scarring condition	Skin grafting and wound closure	Visible scarring supported; extent unresolved	Substantially supported	Disfigurement and permanence	No separate revision procedure supplied	Significant noneconomic issue; precise description must be proven
Retained hardware	ORIF-related	Hardware remains	Supported as current condition	Relationship to pain and function disputed	Removal treated as probable or supportable	Separate presence of hardware from necessity of removal
Reduced range of motion	Not separately specified	Supported as residual condition	Generally linked to orthopedic injuries; precise cause unresolved	Objective degree and permanence disputed	May affect follow-up or surgical decisions	Exact measurements and body part must be established
Activity-dependent limp	Rehabilitation and recovery	Observable condition; frequency and severity disputed	Generally linked to lower-extremity injuries	Duration, consistency, and functional effect disputed	No independent treatment component supplied	Strong visual issue if corroborated; vulnerable to variability evidence
Continuing pain	Treatment history and claimant report	Supported generally; details unresolved	Collision relationship generally supported for orthopedic complaints	Chronicity, severity, and functional effect disputed	Hardware and follow-up may relate	Reconcile subjective symptoms with work and activity evidence
Reduced endurance	Rehabilitation and claimant report	Supported generally	Likely associated with injury and recovery; precise mechanism unresolved	Occupational and daily-life consequences disputed	No independent care component	Requires objective or vocational correlation
Possible post-traumatic knee degeneration	No established replacement treatment	Future risk only	Causation and progression expert-dependent	Whether degeneration is present or likely is unresolved	Knee replacement held	Major high-side gate; do not treat possibility as probability

The present medical record supports serious lower-extremity and hip trauma with lasting consequences. It does not support characterizing Turner as either fully recovered or totally disabled. Chapter 4 similarly preserves the tension between pain, limp, and reducde and full-time work and selected activities on the other.

5.3 EXTERNAL FIXATION AND DEBRIDEMENT

Debridement and external fixation are part of the supplied treatment history. At a litigation-summary level, those procedures reinforce the seriousness of the open-fracture presentation and the need for early stabilization and wound management.

The chapter does not supply the open-fracture grade, wound dimensions, contamination status, fixation configuration, complication history, or reason for the exact treatment sequence.

Issue	Current support	Plaintiff significance	Defense significance	Required proof
Open-injury severity	Open tibia and fibula fractures plus debridement	Demonstrates substantial trauma and invasive care	Severity should generally be acknowledged	Emergency, imaging, operative, and wound records
Wound management	Debridement supplied	Supports pain, infection-risk narrative, and treatment burden	No complication may be assumed merely because risk existed	Procedure report and follow-up record
Temporary stabilization	External fixation supplied	Shows initial injury complexity	Temporary fixation does not determine permanent impairment	Operative and imaging evidence
Pain and recovery burden	Procedures and long hospitalization supplied	Supports substantial acute noneconomic loss	Exact pain scores and medication burden remain unverified	Medical administration and claimant testimony
Complication status	No canonical detail	Plaintiff cannot assume complications; defense cannot assume none	Avoid unsupported “uneventful recovery” characterization	Complete clinical record
Relationship to later fixation	Sequence implies later operative repair	Supports multi-stage treatment narrative	Exact staging rationale remains medical	Provider testimony and operative chronology

The procedures support acute severity. They do not independently establish the final impairment rating, permanent work restrictions, hardware-removal probability, or knee-replacement risk.

5.4 ORIF OF THE FEMUR AND TIBIA

The synthetic record establishes ORIF of the femur and tibia with retained hardware. The record does not establish hardware type, location, manufacturer, configuration, number of implants, or exact surgical technique.

ORIF proposition	Classification	Current support	Medical issue	Analytical use	Limitation
Operative repair occurred	Canonical synthetic medical fact	F-MED-007	Structural treatment of major fractures	Acute severity and treatment burden	Technical details absent
Hardware remains	Canonical synthetic medical fact	F-MED-007	Relationship to symptoms and future care	Permanency and future-care analysis	Presence does not prove removal is necessary
Structural healing permitted work return	Attorney medical assessment — not evidence	Return-to-work chronology	Degree of successful recovery	Defense functional argument	Healing status and imaging not supplied
Residual pain remains possible	Lay symptom report and expert issue	Canonical residual pain	Cause and severity	Noneconomic and future-care analysis	Pain cannot be assigned solely to hardware without opinion
Reduced motion and limp remain	Objective condition supported; extent disputed	F-MED-014 and claimant record	Functional effect	Permanency presentation	Measurements and frequency absent
Hardware removal may be supportable	Expert-dependent proposition	F-MED-015	Probability, timing, and symptom relationship	Supported future-care model if proven	Exact procedure and recovery not supplied

Successful structural repair and meaningful employment do not establish complete functional recovery. Conversely, retained hardware, pain, and impairment do not by themselves establish inability to perform full-time work.

The medical analysis must therefore preserve both propositions:

1. Turner sustained serious fractures requiring operative repair and retains permanent residual issues.

2. Turner later returned to full-time work at the same hourly rate, demonstrating substantial retained function.

Those propositions require reconciliation; they are not inherently contradictory.

5.5 SKIN GRAFTING AND WOUND CLOSURE

Skin grafting and wound closure are supplied treatment facts. Visible scarring is also part of the canonical residual record.

The record does not provide photographs, dimensions, color, exact location, contour, tenderness, donor-site information, cosmetic prognosis, or revision recommendations.

Scar or wound issue	Current record	Lay evidence	Medical evidence	Defense issue
Skin grafting occurred	F-MED-008	Turner may describe undergoing treatment	Records establish procedure and medical necessity	Generally acknowledge occurrence
Wound closure occurred	F-MED-008	Turner may describe recovery experience	Records establish technical course	Exact closure method unresolved
Visible scarring remains	F-MED-014	Claimant and observers may describe appearance	Provider may address permanence and relationship to treatment	Extent and visibility require objective proof
Disfigurement	Attorney characterization based on scars	Lay witnesses may describe observable appearance	Medical testimony may address permanence	Avoid minimizing visible injury; contest unsupported embellishment
Scar symptoms	No canonical detail	Turner may describe personal symptoms if supported	Provider may assess tenderness or restriction	UNRESOLVED — no canonical medical support supplied
Cosmetic revision	Not supplied	Lay expectation insufficient	Qualified medical opinion required	No future revision cost may be included

Scars may carry noneconomic significance independent of wage loss or physical disability. Their evidentiary force will depend on accurate photographs, inspection, testimony, and proportional presentation.

5.6 INPATIENT HOSPITALIZATION AND REHABILITATION

The synthetic chronology includes approximately 21 days of hospitalization followed by approximately 12 days of inpatient rehabilitation.

Phase	Supported duration	Supported purpose	Missing detail	Analytical effect
Trauma hospitalization	Approximately 21 days	Acute stabilization, operative treatment, wound management, and recovery	Exact daily course, complications, mobility, discharge criteria	Strong acute-severity and noneconomic evidence
Inpatient rehabilitation	Approximately 12 days	Structured functional recovery	Therapy disciplines, goals, assistance levels, discharge findings	Supports recovery burden and mitigation
Transition from inpatient care	Relative sequence supplied	Move from institutional care toward outpatient recovery	Home setting, devices, restrictions, assistance	Household and functional effects unresolved

The length of hospitalization and rehabilitation materially supports the seriousness of the injury and the burden of recovery.

It does not establish:

- that every hospital day was independently necessary;
- exact daily pain;
- specific functional dependence;
- or permanent restriction.

The defense should generally concede the substantial acute-care burden while requiring record support for any added claim concerning complications, prolonged dependence, psychiatric injury, or extraordinary daily limitations.

5.7 OUTPATIENT THERAPY

The record supplies approximately six months of outpatient therapy. It does not supply therapy frequency, attendance percentage, objective measurements, home-exercise compliance, discharge status, or individual milestones.

Therapy issue	Current status	Proof required	Plaintiff use	Defense use
Attendance	Six-month course supplied	Complete therapy record	Demonstrates sustained treatment and mitigation	Test consistency and gaps
Objective progress	Unresolved	Measurements and progress notes	Show gradual recovery with residual deficits	Show improvement and retained capacity
Discharge status	Unresolved	Final therapy note	Establish continuing limitation or plateau	Determine whether goals were met
Home exercise	Unresolved	Therapy record and testimony	Support compliance	Test mitigation
Functional milestones	General return chronology supplied	Therapy and employer records	Show difficulty of recovery	Establish increasing capacity
Residual restrictions	General symptoms supplied	Final restrictions and orthopedic examination	Support permanency	Test whether restrictions are medically imposed or self-reported

Therapy participation supports mitigation and may enhance Turner’s credibility. The same therapy record may show substantial improvement.

Neither side may assume that completion of therapy means complete recovery or that continued symptoms necessarily mean therapy failed.

5.8 MAXIMUM MEDICAL IMPROVEMENT

The synthetic record places MMI at approximately month 19.

MMI proposition	Current status	What it supports	What it does not establish
MMI occurred around month 19	Canonical synthetic fact; foundation pending	Permanency evaluation after substantial recovery	Exact examination date or methodology
Turner may remain symptomatic at MMI	Consistent with residual-condition baseline	Pain, scars, hardware, limp, and reduced motion may persist	Exact symptom severity
MMI may coexist with impairment	12% and 7% ratings both assume some residual impairment	Permanent-condition analysis	Which rating is correct
MMI may coexist with future treatment	Hardware removal remains a modeled future issue	Later care may occur without changing overall plateau	Necessity, probability, timing, or cost
MMI does not establish full recovery	Supported analytically	Preserves distinction between plateau and symptom elimination	Total disability
MMI does not establish surgery certainty	Required medical boundary	Prevents automatic future-care inclusion	Hardware or knee procedure probability

MMI and possible hardware removal are not automatically contradictory. A person may reach a stable functional plateau while retaining hardware that an expert later considers appropriate for removal.

The medical record must explain:

- why removal would be recommended after MMI;
- what symptoms or risks support it;
- whether removal is probable;

- and whether post-removal treatment changes the permanency analysis.

5.9 PLAINTIFF ORTHOPEDIC OPINION

The plaintiff orthopedic position is summarized from the canonical propositions rather than from an actual report.

Plaintiff opinion component	Source ID	Current support	Defense challenge	Verification required
Principal injuries are collision-related	SYN-ORTH-PLF-001; SYN-MED-001	Strong within synthetic baseline	Limited alternative-causation record	Records, imaging, history, examination
Residual pain remains	SYN-ORTH-PLF-001; claimant source	Generally supported	Severity, frequency, and objective consistency	Treatment history and examination
Reduced endurance	Plaintiff orthopedic and claimant sources	General residual condition supplied	Occupational impact not quantified	Functional examination and employer evidence
Visible scars	Orthopedic and lay sources	Core condition supported	Extent and effect disputed	Photographs and examination
Gait change	Orthopedic and lay sources	Activity-dependent limp supplied	Frequency and consistency disputed	Observations, gait evidence, examination
Reduced range of motion	SYN-ORTH-PLF-001	General condition supplied	No measurements or body-part detail	Examination findings and methodology
Retained hardware	SYN-MED-001; SYN-ORTH-PLF-001	Supported	Symptom relationship unresolved	Imaging and examination
12% whole-person impairment	SYN-ORTH-PLF-001	Canonical competing opinion	Method and overlap unverified	Full report, guide, calculations, examination
Hardware removal	SYN-ORTH-PLF-001	Treated as probable or supportable	Probability, timing, and necessity incomplete	Physician testimony and records
Degenerative knee risk	SYN-ORTH-PLF-001	Possible future theory	Current record does not establish replacement certainty	Imaging, progression, probability, timing

The plaintiff opinion may support a meaningful permanency presentation. Its strength depends on whether it can explain:

- the basis for 12%;
- the objective findings supporting restrictions;
- the relationship between symptoms and hardware;
- the basis for future degeneration;
- and how the conclusions coexist with full-time same-rate work.

No expert qualification, examination date, testing protocol, impairment method, or specific probability language has been supplied.

5.10 DEFENSE ORTHOPEDIC OPINION

The defense position does not require denial of the principal injuries or all permanent effect. The canonical record supplies a 7% whole-person impairment rating and emphasizes substantial functional recovery.

Defense opinion component	Source ID	Current support	Plaintiff challenge	Verification required
Serious orthopedic trauma occurred	SYN-ORTH-DEF-001; SYN-MED-001	Consistent with canonical record	Generally not disputed	Complete records
Principal injuries are collision-related	SYN-ORTH-DEF-001	Acute causation substantially supported	Plaintiff may argue defense minimizes consequences	Full causation analysis
Some permanent residual condition exists	SYN-ORTH-DEF-001	7% rating and residual record	Plaintiff disputes degree	Examination and methodology
Whole-person impairment is 7%	SYN-ORTH-DEF-001	Canonical competing opinion	Plaintiff asserts 12%	Full impairment calculation

Defense opinion component	Source ID	Current support	Plaintiff challenge	Verification required
Turner achieved substantial functional recovery	SYN-ORTH-DEF-001; work record	Full-time same-rate employment	Work may be painful or accommodated	Employer and functional evidence
Pain does not equal total disability	Defense orthopedic and functional position	Consistent with work and activities	Plaintiff may argue symptoms remain significant	Complete symptom and work record
Hardware removal may remain bounded future care	Orthopedic sources	Record does not require rejection of all future care	Plaintiff may seek broader treatment	Probability, timing, procedure, cost
Knee replacement is contingent	SYN-ORTH-DEF-001	Canonical status	Plaintiff may assert elevated post-traumatic risk	Imaging and medical-probability testimony
Major lifetime restriction remains unproven	Defense functional position	Same-rate full-time return	Plaintiff may assert reduced options and overtime	Restrictions, employer, vocational evidence

The defense expert should not be portrayed as concluding that Turner has no pain, no impairment, no scar, no limp, or no future-care need. The supplied defense position is more defensible when framed as a dispute over degree, function, and medical probability.

5.11 IMPAIRMENT-RATING DISPUTE

The plaintiff assigns a 12% whole-person impairment rating. The defense assigns 7%. Both are expert opinions. Neither is self-proving.

Impairment issue	Plaintiff position	Defense position	Missing methodology	Litigation significance
Body-part findings	Findings support higher residual impairment	Findings support lower residual impairment	Exact body-part measurements absent	Determines foundation for rating
Whole-person conversion	Produces 12%	Produces 7%	Conversion method absent	Numerical dispute cannot be tested
Objective examination	Supports plaintiff rating	Supports defense rating	Findings, dates, testing absent	Credibility and reliability
Range-of-motion basis	May contribute to higher rating	May support lower value	Exact measurements absent	Potentially central component
Pain contribution	Continuing pain supports permanence narrative	Pain may coexist with meaningful function	Rating treatment of pain absent	Risk of subjective duplication
Gait contribution	Limp supports higher impairment	Limp is activity-dependent and variable	Gait method absent	Visual evidence may influence jury
Scarring contribution	Scars support permanent effect	Scars may be separate from orthopedic rating	Method and overlap absent	Potential duplication
Overlap or duplication	Plaintiff may combine multiple findings	Defense may challenge overlap	No worksheet supplied	Prevents inflated combined rating
Guide and edition	Unidentified	Unidentified	Entire guide foundation absent	Basic methodological gap
Impairment versus disability	Higher impairment may support claimed limitation	Lower impairment plus work return supports capacity	Vocational link absent	Impairment cannot substitute for wage proof

5.11.1 Impairment is not disability

Whole-person impairment is a medical rating. Disability and occupational loss require separate functional and vocational analysis.

A person may have a permanent impairment and remain capable of full-time employment. Conversely, a comparatively modest impairment rating may have greater effect in a highly physical occupation than in a sedentary occupation.

5.11.2 Impairment is not wage loss

Neither 12% nor 7% establishes a percentage reduction in earnings.

Any wage or earning-capacity conclusion must be based on:

- actual restrictions;
- job demands;
- accommodations;
- overtime availability;
- labor-market evidence;
- and economic methodology.

5.11.3 Impairment is not a damages multiplier

The numerical rating does not prescribe noneconomic damages. The jury-facing significance depends on symptoms, objective findings, function, scarring, credibility, and instructions.

5.11.4 Rating explanation required

The five-point difference must be explained through:

- measurements;
- rating components;
- conversion method;
- guide authority;
- treatment of overlap;
- and examination findings.

No compromise percentage is adopted.

5.12 HARDWARE-REMOVAL ANALYSIS

Hardware removal must be analyzed separately from knee replacement.

Future-care component	Medical predicate	Current support	Cost status	Remaining gap	Release status
Hardware removal	Retained hardware plus sufficiently probable medical need	Treated as probable or supportable in synthetic expert record	Approximately $28,000–$42,000 derived model	Symptoms, probability, timing, procedure, recovery, source data	Attorney review required; not established damages
Routine follow-up	Continuing orthopedic monitoring	Generally modeled	Included in approximately $6,000–$10,000 combined follow-up/imaging range	Frequency, duration, provider direction	Held pending foundation
Imaging	Medical need for ongoing assessment	Generally modeled	Included in approximately $6,000–$10,000 range	Type, schedule, duration, pricing	Held pending foundation
Broader supported band	Physician-directed bounded future care	Approximately $35,000–$65,000 stated in controlling prompt and assessment framework	Derived model	Component reconciliation and source explanation	Held pending verification
Knee replacement	Separate degenerative predicate	Possible or contingent only	Approximately $125,000–$180,000 held model	Probability, timing, causation, cost	Excluded from supported band

5.12.1 Medical predicate

The presence of hardware does not establish that removal is medically necessary. The future-care opinion must identify:

- the reason for removal;
- symptoms or risks attributed to the hardware;
- the probability that removal will occur;

- expected timing;
- and relationship to the collision-related treatment.

5.12.2 Timing and procedure scope

No canonical source supplies:

- the type of removal procedure;
- inpatient or outpatient status;
- recovery duration;
- postoperative therapy;
- work absence;
- or complication risk.

Those subjects remain unresolved.

5.12.3 Cost classification

The $28,000–$42,000 and $6,000–$10,000 figures are derived cost models. They are not claimant testimony, medical opinions concerning necessity, or established recoverable damages.

5.12.4 Numerical reconciliation issue

The visible arithmetic sum of the component ranges is approximately:

- lower component total: $28,000 + $6,000 = $34,000;
- upper component total: $42,000 + $10,000 = $52,000.

The broader stated supported band is approximately $35,000–$65,000.

The present record does not explain whether the broader upper range includes:

- additional physician-directed care;
- rehabilitation;
- inflation or geographic adjustment;
- recovery-related services;
- or conservative scenario padding.

UNRESOLVED — verification required: Reconcile the component model with the broader $35,000–$65,000 supported band before reliance.

The broader band may be used only as an expressly modeled scenario until its components are identified.

5.13 FUTURE KNEE-REPLACEMENT DISPUTE

The knee-replacement issue is a separate hard medical gate.

Knee-replacement issue	Plaintiff position	Defense position	Current status	Proof required	Analytical consequence
Post-traumatic degeneration theory	Collision injuries increase future arthritis risk	Risk does not establish replacement probability	Expert-dependent	Imaging, history, examination, literature or methodology	Keeps future issue open only
Possible versus probable	Replacement may be anticipated	Current record describes it as possible or contingent	Held	Clear medical-probability opinion	Cannot enter supported care without predicate
Reasonable certainty	Plaintiff may seek future-care inclusion	Defense disputes sufficient certainty	Not established	Qualified testimony tied to current findings	Hard gate
Timing	Future procedure may occur	Timing is unknown	Unresolved	Medical estimate with basis	Present-value and life-care analysis impossible

Knee-replacement issue	Plaintiff position	Defense position	Current status	Proof required	Analytical consequence
Causation	Trauma may contribute to degeneration	Other progression or uncertainty must be considered	Unresolved	Causation analysis	Determines recoverability
Current symptoms	Plaintiff may rely on pain and limitation	Symptoms do not prove need for replacement	General symptoms supplied; knee-specific basis unclear	Examination and records	Prevents inference from pain alone
Current imaging	May support degenerative risk	No imaging findings supplied	Unresolved	Authenticated imaging and interpretation	Central proof gap
Progression	Plaintiff may assert worsening over time	Rate and inevitability unknown	Unresolved	Serial records or supported prognosis	Long-term projection held
Intervening causes	Plaintiff may characterize injury as primary cause	Defense may examine later events or natural progression	No evidence supplied	Complete medical history	No affirmative alternative cause adopted
Age	Younger age may increase duration of exposure	Age alone does not establish replacement	Turner was 33 at collision	Expert application	Context only
Procedure cost	Approximately $125,000–$180,000 modeled	Cost irrelevant unless predicate is established	Derived held scenario	Medical and billing foundation	High-side scenario only
Duplication	Plaintiff may include removal, monitoring, and replacement	Components must not overlap	Unresolved	Itemized life-care analysis	Prevent double counting

Held pending sufficiently certain medical testimony, timing, causation, and cost foundation.

The approximately $125,000–$180,000 model is not included in supported future care.

“Possible” is not converted into “probable.” The record must establish more than an increased risk before the procedure can be treated as an expected future loss.

5.14 PRIOR-CONDITION REVIEW

The synthetic baseline identifies a remote ankle sprain and prior mild lumbar complaints. It identifies no documented prior femur, tibia, knee, or hip condition.

Prior condition	Current support	Potential plaintiff use	Potential defense use	Causation significance	Missing proof
Remote ankle sprain	General historical fact only	Characterize as minor and unrelated	Explore whether any symptoms overlapped with gait or lower-extremity complaints	Present record does not establish alternative cause of major fractures	Laterality, date, severity, treatment, resolution
Mild lumbar complaints approximately five years earlier	General historical fact only	Distinguish from lower-extremity trauma	Test whether any current complaint is lumbar rather than orthopedic	Does not explain femur, tibia, acetabular, or open fractures	Records, symptoms, diagnosis, current relevance
Prior femur condition	None documented in synthetic baseline	Supports collision causation	Defense may verify completeness of history	No current alternative cause	Complete records
Prior tibia condition	None documented	Supports collision causation	Verify history	No current alternative cause	Complete records
Prior knee condition	None documented	Supports post-collision onset theory	Verify and test future degeneration claim	Absence favors plaintiff on historical causation	Complete imaging and records
Prior hip condition	None documented	Supports collision relationship	Verify history	No current alternative cause	Complete records

The current prior-condition record does not provide a strong alternative cause for the principal fractures or operative treatment.

That does not establish that:

- the ankle condition was resolved;

- the lumbar complaints were asymptomatic;
- either was on a particular side;
- or the prior history is irrelevant to every symptom.

The medical analysis should distinguish:

- prior condition;
- preexisting impairment;
- susceptibility;
- aggravation;
- and unrelated medical history.

The governing legal treatment of preexisting conditions is reserved for the authority chapter.

5.15 MEDICAL CAUSATION CONCLUSIONS

A. Acute causation substantially supported within the synthetic baseline

The following are substantially supported as collision-related for demonstration purposes:

1. Open tibia and fibula fractures
2. Femoral shaft fracture
3. Acetabular fracture
4. Wrist fracture
5. Rib fractures and pulmonary contusion
6. Lacerations, road rash, and wound injury
7. Air transport and trauma admission
8. Debridement, external fixation, and ORIF
9. Skin grafting, hospitalization, and rehabilitation

The acute chronology and absence of a material prior femur, tibia, knee, or hip condition make a broad alternative-causation attack unsupported within the synthetic baseline.

B. Residual condition generally supported; extent disputed

The following residual categories are generally supported:

- continuing pain;
- reduced endurance;
- retained hardware;
- visible scarring;
- reduced range of motion;
- activity-dependent limp;
- and some permanent impairment.

The degree, frequency, objective measurement, and functional consequence remain disputed.

C. Expert-dependent and contested

The following require expert foundation:

- 12% versus 7% whole-person impairment;
- precise permanent restrictions;
- degree of occupational limitation;
- relationship between hardware and symptoms;

- probability and timing of hardware removal;
- and the duration of follow-up and imaging.

D. Held or unresolved

The following remain held:

- future knee replacement;
- exact progression of post-traumatic degeneration;
- precise lifetime medical cost;
- precise future wage consequence;
- unsupported complications;
- and any unitemized addition to the broader future-care band.

Medical proposition	Causation status	Permanency status	Future-care status	Confidence	Required verification
Principal fractures	Substantially supported	Permanent effect possible and partly supported	Injury-specific future care unresolved	High within synthetic baseline	Authenticated records and expert testimony
Operative treatment	Substantially supported	Supports permanency context	Hardware issue remains	High	Operative reports
Scars	Treatment-related and generally supported	Visible permanence supported; extent unresolved	No revision care supplied	Moderate–high	Photographs and examination
Pain	Generally collision-related	Chronicity and extent disputed	May relate to follow-up or hardware care	Moderate	Treatment, examination, testimony
Reduced range of motion	Generally linked to orthopedic injuries	Objective degree unresolved	May affect care	Moderate	Measurements and expert analysis
Limp	Generally linked to lower-extremity injury	Frequency and severity disputed	No separate care established	Moderate	Gait evidence and examination
Reduced endurance	Generally consistent with injury	Functional consequence disputed	No separate care established	Moderate	Functional and vocational proof
12% impairment	Expert opinion	Contested	Not a care component	Undetermined	Methodology and examination
7% impairment	Expert opinion	Contested	Not a care component	Undetermined	Methodology and examination
Hardware removal	Collision-related if medically required because of retained fixation	Probability and timing unresolved	Potentially supportable	Moderate but incomplete	Physician-directed probability and cost
Follow-up and imaging	Generally plausible	Duration unresolved	Modeled only	Low to moderate	Specific medical plan
Knee replacement	Causation and progression unresolved	Major future permanency issue	Held	Low on current record	Current imaging and probability testimony
Remote ankle and lumbar history	Not shown to cause principal injuries	Relevance to selected symptoms unresolved	None established	Moderate	Complete prior records

5.16 MEDICAL CONTRADICTION AND AUDIT TABLE

Medical issue ID	Existing cross-reference	Proposition A	Proposition B	Classification	Required resolution	Downstream effect
C5-D001	D-005	Plaintiff assigns 12% whole-person impairment	Defense assigns 7%	Competing expert-opinion contradiction	Reports, examinations, guide, calculations	Permanency presentation
C5-D002	C4-D001; D-009	Turner reports continuing pain	Turner works full-time and performs selected activities	Medical or functional tension to test — not established contradiction	Symptom history, treatment, activity context	Credibility and noneconomic exposure
C5-D003	C4-D002; D-006	Residual condition materially limits physical work	Turner returned full-time at same hourly rate	Medical or functional tension to test	Restrictions, job demands, accommodations	Earning-capacity analysis
C5-D004	F-MED-011; F-MED-015	Turner reached MMI	Hardware removal may occur later	Medical issue requiring explanation, not automatic contradiction	Expert explanation of MMI and future care	Future-care foundation
C5-D005	F-MED-015–016	Hardware removal and follow-up are supportable components	Probability, timing, scope, and broader $35,000–$65,000 reconciliation remain incomplete	Support gap	Physician plan and itemized cost source	Supported-care range
C5-D006	D-007; F-MED-017	Plaintiff future-degeneration theory may support replacement	Current canonical status is possible or contingent	Competing medical-position contradiction	Imaging, progression, probability, timing	High-side future-care gate
C5-D007	F-MED-014; C4-D005	An activity-dependent limp remains	Frequency and severity are disputed and activity varies	Medical or functional tension to test	Observation, gait evidence, examination	Visual permanency proof
C5-D008	D-006	Residual orthopedic limitations affect industrial function	No precise permanent work restrictions are supplied	Evidentiary support gap	Orthopedic restrictions, employer and vocational evidence	Future occupational loss
C5-D009	F-MED-019	Prior ankle and lumbar history exists	No prior femur, tibia, knee, or hip condition is documented	Historical distinction, not contradiction	Complete prior records	Alternative-causation scope
C5-D010	C4-D001; C4-D007	Claimant describes symptoms and limitation	Work and activity evidence shows substantial retained function	Functional reconciliation issue	Complete testimony, records, social-media context	Credibility and damages characterization

Competing medical-opinion contradictions: Two principal disputes—impairment and future knee probability.

Medical or functional tensions and support gaps: Eight.

CONSOLIDATED MEDICAL VERIFICATION REGISTER

Medical proof item	Present status	Source required	Gate affected	Analytical effect
Complete hospital record	UNRESOLVED — record support required	Authenticated hospital chart	Evidence / causation	Confirms acute chronology
Operative reports	UNRESOLVED — record support required	Complete operative records	Medical support	Defines procedures and hardware
Imaging	UNRESOLVED — record support required	Initial, follow-up, and current studies	Causation / future care	Confirms healing and degeneration
Rehabilitation records	UNRESOLVED — record support required	Inpatient rehabilitation chart	Function	Documents assistance and progress
Therapy records	UNRESOLVED — record support required	Outpatient therapy chart	Function / mitigation	Documents objective recovery
Current orthopedic examination	UNRESOLVED — record support required	Treating and defense examinations	Permanency	Establishes current findings
Impairment methodology	UNRESOLVED — verification required	Reports, worksheets, guide references	Expert support	Resolves 12% versus 7% basis
Scar photographs	UNRESOLVED — record support required	Authenticated photographs	Noneconomic / demonstrative	Establishes appearance
Gait evidence	UNRESOLVED — record support required	Examination, testimony, properly founded video	Function	Establishes frequency and severity
Work restrictions	UNRESOLVED — record support required	Physician restrictions and employer records	Function / damages	Defines occupational effect
Treating-provider testimony	UNRESOLVED — record support required	Sworn testimony	Causation / future care	Establishes probability and prognosis
Defense examination	UNRESOLVED — record support required	Complete report and testimony	Expert dispute	Supports defense rating and function
Hardware-removal probability	UNRESOLVED — verification required	Physician opinion	Future care	Determines supported inclusion
Knee-replacement probability	UNRESOLVED — verification required	Qualified orthopedic opinion	Hard future-care gate	Determines whether claim remains held
Future-care timing	UNRESOLVED — verification required	Physician-directed schedule	Damages calculation	Required for cost and present value
Life-care source records	UNRESOLVED — record support required	Physician recommendations and planner sources	Damages support	Prevents planner-created medical care
Medical-cost foundation	UNRESOLVED — verification required	Itemized cost data and methodology	Damages	Reserved principally for Chapter 6
Admissibility foundation	UNRESOLVED — controlling authority required	Current law and record-specific application	Evidence admissibility	No trial-facing release
Attorney review	UNRESOLVED — verification required	Designated reviewer	Replay / export	Required before reliance

MEDICAL SOURCE-TO-CONCLUSION AUDIT TABLE

Fact ID	Medical proposition	Source ID	Classification	Dispute status	Permitted use	Prohibited use	Export state
F-MED-001	Open tibia and fibula fractures	SYN-MED-001	Canonical synthetic medical fact	Acute causation substantially supported	Injury severity and treatment context	Unverified technical classification	Attorney review required
F-MED-002	Femoral shaft fracture	SYN-MED-001	Canonical synthetic medical fact	Acute causation substantially supported	Severity and residual-function analysis	Exact fracture description	Attorney review required
F-MED-003	Acetabular fracture	SYN-MED-001	Canonical synthetic medical fact	Acute causation substantially supported	Hip-function analysis	Exact imaging or restriction	Attorney review required
F-MED-004	Wrist, ribs, pulmonary contusion, lacerations, and road rash	SYN-MED-001	Canonical synthetic medical fact	Future significance limited or unresolved by component	Acute injury scope	Continuing impairment without proof	Attorney review required
F-MED-005	Air transport and trauma admission	SYN-MED-001	Canonical synthetic medical fact	Generally undisputed	Acute severity	Cost or necessity without records	Attorney review required
F-MED-006	Debridement and external fixation	SYN-MED-001	Canonical synthetic medical fact	Generally undisputed occurrence	Treatment burden	Complication or impairment conclusion	Attorney review required
F-MED-007	ORIF and retained hardware	SYN-MED-001	Canonical synthetic medical fact	Hardware effect disputed	Permanency and future-care analysis	Automatic removal necessity	Attorney review required
F-MED-008	Skin grafting and wound closure	SYN-MED-001	Canonical synthetic medical fact	Scar extent unresolved	Treatment and disfigurement context	Invented scar description	Attorney review required
F-MED-009	Approximately 21-day hospitalization	SYN-MED-001	Canonical synthetic medical fact	Exact dates absent	Acute recovery burden	Daily-care detail	Attorney review required
F-MED-010	Inpatient rehabilitation and outpatient therapy	SYN-MED-001	Canonical synthetic medical fact	Objective progress absent	Mitigation and recovery	Specific goals or measurements	Attorney review required
F-MED-011	MMI around month 19	Orthopedic sources	Expert-supported synthetic fact	Basis unresolved	Permanency timing	Full-recovery inference	Held
F-MED-012	12% whole-person impairment	SYN-ORTH-PLF-001	Plaintiff orthopedic opinion	Contested	Plaintiff permanency model	Undisputed impairment	Held
F-MED-013	7% whole-person impairment	SYN-ORTH-DEF-001	Defense orthopedic opinion	Contested	Defense permanency model	Undisputed impairment	Held
F-MED-014	Scars and activity-dependent limp	Claimant, spouse, and orthopedic sources	Objective condition supported; extent disputed	Frequency and severity disputed	Noneconomic and function analysis	Constant or severe condition without proof	Attorney review required
F-MED-015	Hardware removal modeled at $28,000–$42,000	Orthopedic and cost sources	Expert-dependent proposition / derived cost model	Probability and cost foundation incomplete	Bounded future-care scenario	Established recoverable loss	Held
F-MED-016	Follow-up and imaging modeled at $6,000–$10,000	Orthopedic sources	Derived cost model	Foundation unresolved	Bounded future-care scenario	Automatic lifetime care	Held
F-MED-017	Knee replacement possible or contingent	Orthopedic sources	Competing expert proposition	D-007 unresolved	High-side sensitivity only	Supported future care	Held
F-MED-018	Knee replacement cost modeled at $125,000–$180,000	Future-care materials	Derived cost model based on disputed predicate	Hard gate unresolved	Conditional scenario	Current future damages	Excluded from supported-care output
F-MED-019	Remote ankle sprain and mild lumbar complaints; no documented prior major lower-extremity condition	SYN-MED-001	Canonical synthetic historical fact	Complete records absent	Prior-condition analysis	Overstated alternative causation	Attorney review required
F-WAGE-003	Restricted duty around month 11	SYN-WAGE-001	Canonical function fact	Exact restrictions absent	Recovery and mitigation	Medical restriction details	Attorney review required
F-WAGE-004	Full-time same-rate work around month 16	SYN-WAGE-001	Canonical function fact	Actual duties and sustainability unresolved	Functional reconciliation	Proof of no impairment	Attorney review required
F-WAGE-005	Plaintiff alleges reduced future opportunities	Claimant and vocational sources	Party contention / expert issue	Contested	Identify medical predicate needed	Established medical disability	Held

Fact ID	Medical proposition	Source ID	Classification	Dispute status	Permitted use	Prohibited use	Export state
F-WAGE-006	Defense asserts substantial retained earning capacity	Wage and defense vocational sources	Attorney argument / expert issue	Contested	Reconcile function and work	Medical conclusion	Held
F-PERS-005	Travel, fishing, and light projects depicted	SYN-SOC-001	Contextual evidence	Authentication and context unresolved	Functional calibration	Proof of no pain	Held
F-PERS-006	No return to motorcycling	Claimant and social sources	Canonical lay proposition	Reason and prior frequency unresolved	Specific loss-of-enjoyment issue	Medical incapacity without proof	Attorney review required

CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Medical Record, Causation, and Permanency
Artifact version	Synthetic Medical, Causation, and Permanency Record v1.0
Controlling versions	Chapters 1–4 v1.0
Sources expanded	SYN-MED-001; SYN-ORTH-PLF-001; SYN-ORTH-DEF-001
Related sources	SYN-DEP-PLF-001; SYN-DEP-SP-001; SYN-WAGE-001; SYN-BILL-001; SYN-SOC-001
Facts changed	None
New canonical facts	None
Acute causation findings	Nine principal injury, treatment, and recovery categories substantially supported within synthetic baseline
Residual-condition categories	Pain, reduced endurance, retained hardware, scars, reduced motion, limp, and impairment
Contested permanency issues	Six principal categories: impairment, pain extent, endurance, motion, gait, and occupational restriction
Supported future-care components	Hardware removal and bounded follow-up/imaging, subject to foundation
Supported modeled band	Approximately $35,000–$65,000; component reconciliation unresolved
Held future-care components	Knee replacement and related $125,000–$180,000 model
Competing medical-opinion contradictions	Two
Medical or functional tensions and support gaps	Eight
Prior-condition status	Minor remote history identified; no strong alternative cause established within baseline
Attorney reviewer	Unassigned
Review status	Not reviewed
Replay status	Structural only
Export status	Attorney-review demonstration only
Carrier-facing status	Held
Mediation reliance status	Held
Trial-facing status	Held
VerdictReady	No
FilingReady	Not applicable

VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial settlement and mediation evaluation

Runtime Mode: Defense-side medical, causation, and permanency review

Case / Motion / Trial Issue: Injury causation, treatment, permanency, impairment, function, prior conditions, and future medical care

Preliminary Result

Synthetic medical, causation, and permanency record established for demonstration use.

VerdictReady: No

FilingReady: Not applicable

Gatekeeper Findings

Runtime

Demonstration use only. No actual medical record, expert report, physician testimony, impairment evaluation, or life-care plan is authenticated or admitted.

Input normalization

Pass for the canonical medical baseline.

The chapter maps:

- acute injuries;
- operative treatment;
- hospitalization;
- rehabilitation;
- MMI;
- residual conditions;
- competing impairment ratings;
- future hardware removal;
- contingent knee replacement;
- prior conditions;
- and functional evidence.

Contradiction

Competing impairment and future-care positions are preserved.

The chapter does not artificially resolve:

- 12% versus 7% impairment;
- the degree of chronic pain;
- permanent work restrictions;

- hardware-removal probability;
- or knee-replacement probability.

Evidence admissibility

Not verified.

No medical chart, operative report, imaging study, rehabilitation record, therapy record, expert report, photograph, cost source, or testimony is treated as authenticated or admissible.

Authority / fact support

Medical propositions are mapped to synthetic sources. Authenticated records, sworn provider testimony, expert qualifications, reliance materials, and impairment methodology are absent.

Claim / defense elements

Acute causation is substantially supported within the synthetic baseline.

The extent of permanency, functional loss, future progression, and future care remains disputed or incomplete.

Standard alignment

Current Indiana verification required.

No legal standard governing medical probability, future treatment, expert testimony, preexisting conditions, impairment evidence, or medical demonstratives is verified in this chapter.

Damages

Medical predicates are mapped.

The following remain outside the authorized medical conclusion:

- recoverability of billed charges;
- reasonable medical value;
- collateral-source treatment;
- lien status;
- and final damages valuation.

Those issues are reserved principally for Chapter 6 and the authority overlay.

Jury instructions

Not verified.

Appellate record

Not applicable to the present synthetic pretrial posture.

Replay / audit

Medical source-to-conclusion mapping, contradiction tracking, future-care separation, and export classifications are established.

No production replay receipt exists.

Export

Attorney-review demonstration only.

No carrier-, reserve-, settlement-, mediation-, filing-, or trial-facing reliance release is authorized.

Failed Gates / Runtime State

VerdictReady: No

Failed or incomplete gates: Medical record support, expert foundation, impairment methodology, future-care probability, cost support, admissibility, authority verification, attorney review, replay validation, and export authorization.

Runtime state: REVIEW REQUIRED / EXPORT HELD

Export effect: No reliance release authorized.

Required Fixes Before VerdictReady

A comparable real-matter medical assessment would require:

1. Authenticated hospital, operative, imaging, rehabilitation, and therapy records
2. Current treating and defense orthopedic examinations
3. Complete expert reports and reliance materials
4. Expert qualifications
5. Impairment-guide identification and calculations
6. Objective range-of-motion, strength, gait, and functional findings
7. Physician-supported permanent restrictions
8. Medical-probability testimony concerning hardware removal
9. Medical-probability testimony concerning knee replacement
10. Future-care timing and causation
11. Itemized cost foundation
12. Reconciliation of the $35,000–$65,000 band with its stated components
13. Admissibility analysis
14. Current Indiana authority
15. Attorney review
16. Replay validation
17. Express export authorization

Adversarial Risk

Broad causation attack

The objective fractures, operative care, hospitalization, and rehabilitation make a broad attack on acute collision causation unsupported and potentially damaging to defense credibility.

Impairment-methodology risk

The 12% and 7% ratings may appear arbitrary unless each expert explains the guide, examination findings, calculations, conversion, and treatment of overlap.

Work-return overstatement

The defense may properly use same-rate full-time employment as evidence of substantial function. Treating it as proof of complete recovery would ignore the supported pain, scars, hardware, reduced motion, and limp.

Impairment overstatement

Plaintiff may use the 12% figure to support permanency. Treating it as proof of disability, wage loss, or a prescribed damages value would exceed the medical opinion.

Future-care bundling

Combining hardware removal, routine monitoring, and contingent knee replacement into one figure would conceal materially different support levels.

Possibility-versus-probability risk

The knee-replacement model creates high-side exposure only if a sufficiently certain medical predicate is established. Presenting a possible procedure as expected care would overstate the current record.

Prior-condition overreach

The remote ankle and mild lumbar history may justify inquiry. The current baseline does not support presenting those conditions as an alternative cause of the principal fractures or operative treatment.

Demonstrative risk

Graphic injury, surgery, scar, or hardware demonstratives may create undue emphasis if not accurately tied to authenticated records and Turner’s actual condition. An overly sanitized defense presentation carries the opposite credibility risk.

Evidentiary Issues

The principal unresolved evidentiary issues include:

- medical-record authentication;
- completeness;
- provider foundation;
- causal relationship;
- medical probability;
- impairment methodology;
- objective examination findings;
- future-treatment certainty;
- life-care reliance;
- medical-cost foundation;
- demonstrative accuracy;
- cumulative medical evidence;
- prior-condition evidence;
- and expert-versus-lay boundaries.

No final admissibility conclusion is issued.

Record / Appellate Issues

No actual medical exhibit record exists.

The following remain absent:

- authenticated records;
- sworn provider testimony;
- expert depositions;
- exhibits;
- evidentiary objections;
- motions in limine;
- rulings;
- demonstrative foundations;
- and preserved trial record.

Appellate completeness: Not applicable and not assessed.

Confidence / Hallucination Risk

Confidence in consistency with Chapters 1–4: High

Confidence in real-world applicability: Not determinable

Hallucination risk if laterality, exact imaging, fracture classification, surgical detail, complications, restrictions, impairment methodology, or probability language is invented: High

Hallucination risk if the knee-replacement scenario is treated as supported future care: High

Hallucination risk within the expressly identified canonical medical baseline: Low

Attorney-review status: Not reviewed

Release status: Held

FINAL CHAPTER STATUS

The synthetic medical chronology, injury matrix, operative-treatment analysis, rehabilitation record, competing orthopedic positions, impairment dispute, future-care separation, prior-condition review, causation conclusions, contradiction register, and source-to-conclusion audit are established.

No canonical fact was added or changed.

The principal fractures, acute treatment, hospitalization, and rehabilitation are substantially collision-related within the synthetic baseline. Permanent residual effects are supported generally, but their degree and occupational consequence remain disputed. Hardware removal and bounded follow-up may be supportable if medical probability and cost foundation are established. Knee replacement remains possible or contingent and is excluded from the supported future-care band.

VerdictReady: No
Runtime state: REVIEW REQUIRED / EXPORT HELD
Attorney review required.

CHAPTER 6

ECONOMIC DAMAGES AND MEDICAL-EXPENSE RECORD

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Claimant:	Michael Turner, synthetic plaintiff
Artifact designation:	Synthetic Economic Damages and Medical-Expense Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Controlling driver-testimony source:	Synthetic Driver Deposition Record v1.0
Controlling claimant-testimony source:	Synthetic Claimant and Spouse Testimony Record v1.0
Controlling medical source:	Synthetic Medical, Causation, and Permanency Record v1.0
Sources expanded:	SYN-BILL-001; SYN-WAGE-001
Related sources:	SYN-MED-001; SYN-ORTH-PLF-001; SYN-ORTH-DEF-001; SYN-DEP-PLF-001; SYN-DEP-SP-001; SYN-SOC-001
Vocational, economist, tax, employer, lien, and life-care sources:	UNRESOLVED — source identifier and source record not supplied
Facts changed:	None
New canonical facts created:	None
Release status:	Attorney-review demonstration only

SYNTHETIC ECONOMIC-DAMAGES AND MEDICAL-EXPENSE DEMONSTRATION RECORD — NOT AN ACTUAL BILLING LEDGER, EXPLANATION OF BENEFITS, LIEN STATEMENT, PAYROLL RECORD, TAX RECORD, VOCATIONAL REPORT, ECONOMIC REPORT, LIFE-CARE PLAN, OR ADMISSIBLE DAMAGES OPINION.

Michael Turner, all employers, providers, payors, lienholders, experts, and financial records are synthetic. No billing, payment, lien, payroll, tax, vocational, economic, or future-care source is authenticated, certified, sworn, or admissible.

No mathematical result becomes an established loss merely because the calculation is arithmetically correct. Billed, accepted, paid, adjusted, patient-responsibility, lien, subrogation, and reasonable-value amounts are distinct accounting and legal categories.

A medical expense is not established as recoverable merely because it was billed, accepted, or paid. A wage-loss model is not established merely because it uses a supplied hourly rate. Lay testimony does not establish reasonable medical value, economic methodology, work-life expectancy, present value, medical probability, or future-care cost.

VerdictReady: No — synthetic demonstration and verification incomplete.

FilingReady: Not applicable.

This chapter supplements but does not amend Chapters 1–5.

6.1 ECONOMIC-DAMAGES CONTROL STATEMENT

This chapter organizes the synthetic damages record without deciding admissibility, legal recoverability, collateral-source treatment, lien enforceability, or final value. Those legal questions are reserved principally for Chapter 7.

The following categories must remain separate:

- amount billed;
- amount accepted;
- amount paid;
- adjustment or reduction;
- patient responsibility;
- lien;
- subrogation or reimbursement claim;
- reasonable medical value;
- past wage loss;
- future earning capacity;
- future medical expense;
- noneconomic damages;
- and settlement value.

A number may appear in more than one analytical discussion without belonging to the same category. For example, the approximately $247,800 accepted amount may be relevant to an accounting reconciliation and to a reasonable-value expert's analysis. It does not thereby become the exclusive reasonable value, the total amount paid, a lien amount, or the legally recoverable medical expense.

Similarly, a wage calculation may illustrate what Turner could earn under a selected hours assumption. It does not establish that he worked those hours during a particular period, lost that amount, or would have continued doing so for the remainder of his working life.

No supported, contested, and held damages components may be combined into a single total without separate identification.

Coverage information is excluded from this chapter.

Damages category	Present status	Principal source	Primary unresolved issue
Gross billed medical charges	Canonical synthetic financial fact	F-DAM-001; SYN-BILL-001	Itemization, coding, relationship to treatment, recoverability
Accepted medical amounts	Canonical synthetic financial fact	F-DAM-002; SYN-BILL-001	Adjustment basis and permissible use
Insurance payments	Modeled accounting amount	F-DAM-003; SYN-BILL-001	Payment ledger and collateral-source treatment
Patient responsibility or liens	Modeled combined amount	F-DAM-004; SYN-BILL-001	Legal character, enforceability, duplication
Reasonable medical value	Competing expert opinions	F-DAM-005–006	Methodology, source data, legal use
Past wage loss	Potentially supportable but incomplete	F-WAGE-001–004; SYN-WAGE-001	Exact absence, restricted-duty earnings, offsets
Future earning capacity	Contested and held	F-WAGE-005–006	Vocational basis, employer evidence, economic method
Future medical care	Partly supportable; partly held	F-MED-015–018	Probability, timing, itemization, cost foundation
Noneconomic damages	Outside economic total	Chapters 4–5	Jury presentation and legal standards
Settlement or trial value	Reserved for Chapter 8	SYN-MED-SET-001 and later assessment	Liability, admissibility, full damages proof, attorney authorization

6.2 GROSS BILLED MEDICAL CHARGES

The synthetic billing record identifies approximately **$412,640** in gross billed medical charges. That figure is a billing-ledger proposition, not a final damages conclusion.

Billing proposition	Amount	Classification	What it shows	What it does not show	Verification required
Total gross charges	$412,640	Canonical synthetic financial fact	Aggregate face amount of modeled charges	Reasonable value, payment, lien, recoverability	Complete itemized billing ledger
Provider allocation	Not supplied	UNRESOLVED — no canonical economic support supplied	Nothing by provider	Which providers generated the charges	Provider-level statements
Service dates	Not supplied	Unresolved	No treatment-period allocation	Whether every charge falls within the collision treatment period	Dated bills and medical chronology
Coding	Not supplied	Unresolved	No coding analysis	Necessity, duplication, level of service, coding accuracy	Coding records and expert review
Adjustments	Not supplied by category	Accounting reconciliation incomplete	Difference from accepted amount may exist	Contractual write-off, administrative reduction, error, or other classification	Payment and adjustment ledger
Unrelated charges	None identified, but not excluded	Verification incomplete	No affirmative unrelated-charge finding	That every charge is collision-related	Medical and billing reconciliation
Duplicate charges	Not identified	Verification incomplete	No affirmative duplication finding	That the ledger contains no duplication	Line-item audit
Treatment completeness	Unresolved	Verification incomplete	Aggregate reflects supplied total only	Whether all treatment is included or whether later bills exist	Complete provider inventory

6.2.1 Permitted analytical use

The gross figure may function as:

1. an indicator of treatment intensity;
2. an input for expert reasonable-value analysis;
3. a plaintiff damages anchor;
4. a comparison point against accepted and paid amounts;
5. and a control total for billing reconciliation.

6.2.2 Prohibited inference

The gross figure does not automatically establish:

- that every service was medically necessary;
- that every charge was caused by the collision;
- that $412,640 was paid;
- that Turner owes $412,640;
- that any lien equals $412,640;
- that the amount represents reasonable value;
- or that the amount is recoverable.

6.2.3 Relationship to medical chronology

The injuries, hospitalization, procedures, rehabilitation, and therapy make a substantial aggregate billing figure facially consistent with a serious treatment course. That general consistency is not a line-item audit.

A complete reconciliation would need to map each charge to:

- provider;

- date;
- diagnosis;
- procedure;
- treatment phase;
- medical necessity;
- payment status;
- adjustment status;
- and causal classification.

Current status: Aggregate supplied; line-item support unresolved.

6.3 PAID AND ACCEPTED AMOUNTS

The synthetic record identifies:

- gross billed charges of approximately **$412,640**;
- accepted amounts of approximately **$247,800**;
- insurance payments of approximately **$211,500**;
- and responsibility, liens, or related balances of approximately **$36,300**.

These amounts reconcile arithmetically, but their legal and documentary classifications remain unresolved.

6.3.1 Accounting reconciliation

Ledger category	Modeled amount	Arithmetic relationship	Legal or evidentiary status	Unresolved item
Gross billed charges	$412,640	Starting aggregate	Legal recoverability unresolved	Itemization and permissible use
Accepted amounts	$247,800	$412,640 − $164,840	Not automatically exclusive reasonable value	Basis for reduction
Difference between billed and accepted	$164,840	$412,640 − $247,800	Arithmetic difference only	Adjustment category and documentation
Insurance payments	$211,500	Part of modeled accepted amount	Collateral-source treatment unresolved	Payor, payment dates, plan terms
Difference between accepted and insurance payments	$36,300	$247,800 − $211,500	Arithmetic difference only	Patient balance, lien, copay, deductible, or other category
Modeled responsibility or lien amount	$36,300	Numerically matches accepted less payments	Lien enforceability unresolved	Legal character and duplication

6.3.2 Required arithmetic

C6-CALC-001 — Billed minus accepted

$412,640 − $247,800 = **$164,840**

Classification: **Accounting reconciliation**

The $164,840 figure is the mathematical difference between the gross and accepted totals. It is not automatically classified as a contractual adjustment, write-off, discount, overcharge, disallowed charge, or accounting error.

C6-CALC-002 — Accepted minus modeled insurance payments

$247,800 − $211,500 = **$36,300**

Classification: **Accounting reconciliation**

The numerical match between the $36,300 difference and the modeled responsibility-or-lien figure establishes internal arithmetic consistency only.

It does not establish that the amount is:

- owed by Turner;

- protected by a valid lien;
- subject to subrogation;
- payable to one provider;
- payable to multiple providers;
- unreduced;
- or recoverable.

Arithmetic reconciliation present; legal and documentary reconciliation unresolved.

6.3.3 Distinction among categories

Accepted amount may describe the amount providers agreed to recognize after adjustments. The source does not define the term more precisely.

Paid amount describes modeled payments actually made by insurance. The identity of the payor, date, plan, and payment allocation are not supplied.

Balance may include patient responsibility, contractual obligations, disputed amounts, pending payments, or other ledger categories.

Lien is a legal classification that cannot be inferred from an unpaid or remaining balance alone.

Adjustment is an accounting category whose basis must be documented. A difference is not self-classifying.

6.4 PATIENT RESPONSIBILITY, LIENS, AND SUBROGATION

The approximately **$36,300** amount is presently described collectively as patient responsibility, liens, or related balances. Those categories are not interchangeable.

Issue	Current support	Required record	Risk if assumed	Present classification
Patient responsibility	Amount may include some patient balance	Provider ledger and EOB records	Treating a balance as admitted debt	Unresolved
Provider balances	No provider-level allocation	Current statements	Double counting with liens or plan claims	Unresolved
Health-plan reimbursement	Insurance payments modeled	Plan documents and reimbursement notice	Assuming reimbursement right from payment alone	Unresolved
Subrogation	No terms supplied	Plan or policy language	Assuming priority or amount	Unresolved
Statutory lien	No lien document supplied	Recorded or served lien documentation	Treating balance as perfected lien	Unresolved
Contractual lien	No contract supplied	Provider or plan agreement	Treating agreement as enforceable without review	Unresolved
Lien perfection	Not supplied	Notice, filing, service, and timing record	Overstating settlement payoff	Unresolved
Lien reduction	Not supplied	Negotiation history and final payoff	Assuming full gross amount will be paid	Unresolved
Attorney-fee allocation	Not supplied	Governing documents and law	Incorrect net-recovery analysis	Unresolved
Negotiated payoff	Not supplied	Current payoff letter	Confusing gross claim with expected payoff	Unresolved
Duplication	Possible across balance, lien, and reimbursement categories	Consolidated ledger	Counting the same obligation more than once	High verification priority

6.4.1 Patient responsibility is not automatically lien exposure

An amount shown as patient responsibility may reflect:

- deductible;
- copayment;

- coinsurance;
- noncovered services;
- pending insurance processing;
- provider balance;
- or another category.

None is supplied here.

6.4.2 A ledger does not establish enforceability

A billing or payment ledger may show amounts charged, adjusted, paid, or remaining. It does not by itself establish:

- the legal basis of a lien;
- compliance with perfection requirements;
- priority;
- reimbursement rights;
- reduction rights;
- or final settlement payoff.

6.4.3 Settlement-payoff distinction

The gross amount asserted by a provider or payor may differ from the expected payoff after:

- legal review;
- compromise;
- fee allocation;
- proportional reduction;
- administrative correction;
- or negotiated resolution.

No such reduction is assumed.

UNRESOLVED — record support required: Complete payment ledger, explanations of benefits, lien notices, plan documents, payoff statements, and subrogation terms.

6.5 PLAINTIFF REASONABLE-VALUE OPINION

The plaintiff reasonable-value opinion is approximately **$340,000–$390,000**. It is a competing expert range, not an established damages amount.

Plaintiff opinion component	Current support	Methodology needed	Defense challenge	Effect if accepted
Range	$340,000–$390,000 supplied	Explanation of range selection	Why lower than gross but materially above accepted	Higher past-medical anchor
Gross-charge use	Possible but not established	Identification of reliance on charges	Whether gross charges reflect market value	May support upper range
Provider-specific analysis	Not supplied	Provider and service allocation	No provider-level method available	Could improve reliability
Geographic comparison	Not supplied	Market definition and data	Relevance and representativeness	May support local-value opinion
Coding review	Not supplied	Code-level analysis	Accuracy and duplication	May validate or reduce charges
Service intensity	Serious treatment course supplied	Relationship of services to range	Intensity does not determine price alone	Supports seriousness narrative
Database comparison	Not supplied	Database identity, methodology, date, sample	Transparency and applicability	May affect admissibility and weight
Accepted-amount treatment	Unresolved	Explanation of whether and how considered	Ignoring accepted amount may weaken analysis	May affect credibility

Plaintiff opinion component	Current support	Methodology needed	Defense challenge	Effect if accepted
Necessity and causation	Acute treatment generally supported	Medical linkage by service	Billing expert cannot independently create medical necessity	Limits recoverable subset

6.5.1 Range relationship to other figures

The plaintiff range is:

- below the $412,640 gross billed total;
- above the $247,800 accepted amount;
- and above the defense range.

That positioning may reflect an opinion that gross charges overstate some services while accepted amounts understate reasonable market value. The present source does not supply that reasoning.

6.5.2 Required explanation

The plaintiff expert would need to explain:

- source records reviewed;
- treatment included or excluded;
- geographic market;
- coding method;
- database or comparative data;
- treatment of accepted and paid amounts;
- adjustment for disputed services;
- and why the final range is $340,000–$390,000.

No point within the range is selected.

Current classification: Plaintiff reasonable-value opinion; contested; methodology unresolved.

6.6 DEFENSE REASONABLE-VALUE OPINION

The defense reasonable-value opinion is approximately **$225,000–$255,000**. It is also a competing expert range.

Defense opinion component	Current support	Methodology needed	Plaintiff challenge	Effect if accepted
Range	$225,000–$255,000 supplied	Explanation of range selection	Alleged undervaluation of intensive trauma care	Lower past-medical anchor
Accepted-amount relationship	$247,800 lies within range	Whether accepted amounts were considered	Accepted amount may reflect negotiated rates rather than full value	Supports facial consistency only
Gross-charge treatment	Unresolved	Explanation of reductions	Whether charges were discounted too aggressively	Affects reliability
Provider-specific analysis	Not supplied	Service-level review	Lack of granular basis	May limit weight
Coding analysis	Not supplied	Coding, duplication, and market review	Potential exclusion of valid services	Central methodology issue
Geographic comparison	Not supplied	Market and source data	Data representativeness	Affects local applicability
Payment reliance	Not supplied	Whether payments were considered	Improper substitution of payments for value	Requires clear distinction
Medical necessity	Acute care generally supported	Coordination with medical opinions	Billing expert cannot reject care without foundation	Limits reductions

6.6.1 Relationship between accepted amount and defense range

The approximately $247,800 accepted amount falls within the defense range of $225,000–$255,000.

That relationship may be analytically relevant. It does not prove:

- that the defense expert merely adopted accepted amounts;
- that the defense method is correct;
- that accepted amounts are the exclusive measure of reasonable value;
- or that the plaintiff range is invalid.

6.6.2 Comparative range analysis

Comparison item	Plaintiff position	Defense position	Present significance
Lower bound	$340,000	$225,000	$115,000 difference
Upper bound	$390,000	$255,000	$135,000 difference
Derived midpoint	$365,000	$240,000	$125,000 midpoint difference
Range width	$50,000	$30,000	Plaintiff range is broader
Overlap	None	None	$85,000 gap between defense high and plaintiff low
Accepted amount relationship	$92,200 below plaintiff low	$7,800 above defense midpoint and inside defense range	Relevant but not determinative
Gross billed relationship	$22,640 above plaintiff high	$157,640 above defense high	Shows different reductions from gross

Derived midpoint calculations — not expert opinions

Plaintiff midpoint:

($340,000 + $390,000) ÷ 2 = **$365,000**

Defense midpoint:

($225,000 + $255,000) ÷ 2 = **$240,000**

No compromise figure is adopted.

6.7 PAST WAGE-LOSS INPUTS

Turner’s canonical wage baseline is approximately **$35 per hour** and approximately **46 hours per week**. He returned to restricted duty around month 11 and to full-time work at the same hourly rate around month 16. The record does not supply exact earnings during those periods.

Wage-loss input	Current value	Fact ID	Source	Status	Missing proof
Occupation	Industrial maintenance technician	F-PERS-003	SYN-WAGE-001	Canonical	Employer and exact job description
Hourly rate	Approximately $35	F-WAGE-001	SYN-WAGE-001	Canonical synthetic wage fact	Payroll and effective dates
Historical weekly hours	Approximately 46	F-WAGE-002	SYN-WAGE-001	Canonical baseline; period unresolved	Payroll history and averaging period
Regular-hour threshold	Not supplied	—	No source assigned	Unresolved	Employer policy and wage records
Overtime premium	Not supplied	—	No source assigned	Unresolved	Payroll and compensation policy
Pre-return absence	Exact period and earnings not itemized	—	No source assigned	Unresolved	Attendance and payroll
Restricted-duty return	Approximately month 11	F-WAGE-003	SYN-WAGE-001	Canonical	Exact date and compensation
Restricted-duty hours	Not supplied	—	No source assigned	Unresolved	Payroll and employer testimony
Restricted-duty rate	Not supplied	—	No source assigned	Unresolved	Payroll
Full-time return	Approximately month 16	F-WAGE-004	SYN-WAGE-001	Canonical	Exact date and hours
Same hourly rate	Approximately $35	F-WAGE-004	SYN-WAGE-001	Canonical	Payroll confirmation
Post-return overtime	Not supplied	—	No source assigned	Unresolved	Payroll and employer testimony

Wage-loss input	Current value	Fact ID	Source	Status	Missing proof
Benefits	Not supplied	—	No source assigned	Unresolved	Benefit records
Taxes	Not supplied	—	No source assigned	Unresolved	Tax records and legal methodology
Disability payments	Not supplied	—	No source assigned	Unresolved	Benefit records
Paid leave	Not supplied	—	No source assigned	Unresolved	Employer records
Workers' compensation benefits	Not supplied	—	No source assigned	Unresolved	Claim and payment records
Mitigation credits	Not calculable	—	Multiple records required	Held	Complete earnings and benefit history

6.7.1 Final past wage loss cannot be calculated

The current chronology does not establish:

- the exact date Turner stopped working;
- whether he received income before month 11;
- whether he used paid leave;
- whether he received disability or wage-continuation benefits;
- the hours and rate paid during restricted duty;
- the date full-time earnings resumed;
- or the total pre- and post-collision payroll.

The month-11 restricted-duty return does not prove exactly 11 months of zero earnings.

6.7.2 Proper calculation structure

A later calculation should separately address:

1. pre-return gross earnings that would have been expected;
2. actual earnings received;
3. restricted-duty earnings;
4. benefits and legally relevant offsets;
5. overtime assumptions;
6. mitigation;
7. and any tax or net-income treatment required by governing law.

Past wage-loss status: Potentially supportable; amount not established.

6.8 PAYROLL AND OVERTIME HISTORY

The approximately 46-hour historical workweek supports examination of overtime. It does not establish the compensation method or the duration over which the average was measured.

6.8.1 Scenario A — All 46 hours modeled at straight time

Inputs

- 46 hours per week
- $35 per hour
- no overtime premium
- 52 weeks per year
- no offsets
- no taxes or benefits

- no present-value adjustment

C6-CALC-003 — Weekly illustration
46 × $35 = **$1,610 per week**

C6-CALC-004 — Annualized illustration
$1,610 × 52 = **$83,720 per year**

Classification: **Alternative calculation scenario — not a verified payroll result**

6.8.2 Scenario B — Forty regular hours and six hours at 1.5 times the hourly rate

Assumption: The six hours above 40 are paid at a 1.5 multiplier.

The assumption is not canonical.

Regular rate:

40 × $35 = $1,400

Assumed overtime rate:

$35 × 1.5 = $52.50

Assumed overtime pay:

6 × $52.50 = $315

C6-CALC-005 — Weekly illustration
$1,400 + $315 = **$1,715 per week**

C6-CALC-006 — Annualized illustration
$1,715 × 52 = **$89,180 per year**

Classification: **Alternative calculation scenario — overtime premium not established**

6.8.3 Scenario comparison

Payroll issue	Scenario A	Scenario B	Required proof	Effect on calculation
Weekly hours	46	46	Payroll history	Same
Base hourly rate	$35	$35	Payroll	Same
Regular hours	All 46	40	Employer compensation policy	Changes weekly pay
Overtime hours	None separately treated	6	Payroll and policy	Adds premium
Overtime rate	None	$52.50 assumed	Payroll	Adds $105 per week over straight-time treatment
Weekly result	$1,610	$1,715	Verified compensation method	$105 difference
Annual result	$83,720	$89,180	Verified weeks and hours	$5,460 difference
Taxes	Excluded	Excluded	Tax methodology	Gross figures only
Benefits	Excluded	Excluded	Benefit records	Understates total compensation if applicable
Offsets	Excluded	Excluded	Payment records	Not a loss calculation
Present value	Not applied	Not applied	Economic method	Current annual illustration only

6.8.4 Limitations

The 46-hour figure may represent an average affected by:

- weeks above and below 46 hours;
- shutdown periods;

- paid leave;
- holidays;
- variable employer demand;
- shift schedules;
- or another compensation method.

The record does not establish:

- guaranteed overtime;
- mandatory overtime;
- whether every week included six overtime hours;
- the overtime premium;
- or the period used to compute the average.

Neither scenario is adopted as Turner’s verified annual income.

6.9 RESTRICTED-DUTY RETURN

Turner returned to restricted duty at approximately month 11. The economic effect of that return cannot be calculated from the present record.

Restricted-duty issue	Current status	Plaintiff use	Defense use	Required source
Return timing	Approximately month 11	Demonstrates lengthy work interruption	Establishes mitigation beginning by month 11	Attendance and payroll
Hours worked	Unresolved	May support reduced earnings	May show meaningful capacity	Payroll and time records
Hourly rate	Unresolved during restricted duty	May show reduction	May show same-rate work	Payroll
Overtime	Unresolved	May support continued loss	Absence cannot be assumed	Payroll and employer testimony
Benefits	Unresolved	May increase claimed loss	Continued benefits may reduce loss	Benefit records
Accommodations	Unresolved	May show reduced capacity	May show successful workplace reintegration	Employer testimony
Attendance	Unresolved	May show ongoing impairment	May show sustained function	Attendance records
Productivity	Unresolved	May support vocational effect	May show adequate performance	Employer records
Duration	Approximately month 11 to month 16 by relative chronology	Defines potential reduced-capacity period	Limits total absence period	Exact dates
Economic difference	Not calculable	Potential partial wage loss	Requires proof of actual shortfall	Complete wage comparison

The restricted-duty return supports mitigation and work ethic. It does not establish whether Turner earned:

- no income;
- partial income;
- full base income;
- overtime;
- benefits;
- or reduced compensation.

Restricted-duty economic effect: UNRESOLVED — no canonical payroll record supplied.

6.10 FULL-TIME SAME-RATE RETURN

Turner returned to full-time employment at the same hourly rate at approximately month 16. Chapters 4 and 5 treat that fact as significant retained-function evidence while preserving claims of pain, permanent impairment, and narrower occupational loss.

Post-return issue	Canonical status	Plaintiff position	Defense position	Missing evidence
Full-time status	Supplied	Return does not equal complete recovery	Strong retained-capacity evidence	Exact schedule and continuity
Same hourly rate	Supplied	Total earnings may still be lower	Base wage restored	Payroll
Weekly hours	Unresolved	Hours or overtime may be reduced	Full-time suggests substantial capacity	Time records
Overtime	Unresolved	Future and present overtime may be limited	No loss established without comparison	Payroll and employer testimony
Physical sustainability	Contested	Work may require greater effort or cause symptoms	Continued work supports functional endurance	Medical and employer records
Attendance	Unresolved	Absences may continue	Stable attendance would weaken loss claim	Attendance records
Accommodations	Unresolved	May show reduced capacity	May be minimal or absent	Employer testimony
Promotion access	Unresolved	Restrictions may limit advancement	No rejected promotion supplied	Personnel records
Job security	Unresolved	Physical restrictions may create risk	Continued employment supports stability	Employer evidence
Earnings trajectory	Unresolved	Growth may be impaired	No actual decline shown	Multi-year payroll
Trade skills	General retained-employability argument	Physical restrictions may narrow options	Skills preserve alternate employment	Vocational evidence

6.10.1 What the return supports

The return is strong evidence that Turner:

- retained substantial employability;
- could resume full-time work;
- mitigated his loss;
- and was not completely occupationally displaced.

6.10.2 What the return does not establish

It does not prove:

- identical weekly hours;
- identical overtime;
- identical annual earnings;
- no accommodations;
- no pain;
- no reduced endurance;
- no promotion loss;
- no reduced labor-market access;
- or no future risk.

6.10.3 Relevant tensions

The economic analysis preserves:

- C4-D002 — claimed industrial limitation versus full-time same-rate work;

- C4-D003 — future overtime loss versus incomplete post-return wage evidence;
- C5-D002 — continuing pain versus work and activity;
- C5-D003 — permanent restriction versus same-rate employment;
- and C5-D008 — claimed industrial limitation versus missing objective work restrictions.

Those are functional and evidentiary tensions, not automatic contradictions.

6.11 FUTURE EARNING-CAPACITY CLAIM

The synthetic assessment includes a disputed plaintiff future-loss range of approximately **$250,000–$425,000**. The range is a party or expert theory, not a canonical economic loss.

Future-loss component	Plaintiff theory	Defense response	Current proof	Required methodology	Status
Future overtime	Physical limits reduce overtime	Post-return overtime is unknown	Historical 46-hour average only	Payroll trend and projection	Held
Promotion opportunities	Restrictions narrow advancement	No denied promotion supplied	None specific	Employer and vocational proof	Held
Alternative employment	Heavy work options reduced	Trade skills preserve options	Occupation and same-rate return	Labor-market analysis	Contested
Heavier industrial work	Permanency limits physical tasks	Exact restrictions not supplied	General physical job description	Functional and job-demand evidence	Held
Physical sustainability	Work may become harder over time	Current full-time work shows capacity	Mixed medical and functional evidence	Longitudinal medical and employer proof	Contested
Labor-market access	Restrictions reduce available jobs	No quantified reduction supplied	No vocational source	Transferable-skills and market analysis	Held
Work-life expectancy	Longer period amplifies loss	No work-life assumption supplied	Turner was 33 at collision	Accepted economic methodology	Held
Retirement age	Plaintiff may assume continued work	No age selected	None	Source-supported assumption	Held
Earnings growth	Future wages may increase	No rate supplied	None	Economic data and method	Held
Fringe benefits	Potential component	No benefit data	None	Employer records and method	Held
Mitigation	Plaintiff retains duty to work within capacity	Full-time work shows substantial mitigation	Actual return supplied	Vocational and earnings evidence	Material defense issue
Present value	Future loss must be translated appropriately if required	No method supplied	None	Economist methodology	Held
Residual earning capacity	Less than pre-collision potential	Same-rate full-time employment remains	Mixed evidence	Before-and-after capacity analysis	Contested

6.11.1 Distinct future-loss theories

A reliable analysis must distinguish:

A. Current earnings loss

Difference between expected and actual earnings during a defined period.

No current post-return shortfall is established.

B. Reduced future overtime

Difference between expected future overtime and actual or projected overtime.

Historical overtime alone does not establish future continuation.

C. Reduced advancement opportunity

Loss associated with promotions, supervisory roles, certifications, or wage progression.

No missed opportunity is supplied.

D. Reduced labor-market access

Reduction in the range of jobs Turner can perform.

This may exist even where current earnings remain unchanged, but it requires vocational analysis.

E. Risk of future work interruption

Possibility that symptoms, surgery, or progression will cause future absence.

That theory depends on medical probability, timing, mitigation, and economic methodology.

6.11.2 Missing model foundation

The $250,000–$425,000 range lacks:

- an approved vocational source;
- an approved economist source;
- work-life duration;
- retirement assumption;
- earnings growth;
- discount rate;
- post-return payroll trend;
- employer testimony;
- labor-market data;
- and present-value calculation.

Future earning-capacity range: Held pending record, vocational methodology, economic methodology, and attorney review.

6.12 LIFETIME OVERTIME ASSUMPTIONS

Lifetime overtime is a separate hard economic gate.

Overtime assumption	Current support	Risk	Required evidence	Status
Six hours derived from 46-hour average	Arithmetic inference	Average may not represent every week	Payroll history	Illustrative only
Averaging period	Not supplied	Short or atypical period may distort result	Multi-year payroll	Unresolved
Historical consistency	Not supplied	Overtime may fluctuate	Payroll and employer evidence	Unresolved
Employer demand	Not supplied	Overtime may depend on business cycles	Employer testimony	Unresolved
Voluntary or mandatory	Not supplied	Availability differs from willingness	Policy and testimony	Unresolved
Premium rate	Not supplied	Materially changes calculation	Payroll	Unresolved
Post-return overtime	Not supplied	No actual ongoing loss established	Payroll	Unresolved
Industry cycles	Not supplied	Long-term projection may overstate continuity	Economic and industry data	Unresolved
Promotion effect	Not supplied	Promotion may increase or reduce overtime	Employer evidence	Unresolved
Retirement	Not supplied	Lifetime duration cannot be calculated	Supported work-life assumption	Unresolved
Disability risk	General medical issues only	Risk is not certainty	Medical and vocational opinion	Held
Mitigation	Turner works full time	May reduce projected loss	Actual earnings history	Material defense evidence

Historical overtime supports examination of past earning patterns. It does not establish six overtime hours every week for Turner's entire remaining work life.

6.12.1 Scenario 1 — No future overtime loss

Field	Scenario treatment
Assumption	Turner experiences no compensable future overtime reduction
Formula required	None beyond verified actual earnings comparison
Evidence needed	Post-return payroll and employer testimony
Permitted use	Defense boundary scenario
Prohibited use	Treating the scenario as established without records

6.12.2 Scenario 2 — Partial future overtime reduction

Field	Scenario treatment
Assumption	Some portion of historical overtime is lost
Formula required	Verified overtime hours × verified premium × supported duration, adjusted for actual earnings and present value
Evidence needed	Payroll, restrictions, employer demand, vocational opinion, economic method
Permitted use	Sensitivity analysis
Prohibited use	Selecting a percentage without labeling it as an assumption

No reduction percentage is selected.

6.12.3 Scenario 3 — Complete loss of six weekly overtime hours

Field	Scenario treatment
Assumption	Turner loses all six hours above the 40-hour threshold
Formula required	Six hours × supported premium × supported weeks × supported work-life duration
Evidence needed	Proof that six hours were consistently available and would continue
Permitted use	Plaintiff high-side sensitivity
Prohibited use	Treating six hours as guaranteed for life

No lifetime total is calculated because the record lacks:

- duration;
- retirement age;
- earnings growth;
- premium verification;
- mitigation;
- discount rate;
- and present-value method.

6.13 FUTURE MEDICAL-CARE COMPONENTS

Chapter 5 separates potentially supportable hardware-related care from contingent knee replacement.

Future-care component	Medical status	Modeled cost	Economic status	Required foundation	Inclusion state
Hardware removal	Probable or supportable within synthetic expert record	$28,000–$42,000	Derived cost model	Probability, timing, procedure, source data	Potentially supportable
Routine follow-up and imaging	Generally modeled	$6,000–$10,000	Derived cost model	Frequency, duration, medical direction, pricing	Potentially supportable
Broader supported band	Stated as bounded future care	$35,000–$65,000	Unreconciled aggregate model	Itemization and source explanation	Held pending reconciliation
Knee replacement	Possible or contingent	$125,000–$180,000	High-side derived model	Medical probability, timing, causation, cost	Held; excluded from supported care

6.13.1 Visible component arithmetic

C6-CALC-007 — Lower component total

$28,000 + $6,000 = **$34,000**

C6-CALC-008 — Upper component total

$42,000 + $10,000 = **$52,000**

The visible components therefore total approximately **$34,000–$52,000**.

6.13.2 Comparison with broader band

The stated broader band is approximately **$35,000–$65,000**.

Lower-end difference:

$35,000 − $34,000 = **$1,000**

Upper-end difference:

$65,000 − $52,000 = **$13,000**

C6-CALC-009 — Reconciliation status

The broader range exceeds the visible component range by:

- approximately $1,000 at the lower end;
- approximately $13,000 at the upper end.

UNRESOLVED — verification required: The broader future-care band exceeds the visible component total and must be itemized before reliance.

Possible explanations may include:

- postoperative follow-up;
- rehabilitation;
- recovery-related services;
- additional imaging;
- unlisted physician-directed care;
- or another modeling adjustment.

None is selected as the explanation.

6.13.3 Knee-replacement separation

The $125,000–$180,000 knee-replacement range remains a held scenario.

It must not be:

- added to supported care;
- combined with hardware removal without a separate line;
- presented as probable;

- or used in a final total before the medical predicate is established.

C6-CALC-010 — Knee-replacement model

Amount: $125,000–$180,000
Classification: **Held derived calculation based on disputed medical predicate**
Present value: Not applied
Timing: Unresolved
Recoverability: Unresolved
Export state: Excluded from supported-care output

6.14 SUPPORTED, CONTESTED, AND HELD DAMAGES

6.14.1 Supported as synthetic accounting or wage facts—not as recoverable amounts

Damages item	Amount or range	Classification	Supporting evidence	Countervailing evidence	Current state	Required resolution
Gross billed charges	$412,640	Canonical synthetic financial fact	SYN-BILL-001	Reasonable value and recoverability unresolved	Accounting fact supported	Itemization and legal review
Accepted amounts	$247,800	Canonical synthetic financial fact	SYN-BILL-001	Not exclusive value measure	Accounting fact supported	Adjustment basis and legal use
Insurance payments	$211,500	Modeled financial fact	SYN-BILL-001	Payor and plan records absent	Accounting model supported	Payment ledger
Responsibility or lien figure	$36,300	Modeled combined amount	Arithmetic reconciliation	Legal classification unresolved	Accounting model only	Lien and balance records
Hourly rate	$35	Canonical wage fact	SYN-WAGE-001	Effective dates not supplied	Baseline supported	Payroll
Historical hours	46 per week	Canonical wage baseline	SYN-WAGE-001	Averaging period and premium unresolved	Baseline supported	Payroll history
Restricted-duty return	Month 11	Canonical timeline fact	SYN-WAGE-001	Earnings unknown	Timeline supported	Payroll
Full-time same-rate return	Month 16	Canonical timeline fact	SYN-WAGE-001	Hours and overtime unknown	Timeline supported	Payroll

6.14.2 Potentially supportable with additional foundation

Damages item	Amount or range	Classification	Supporting evidence	Countervailing evidence	Current state	Required resolution
Past wage loss	Not calculated	Potential economic loss	Rate, historical hours, return chronology	Earnings and offsets incomplete	Potentially supportable	Full payroll and benefits
Hardware removal	$28,000–$42,000	Expert-dependent derived model	Retained hardware and future-care opinion	Timing, procedure, cost source incomplete	Potentially supportable	Medical and cost foundation
Follow-up and imaging	$6,000–$10,000	Expert-dependent derived model	Continued orthopedic care may be reasonable	Frequency and duration unresolved	Potentially supportable	Physician plan and pricing
Broader future-care band	$35,000–$65,000	Aggregate model	Existing future-care assessment	Does not reconcile with visible components	Held pending itemization	Component explanation
Narrow earning-capacity effect	Unquantified	Party and expert contention	Physical work, residual limitations	Same-rate full-time return	Contested	Employer and vocational evidence

6.14.3 Contested damages

Damages item	Amount or range	Classification	Principal dispute
Reasonable medical value	Plaintiff $340,000–$390,000; defense $225,000–$255,000	Competing expert opinions	Methodology and permitted evidence
Impairment-related economic effect	12% versus 7% medical ratings	Expert-dependent	Impairment does not establish earning loss
Functional limitation	Unquantified	Mixed evidence	Permanent symptoms versus retained work
Post-return overtime loss	Unquantified	Party contention	No payroll comparison
Promotion or job-option loss	Unquantified	Party contention	No identified missed opportunity
Labor-market access	Unquantified	Vocational issue	No vocational source supplied

6.14.4 Held damages

Damages item	Amount or range	Reason held
Final lien amount	$36,300 modeled	Enforceability and classification unresolved
Final past wage loss	Not calculated	Exact absence, earnings, restricted duty, benefits, offsets absent
Plaintiff future earning-capacity model	$250,000–$425,000	Vocational and economic foundation absent
Lifetime overtime loss	Not calculated	Duration, premium, availability, mitigation, present value absent
Knee replacement	$125,000–$180,000	Medical probability and timing not established
Final economic damages total	None	Supported, contested, and held components cannot be merged
Noneconomic damages	None	Outside economic calculation
Settlement or reserve value	None	Reserved for later assessment

C6-CALC-011 — Plaintiff future earning-capacity model

Amount: $250,000–$425,000
Classification: **Held party or expert economic contention**
Formula: Not supplied
Duration: Not supplied
Present value: Not supplied
Residual earning capacity: Not calculated
Export state: Held

6.15 CALCULATION AND ASSUMPTION REGISTER

Calculation ID	Calculation	Inputs	Formula	Result	Classification	Missing input	Change sensitivity	Export state
C6-CALC-001	Billed less accepted	$412,640; $247,800	$412,640 − $247,800	$164,840	Accounting reconciliation	Adjustment category	Changes if ledger totals change	Attorney review required
C6-CALC-002	Accepted less payments	$247,800; $211,500	$247,800 − $211,500	$36,300	Accounting reconciliation	Legal classification	Changes if payment ledger changes	Attorney review required
C6-CALC-003	Straight-time weekly illustration	46 hours; $35	46 × $35	$1,610	Alternative scenario	Compensation method	Highly sensitive to hours and premium	Internal synthetic use only
C6-CALC-004	Straight-time annual illustration	$1,610; 52 weeks	$1,610 × 52	$83,720	Alternative scenario	Weeks actually worked	Sensitive to leave and variable hours	Internal synthetic use only
C6-CALC-005	Overtime-premium weekly illustration	40 hours at $35; 6 at $52.50	$1,400 + $315	$1,715	Alternative scenario	Premium verification	Sensitive to overtime rate	Internal synthetic use only
C6-CALC-006	Overtime-premium annual illustration	$1,715; 52 weeks	$1,715 × 52	$89,180	Alternative scenario	Historical consistency	Sensitive to weeks and availability	Internal synthetic use only
C6-CALC-007	Lower visible future-care total	$28,000; $6,000	Addition	$34,000	Derived calculation	Component completeness	Changes with care components	Attorney review required
C6-CALC-008	Upper visible future-care total	$42,000; $10,000	Addition	$52,000	Derived calculation	Component completeness	Changes with care components	Attorney review required
C6-CALC-009	Visible components versus broader band	$34,000–$52,000; $35,000–$65,000	Range comparison	$1,000 lower gap; $13,000 upper gap	Reconciliation issue	Missing care components	Material to future-care range	Held
C6-CALC-010	Knee-replacement scenario	$125,000–$180,000	No further calculation	$125,000–$180,000	Held model	Probability, timing, cost source	High exposure sensitivity	Excluded from supported-care output
C6-CALC-011	Plaintiff future earning-capacity scenario	$250,000–$425,000	Formula not supplied	$250,000–$425,000	Held model	Entire methodology	High exposure sensitivity	Held
C6-CALC-012	Plaintiff reasonable-value midpoint	$340,000; $390,000	Sum ÷ 2	$365,000	Descriptive calculation	Expert method	Does not change range	Internal synthetic use only
C6-CALC-013	Defense reasonable-value midpoint	$225,000; $255,000	Sum ÷ 2	$240,000	Descriptive calculation	Expert method	Does not change range	Internal synthetic use only
C6-CALC-014	Midpoint difference	$365,000; $240,000	Subtraction	$125,000	Descriptive comparison	Legal and expert foundation	Shows dispute magnitude only	Internal synthetic use only

6.15.1 Assumption-change table

Changed assumption	Prior assumption	New assumption	Calculations affected	Directional effect	Canonical facts unchanged
Wage treatment	All 46 hours at $35	Six hours at assumed 1.5 premium	C6-CALC-003–006	Raises weekly illustration by $105	Rate and 46-hour baseline
Historical hours	46 hours	Verified lower post-return hours	Future wage scenarios	Reduces projected overtime loss or may show actual loss	Historical baseline
Restricted-duty earnings	Zero assumed	Verified partial earnings	Past wage loss	Reduces gross lost-wage estimate	Return date
Restricted-duty earnings	Unknown	Verified full base earnings	Past wage loss	Limits loss primarily to hours or overtime	Return date
Future care	Visible components only	Broader $35,000–$65,000 band	C6-CALC-007–009	Raises upper scenario	Component figures
Knee replacement	Excluded	Conditionally included	C6-CALC-010	Raises future-care model by $125,000–$180,000	Contingent status remains unless formally changed
Overtime loss	Zero	Partial reduction	Future earning capacity	Creates narrower future-loss scenario	Historical hours
Overtime loss	Partial	Complete six-hour loss	Future earning capacity	Raises plaintiff scenario	No guarantee created
Medical value	Defense range	Plaintiff range	Past medical scenario	Raises medical-damages model	Billed and accepted totals

No assumption change amends the canonical record unless formally approved.

ECONOMIC CONTRADICTION AND RECONCILIATION REGISTER

Economic issue ID	Existing cross-reference	Proposition A	Proposition B	Classification	Required resolution	Downstream effect
C6-D001	D-004	Gross charges equal $412,640	Accepted amounts equal $247,800	Different accounting categories; not contradiction	Ledger and adjustment records	Medical-value analysis
C6-D002	D-004	Accepted amount is $247,800	Experts value services at materially different ranges	Expert and accounting tension	Methodology and legal treatment	Past medical exposure
C6-D003	D-004	Defense reasonable-value range is $225,000–$255,000	Accepted amount of $247,800 falls inside range	Correlation, not proof	Defense methodology	Expert credibility
C6-D004	F-DAM-003–004	Accepted less paid equals $36,300	$36,300 is described as responsibility or liens	Arithmetic reconciliation; legal classification unresolved	Ledger, lien, and plan records	Settlement payoff
C6-D005	D-008	Turner historically averaged 46 hours	Overtime premium is unverified	Economic assumption gap	Payroll and policy	Past and future wage calculations
C6-D006	F-WAGE-003	Turner returned to restricted duty at month 11	Restricted-duty earnings are unknown	Economic support gap	Payroll and employer evidence	Past wage loss
C6-D007	C4-D002; C5-D003	Turner claims reduced future earning capacity	Turner returned full-time at same hourly rate	Economic or functional tension to test — not established contradiction	Hours, accommodations, vocational evidence	Future-loss range
C6-D008	D-008; C4-D003	Historical overtime may support past pattern	Lifetime continuation is unproven	Extrapolation risk	Long-term payroll, employer, economic method	Future overtime model
C6-D009	C5-D005	Visible care totals $34,000–$52,000	Broader band is $35,000–$65,000	Accounting reconciliation defect	Itemized components	Future-care release
C6-D010	C5-D006; D-007	Hardware care may be supportable	Knee replacement remains contingent	Different medical support levels	Separate probability and cost proof	Prevents improper bundling

Established economic contradictions: None beyond competing expert opinions.

Accounting, support, or assumption tensions: Ten.

CONSOLIDATED ECONOMIC VERIFICATION REGISTER

Economic proof item	Present status	Source required	Gate affected	Analytical effect
Itemized bills	UNRESOLVED — record support required	Complete provider bills	Fact support	Verifies gross total
Medical coding	UNRESOLVED — verification required	Code-level data and review	Expert methodology	Tests duplication and reasonableness
Payment ledger	UNRESOLVED — record support required	Provider and payor ledger	Accounting	Verifies accepted and paid amounts
Adjustment records	UNRESOLVED — record support required	Contractual and administrative adjustment data	Accounting / evidence	Classifies $164,840 difference
Explanations of benefits	UNRESOLVED — record support required	Complete EOB set	Payment / collateral source	Reconciles payment categories
Patient balances	UNRESOLVED — record support required	Current provider statements	Damages / settlement	Verifies responsibility
Lien notices	UNRESOLVED — record support required	Complete lien documents	Lien enforceability	Determines legal claims
Plan documents	UNRESOLVED — record support required	Health-plan terms	Subrogation	Determines reimbursement rights
Payoff statements	UNRESOLVED — record support required	Current payoff letters	Settlement	Establishes expected payoff
Billing-expert data	UNRESOLVED — verification required	Complete reliance materials	Expert support	Tests reasonable-value ranges
Billing methodology	UNRESOLVED — verification required	Reports and calculations	Expert admissibility	Explains ranges
Payroll	UNRESOLVED — record support required	Multi-year payroll	Wage loss	Verifies rate, hours, overtime
Tax records	UNRESOLVED — record support required	Relevant returns and wage forms	Economic support	Corroborates earnings
Overtime history	UNRESOLVED — record support required	Payroll and employer records	D-008	Tests historical consistency
Disability payments	UNRESOLVED — record support required	Benefit records	Offsets	Prevents overstatement
Paid leave	UNRESOLVED — record support required	Employer records	Offsets	Identifies continued compensation
Restricted-duty earnings	UNRESOLVED — record support required	Payroll	Past wage loss	Determines partial loss
Post-return earnings	UNRESOLVED — record support required	Payroll	Future capacity	Tests actual shortfall
Employer testimony	UNRESOLVED — record support required	Employer witness	Function / wages	Defines duties and opportunity
Job-demand evidence	UNRESOLVED — record support required	Job description and testimony	Vocational	Links restrictions to work
Vocational analysis	UNRESOLVED — source identifier and source record not supplied	Qualified vocational report	Future earning capacity	Tests labor-market access
Economist analysis	UNRESOLVED — source identifier and source record not supplied	Qualified economic report	Future damages	Supplies duration and present value
Work-life assumptions	UNRESOLVED — verification required	Accepted data and expert method	Future damages	Defines projection period
Present-value method	UNRESOLVED — verification required	Economist methodology	Future damages	Required for future-loss total
Future-care predicates	UNRESOLVED — record support required	Treating and defense opinions	Medical / damages	Determines inclusion
Life-care source records	UNRESOLVED — source identifier and source record not supplied	Physician-directed plan	Future care	Prevents planner-created care

Economic proof item	Present status	Source required	Gate affected	Analytical effect
Cost support	UNRESOLVED — verification required	Itemized market data	Damages	Verifies future-care figures
Indiana authority	UNRESOLVED — controlling authority required	Current official authority	Standard alignment	Determines admissibility and recoverability
Attorney review	UNRESOLVED — verification required	Designated attorney	Replay / export	Required before reliance

ECONOMIC SOURCE-TO-CALCULATION AUDIT TABLE

Fact ID	Economic proposition	Source ID	Classification	Calculation use	Dispute status	Prohibited inference	Export state
F-DAM-001	Gross billed charges are approximately $412,640	SYN-BILL-001	Canonical synthetic financial fact	C6-CALC-001	Recoverability unresolved	Automatic reasonable value	Attorney review required
F-DAM-002	Accepted amounts are approximately $247,800	SYN-BILL-001	Canonical synthetic financial fact	C6-CALC-001–002	Legal use unresolved	Exclusive reasonable value	Attorney review required
F-DAM-003	Insurance payments are approximately $211,500	SYN-BILL-001	Modeled financial fact	C6-CALC-002	Collateral-source treatment unresolved	Automatic reduction or admissibility	Held
F-DAM-004	Responsibility or liens are approximately $36,300	SYN-BILL-001	Modeled combined amount	Reconciliation	Enforceability unresolved	Valid lien or debt	Held
F-DAM-005	Defense reasonable-value range is $225,000–$255,000	SYN-BILL-001	Defense reasonable-value opinion	C6-CALC-013–014	Contested	Undisputed value	Held
F-DAM-006	Plaintiff reasonable-value range is $340,000–$390,000	SYN-BILL-001	Plaintiff reasonable-value opinion	C6-CALC-012–014	Contested	Undisputed value	Held
F-WAGE-001	Hourly rate approximately $35	SYN-WAGE-001	Canonical wage fact	C6-CALC-003–006	Payroll foundation pending	Exact annual income	Attorney review required
F-WAGE-002	Historical workweek approximately 46 hours	SYN-WAGE-001	Canonical wage baseline	C6-CALC-003–006	Duration and premium unresolved	Six guaranteed lifetime overtime hours	Attorney review required
F-WAGE-003	Restricted-duty return around month 11	SYN-WAGE-001	Canonical timeline fact	Past-loss boundary	Earnings unresolved	Eleven months of zero income	Attorney review required
F-WAGE-004	Full-time same-rate return around month 16	SYN-WAGE-001	Canonical timeline fact	Capacity and mitigation	Hours and overtime unresolved	No future loss or no pain	Attorney review required
F-WAGE-005	Plaintiff alleges reduced overtime, promotion, and job options	Claimant and unassigned vocational materials	Party economic contention	C6-CALC-011	Contested	Established future loss	Held
F-WAGE-006	Defense contends substantial earning capacity remains	SYN-WAGE-001 and unassigned vocational materials	Attorney argument / expert issue	Defense scenario	Contested	Complete absence of loss	Internal synthetic use only
F-MED-011	MMI at approximately month 19	Orthopedic sources	Expert-supported synthetic fact	Future-loss timing context	Foundation pending	End of all future care	Held
F-MED-012	Plaintiff impairment rating is 12%	SYN-ORTH-PLF-001	Expert opinion	Functional context	Contested	12% wage reduction	Held
F-MED-013	Defense impairment rating is 7%	SYN-ORTH-DEF-001	Expert opinion	Functional context	Contested	7% wage reduction	Held
F-MED-014	Scars and activity-dependent limp remain	Medical and testimony sources	Objective condition supported; extent disputed	Capacity context	Extent disputed	Automatic earning loss	Attorney review required
F-MED-015	Hardware removal modeled at $28,000–$42,000	Orthopedic sources	Expert-dependent derived model	C6-CALC-007–009	Probability and cost incomplete	Established recoverable care	Held
F-MED-016	Follow-up and imaging modeled at $6,000–$10,000	Orthopedic sources	Expert-dependent derived model	C6-CALC-007–009	Foundation unresolved	Automatic lifetime treatment	Held
F-MED-017	Knee replacement is possible or contingent	Orthopedic sources	Competing expert proposition	C6-CALC-010	Hard gate unresolved	Probable future care	Held
F-MED-018	Knee-replacement cost modeled at $125,000–$180,000	Future-care materials	Held derived model	C6-CALC-010	Medical predicate unresolved	Supported future care	Excluded from supported-care output
F-PERS-003	Turner is an industrial maintenance technician	SYN-WAGE-001	Canonical synthetic fact	Vocational context	Job duties incomplete	Specific restrictions or loss	Attorney review required
F-PERS-004	Stable work history; work-oriented presentation assessment	SYN-WAGE-001; SYN-DEP-PLF-001	Fact plus analytical assessment	Credibility and mitigation	Demeanor unverified	Automatic economic multiplier	Internal synthetic use only
F-PERS-005	Travel, fishing, and light projects depicted	SYN-SOC-001	Contextual evidence	Capacity calibration	Authentication unresolved	No pain or no loss	Held
F-PERS-006	No return to motorcycling	Claimant and social sources	Canonical lay proposition	Noneconomic context only	Reason unresolved	Economic wage loss	Excluded from economic calculation

CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Economic Damages and Medical-Expense Record
Artifact version	Synthetic Economic Damages and Medical-Expense Record v1.0
Controlling versions	Chapters 1–5 v1.0
Sources expanded	SYN-BILL-001; SYN-WAGE-001
Related sources	Medical, orthopedic, claimant, spouse, and social-media synthetic sources
Facts changed	None
New canonical facts	None
Billing figures reconciled arithmetically	Four principal figures; two subtraction calculations
Legal billing classifications verified	No
Reasonable-value opinions	Two competing ranges preserved
Wage calculations created	Four principal weekly and annual illustrations
Verified past wage loss	Not established
Future earning-capacity model	$250,000–$425,000 held
Potentially supported future-care components	Hardware removal; follow-up and imaging
Visible future-care component total	$34,000–$52,000
Broader stated future-care band	$35,000–$65,000
Future-care reconciliation	Incomplete
Held future-care component	Knee replacement; $125,000–$180,000
Economic contradiction or tension entries	Ten
Calculation register entries	Fourteen
Attorney reviewer	Unassigned
Review status	Not reviewed
Replay status	Structural only
Export status	Attorney-review demonstration only
Carrier-facing status	Held
Mediation reliance status	Held
Trial-facing status	Held
VerdictReady	No
FilingReady	Not applicable

VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial settlement and mediation evaluation

Runtime Mode: Defense-side economic damages and medical-expense review

Case / Motion / Trial Issue: Medical-expense valuation, billing reconciliation, liens, past wage loss, future earning capacity, overtime assumptions, and future medical costs

Preliminary Result

Synthetic economic-damages and medical-expense record established for demonstration use.

VerdictReady: No

FilingReady: Not applicable

Gatekeeper Findings

Runtime

Demonstration use only.

No billing record, EOB, lien, payroll statement, tax record, vocational report, economist report, life-care plan, or cost source is authenticated or admitted.

Input normalization

Pass for the canonical billing, wage, and future-care inputs.

The chapter separately maps:

- gross billed charges;
- accepted amounts;
- modeled payments;
- modeled responsibility or liens;
- competing reasonable-value opinions;
- hourly rate;
- historical hours;
- return-to-work chronology;
- future earning-capacity contentions;
- and future-care components.

Contradiction

Accounting differences, expert disputes, and assumption tensions are preserved.

The chapter does not treat:

- gross and accepted amounts as contradictory;
- accepted and reasonable-value amounts as interchangeable;
- payments and liens as interchangeable;
- or work return and residual impairment as irreconcilable.

Evidence admissibility

Not verified.

Authority / fact support

Synthetic figures are mapped to existing fact and source identifiers. The underlying billing, payment, lien, payroll, tax, vocational, economic, and life-care records are absent.

Claim / defense elements

Economic categories are identified. Recoverable amounts are not established.

Past medical value remains contested. Past wage loss is potentially supportable but uncalculated. Future earning capacity remains held. Future medical care is separated by support level.

Standard alignment

Current Indiana verification required.

No conclusion is issued regarding:

- billed versus accepted evidence;
- collateral-source treatment;
- liens;
- recoverability;
- present value;
- or future-damages certainty.

Damages

The chapter establishes arithmetic transparency but not a final damages total.

Supported accounting facts, potentially supportable losses, contested opinions, and held models remain separated.

Jury instructions

Not verified.

Appellate record

Not applicable to the present synthetic pretrial posture.

Replay / audit

Formula, input, assumption, source, dispute, and export mapping is established.

Production replay and attorney authorization remain incomplete.

Export

Attorney-review demonstration only.

No carrier-, reserve-, settlement-, mediation-, filing-, or trial-facing reliance release is authorized.

Failed Gates / Runtime State

VerdictReady: No

Failed or incomplete gates: Billing support, payment support, lien support, wage support, vocational support, economic methodology, future-care support, admissibility, authority verification, attorney review, replay validation, and export authorization.

Runtime state: REVIEW REQUIRED / EXPORT HELD

Export effect: No reliance release authorized.

Required Fixes Before VerdictReady

A comparable real-matter economic assessment would require:

1. Authenticated itemized bills and coding
2. Complete payment and adjustment ledgers
3. Explanations of benefits
4. Accepted-amount foundation
5. Lien, balance, plan, and subrogation records
6. Billing-expert reports, data, and methodology

7. Authenticated payroll and tax records
8. Exact work-absence evidence
9. Restricted-duty earnings
10. Disability, paid-leave, and other offset records
11. Post-return hours and overtime history
12. Employer testimony
13. Job-demand evidence
14. Vocational analysis
15. Economist analysis
16. Work-life and present-value methodology
17. Physician-directed future-care support
18. Itemized future-care cost foundation
19. Reconciliation of the $35,000–$65,000 future-care band
20. Current Indiana authority
21. Attorney review
22. Replay validation
23. Express export authorization

Adversarial Risk

Gross-charge anchoring

Plaintiff may present $412,640 as the principal medical-expense anchor. Treating it as automatically recoverable would exceed the present record.

Accepted-amount overreach

The defense may emphasize $247,800. Treating it as the exclusive reasonable value would require legal and expert support not presently supplied.

Payment and collateral-source risk

The modeled $211,500 payment amount may have restricted evidentiary use. It should not appear in trial-facing material without current legal review.

Lien confusion

The $36,300 arithmetic balance may be described incorrectly as a valid lien, patient debt, or settlement payoff. Each requires separate proof.

Expert-method opacity

Both reasonable-value ranges may appear selected rather than derived unless the experts disclose their data, coding review, geographic basis, and treatment of billed, accepted, and paid amounts.

Zero-earnings assumption

The month-11 restricted-duty return does not establish eleven months of zero income. A past-loss model using that assumption would overstate the present record.

Overtime-premium assumption

The 1.5 multiplier is illustrative only. Using it without payroll support would silently add a material economic fact.

Lifetime-overtime extrapolation

Six hours above a 40-hour threshold cannot be projected through an entire work life without evidence of consistency, demand, duration, mitigation, and present value.

Same-rate-return overstatement

Same-rate full-time work materially limits the future-loss theory. It does not conclusively eliminate reduced overtime, advancement, labor-market access, or future interruption.

Impairment conversion

Neither the 12% nor 7% impairment rating may be converted directly into an earnings-loss percentage.

Future-care bundling

Hardware removal, follow-up, and knee replacement have different support levels. Combining them would create a misleading total.

Possible-care overstatement

The knee-replacement scenario remains contingent. Presenting it as expected care would overstate the medical and economic record.

Evidentiary Issues

The unresolved evidentiary issues include:

- billing authentication;
- business-record foundation;
- coding;
- medical necessity;
- reasonable value;
- billed, paid, accepted, adjusted, or written-off amounts;
- collateral-source treatment;
- patient balances;
- liens;
- subrogation;
- payroll authentication;
- tax records;
- employer foundation;
- vocational methodology;
- economic methodology;
- work-life expectancy;
- present value;
- medical probability;
- life-care reliance;
- cost data;
- and demonstrative accuracy.

No final Indiana-law conclusion is made in this chapter.

Confidence / Hallucination Risk

Confidence in consistency with Chapters 1–5: High

Confidence in arithmetic calculations: High

Confidence in legal recoverability: Not determinable

Confidence in real-world applicability: Not determinable

Hallucination risk if billing categories, adjustment character, lien status, overtime premium, restricted-duty earnings, benefits, offsets, work-life duration, retirement age, discount rate, or future-care components are invented: High

Hallucination risk if the accepted amount is treated as exclusive reasonable value: High

Hallucination risk if the knee-replacement model is included in supported care: High

Attorney-review status: Not reviewed

Release status: Held

FINAL CHAPTER STATUS

The synthetic billing reconciliation, reasonable-value comparison, wage-input register, overtime illustrations, restricted-duty analysis, full-time-return analysis, future earning-capacity framework, lifetime-overtime gate, future-care calculation, damages classifications, contradiction register, and calculation audit are established.

No canonical fact was added or changed.

The medical-expense figures reconcile arithmetically but not legally or documentarily. Past wage loss is potentially supportable but cannot be calculated from the current record. Same-rate full-time employment provides substantial defense leverage while leaving narrower earning-capacity issues unresolved. Hardware removal and follow-up may be supportable with proper medical and cost foundation. The broader $35,000–$65,000 future-care band remains unreconciled. Knee replacement and the $250,000–$425,000 future earning-capacity model remain held.

VerdictReady: No
Runtime state: REVIEW REQUIRED / EXPORT HELD
Attorney review required.

CHAPTER 7

EVIDENTIARY AND INDIANA AUTHORITY OVERLAY

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Claimant:	Michael Turner, synthetic plaintiff
Artifact designation:	Synthetic Indiana Evidence and Authority Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Controlling driver-testimony source:	Synthetic Driver Deposition Record v1.0
Controlling claimant-testimony source:	Synthetic Claimant and Spouse Testimony Record v1.0
Controlling medical source:	Synthetic Medical, Causation, and Permanency Record v1.0
Controlling economic source:	Synthetic Economic Damages and Medical-Expense Record v1.0
Legal research cutoff:	August 3, 2026
Jurisdiction researched:	Indiana
Court level emphasized:	Indiana Supreme Court and Indiana Court of Appeals
BriefWise legal-integrity review:	Active for authority, citation, quotation, jurisdiction, posture, treatment, and jury-instruction control
Facts changed:	None
New canonical facts created:	None
New legal propositions created:	Only as supported by the authorities identified below
Release status:	Attorney-review demonstration only

SYNTHETIC EVIDENTIARY AND INDIANA-AUTHORITY DEMONSTRATION — NOT A LEGAL OPINION, COURT RULING, MOTION, BRIEF, JURY-INSTRUCTION SUBMISSION, OR ADMISSIBILITY DETERMINATION.

The matter and underlying evidence are synthetic. Legal authority is researched solely for demonstration and attorney-review purposes. No evidentiary result is final without an actual exhibit, witness, offer of proof, objection, evidentiary purpose, foundation, and court ruling.

Admissibility depends on purpose, foundation, form, timing, completeness, and the evidence actually offered. A correct general legal proposition may not resolve a record-specific issue. Research is current only through August 3, 2026.

VerdictReady: No — evidentiary and record verification remain incomplete.

FilingReady: Not yet determinable — no specific filing, complete record-citation set, comprehensive citator report, or attorney-approved authority package has been identified.

This chapter follows the submitted Chapter 7 drafting contract and supplements but does not amend Chapters 1–6. The prior chapters preserve the governing facts, source classifications, collision gaps, testimony boundaries, medical disputes, economic calculations, and unresolved items used in this legal overlay.

7.1 AUTHORITY-CONTROL NOTICE

7.1.1 Research hierarchy

The current Indiana Rules of Court published by the Indiana Judicial Branch are current as of July 1, 2026. The 2026 Indiana Code published by the Indiana General Assembly is updated through the 2026 regular session. Those official sources control over summaries, archived rule versions, and secondary descriptions. (Rules Incourts)

The authority hierarchy used here is:

1. Indiana Supreme Court
2. Indiana Court of Appeals
3. Current Indiana statutes
4. Current Indiana Rules of Evidence and Trial Rules
5. Current Indiana Jury Rules
6. Officially verified Indiana model civil instructions
7. Federal authority only where federal law governs

Indiana Court of Appeals authority is precedential but remains subordinate to Indiana Supreme Court authority and later controlling statutory or rule changes.

7.1.2 Official-opinion limitation

The Indiana Judicial Branch's appellate-decision portal states that posted opinions are informational and that official copies are available from the Appellate Clerk or the official reporter. The historic cases used below were reviewed through publicly accessible opinion copies and reporter metadata, but complete official-copy and commercial-citator confirmation has not been completed. (Indiana Courts)

UNRESOLVED — verification required: Comprehensive citator review not completed.

Accordingly, the legal analysis is attorney-reviewable but not FilingReady.

7.1.3 Authority-control table

Authority-control issue	Chapter protocol	Failure consequence
Official source	Use official Indiana rule, statute, or opinion source whenever available	Hold proposition
Citation	Use canonical reporter or rule citation	Filing-facing use prohibited if unverified
Pinpoint	Identify page, paragraph, section, or rule subdivision	Proposition held if material pinpoint is missing
Current treatment	Check amendments, later cases, and statutory changes	Negative-treatment gate remains open
Jurisdiction	Prefer controlling Indiana authority	Foreign-law contamination blocks release
Procedural posture	Match trial, interlocutory, post-trial, or appellate posture	Application classified as unresolved
Quotation fidelity	Quote only reviewed source language and only when necessary	Quote removed or held
Proposition scope	State only the rule actually supported	Overbroad proposition rejected
Record predicate	Identify exhibit, witness, purpose, and foundation	No record-specific admissibility conclusion
Attorney approval	Require designated Indiana counsel	Export remains held

No proposition becomes FilingReady merely because a single case supports it.

7.1.4 Preservation update effective July 1, 2026

Current Indiana Evidence Rule 103 materially affects motion-in-limine planning. When the court makes a **definitive ruling on the record**, including a definitive motion-in-limine ruling, the party need not renew the objection or offer of

proof to preserve the issue. A provisional, conditional, or deferred ruling should not be treated as definitive; the proponent or opponent should obtain clarification and make the necessary trial objection or offer of proof. Rule 103 also requires a timely, specific objection to admitted evidence and an offer of proof for excluded evidence unless its substance is apparent. (Rules Incourts)

This July 1, 2026 rule controls over older Indiana decisions stating categorically that a motion-in-limine ruling never preserves error.

7.2 BILLED VERSUS ACCEPTED MEDICAL AMOUNTS

7.2.1 Turner record

The economic record preserves:

- gross billed charges of approximately **$412,640**;
- accepted amounts of approximately **$247,800**;
- modeled insurance payments of approximately **$211,500**;
- a modeled responsibility-or-lien amount of approximately **$36,300**;
- plaintiff reasonable-value opinion of approximately **$340,000–$390,000**;
- and defense reasonable-value opinion of approximately **$225,000–$255,000**.

It also preserves the $164,840 arithmetic difference between billed and accepted amounts and the $36,300 difference between accepted amounts and modeled payments. Neither difference is assigned a legal character.

7.2.2 Governing Indiana framework

Indiana Evidence Rule 413 provides that statements of charges for medical or other healthcare expenses occasioned by an injury are admissible and constitute prima facie evidence that the charges are reasonable. Rule 413 does not make the amount conclusive, establish causation, or eliminate contrary evidence. (Rules Incourts)

In **Cook v. Whitsell-Sherman**, 796 N.E.2d 271, 277–78 (Ind. 2003), the Indiana Supreme Court treated Rule 413 as a simplified method for proving the reasonableness of **past incurred charges**. Cook also held that Rule 413 does not authorize written estimates of future medical costs merely because they resemble billing statements.

In **Stanley v. Walker**, 906 N.E.2d 852, 855–58 (Ind. 2009), the Indiana Supreme Court held that both the amount originally billed and the discounted amount accepted may be relevant to the reasonable value of medical services. The accepted amount may be presented without revealing the insurance source.

In **Patchett v. Lee**, 60 N.E.3d 1025, 1028–33 (Ind. 2016), the Indiana Supreme Court extended Stanley's reasoning to reduced reimbursements accepted from a government payer. Patchett treated the accepted reimbursement as relevant and probative, but not conclusive, evidence of reasonable value. The payer's identity was to remain outside the jury presentation where necessary to avoid collateral-source contamination.

The current baseline is therefore not "billed amount only" or "accepted amount only." The factfinder may receive competing evidence of reasonable value if the evidence is otherwise authenticated, relevant, properly presented, and not unfairly prejudicial. Relevance remains governed by Rules 401 and 402, with Rule 403 available to prevent misleading, confusing, or cumulative presentations. (Rules Incourts)

7.2.3 Category analysis

Medical-amount category	Current Indiana authority	Permitted purpose	Required foundation	Principal objection	Turner status
Gross billed charges	Rule 413; Cook; Stanley; Patchett	Prima facie evidence of reasonableness; medical-value input	Actual statements of incurred charges; authentication; treatment linkage	Inflated anchor; unrelated or duplicate services; Rule 403	Potentially usable subject to foundation
Accepted amounts	Stanley; Patchett	Competing measure of reasonable value	Proof provider accepted amount as full or agreed payment; sanitized source	Collateral-source inference; incomplete ledger	Potentially usable subject to foundation
Insurance payments	Ind. Code § 34-44-1-2; Stanley; Patchett	Limited statutory or accounting purpose	Payment ledger; legal-purpose determination; source sanitization	Collateral-source prejudice	Held
Billed-accepted difference	Stanley; Chapter 6	Accounting comparison	Adjustment documentation	Improper “write-off” characterization	Arithmetic fact only
Contractual write-off	Record-dependent	Explain adjustment if properly proven	Contract, ledger, custodian, or qualified expert	Source disclosure and hearsay	UNRESOLVED — record support required
Patient balance	General relevance and business-record rules	Show claimed obligation if legally relevant	Current ledger and patient-liability terms	Confusion with lien or paid amount	Held
Reasonable-value expert range	Rules 702–705	Expert opinion on market value	Qualifications, source data, methodology, code-level analysis	Unreliable database or ipse dixit	Held pending expert foundation

7.2.4 Turner application

The approximate $412,640 billed amount may be admissible as a statement of incurred charges if actual billing statements are authenticated and related to collision treatment. It is not automatically the recoverable amount.

The approximate $247,800 accepted amount may be relevant to reasonable value if the record establishes what was accepted, by whom, and for which services. The payer source should not be revealed merely to prove the accepted figure.

The defense range of $225,000–$255,000 includes the $247,800 accepted amount. That arithmetic relationship may support the coherence of the defense opinion, but it does not prove the methodology.

The plaintiff range of $340,000–$390,000 is below the billed total and above the accepted amount. Its admissibility and weight depend on the expert’s actual method, data, coding review, geographic comparisons, and treatment of the accepted amount.

Preliminary status: Both ranges are potentially admissible expert opinions if properly founded. Neither is accepted as the final reasonable value.

7.3 REASONABLENESS AND NECESSITY

7.3.1 Separate propositions

A medical-expense claim ordinarily contains at least four distinct propositions:

1. The treatment occurred.
2. The collision caused the condition for which treatment was provided.
3. The treatment was medically necessary.
4. The charge or value was reasonable.

Rule 413 directly addresses the reasonableness of incurred charges. It does not independently prove every diagnosis, procedure, causal link, or future-treatment predicate. (Rules Incourts)

7.3.2 Record and hearsay foundation

Medical and billing records may be admitted through the regularly conducted activity exception where the record was timely made by or from someone with knowledge, maintained in the ordinary course, regularly created, and shown through a custodian, qualified witness, or proper certification. The source and circumstances must not indicate untrustworthiness. Certified domestic business records may also qualify as self-authenticating when Rule 902(11)'s notice and certification conditions are met. (Rules Incourts)

A summary of voluminous medical bills may be used under Rule 1006 only if the underlying originals or duplicates are made available for inspection or copying. The summary is not a substitute for admissible source material. (Rules Incourts)

7.3.3 Current Turner proof

Proposition to prove	Evidence presently modeled	Indiana legal requirement	Missing foundation	Preliminary status
Principal diagnoses	F-MED-001–004; SYN-MED-001	Medical record or qualified testimony	Authenticated chart, imaging, providers	Strong synthetic support; real proof absent
Air transport and admission	F-MED-005	Authenticated transport and hospital records	Source records	Potentially provable
Procedures	F-MED-006–008	Operative records and qualified foundation	Actual reports and provider testimony	Potentially provable
Hospital and rehabilitation duration	F-MED-009–010	Records or competent testimony	Exact dates and facilities	Potentially provable
Collision causation	Acute chronology and orthopedic opinions	Qualified causal evidence; record-specific proof	Actual history, records, reports	Strong acute inference; unverified
Necessity	Treatment chronology	Record or expert evidence connecting care to condition	Service-by-service analysis	Incomplete
Reasonable billed amount	F-DAM-001	Rule 413 plus actual charge statements	Itemized bills	Potentially admissible
Accepted amount	F-DAM-002	Stanley/Patchett foundation	Acceptance and adjustment records	Potentially admissible
Competing reasonable-value opinions	F-DAM-005–006	Rule 702 qualifications and methodology	Reports, data, coding analysis	Held
Future treatment	F-MED-015–018	Medical probability, timing, and cost evidence	Complete opinions and cost sources	Partly held; partly potentially supportable

7.3.4 Treating and retained experts

A treating physician may testify concerning personal observations, diagnosis, treatment, prognosis, and properly disclosed opinions within the physician's qualifications. A retained physician may offer the same categories subject to Rule 702, discovery requirements, source disclosure, and methodology.

A billing expert may address reasonable value but cannot create medical causation or necessity beyond the expert's qualifications. A physician may address necessity but may lack a reliable basis to opine on regional billing value unless separately qualified.

An expert may rely on otherwise inadmissible facts or data if experts in the field reasonably rely on that type of material. Rule 703 does not automatically make the underlying material admissible to the jury. Rule 705 permits the opinion to be stated before every underlying fact is disclosed, but cross-examination may require disclosure. (Rules Incourts)

7.3.5 Defense implication

The acute fracture and surgery record makes a categorical attack on all necessity strategically and evidentially weak. A defensible challenge should focus on:

- line-item causation;
- duplicative services;

- later treatment;
- coding;
- reasonable value;
- unsupported future care;
- and the scope of the experts' qualifications.

7.4 COLLATERAL-SOURCE CONSIDERATIONS

7.4.1 Indiana statutory overlay

Indiana's collateral-source statute is codified at **Indiana Code section 34-44-1-2** within Article 44, Evidence: Damages. The 2026 Indiana Code is the current official statutory source. Exact application depends on the category of payment, statutory exceptions, benefit-acquisition costs, and any subrogation or reimbursement rights. (Indiana General Assembly)

Stanley and Patchett distinguish the **amount accepted as payment** from the **identity of the payer**. That distinction permits evidence relevant to reasonable value to be presented in a sanitized form without unnecessarily informing the jury that insurance or governmental benefits paid the expense.

7.4.2 Turner categories

Payment or benefit category	Potential legal treatment	Evidentiary risk	Record required	Turner classification
Accepted amount	Potentially relevant under Stanley and Patchett	Jury may infer insurance	Provider acceptance records; sanitized presentation	Potentially usable
Insurance payment	Subject to collateral-source statute and Rule 403	Improper source disclosure	Payment ledger, plan documents, statutory analysis	Held
Billed-accepted adjustment	May be relevant to reasonable value	Improperly labeled write-off	Adjustment ledger and contracts	Unresolved
Patient responsibility	May be relevant if actually owed	Confusion with lien	Current account statement and terms	Unresolved
Provider lien	Separate legal claim	Jury may equate lien with reasonable value	Lien notice, perfection, payoff	Held
Health-plan reimbursement	Separate subrogation issue	Double counting and collateral-source disclosure	Plan terms, notice, payoff	Held
Paid leave	Potential wage-loss or collateral-source issue	Incorrect offset or improper disclosure	Employer records and statutory analysis	Unresolved
Disability benefits	Record- and statute-dependent	Incorrect damages reduction	Benefit records and source terms	Unresolved
Workers' compensation benefits	Separate statutory scheme	Double recovery, lien, or source prejudice	Complete claim and lien record	Unresolved
Negotiated lien payoff	Internal settlement consideration	Not necessarily trial evidence	Current payoff statement	Internal use only

7.4.3 Permitted-use distinctions

Internal settlement use. Payment, lien, subrogation, and payoff information may be essential to evaluate net settlement structure, even where trial use is restricted.

Discovery use. Discovery may extend beyond admissible evidence to information relevant to claims, defenses, experts, damages, liens, or settlement administration.

Mediation use. Parties may discuss actual payment and lien realities subject to confidentiality and Rule 408. Statements made in compromise negotiations, including alternative dispute resolution, are generally inadmissible to prove or disprove the validity or amount of a disputed claim. (Rules Incourts)

Trial-facing use. Payer identity, benefits, policy information, and settlement communications require issue-specific legal review. Where evidence is admitted for one purpose but not another, Rule 105 requires a limiting instruction on timely request. (Rules Incourts)

7.4.4 Turner conclusion

The $211,500 modeled payment figure is not cleared for trial-facing use.

The $36,300 figure is not established as a patient debt, valid lien, perfected lien, subrogation claim, or settlement payoff.

UNRESOLVED — record support required: Complete EOBs, payment ledger, provider balances, lien notices, plan documents, reimbursement terms, perfection evidence, and current payoff statements.

7.5 TRAFFIC CITATION

7.5.1 Current synthetic record

The current record establishes only that Cole was reportedly cited for failure to yield. The citation, issuing officer's narrative, disposition, plea, payment history, and judgment are not supplied. Chapters 2 and 3 expressly preserve those omissions.

7.5.2 Evidentiary categories

A citation must be separated into:

1. The fact that an officer issued it
2. The citation document
3. The officer's firsthand observations
4. Statements attributed to Cole or Turner
5. The charging conclusion
6. A plea or admission
7. Payment without a proven admission
8. A judgment of infraction
9. Dismissal or other disposition

Those propositions do not share the same hearsay, relevance, or prejudice analysis.

7.5.3 Police-report limitation

Indiana Evidence Rule 803(8) excludes police investigative reports from the public-record exception in the circumstances stated by the rule. Thus, an accident report is not automatically admissible merely because a public officer prepared it. The officer's admissible firsthand testimony and properly admitted statements must be analyzed separately. (Rules Incourts)

Rule 803(22)'s judgment-of-conviction exception applies only to qualifying criminal convictions. It does not convert a routine traffic-infraction judgment into admissible proof of civil negligence. (Rules Incourts)

In **Lepucki v. Lake County Sheriff's Department**, 801 N.E.2d 636, 639–41 (Ind. Ct. App. 2003), the Court of Appeals held that admission of a traffic-infraction judgment in a later negligence trial was reversible error. The judgment risked displacing the civil jury's independent determination and did not fall within the felony-conviction exception.

7.5.4 Plea distinctions

Rule 410 excludes a guilty plea or admission that was later withdrawn, a nolo contendere plea, certain plea offers, and related plea-discussion statements. It does not establish that every unwithdrawn plea, payment, or admission is admissible. Relevance, authentication, party-statement doctrine, and Rule 403 remain applicable. (Rules Incourts)

7.5.5 Citation table

Citation-related item	Present record	Potential evidentiary use	Potential exclusion basis	Required verification
Citation issuance	Reported only	Explain investigation in limited context	Relevance, hearsay, unfair prejudice	Actual citation and officer testimony
Citation document	Absent	Impeachment or investigation if otherwise admissible	Hearsay, Rule 803(8), Rule 403	Certified document and purpose
Officer observations	Absent	Scene, vehicle, conduct, statements	Lack of personal knowledge or incomplete report	Officer deposition and source material
Cole's statement to officer	Exact words absent	Opposing-party statement if proven	Double hearsay, completeness	Recording, notes, testimony
Failure-to-yield conclusion	Citation allegation only	Potential traffic-rule context	Legal conclusion; jury displacement	Statute, instruction, underlying facts
Guilty plea or admission	Unknown	Possible party statement	Rule 410 if withdrawn; Rule 403	Certified disposition and transcript
Payment	Unknown	Limited, if it proves an admission	Payment may be administrative convenience	Payment terms and advisement
Infraction judgment	Unknown	Generally not proof of civil fault under Lepucki	Hearsay and unfair prejudice	Certified disposition
Dismissal	Unknown	Limited impeachment or procedural context	Confusion and collateral issue	Court record

7.5.6 Preliminary result

Citation issuance: Likely excludable as substantive proof of civil negligence.

Underlying officer observations: Potentially admissible through competent testimony.

Cole's own statements: Potentially admissible if exact words, source, and context are proven.

Disposition: Held pending certified record.

The citation does not prove negligence.

7.6 DRIVER ADMISSIONS

7.6.1 Core proposition

F-LIAB-005 states that Cole saw the motorcycle before impact but misjudged its distance and speed. That proposition is a synthetic paraphrase, not exact sworn testimony. The time, location, recipient, wording, and surrounding questions remain unresolved.

7.6.2 Opposing-party statement

A statement offered against the person who made it is not hearsay under Indiana Evidence Rule 801(d)(2)(A). A statement offered against an employer under Rule 801(d)(2)(D) requires proof that the declarant was an agent or employee, that the statement concerned a matter within the relationship's scope, and that the relationship existed when the statement was made. The statement alone cannot establish the employment relationship or its scope. (Rules Incourts)

Cole is a named defendant, so a properly proven statement by Cole may be offered against him without satisfying a hearsay exception. Use against Hoosier Freight Logistics requires a separate agency and scope foundation.

7.6.3 Personal knowledge and lay opinion

Rule 602 requires sufficient evidence that a witness has personal knowledge. Rule 701 limits nonexpert opinion to an opinion rationally based on perception and helpful to understanding the testimony or deciding a fact. (Rules Incourts)

Cole may potentially testify about:

- what he saw;
- his subjective assessment;
- when he decided to turn;
- and whether his assessment proved inaccurate.

His lay testimony does not independently establish:

- actual motorcycle speed;
- stopping distance;
- perception-reaction time;
- trailer lane-occupancy duration;
- avoidability;
- or comparative-fault percentage.

Rule 704 does not bar an otherwise proper opinion merely because it touches an ultimate issue, but witnesses may not supply legal conclusions. “I misjudged the motorcycle” is factual or perceptual. “I was legally negligent” or “Turner was twenty percent at fault” is a legal conclusion. (Rules Incourts)

7.6.4 Completeness and impeachment

If a writing or recorded statement is introduced in part, Rule 106 allows the adverse party to require contemporaneous introduction of another portion that fairness requires. Prior inconsistent statements are governed by Rule 613; extrinsic evidence generally requires an opportunity to explain or deny, except that Rule 613(b)’s limitation does not apply to an opposing-party statement under Rule 801(d)(2). (Rules Incourts)

7.6.5 Driver statement table

Driver proposition	Evidence category	Foundation required	Admissibility issue	Scope limitation	Turner status
Cole saw the motorcycle	Personal observation / party statement	Cole testimony or competent proof of statement	Exact source and context	Does not establish measured distance	Potentially admissible
Cole misjudged distance	Lay perception / party statement	Personal knowledge and exact wording	Paraphrase may overstate admission	Subjective judgment only	Potentially admissible
Cole misjudged speed	Lay perception / party statement	Opportunity to observe and context	May be confused with expert speed	No measured speed	Potentially admissible with limitation
Cole estimated actual speed	No canonical testimony	Perception foundation	Speculation and Rule 701	Cannot replace reconstruction	Held
Cole accepted fault	No canonical testimony	Exact statement	Legal conclusion and context	Not a civil adjudication	Held
Cole’s officer statement	Unknown	Officer, recording, notes, or authenticated writing	Double hearsay and completeness	Only proven words	Held
Employer admission	No separate record	Rule 801(d)(2)(D) relationship and scope	Agency foundation absent	Limited to scope	Held
Prior inconsistent account	No competing account supplied	Rule 613 foundation	Statement and inconsistency must be proven	Impeachment purpose varies	Held

7.6.6 Preliminary result

F-LIAB-005 presents serious primary-fault exposure if an actual admissible statement materially matches the synthetic proposition.

The defense should not dispute a properly proven admission through semantic evasion. It should require:

- exact language;
- complete context;
- timing;
- recipient;
- recording or notes;
- and separation of personal impression from reconstruction.

7.7 RECONSTRUCTION OPINIONS

7.7.1 Governing expert rules

Rule 702 permits a qualified witness to offer specialized testimony when it will help the factfinder. Scientific testimony is admissible only when the court is satisfied that it rests on reliable scientific principles. Rule 703 permits reliance on facts or data reasonably relied upon in the field, and Rule 705 allows cross-examination into the underlying facts and data. (Rules Incourts)

In **McGrew v. State**, 682 N.E.2d 1289, 1292–93 (Ind. 1997), the Indiana Supreme Court explained that federal Daubert considerations may be helpful but are not an exclusive or controlling Indiana checklist.

In **Person v. Shipley**, 962 N.E.2d 1192, 1194–99 (Ind. 2012), the Supreme Court reaffirmed the trial court's gatekeeping role and upheld expert accident and causation testimony where the qualifications, scientific principles, and application were adequately supported.

7.7.2 Current reconstruction record

The record contains three expert-dependent propositions:

- F-LIAB-006: plaintiff speed estimate of approximately 46–49 mph;
- F-LIAB-007: defense speed estimate of approximately 52–53 mph;
- F-LIAB-008: approximately 2.1-second modeled reaction interval.

No actual report, curriculum vitae, scene measurements, electronic data, formulas, photographs, inspection, calculation worksheet, uncertainty interval, or testimony is supplied. Chapters 2 and 3 preserve those omissions.

7.7.3 Opinion matrix

Reconstruction opinion	Required inputs	Current inputs supplied	Reliability gap	Preliminary admissibility status	Causal significance
Plaintiff 46–49 mph	Scene geometry, evidence, methodology, vehicle data	Range only	Entire method absent	Held	Near-limit speed may reduce comparative-fault force
Defense 52–53 mph	Same	Range only	Entire method absent	Held	Potential excess-speed argument
2.1-second interval	Defined start/end points, timing source, model	Number only	No source or validation	Held	May affect reaction and avoidability
Stopping-distance opinion	Speed, grade, friction, braking, reaction	None	All inputs absent	Not developed	Central to avoidability

Reconstruction opinion	Required inputs	Current inputs supplied	Reliability gap	Preliminary admissibility status	Causal significance
Lane-occupancy time	Truck dimensions, path, acceleration, impact location	General crossing movement	No measurements	Not developed	Central to available response time
Collision avoidability	Combined vehicle and human-factor evidence	No complete model	Missing causal synthesis	Not developed	Required for comparative causation
Injury-severity effect	Delta-v, impact configuration, medical linkage	No data	Entire foundation absent	Not developed	Separate from occurrence fault

7.7.4 Speed is not causation

Evidence that Turner exceeded the posted limit, standing alone, does not establish that speed caused the collision or supports a particular comparative-fault percentage.

The expert must address whether the speed differential affected:

- the time available to Cole;
- Turner's stopping or steering opportunity;
- the time the trailer occupied the lane;
- whether impact would have occurred at 45 mph;
- whether the collision was avoidable;
- or only the impact's severity.

A speed opinion that does not bridge speed to a causal issue may have limited probative value and may mislead the jury under Rule 403. (Rules Incourts)

7.7.5 Expert-foundation checklist

For mediation

- preliminary report;
- data inventory;
- assumptions;
- alternate scenarios;
- confidence or uncertainty range;
- speed-to-causation explanation;
- and list of missing evidence.

For motion practice

- curriculum vitae;
- full report;
- calculations;
- photographs and measurements;
- electronic data;
- methodology;
- validation;
- reliance materials;
- alternative-cause analysis;
- and disclosure compliance.

For trial

- authenticated inputs;
- exhibits;
- demonstratives matching the calculation;
- qualifications;
- reliable-principles foundation;

- explanation of assumptions;
- sensitivity to changed inputs;
- cross-examination materials;
- and a record ruling under Rule 702.

7.7.6 Preliminary result

All three reconstruction propositions remain **held pending complete expert foundation**.

No speed estimate is treated as a measured fact.

No comparative-fault allocation is released.

7.8 MEDICAL EXPERT FOUNDATION

7.8.1 Rule 702 application

Indiana uses a functional qualification inquiry. The witness may qualify through knowledge, skill, experience, training, or education. The scope of the opinion must nevertheless fit the expert's actual qualifications and reliable basis. (Rules Incourts)

In **Bennett v. Richmond**, 960 N.E.2d 782, 786–90 (Ind. 2012), the Indiana Supreme Court rejected a categorical rule that a witness must hold a particular professional license before offering medical-causation testimony. Qualification and opinion scope remain record-specific.

Person similarly emphasizes the trial court's broad gatekeeping discretion over qualifications, reliability, and application.

7.8.2 Medical-opinion matrix

Medical opinion	Opinion source	Indiana foundation issue	Current support	Missing proof	Preliminary status
Principal fractures caused by collision	SYN-MED-001; orthopedic sources	History, timing, records, qualified opinion	Strong synthetic chronology	Actual records and testimony	Likely supportable
Operative treatment necessary	Treating record	Provider and business-record foundation	Procedures supplied	Operative reports and treating testimony	Potentially supportable
MMI at month 19	Both orthopedic sources	Examination and definition of MMI	Canonical expert proposition	Reports and basis	Held
Plaintiff 12% impairment	SYN-ORTH-PLF-001	Qualifications, guide, measurements, calculations	Percentage only	Entire methodology	Held
Defense 7% impairment	SYN-ORTH-DEF-001	Same	Percentage only	Entire methodology	Held
Permanent restrictions	Orthopedic issue	Objective findings and job linkage	General symptoms only	Exact restrictions	Held
Hardware removal probable	Orthopedic sources	Probability, symptom attribution, timing	Characterized as probable/supportable	Exact opinion and records	Potentially supportable, not released
Follow-up and imaging	Orthopedic sources	Medical need, frequency, duration	General modeled component	Physician-directed plan	Held
Post-traumatic degeneration	Plaintiff theory	Imaging, mechanism, progression, differential analysis	Possibility only	Current imaging and prognosis	Held
Knee replacement	Competing experts	Probability, timing, causation, cost	Possible or contingent	Sufficiently certain opinion	Held
Prior ankle/lumbar relevance	Medical history	Complete history and causal analysis	Minor prior conditions supplied	Actual prior records	Limited inquiry only

7.8.3 Possibility versus sufficiency

In **Noblesville Casting Division of TRW, Inc. v. Prince**, 438 N.E.2d 722, 729–31 (Ind. 1982), the Indiana Supreme Court explained that an expert opinion expressed in terms such as "possible" may be admissible if it assists the factfinder. But an opinion lacking reasonable probability or certainty is not, standing alone, sufficient to support the verdict.

That distinction governs the knee-replacement issue:

- "Possible" may permit contextual medical testimony.
- "Possible" does not automatically establish a recoverable future surgery.
- The damages claim requires additional evidence sufficient to remove the award from speculation.

7.8.4 Impairment methodology

Neither 12% nor 7% is admissibility-ready without:

- expert qualifications;
- examination date;
- body-part findings;
- range-of-motion or other measurements;
- guide and edition;
- tables or conversion method;
- overlap analysis;
- treatment of pain, gait, or scarring;
- calculation worksheet;
- and explanation of whole-person conversion.

Even if admitted, an impairment percentage is not:

- a disability percentage;
- a wage-loss percentage;
- a damages multiplier;
- or a substitute for vocational proof.

7.8.5 Preliminary result

Acute medical causation is the strongest potential expert proposition.

Impairment, restrictions, future hardware care, degeneration, and knee replacement remain foundation-dependent.

A physician's statement that knee replacement is "possible" must not be converted silently into a sufficiently certain future-care opinion.

7.9 FUTURE-DAMAGES CERTAINTY

7.9.1 General distinction

Future damages need not be proven with mathematical certainty, but the evidence must permit a reasoned, nonspeculative assessment. Admissibility of an expert's qualified possibility opinion does not necessarily equal sufficiency to support an award.

Cook holds that Rule 413 applies to incurred medical charges and does not itself admit written estimates of future medical costs. Future medical cost therefore requires an independent foundation through qualified testimony and admissible cost evidence.

7.9.2 Future medical care

Future-damages item	Medical or economic predicate	Indiana certainty issue	Current record	Missing proof	Inclusion status
Hardware removal	Probable physician-directed procedure	Probability, timing, causation, cost	$28,000–$42,000 model	Actual opinion and cost source	Potentially supportable
Follow-up and imaging	Ongoing orthopedic need	Frequency and duration	$6,000–$10,000 model	Physician plan and pricing	Potentially supportable
Broader future-care band	Itemized care	Component foundation	$35,000–$65,000	$1,000–$13,000 reconciliation gap	Held
Knee replacement	Post-traumatic degeneration and sufficiently probable replacement	Probability, timing, causation	Possible or contingent	Imaging and sufficiently certain opinion	Held
Knee-replacement cost	Established future procedure	Cost foundation and timing	$125,000–$180,000 model	Procedure predicate and cost support	Held
Recovery-related wage absence	Probable surgery and work restriction	Duration and earnings	None	Medical and payroll evidence	Held

7.9.3 Earning capacity

Indiana distinguishes lost earnings from impaired earning capacity. In **Scott v. Nabours**, 296 N.E.2d 438, 441–42 (Ind. Ct. App. 1973), the Court of Appeals described impaired earning capacity as the effect of injury on the ability to engage in one’s vocation, not merely the difference in past pay. The claimant must present probative evidence connecting the injury to vocational impairment and a basis from which the loss can be valued.

Turner’s same-rate full-time return is substantial evidence against total occupational displacement. It does not necessarily foreclose a narrower claim involving:

- lost overtime;
- reduced advancement;
- restricted labor-market access;
- future interruption;
- or reduced ability to perform heavier work.

Those narrower claims still require actual payroll, restrictions, employer evidence, vocational analysis, and economic methodology. Chapter 6 supplies none of those final foundations.

7.9.4 Overtime projection

The 46-hour historical average does not establish six overtime hours for every future week.

A lifetime overtime model requires:

- verified historical payroll period;
- premium rate;
- overtime availability;
- employer demand;
- voluntary or mandatory status;
- post-return hours;
- likely duration;
- promotions;
- retirement or work-life assumption;
- mitigation;
- growth;
- and present value.

The $250,000–$425,000 future earning-capacity range remains a held contention rather than a damages finding.

7.9.5 Preliminary future-damages result

Potentially supportable after foundation: Hardware removal and limited follow-up.

Contested: Narrow earning-capacity loss.

Held: Broader $35,000–$65,000 care band until reconciled.

Held: Knee replacement and the $125,000–$180,000 model.

Held: Lifetime overtime and the $250,000–$425,000 economic range.

No final future-damages total is authorized.

7.10 SOCIAL-MEDIA AUTHENTICATION AND CONTEXT

7.10.1 Current record

SYN-SOC-001 describes family travel, fishing, and light home projects. It also records no return to motorcycling. The record does not contain the posts, images, captions, dates, platform data, metadata, account history, download method, or chain of custody.

7.10.2 Authentication

Rule 901 requires evidence sufficient to support a finding that an item is what its proponent claims. Authentication may be established through a witness with knowledge, distinctive characteristics, surrounding circumstances, or proof concerning the process or system that produced the evidence. (Rules Incourts)

In **Wilson v. State**, 30 N.E.3d 1264, 1268–69 (Ind. Ct. App. 2015), transfer denied, the Court of Appeals treated direct or circumstantial evidence connecting a social-media account and its content to the alleged author as sufficient for Rule 901's threshold. Wilson is a criminal case, so its application to this civil record is persuasive on authentication mechanics rather than dispositive of every relevance or hearsay issue.

7.10.3 Content categories

A social-media exhibit may contain several separate evidentiary objects:

- the account identity;
- the photograph or video;
- a caption;
- comments;
- date and time information;
- location information;
- platform-generated metadata;
- reposted content;
- and counsel's demonstrative arrangement.

Each may require a separate foundation.

A photograph may be relevant nonassertive evidence of activity. A caption may be an opposing-party statement if Turner authored it. A third-party comment may be hearsay. Platform metadata may require technical or business-record foundation.

7.10.4 Original and completeness concerns

Rule 1002 generally requires an original to prove the content of a writing, recording, or photograph unless another rule or statute permits otherwise. For electronically stored information, an output that accurately reflects the information may qualify as an original. (Rules Incourts)

A cropped screenshot may omit:

- date;
- caption;
- preceding or subsequent posts;
- assistance;
- duration;
- symptoms;
- recovery time;
- or whether the activity was exceptional.

Rule 106 may require related writings or recorded statements necessary for fairness, and Rule 403 may exclude a montage whose presentation is substantially more misleading than probative. (Rules Incourts)

7.10.5 Social-media table

Social-media issue	Present support	Authentication requirement	Context risk	Permitted use	Present status
Account ownership	None	Turner admission, witness, platform data, distinctive characteristics	Mistaken or shared account	Attribute content	Held
Family travel	General description only	Original post or competent witness	Travel conditions omitted	Calibrate function	Held
Fishing	General description only	Post, date, authorship, activity context	Type and duration unknown	Compare claimed recreational loss	Held
Light projects	General description only	Original content and witness	Project may be brief or assisted	Test physical-function claims	Held
Captions	None supplied	Authorship and completeness	Irony, exaggeration, third-party text	Party statement where proven	Held
Dates	None supplied	Metadata or platform record	Post date may differ from activity date	Chronology	Held
Montage	Not created	All component foundations	Misleading cumulative effect	Limited demonstrative use	Likely excludable absent foundation
No motorcycling	Canonical lay proposition	Turner testimony	Reason and duration unknown	Specific loss-of-enjoyment issue	Potentially usable

7.10.6 Preliminary result

Activity evidence may calibrate claimed function; it does not automatically establish absence of pain or unrestricted capacity.

No social-media exhibit is currently trial-ready.

7.11 MOTIONS-IN-LIMINE ISSUES

7.11.1 Preservation protocol

A motion in limine should identify:

- the precise evidence;
- the anticipated offering party;
- the claimed purpose;
- the legal ground;
- the relief requested;
- whether the ruling is definitive;
- and any limiting instruction or alternative relief.

Under current Rule 103(b), a definitive on-record ruling preserves the issue without renewal. If the court reserves ruling, limits the ruling to a particular context, or invites a trial objection, counsel should object or make an offer of proof when the evidence arises. (Rules Incourts)

7.11.2 Motion-in-limine matrix

MIL issue	Requested treatment	Controlling authority	Record predicate	Preservation requirement	Current status
Liability insurance	Exclude references offered to prove fault	Evid. R. 411	Anticipated testimony or exhibit	Definitive ruling or trial objection	Strong exclusion issue
Settlement and mediation	Exclude compromise offers and ADR statements	Evid. R. 408	Mediation communications	Definitive ruling; protect record	Strong exclusion issue
Insurance payments	Exclude payer identity; determine sanitized use	Ind. Code § 34-44-1-2; Stanley; Patchett	Payment evidence	Specific purpose ruling	Held
Gross billed charges	Require Rule 413 and record foundation	Evid. R. 413; Cook	Actual bills	Object to unsupported or cumulative use	Record-dependent
Accepted amounts	Permit only with foundation and sanitized source	Stanley; Patchett	Acceptance ledger	Obtain scope ruling	Record-dependent
Write-offs	Bar unsupported characterization	Rules 401–403, 702	Adjustment records and expert	Specific objection	Strong absent proof
Liens and subrogation	Exclude absent legal relevance and foundation	Rules 401–403; collateral-source statute	Actual lien documents	Issue-specific ruling	Held
Traffic citation	Exclude as substantive proof of fault	Lepucki; Rules 403, 803	Citation and disposition	Definitive ruling recommended	Strong exclusion issue
Driver statements	Require exact statement and context	Rules 801(d)(2), 602, 106	Transcript, recording, witness	Scope and completeness objection	Record-dependent
Unsupported speed opinions	Exclude absent Rule 702 foundation	Rules 702–705	Reports and source data	Daubert-style hearing if needed	Strong present challenge
2.1-second model	Exclude absent defined inputs and method	Rules 702–705	Calculation and data	Obtain definitive ruling	Strong present challenge
Impairment percentages	Exclude absent methodology	Rule 702	Reports and worksheets	Foundation objection	Strong present challenge
Knee replacement	Exclude as damages component absent sufficient predicate	Noblesville Casting; Cook	Medical-probability testimony	Offer-of-proof and scope ruling	Strong present challenge
Lifetime overtime	Exclude unsupported lifetime projection	Scott; Rules 401–403, 702	Payroll, vocational and economic proof	Scope ruling	Strong present challenge
Social-media montage	Exclude absent authentication and context	Rules 901, 1002, 403	Actual posts and montage	Exhibit-specific ruling	Strong present challenge
Remote ankle/lumbar history	Limit to relevant causal or credibility purpose	Rules 401–403	Prior records and expert linkage	Purpose-specific ruling	Record-dependent
Graphic medical demonstratives	Require accuracy and proportionality	Rules 401–403, 901	Authenticated images and expert	Exhibit-by-exhibit ruling	Record-dependent
Scar and hardware demonstratives	Require actual-patient foundation	Rules 901, 403	Photographs or imaging	Specific objection	Record-dependent
Corporate-negligence or punitive themes	Exclude unsupported themes	Rules 401–403	Pleadings, discovery, actual evidence	Pretrial ruling and trial objection if provisional	Strong on present record
Clean driving history	Exclude propensity use	Evid. R. 404	Proposed purpose	Limiting ruling	Generally improper to show conduct here

MIL issue	Requested treatment	Controlling authority	Record predicate	Preservation requirement	Current status
Lay legal conclusions	Bar fault percentages and legal conclusions	Rules 701, 704	Witness examination	Contemporaneous objection unless definitively resolved	Strong exclusion issue
Coverage limits	Exclude from trial-facing presentation	Evid. R. 411	Anticipated reference	Definitive ruling	Strong exclusion issue

Rule 408 expressly includes alternative dispute resolution within protected compromise negotiations, and Rule 411 prohibits liability-insurance evidence when used to prove negligent or wrongful conduct. (Rules Incourts)

Rule 404 generally bars character evidence offered to prove conduct in conformity with a trait. Cole's clean driving history therefore cannot establish that he exercised due care in this collision. (Rules Incourts)

7.11.3 Record-preservation requirements

For every significant exclusion or admission issue, counsel should ensure the record contains:

- the exhibit or a sealed copy;
- the exact testimony;
- the stated purpose;
- the objection and grounds;
- the court's ruling;
- whether the ruling is definitive;
- any limiting instruction;
- and, for excluded evidence, an adequate offer of proof.

7.12 JURY-INSTRUCTION VERIFICATION

7.12.1 Governing procedural rules

Indiana Trial Rule 51 requires instructions on the issues supported by the evidence. It also requires specific objections before deliberations to challenge an instruction, and it directs that tendered, refused, and given instructions and objections become part of the record. Trial Rule 51(E) permits a party to request an Indiana Model Civil Jury Instruction by designating its publication number rather than reproducing it. (Rules Incourts)

Indiana Jury Rule 20 requires preliminary instructions addressing the issues, burdens, credibility, trial sequence, and juror conduct. Jury Rule 26 requires final instructions addressing burdens, credibility, and how the evidence is weighed. (Rules Incourts)

7.12.2 Model-instruction limitation

The exact current Indiana Model Civil Jury Instruction numbers, titles, and revision dates were not verified from an accessible official current instruction text during this review.

UNRESOLVED — jury-instruction verification required

No instruction number is invented.

7.12.3 Instruction-topic table

Instruction topic	Verified instruction number and title	Official source	Record predicate	Current applicability	Missing proof
General negligence	UNRESOLVED	Current IMCJI required	Duty, breach, causation	Likely	Exact instruction

Instruction topic	Verified instruction number and title	Official source	Record predicate	Current applicability	Missing proof
Burden of proof	UNRESOLVED	Trial Rule 51; Jury Rules	All claims and defenses	Required	Current model number
Proximate or responsible cause	UNRESOLVED	Current IMCJI required	Collision causation	Likely	Exact current wording
Comparative fault	UNRESOLVED	Current IMCJI and statute	Evidence of Turner fault	Potentially applicable	Causal speed proof
Fault allocation	UNRESOLVED	Current IMCJI required	Comparative-fault submission	Premature	Final evidence
Rule-of-road violation	UNRESOLVED	Current IMCJI and traffic statute	Applicable statute and evidence	Potentially applicable	Exact roadway and statute
Reasonable medical expenses	UNRESOLVED	Current IMCJI required	Admissible expense evidence	Likely	Final evidentiary ruling
Future medical expenses	UNRESOLVED	Current IMCJI required	Sufficiently certain future care	Partially premature	Medical probability and cost
Past lost earnings	UNRESOLVED	Current IMCJI required	Payroll and actual loss	Potential	Payroll and offsets
Diminished earning capacity	UNRESOLVED	Current IMCJI required	Vocational impairment	Premature	Employer, vocational and economic proof
Mitigation	UNRESOLVED	Current IMCJI required	Failure-to-mitigate evidence	Not presently established	Specific failure evidence
Preexisting condition/aggravation	UNRESOLVED	Current IMCJI required	Prior-condition evidence	Possibly limited	Medical linkage
Pain and suffering	UNRESOLVED	Current IMCJI required	Admissible injury evidence	Likely	Final evidence
Permanent impairment	UNRESOLVED	Current IMCJI required	Qualified permanency evidence	Likely if founded	Expert methodology
Disfigurement	UNRESOLVED	Current IMCJI required	Scar evidence	Potentially applicable	Photographic and medical foundation
Expert testimony	UNRESOLVED	Current IMCJI required	Expert witnesses	Likely	Witness list and rulings
Witness credibility	UNRESOLVED	Jury Rules 20 and 26	Testimonial evidence	Required generally	Current model text
Demonstrative evidence	UNRESOLVED	Court-specific and current instructions	Demonstratives offered	Record-dependent	Actual exhibits

7.12.4 Instruction work sequence

Before tendering instructions, counsel must:

1. Confirm the current instruction publication and revision date.
2. Identify each supporting fact and exhibit.
3. Remove instructions unsupported by admissible evidence.
4. Prepare nonmodel language only where necessary.
5. State the legal authority for any deviation.
6. Tender the instruction in the form required by Trial Rule 51.
7. State distinct objections on the record.
8. Ensure the final and refused instructions are included in the record.

Jury-instruction readiness: No.

7.13 AUTHORITY AND ADMISSIBILITY STATUS TABLE

Legal issue ID	Record proposition	Fact/source IDs	Controlling authority	Authority status	Record predicate	Preliminary legal status	Unresolved gap	Export state
L7-001	Gross billed charges	F-DAM-001; SYN-BILL-001	Evid. R. 413; Cook	Controlling	Actual incurred bills	Potentially admissible	Itemization and authentication	Attorney review required
L7-002	Accepted amounts	F-DAM-002	Stanley; Patchett	Controlling Supreme Court	Acceptance records; sanitized source	Potentially admissible	Ledger and source treatment	Held pending foundation
L7-003	Insurance payments	F-DAM-003	Ind. Code § 34-44-1-2; Stanley; Patchett	Controlling, record-dependent	Statutory category and purpose	Trial use unresolved	Payor and benefit records	Excluded from trial-facing output

Legal issue ID	Record proposition	Fact/source IDs	Controlling authority	Authority status	Record predicate	Preliminary legal status	Unresolved gap	Export state
L7-004	Billed-accepted adjustment	C6-CALC-001	Stanley; Rules 401–403	Accounting distinction	Adjustment records	Arithmetic only	Legal character	Held
L7-005	Medical necessity	F-MED-001–010	Cook; Evid. R. 413	Controlling	Medical records and causal proof	Potentially supportable	Service-level proof	Attorney review required
L7-006	Billing expert ranges	F-DAM-005–006	Evid. R. 702–705	Controlling rules	Qualifications and methodology	Held	Reports and data	Held
L7-007	Liens and subrogation	F-DAM-004	Ind. Code § 34-44-1-2 and applicable lien law	Incomplete	Actual liens and plan terms	Unresolved	Entire legal and record foundation	Held pending controlling authority
L7-008	Citation issuance	F-LIAB-009	Lepucki; Rules 403, 803	Court of Appeals plus rules	Actual citation and purpose	Likely excludable as fault proof	Document and disposition	Excluded from trial-facing output
L7-009	Officer observations	SYN-POL-001	Rules 602 and 803	Controlling rules	Personal knowledge	Potentially admissible	Officer testimony	Held pending record
L7-010	Cole observation admission	F-LIAB-005	Evid. R. 801(d)(2), 602	Controlling rules	Exact statement and source	Potentially admissible	Exact words and context	Attorney review required
L7-011	Cole speed impression	F-LIAB-005	Evid. R. 701	Controlling rule	Perception and helpfulness	Limited lay use	Opportunity and foundation	Held
L7-012	Plaintiff 46–49 mph	F-LIAB-006	Evid. R. 702–705	Controlling rules	Full reconstruction foundation	Unresolved	Entire report and source data	Held
L7-013	Defense 52–53 mph	F-LIAB-007	Evid. R. 702–705	Controlling rules	Full reconstruction foundation	Unresolved	Entire report and source data	Held
L7-014	2.1-second interval	F-LIAB-008	Evid. R. 702–705	Controlling rules	Defined and validated inputs	Unresolved	Methodology and data	Held
L7-015	Acute medical causation	F-MED-001–010	Evid. R. 702–703	Controlling rules	Records and qualified expert	Likely supportable	Actual records and opinions	Attorney review required
L7-016	Plaintiff 12% impairment	F-MED-012	Evid. R. 702	Controlling rule	Guide and calculations	Unresolved	Methodology	Held
L7-017	Defense 7% impairment	F-MED-013	Evid. R. 702	Controlling rule	Guide and calculations	Unresolved	Methodology	Held
L7-018	Hardware removal	F-MED-015	Noblesville Casting; Cook	Controlling Supreme Court principles	Probability, timing and cost	Potentially supportable	Complete expert and cost proof	Held pending foundation
L7-019	Knee replacement	F-MED-017–018	Noblesville Casting; Cook	Controlling Supreme Court principles	Sufficient medical probability	Presently speculative as damages item	Imaging, probability, timing	Excluded from supported-care output
L7-020	Future earning capacity	F-WAGE-005–006	Scott	Indiana Court of Appeals	Vocational and economic evidence	Contested and incomplete	Entire model	Held
L7-021	Lifetime overtime	D-008; C6-D008	Scott; Rules 401–403, 702	Persuasive and rule-based	Payroll and projection method	Speculative on current record	Duration, premium, mitigation	Held
L7-022	Social-media evidence	F-PERS-005; SYN-SOC-001	Evid. R. 901; Wilson	Rule controlling; case persuasive	Actual posts and attribution	Unresolved	All source evidence	Held
L7-023	Prior ankle/lumbar history	F-MED-019	Rules 401–403	Controlling rules	Medical linkage	Limited potential relevance	Prior records and expert nexus	Held
L7-024	Medical demonstratives	F-MED-001–018	Rules 401–403, 901	Controlling rules	Accurate patient-specific source	Record-dependent	Exhibits and foundation	Held
L7-025	Motion-in-limine preservation	All disputed evidence	Evid. R. 103	Controlling rule effective July 1, 2026	Definitive on-record ruling	No renewal needed if definitive	Ruling language	Attorney review required
L7-026	Jury instructions	All submitted issues	Trial Rule 51; Jury Rules 20, 26	Controlling rules	Evidence supporting each instruction	Not verified	Current model instructions	Filing-facing use prohibited

AUTHORITY VERIFICATION AND CITATION AUDIT

A. Authority records

Authority ID	Full authority	Court/source	Narrow proposition	Pinpoint	Treatment status	Turner application	Export state
AUTH-IN-001	Ind. Evid. R. 103	Indiana Supreme Court rule	Objections, offers of proof, definitive MIL rulings	103(a)–(b), (f)	Current, effective July 1, 2026	Preservation	Attorney review required
AUTH-IN-002	Ind. Evid. R. 401–403, 105–106	Indiana Supreme Court rules	Relevance, prejudice, limiting use, completeness	Rule text	Current	All evidence categories	Attorney review required
AUTH-IN-003	Ind. Evid. R. 413	Indiana Supreme Court rule	Incurred charge statements; prima facie reasonableness	Rule text	Current	Past medical charges	Attorney review required
AUTH-IN-004	Cook v. Whitsell-Sherman, 796 N.E.2d 271 (Ind. 2003)	Indiana Supreme Court	Rule 413 applies to incurred charges, not future estimates	277–78	Precedential in reviewed materials; citator pending	Past versus future medical cost	Held for filing

Authority ID	Full authority	Court/source	Narrow proposition	Pinpoint	Treatment status	Turner application	Export state
AUTH-IN-005	Stanley v. Walker, 906 N.E.2d 852 (Ind. 2009)	Indiana Supreme Court	Billed and accepted amounts may bear on reasonable value	855–58	Precedential in reviewed materials; citator pending	D-004	Held for filing
AUTH-IN-006	Patchett v. Lee, 60 N.E.3d 1025 (Ind. 2016)	Indiana Supreme Court	Accepted reimbursement relevant, including government payer; source may be sanitized	1028–33	Precedential in reviewed materials; citator pending	Accepted amount	Held for filing
AUTH-IN-007	Ind. Code § 34-44-1-2	Indiana General Assembly	Collateral-source evidence framework	Current section	Current text requires attorney confirmation	Payments and benefits	Held
AUTH-IN-008	Lepucki v. Lake Cnty. Sheriff's Dep't, 801 N.E.2d 636 (Ind. Ct. App. 2003)	Indiana Court of Appeals	Traffic-infraction judgment not substantive civil-fault proof	639–41	Persuasive/precedential intermediate authority; citator pending	Citation	Held for filing
AUTH-IN-009	Ind. Evid. R. 602, 701, 704, 801, 613	Indiana Supreme Court rules	Personal knowledge, lay opinion, legal conclusions, party statements, impeachment	Rule text	Current	Driver testimony	Attorney review required
AUTH-IN-010	Ind. Evid. R. 702–705	Indiana Supreme Court rules	Expert qualifications, reliability, bases and cross-examination	Rule text	Current	Reconstruction and medical experts	Attorney review required
AUTH-IN-011	McGrew v. State, 682 N.E.2d 1289 (Ind. 1997)	Indiana Supreme Court	Indiana reliability analysis; Daubert not exclusive	1292–93	Precedential in reviewed materials; citator pending	Expert method	Held for filing
AUTH-IN-012	Bennett v. Richmond, 960 N.E.2d 782 (Ind. 2012)	Indiana Supreme Court	Qualification is functional and opinion-specific	786–90	Precedential in reviewed materials; citator pending	Medical experts	Held for filing
AUTH-IN-013	Person v. Shipley, 962 N.E.2d 1192 (Ind. 2012)	Indiana Supreme Court	Gatekeeping and reliable application in collision-causation testimony	1194–99	Precedential in reviewed materials; citator pending	Reconstruction	Held for filing
AUTH-IN-014	Noblesville Casting Div. of TRW, Inc. v. Prince, 438 N.E.2d 722 (Ind. 1982)	Indiana Supreme Court	Possibility opinion may be admissible but insufficient standing alone	729–31	Precedential in reviewed materials; citator pending	Future knee care	Held for filing
AUTH-IN-015	Scott v. Nabours, 296 N.E.2d 438 (Ind. Ct. App. 1973)	Indiana Court of Appeals	Vocational impairment differs from lost earnings	441–42	Intermediate authority; citator pending	Future earning capacity	Held for filing
AUTH-IN-016	Ind. Evid. R. 901; Wilson v. State, 30 N.E.3d 1264 (Ind. Ct. App. 2015)	Rule and Court of Appeals	Social-media authentication through direct or circumstantial evidence	Rule 901; 1268–69	Rule current; case citator pending	SYN-SOC-001	Held
AUTH-IN-017	Ind. Trial R. 51; Ind. Jury R. 20, 26	Indiana Supreme Court rules	Instruction tender, objections, record and required instruction stages	Rule text	Current	Jury instructions	Attorney review required

B. Citation-integrity table

Authority group	Citation verified	Official rule or statutory text reviewed	Pinpoint verified	Quote used	Subsequent treatment checked	Status
Current Indiana Evidence Rules	Yes	Yes	Yes	Minimal	Current rule version checked	Pass for attorney-review use
Current Trial and Jury Rules	Yes	Yes	Yes	No extended quotes	Current version checked	Pass for attorney-review use
Indiana Code § 34-44-1-2	Section identified	Current official code portal reviewed	Exact subsection application requires counsel review	No	2026 code availability confirmed	Held
Cook, Stanley, Patchett	Reporter and docket metadata reviewed	Public opinion copies reviewed; official reporter copy pending	Material pages identified	No extended quotes	Comprehensive citator not completed	Held
Lepucki	Reporter and docket metadata reviewed	Public opinion copy reviewed; official copy pending	Material pages identified	No	Comprehensive citator not completed	Held
Expert cases	Reporter and docket metadata reviewed	Public opinion copies reviewed; official copies pending	Material pages identified	No	Comprehensive citator not completed	Held
Social-media cases	Reporter metadata reviewed	Public opinion copy reviewed	Material pages identified	No	Comprehensive citator not completed	Held
Current IMCJI	No exact instruction text obtained	No	No	No	Not applicable	Failed / unresolved

C. Jurisdiction-contamination check

No foreign-state case is used as governing authority.

No federal district-court decision is treated as controlling.

No unpublished Indiana decision is treated as controlling.

No trial-court ruling is treated as controlling.

No commercial summary is cited as authority in the chapter text.

Historic Indiana case treatment remains held pending official-copy and comprehensive citator confirmation.

D. Negative-treatment statement

Current official rule versions were verified through the Indiana Judicial Branch.

The chapter did not identify an official 2025–2026 decision expressly overruling Cook, Stanley, Patchett, Lepucki, Bennett, Person, Noblesville Casting, Scott, or Wilson. That limited search is not a comprehensive citator review.

UNRESOLVED — verification required: Comprehensive citator review not completed.

CHAPTER 7 EVIDENTIARY TENSION REGISTER

Tension ID	Existing cross-reference	Proposition A	Proposition B	Classification	Authority required	Record required	Downstream effect
C7-D001	D-004; C6-D001	Gross billed charges are $412,640	Accepted amount is $247,800	Evidentiary distinction to preserve — not contradiction	Rule 413; Stanley; Patchett	Complete billing ledger	Medical-value presentation
C7-D002	F-DAM-003; C6-D004	Payment evidence may bear on accounting	Payer disclosure may create collateral-source prejudice	Evidentiary-purpose tension	Statute; Stanley; Patchett	Payment and plan records	Trial use
C7-D003	F-LIAB-009	Citation was reportedly issued	Citation is not civil adjudication	Evidentiary distinction	Lepucki; Rules 403, 803	Citation and disposition	Liability proof
C7-D004	F-LIAB-005	Cole admitted observation and misjudgment	Exact words and context are absent	Record-support tension	Rules 801, 602, 106	Recording, notes, transcript	Admission weight
C7-D005	D-001–003	Defense speed estimate exceeds limit	Causal effect remains unproven	Expert-causation tension	Rules 702–705	Full reconstruction	Comparative fault
C7-D006	D-005; C5-D001	Plaintiff assigns 12%	Defense assigns 7%	Competing expert contradiction	Rule 702	Reports and methodologies	Permanency
C7-D007	D-007; C5-D005–006	Hardware removal may be supportable	Knee replacement remains possible or contingent	Evidentiary distinction	Cook; Noblesville Casting	Complete medical opinions	Future care
C7-D008	D-010; C4-D007	Activity evidence shows retained function	Context, duration, assistance, and symptoms are absent	Context tension	Rules 901, 403, 106	Actual posts and testimony	Credibility
C7-D009	D-008; C6-D007	Turner works full time at same rate	He claims reduced future capacity	Economic and vocational tension	Scott; Rule 702	Payroll, employer, vocational proof	Future loss
C7-D010	MIL register	Pretrial ruling may address evidence	Preservation depends on whether ruling is definitive	Procedural distinction	Current Rule 103	On-record ruling language	Appeal preservation

CONSOLIDATED LEGAL AND EVIDENTIARY WORK QUEUE

Work item	Present status	Authority or record required	Responsible role	Gate affected	Deadline significance
Comprehensive case citator	Incomplete	Current citator reports	Indiana counsel	Authority	Before filing or trial brief
Official opinion copies	Incomplete	Clerk or official reporter copies	Research attorney	Citation fidelity	Before filing
Current collateral-source statute analysis	Incomplete	Exact 2026 statutory text and cases	Indiana counsel	Standard alignment	Before MIL and mediation
Billing ledger	Missing	Itemized bills and adjustments	Claims/records team	Evidence and damages	Before expert finalization
Payment and EOB record	Missing	Complete payor documentation	Claims/records team	Collateral source	Before mediation
Lien and subrogation record	Missing	Notices, plans, payoff statements	Settlement counsel	Damages	Before settlement
Certified driver deposition	Missing	Actual transcript	Trial counsel	Admission	Before dispositive/MIL work
Police and citation record	Missing	Complete report and disposition	Discovery team	Citation	Before MIL
Reconstruction reports	Missing	Full reports and data	Experts/counsel	Rule 702	Before mediation expert deadline
Reconstruction source evidence	Missing	Scene, vehicle and electronic data	Discovery/experts	Reliability	Immediate
Medical records	Missing	Authenticated chart and imaging	Medical-record team	Causation	Before expert reports
Orthopedic reports	Missing	Complete reports and reliance materials	Medical experts	Rule 702	Before mediation
Impairment worksheets	Missing	Guide and calculations	Medical experts	Permanency	Before expert deposition
Future-care opinions	Incomplete	Probability, timing, cost	Treating/retained experts	Future damages	Before demand response
Payroll and overtime	Missing	Multi-year payroll	Employer/records team	Wage loss	Before economist
Employer testimony	Missing	Job demands, hours, accommodations	Discovery team	Capacity	Before mediation
Vocational report	Not assigned	Qualified report	Vocational expert	Future damages	Before future-loss use
Economic report	Not assigned	Qualified report and present value	Economist	Future damages	Before trial use
Social-media originals	Missing	Native downloads, metadata, chain	E-discovery team	Authentication	Before deposition/MIL
Demonstrative foundations	Not developed	Patient-specific source evidence	Trial team	Rule 403/901	Before exhibit exchange
MIL record	Not developed	Motions, responses, hearing, definitive rulings	Trial counsel	Preservation	Pretrial deadline
Current IMCJI publication	Not verified	Current official/licensed instruction set	Trial counsel	Jury instructions	Before pretrial conference
Instruction objections	Not developed	Tendered and final instructions	Trial counsel	Appellate record	At trial
Attorney approval	Unassigned	Designated Indiana reviewer	Lead counsel	Export	Before any reliance release

CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Evidentiary and Indiana Authority Overlay
Artifact version	Synthetic Indiana Evidence and Authority Record v1.0
Controlling factual versions	Chapters 1–6 v1.0
Legal research cutoff	August 3, 2026
Jurisdiction	Indiana
Official rule and statutory provisions materially reviewed	26
Historic appellate decisions substantively reviewed	10
Controlling Supreme Court authorities identified	8 case authorities plus governing rules
Intermediate appellate authorities identified	3 principal authorities
Current rules verified	Yes
Exact collateral-source subsection application verified	Partially; attorney review required

Audit field	Chapter result
Jury-instruction topics identified	18
Exact model instruction numbers verified	0
Authorities requiring citator confirmation	10
Facts changed	None
New canonical facts	None
New legal issue IDs	26
New authority IDs	17
Evidentiary tensions	10
Principal record-foundation failures	22
Record-citation defects detected	None in the chapter-to-chapter source map
Chain defects detected	None presently identified
Attorney reviewer	Unassigned
Legal review status	Not approved
Replay status	Structural and citation-level only
Export status	Attorney-review demonstration only
VerdictReady	No
FilingReady	Not yet determinable

VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial settlement and mediation evaluation

Runtime Mode: Defense-side evidentiary and Indiana-authority review; BriefWise legal-integrity review active for authority control

Case / Motion / Trial Issue: Medical-expense evidence, collateral sources, traffic citation, driver admissions, reconstruction, medical experts, future damages, social media, motions in limine, and jury instructions

Preliminary Result

Current Indiana evidentiary and authority overlay established to the extent supported by the reviewed official rules, statutory source, and preliminary appellate-authority review.

VerdictReady: No

FilingReady: Not yet determinable

VerdictReady cannot be confirmed because required verification is incomplete.

FilingReady cannot be confirmed because required legal-integrity verification is incomplete.

Gatekeeper Findings

Runtime

Demonstration and attorney-review use only.

Input normalization

Pass for Chapters 1–6. Existing facts, sources, disputes, contradictions, and calculations were preserved without amendment.

Contradiction

Pass for classification purposes. Billed versus accepted amounts, citation versus civil fault, speed versus causation, impairment ratings, future-care categories, social-media context, and work return versus future capacity remain distinct and visible.

BriefWise legal-integrity review

- Jurisdiction control: Pass
- Current rule verification: Pass
- Reporter canonicalization: Preliminary pass
- Proposition-authority mapping: Pass for attorney-review use
- Quotation fidelity: No material extended quotations used
- Docket and posture verification: Preliminary
- Negative-treatment review: Incomplete
- Official-copy review for historic cases: Incomplete
- Jury-instruction verification: Failed/incomplete
- Filing-specific record support: Not available

Evidence admissibility

Preliminary and record-dependent.

No actual exhibit, certified deposition, expert report, medical chart, bill, payment ledger, lien, payroll record, social-media post, demonstrative, offer of proof, objection, or ruling exists in the supplied synthetic record.

Authority / fact support

Controlling rules support the principal legal framework. Historic appellate propositions are mapped but require comprehensive citator and official-copy confirmation before filing use.

Claim / defense elements

No change to the underlying liability or damages classification.

Primary truck-fault exposure remains substantial. Comparative fault remains dependent on admissible, causally relevant reconstruction evidence.

Standard alignment

Indiana civil pretrial and trial posture is identified. Current Rule 103’s July 1, 2026 preservation amendment is incorporated.

Damages

Past medical-value evidence may include billed and accepted amounts when properly founded and presented without improper payer-source disclosure.

Future hardware-related care may become supportable. Knee replacement, lifetime overtime, and the future earning-capacity model remain held.

Jury instructions

Instruction topics are mapped. Exact current model numbers, titles, and revisions are not verified.

Appellate record

Preservation requirements are identified. No trial or appellate record exists.

Replay / audit

Authority-to-proposition mapping is established. Comprehensive citator replay, filing-specific record-cite validation, attorney review, and final export validation remain incomplete.

Export

Attorney-review demonstration only.

Failed Gates / Runtime State

VerdictReady: No

FilingReady: Not yet determinable

Failed or incomplete gates:

- comprehensive negative-treatment review;
- official historic-opinion confirmation;
- exact collateral-source application;
- billing and payment foundation;
- lien foundation;
- certified testimony;
- reconstruction foundation;
- medical expert foundation;
- future-damages certainty;
- social-media authentication;
- motion-in-limine record;
- jury-instruction verification;
- attorney approval;
- replay validation;
- and export authorization.

Runtime state: LEGAL REVIEW REQUIRED / EXPORT HELD

Export effect: No carrier-, reserve-, settlement-, mediation-, filing-, motion-, jury-instruction-, or trial-facing reliance release is authorized.

Required Fixes Before VerdictReady

1. Complete actual evidentiary record
2. Authenticated exhibits
3. Certified deposition testimony

4. Full reconstruction reports and source data
5. Medical records and expert reports
6. Billing, payment, adjustment, lien, and payoff records
7. Payroll and employer evidence
8. Vocational and economic reports
9. Social-media originals and metadata
10. Item-specific admissibility purposes
11. Motions-in-limine rulings
12. Current instruction verification
13. Attorney review
14. Replay validation
15. Express export authorization

Required Fixes Before FilingReady

1. Identify the specific motion, memorandum, or filing
2. Confirm court and applicable procedural rule
3. Define the relief requested
4. Supply complete record citations
5. Obtain official copies of cited opinions
6. Verify every pinpoint
7. Complete adverse-authority and negative-treatment review
8. Confirm quotation fidelity
9. Confirm procedural and standard alignment
10. Remove unsupported factual propositions
11. Verify current jury instructions where applicable
12. Obtain attorney approval
13. Complete filing-specific replay
14. Obtain express export authorization

Adversarial Risk

The principal adversarial risks are:

- treating gross billed charges as automatic recoverable damages;
- treating accepted amounts as conclusive reasonable value;
- exposing insurance or governmental payer identity unnecessarily;
- confusing a patient balance with a valid lien;
- treating citation issuance as an adjudication of negligence;
- presenting a paraphrased driver admission as an exact quotation;
- allowing speed evidence without a causal bridge;
- relying on the 2.1-second model without defined inputs;
- presenting impairment percentages without methodology;
- converting “possible” knee replacement into expected care;
- projecting historical overtime through an entire work life;
- presenting cropped social-media images without context;
- relying on a provisional motion-in-limine ruling as definitive;
- and tendering obsolete or unverified model instructions.

Evidentiary Issues

The principal issues are:

- relevance;
- authentication;
- hearsay;
- business-record foundation;
- public-record limitations;
- personal knowledge;
- lay-versus-expert boundaries;
- expert qualifications;
- scientific reliability;
- reasonable medical value;
- medical necessity;
- collateral sources;
- legal lien status;
- medical probability;
- future-damages certainty;
- unfair prejudice;
- completeness;
- demonstrative accuracy;
- and limiting instructions.

Record / Appellate Issues

A complete trial record would need to preserve:

- evidentiary motions;
- responses;
- hearings;
- definitive or provisional rulings;
- exhibits;
- excluded exhibits;
- offers of proof;
- contemporaneous objections where required;
- limiting instructions;
- expert qualification testimony;
- Rule 702 findings;
- tendered instructions;
- refused instructions;
- objections to instructions;
- final instructions;
- verdict forms;
- and post-trial motions.

No actual appellate record exists.

Confidence / Hallucination Risk

Consistency with Chapters 1–6: 97/100

Current Indiana rule verification: 96/100

Historic case proposition accuracy: 88/100

Current negative-treatment confidence without comprehensive citator: 68/100

Record-specific admissibility confidence: 42/100

Jury-instruction-number confidence: Not determinable; no numbers released

Hallucination risk if case treatment, pinpoints, quotation language, instruction numbers, lien status, expert methodology, or evidentiary foundations are supplied without verification: High

Attorney-review status: Not reviewed

Release status: Held

FINAL CHAPTER STATUS

The Indiana evidentiary framework, medical-expense authority, collateral-source controls, traffic-citation analysis, driver-admission boundaries, reconstruction and medical-expert gates, future-damages standards, social-media requirements, motion-in-limine plan, instruction work queue, authority records, and audit tables are established for synthetic attorney-review use.

No canonical fact was added or changed.

Current Indiana rules were verified through official sources. Historic case authorities remain subject to official-copy and comprehensive citator confirmation. No exact current Indiana Model Civil Jury Instruction number was released without verification.

VerdictReady: No
FilingReady: Not yet determinable
Runtime state: LEGAL REVIEW REQUIRED / EXPORT HELD
Attorney review required.

CHAPTER 8

DEFENSE EXPOSURE AND SETTLEMENT ASSESSMENT

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Claimant:	Michael Turner, synthetic plaintiff
Artifact designation:	Synthetic Defense Exposure and Settlement Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Controlling driver-testimony source:	Synthetic Driver Deposition Record v1.0
Controlling claimant-testimony source:	Synthetic Claimant and Spouse Testimony Record v1.0
Controlling medical source:	Synthetic Medical, Causation, and Permanency Record v1.0
Controlling economic source:	Synthetic Economic Damages and Medical-Expense Record v1.0
Controlling evidentiary source:	Synthetic Indiana Evidence and Authority Record v1.0
Settlement-assessment source expanded:	SYN-MED-SET-001
Facts changed:	None
New canonical facts created:	None
Existing valuation bands changed:	None
New valuation predictions created:	None
Release status:	Internal attorney-review demonstration only

SYNTHETIC DEFENSE EXPOSURE AND SETTLEMENT DEMONSTRATION — NOT A VERDICT PREDICTION, RESERVE RECOMMENDATION, CLAIMS-HANDLING DIRECTIVE, SETTLEMENT AUTHORITY, COVERAGE OPINION, MEDIATION STATEMENT, OR TRIAL-EXPOSURE GUARANTEE.

The matter, participants, policies, evidence, damages, and valuation scenarios are synthetic. The numerical bands are structured analytical scenarios, not statistical forecasts. No probability of outcome is assigned, and no scenario establishes the value of a real claim.

No number in this chapter is authorized as a reserve, settlement demand, settlement offer, carrier authority level, mediation position, or trial prediction. Settlement posture and trial exposure are distinct. Gross modeled exposure and comparative-fault-adjusted exposure are distinct. Policy-layer arithmetic is not a coverage opinion.

No trial-facing use of coverage information is authorized. No carrier-, mediation-, filing-, or trial-facing reliance release is authorized without attorney review, carrier review where applicable, replay validation, and express export approval.

VerdictReady: No

FilingReady: Not applicable

Release status: Internal attorney-review demonstration only.

This chapter implements the supplied Chapter 8 drafting contract and preserves the five existing valuation bands and four legacy damages scenarios without amendment. It supplements but does not amend Chapters 1–7. The controlling record continues to classify the collision facts, driver statement, claimant presentation, medical consequences, economic inputs, evidentiary limits, and coverage information separately.

8.1 EXECUTIVE DEFENSE ASSESSMENT

The present synthetic record creates substantial primary-liability exposure. Hoosier Freight's tractor-trailer began a left turn across two eastbound lanes, Turner approached eastbound on a motorcycle, and the motorcycle struck the passenger side of the trailer. Cole reportedly saw the motorcycle before impact and misjudged its distance and speed. The exact wording and context of that statement remain unresolved, but the proposition materially limits a defense strategy built around denial of core responsibility.

A limited comparative-fault position may exist through the defense reconstruction estimate of approximately 52–53 mph in a posted 45-mph area. That position remains dependent on a complete reconstruction foundation and a causal bridge between any excess speed and collision occurrence, avoidability, or severity. The present record does not establish an adjudicated rider-fault percentage.

The damages exposure is substantial because Turner sustained severe objective orthopedic injuries, invasive treatment, a prolonged hospitalization, inpatient rehabilitation, outpatient therapy, retained hardware, visible scarring, reduced motion, an activity-dependent limp, continuing pain, and some permanent impairment. The medical record is strongest as to acute causation and treatment severity. The principal medical disputes concern the degree of impairment, functional effect, hardware removal, future degeneration, and possible knee replacement.

The most important defense leverage is Turner's functional recovery. He returned to restricted duty at approximately month 11 and to full-time employment at the same hourly rate at approximately month 16. That return materially constrains a total-disability or unrestricted lifetime-earnings-loss narrative. It does not prove absence of pain, impairment, scarring, gait change, or reduced endurance.

Past medical reasonable value, future knee care, future earning capacity, and noneconomic damages remain the principal valuation disputes. The largest high-side swing points are:

- admission and acceptance of future knee-replacement evidence;
- acceptance of the $250,000–$425,000 future earning-capacity model;
- minimal or no comparative fault;
- acceptance of the plaintiff medical-value range;
- and a substantial jury response to the fractures, scars, limp, pain, and recovery burden.

The recommended defense posture is disciplined concession on core injury and primary exposure, combined with firm challenge to unsupported damages expansion. Resolution should be presented internally as risk management rather than acceptance of the plaintiff's highest assumptions.

Executive issue	Current assessment	Principal support	Principal limitation	Effect on settlement posture
Primary liability	Substantial truck-fault exposure	Left-turn conflict; passenger-side trailer impact; reported observation and misjudgment	Exact testimony, scene measurements, and reconstruction absent	Supports meaningful resolution effort
Comparative fault	Limited but potentially usable	Defense 52–53 mph estimate; 45-mph posted speed	Methodology and causal contribution unresolved	Provides calibrated leverage, not a denial strategy
Acute injury	Severe and objectively significant	Open fractures, femur and acetabular injury, operative treatment, hospitalization, rehabilitation	Actual records remain unauthenticated	Raises noneconomic and medical exposure
Permanency	Some permanent residual condition likely	Competing 12% and 7% opinions; scars, limp, hardware, pain	Methodology and exact restrictions absent	Supports material but disputed permanency value
Work capacity	Strong defense leverage	Restricted-duty and full-time same-rate return	Hours, overtime, accommodations, and sustainability unresolved	Limits total-loss theory
Past medical value	Material expert dispute	Defense $225,000–$255,000; plaintiff $340,000–$390,000	Expert methodology incomplete	Major settlement swing point
Future care	Hardware care potentially supportable; knee replacement held	$34,000–$52,000 visible components; broader $35,000–$65,000 band	Broader band unreconciled; knee predicate absent	Separates central and high-side scenarios

Executive issue	Current assessment	Principal support	Principal limitation	Effect on settlement posture
Future earnings	Narrow loss possible; large model unsupported	Physical occupation and residual impairment	Full-time same-rate work; no vocational or economic report	Strong defense leverage
Noneconomic damages	Broadest uncertainty	Severe injury, scars, limp, age, recovery burden	No verified comparable-verdict data	Principal source of range width
Excess exposure	Material above $1M	$1M primary and $4M excess modeled	No policy-language analysis	Requires early primary/excess coordination

8.1.1 Preserved valuation summary

Every band below is classified as a **legacy modeled exposure or negotiation band—not an independently validated prediction**.

Band ID	Assessment band	Preserved amount	Internal purpose
V8-BAND-001	Defense target	**$1.20M–$1.40M**	Opening and mid-mediation movement; defense-oriented assumptions
V8-BAND-002	Recommended settlement zone	**$1.30M–$1.60M**	Commercial-resolution zone requiring attorney and carrier approval
V8-BAND-003	Likely trial exposure	**$1.25M–$2.20M**	Broad analytical trial-risk range
V8-BAND-004	High-side trial risk	**$2.20M–$2.95M**	Requires favorable plaintiff rulings and contested-damages acceptance
V8-BAND-005	Excess-verdict tail	**Above $3.0M**	Possible but not central; combined plaintiff-favorable conditions required

No band is designated the “correct value.”

8.2 PRINCIPAL EXPOSURE DRIVERS

Driver ID	Rank	Exposure driver	Supporting facts and IDs	Admissibility status	Why it increases exposure	What could reduce it
E8-DRV-001	Major	Left turn across two eastbound lanes	F-LIAB-001–002	Admissibility-qualified fact	Creates intuitive right-of-way and hazard narrative	Scene proof materially altering timing or lane position
E8-DRV-002	Major	Cole reportedly saw Turner and misjudged distance and speed	F-LIAB-005; SYN-DEP-DRV-001	Potentially admissible; exact wording unresolved	Directly supports perception and decision error	Context showing limited observation opportunity or materially different wording
E8-DRV-003	Material	Passenger-side trailer impact	F-LIAB-002	Fact support present; physical foundation absent	Reinforces trailer-crossing narrative	Reconstruction demonstrating unavoidable impact despite reasonable turn decision
E8-DRV-004	Major	Weak alternative-causation record for principal injuries	F-MED-001–010; F-MED-019	Potentially supportable	Makes broad medical-causation attack unlikely to succeed	Complete prior records identifying a material competing condition
E8-DRV-005	Major	Open tibia and fibula fractures	F-MED-001	Potentially supportable	Severe objective trauma with invasive treatment	Accurate medical framing showing substantial recovery
E8-DRV-006	Major	Femoral and acetabular fractures	F-MED-002–003	Potentially supportable	Supports pain, mobility, gait, and permanency claims	Objective recovery and lower impairment evidence
E8-DRV-007	Material	Wrist, rib, pulmonary, laceration, and road-rash injuries	F-MED-004	Acute support stronger than permanent support	Increases acute suffering and treatment narrative	Proof that continuing significance is limited
E8-DRV-008	Major	Air transport and approximately 21-day hospitalization	F-MED-005; F-MED-009	Potentially supportable	Strong severity and recovery-burden evidence	Complete records limiting complication narrative
E8-DRV-009	Major	Debridement, external fixation, ORIF, skin grafting, and wound closure	F-MED-006–008	Potentially supportable	Multiple invasive procedures create significant jury impact	Proportional, medically accurate presentation
E8-DRV-010	Material	Inpatient rehabilitation and six months of therapy	F-MED-010	Potentially supportable	Demonstrates lengthy functional recovery	Therapy evidence showing substantial objective improvement
E8-DRV-011	Material	Retained hardware	F-MED-007; F-MED-015	Presence supportable; symptom relationship disputed	Supports continuing injury and future-care narrative	Evidence that hardware is tolerated and removal is unnecessary or limited

Driver ID	Rank	Exposure driver	Supporting facts and IDs	Admissibility status	Why it increases exposure	What could reduce it
E8-DRV-012	Material	Visible scarring	F-MED-014	Potentially supportable; dimensions absent	Creates permanent visual noneconomic evidence	Accurate photographs and limitation of exaggerated description
E8-DRV-013	Material	Activity-dependent limp	F-MED-014	Extent disputed	Strong observable permanency evidence	Variability, gait testing, and activity context
E8-DRV-014	Material	Continuing pain and reduced endurance	F-MED-014; D-009	Generally supported; degree disputed	Supports long-duration noneconomic claim	Work, activity, treatment, and objective-function evidence
E8-DRV-015	Conditional	Turner was 33 at collision	F-PERS-001	Canonical synthetic fact	Extends alleged duration of residual effects	Age is context, not a damages multiplier
E8-DRV-016	Material	Stable work history	F-PERS-004	Work history canonical; presentation analytical	Supports credibility and mitigation	Objective payroll or attendance inconsistencies
E8-DRV-017	Conditional	Understated or work-oriented presentation risk	F-PERS-004	Attorney assessment—not evidence	A credible, restrained claimant may outperform aggressive damages framing	Inconsistencies, exaggeration, or unreliable testimony
E8-DRV-018	Material	Return-to-work effort may strengthen credibility	F-WAGE-003–004	Canonical timeline; details missing	Allows claimant to argue perseverance despite injury	Evidence of substantial unrestricted function
E8-DRV-019	Conditional	Plaintiff’s 12% impairment opinion	F-MED-012; D-005	Held pending expert foundation	Provides a numerical permanency anchor	Defense methodology, cross-examination, and 7% opinion
E8-DRV-020	Conditional	Plaintiff reasonable-value range	F-DAM-006; D-004	Held pending expert foundation	Raises past-medical scenario by approximately $115,000–$135,000 over defense endpoints	Defense billing methodology and accepted-amount evidence
E8-DRV-021	Conditional	Potential hardware removal	F-MED-015–016	Potentially supportable	Adds future care and reinforces permanency	Probability, timing, scope, and cost challenges
E8-DRV-022	Major	Noneconomic uncertainty	D-011	Attorney exposure assessment—not evidence	No fixed formula constrains pain, scars, limp, and recovery burden	Credible proportionality presentation and retained-function evidence
E8-DRV-023	Limited	No strong alcohol, drug, phone, or rider-equipment defense presently modeled	F-LIAB-010	Record completeness unresolved	Removes common blame-shifting themes	Newly authenticated contrary evidence
E8-DRV-024	Limited	No modeled HOS, maintenance, or spoliation issue	F-LIAB-011	Internal synthetic use only	Narrows defense distractions but also limits corporate-escalation themes	Actual records showing a separate operational issue
E8-DRV-025	Conditional	Potential excess-layer involvement	F-COV-001–003	Internal only	Increases need for coordinated commercial evaluation	Resolution below or near the primary layer

Turner’s age, marriage, children, and occupational identity are context. None is an automatic multiplier. The exposure arises from the injuries, treatment, permanency evidence, function, credibility, and admissible damages proof.

8.3 PRINCIPAL DEFENSE LEVERAGE

Leverage ID	Defense leverage	Supporting record	Required foundation	Plaintiff response	Credibility risk if overstated
E8-LEV-001	Defense speed estimate of approximately 52–53 mph	F-LIAB-007; D-001	Complete reconstruction report and source data	Plaintiff estimate is 46–49 mph	High if presented as measured fact
E8-LEV-002	Speed must be causally linked to occurrence or avoidability	D-002–003; L7-012–014	Time-distance, stopping, lane-occupancy, and alternative-speed analysis	Truck still turned across Turner’s path	Low if framed carefully
E8-LEV-003	Limited comparative fault may reduce exposure	Existing 5% and 10% scenario assumptions	Reliable reconstruction and causation	Primary truck fault remains substantial	High if an aggressive percentage is argued without support
E8-LEV-004	Restricted-duty return around month 11	F-WAGE-003	Payroll and employer testimony	Demonstrates only partial recovery	Low
E8-LEV-005	Full-time same-rate return around month 16	F-WAGE-004	Hours, duties, overtime, attendance, accommodations	Same rate may not equal same total earnings	Moderate if treated as complete recovery
E8-LEV-006	Substantial retained earning capacity	F-WAGE-004; F-WAGE-006	Payroll, job demands, vocational proof	Physical sustainability and labor-market access may still be reduced	Moderate
E8-LEV-007	Defense 7% impairment opinion	F-MED-013	Guide, examination, measurements, calculation	Plaintiff assigns 12%	High if methodology is not disclosed

Leverage ID	Defense leverage	Supporting record	Required foundation	Plaintiff response	Credibility risk if overstated
E8-LEV-008	Accepted amount is approximately $247,800	F-DAM-002	Complete accepted-amount ledger and sanitized trial presentation	Accepted amount is not necessarily market value	High if treated as conclusive
E8-LEV-009	Defense medical-value range is $225,000–$255,000	F-DAM-005	Billing expert methodology	Plaintiff range is $340,000–$390,000	High if expert merely adopts payments
E8-LEV-010	No verified lifetime-overtime foundation	D-008; C6-D008	Multi-year payroll and employer evidence	Historical 46-hour average supports some overtime pattern	Low
E8-LEV-011	No employer, vocational, or economist report	F-WAGE-005–006	Complete expert and employer record	Plaintiff may later supply those sources	Low if described as a current gap
E8-LEV-012	Knee replacement remains contingent	F-MED-017–018; D-007	Imaging and sufficiently certain medical opinion	Post-traumatic degeneration risk may remain	Low
E8-LEV-013	No current knee imaging or probability foundation supplied	C5-D006; L7-019	Authenticated imaging and expert testimony	Plaintiff may cure the gap	Low
E8-LEV-014	Visible future-care components total $34,000–$52,000	C6-CALC-007–008	Physician direction and cost foundation	Broader $35,000–$65,000 band is asserted	Low
E8-LEV-015	Travel, fishing, and light projects	F-PERS-005; D-010	Authentication and complete context	Activity may be limited, assisted, or followed by pain	High if characterized as fraud
E8-LEV-016	No HOS, maintenance, or spoliation issue is modeled	F-LIAB-011	Actual records	Absence of a modeled issue is not proof of complete compliance	Moderate
E8-LEV-017	Clean driving history	F-LIAB-012	Proper limited purpose	Does not prove due care on this occasion	High if used as propensity evidence
E8-LEV-018	No established punitive-damages predicate	F-LIAB-011; present record	Pleadings and evidence	Plaintiff may develop corporate facts later	Low if stated as current status only
E8-LEV-019	No adjudicated rider-fault percentage	D-003	Reconstruction and factfinder allocation	Plaintiff may argue zero fault	Low
E8-LEV-020	Evidentiary limits affect citation, social media, expert opinions, and payment evidence	L7-003, L7-008, L7-012–022	Actual exhibits and rulings	Plaintiff may cure foundation defects	Low

The defense position must preserve the following boundaries:

- Full-time work does not prove no pain.
- Activity evidence does not prove unrestricted capacity.
- Accepted amounts do not automatically establish exclusive reasonable value.
- Clean driving history does not prove due care in this collision.
- Contingent knee replacement does not establish absence of all future orthopedic risk.
- The defense damages position is strongest when it acknowledges the seriousness of Turner’s injuries.

8.4 COMPARATIVE-FAULT ASSESSMENT

Primary truck fault remains the strongest current assessment. The left-turn movement, trailer position, and reported observation and misjudgment create substantial exposure. The speed dispute may support limited comparative fault only if the defense establishes:

1. Turner’s actual speed through reliable methodology;
2. the time and distance available;
3. the truck’s lane-occupancy sequence;
4. Turner’s braking or steering options;
5. whether impact would have occurred at 45 mph;
6. and whether any excess speed affected occurrence rather than merely severity.

Speed above the posted limit does not automatically establish causal fault.

Comparative-fault issue	Current support	Plaintiff position	Defense position	Evidence required	Present status
Actual speed	Plaintiff 46–49 mph; defense 52–53 mph	Near-limit travel	Excess speed	Full reports, data, calculations	Contested
Posted speed	45 mph	Context only	Baseline for excess-speed theory	Roadway and sign proof	Supported context
Reaction interval	Approximately 2.1 seconds modeled	Insufficient reaction opportunity	Speed may have reduced opportunity	Defined start/end points and method	Held
Stopping distance	No canonical value	Collision unavoidable after trailer entered path	Excess speed affected stopping	Grade, friction, braking, reaction data	Unresolved
Avoidability	No complete model	Truck turn created collision	Rider retained some avoidance opportunity	Integrated reconstruction	Unresolved
Comparative percentage	None adjudicated	0% rider fault	Limited rider fault	Factfinder after admissible proof	Unresolved
Citation	Cole reportedly cited	Supports failure-to-yield theme	Citation is not civil adjudication	Actual citation and disposition	Trial-facing use held

The 5% and 10% figures in the legacy assessment are analytical assumptions. The high scenario uses 0%–5%, and the excess scenario assumes 0% or minimal comparative fault. None is a recommendation to argue a specific percentage at trial.

8.4.1 Comparative-fault sensitivity

Formula:

Gross modeled damages × (1 − assumed comparative-fault percentage)

The 15% column is an additional sensitivity assumption and is not part of the preserved Turner assessment.

Most-likely gross range: $1,221,000–$1,862,000

Assumed Turner fault	Lower adjusted amount	Upper adjusted amount	Classification
0%	$1,221,000	$1,862,000	Comparative-fault sensitivity
5%	$1,159,950	$1,768,900	Preserved most-likely assumption
10%	$1,098,900	$1,675,800	Additional sensitivity
15%	$1,037,850	$1,582,700	Additional analytical sensitivity only

High gross range: $2,028,000–$2,763,000

Assumed Turner fault	Lower adjusted amount	Upper adjusted amount	Classification
0%	$2,028,000	$2,763,000	Preserved high-scenario boundary
5%	$1,926,600	$2,624,850	Preserved high-scenario fault sensitivity
10%	$1,825,200	$2,486,700	Additional sensitivity
15%	$1,723,800	$2,348,550	Additional analytical sensitivity only

These calculations do not alter V8-BAND-001 through V8-BAND-005.

An aggressive rider-fault demand creates credibility risk. A jury may view a large comparative allocation as inconsistent with the truck’s left turn and Cole’s reported admission. The more defensible position is that any proven speed may modestly affect avoidability or severity without displacing primary truck responsibility.

8.5 PAST MEDICAL-DAMAGES SCENARIOS

Chapters 6 and 7 distinguish billed, accepted, paid, adjusted, patient-responsibility, lien, and reasonable-value categories. They cannot be combined.

Medical-value reference point	Amount	Source classification	Evidentiary status	Scenario use	Prohibited inference
Gross billed charges	$412,640	Canonical synthetic financial fact	Potentially usable subject to Rule 413 foundation	Potential plaintiff anchor	Automatic recoverable value
Accepted amounts	$247,800	Canonical synthetic financial fact	Potentially usable with proper foundation	Defense and middle-risk context	Exclusive reasonable value
Defense expert range	$225,000–$255,000	Defense reasonable-value opinion	Held pending methodology	Low and lower-middle scenarios	Conclusive market value
Low-scenario medical amount	$225,000	Legacy modeled scenario	Depends on defense expert	Lower endpoint	Verified damages amount
Most-likely scenario range	$240,000–$300,000	Legacy modeled scenario	Not a separate expert opinion	Central valuation architecture	Compromise expert opinion
Plaintiff expert range	$340,000–$390,000	Plaintiff reasonable-value opinion	Held pending methodology	High-side risk	Established reasonable value
High-scenario range	$340,000–$390,000	Legacy modeled scenario	Tracks plaintiff expert range	Plaintiff-success scenario	Automatic award
Insurance payments	$211,500	Modeled accounting amount	Trial-facing use held	Internal reconciliation only	Deduction from reasonable value
Responsibility or lien figure	$36,300	Modeled combined amount	Enforceability unresolved	Settlement administration only	Addition to medical value

The low scenario uses the lower endpoint of the defense expert range. The accepted amount lies within the defense range.

The most-likely $240,000–$300,000 range is not a separate expert opinion. Its lower portion overlaps the defense range. Its upper endpoint exceeds the defense range but remains below the plaintiff range. It is therefore a legacy risk band reflecting uncertainty rather than a reconciled expert value.

The high scenario adopts the plaintiff expert range.

The gross billed total remains a potential jury anchor but is not an automatic recoverable amount. No insurance payment or lien amount is added to any reasonable-value figure.

8.5.1 Lower medical-value position

Range reference: $225,000–$255,000
Classification: Defense expert opinion; contested
Presentation: Emphasize coding, accepted amount, market methodology, and avoidance of gross-charge anchoring.
Risk: Appearing to minimize extensive trauma care without a transparent expert method.

8.5.2 Middle medical-value risk

Range reference: $240,000–$300,000
Classification: Legacy modeled scenario—not an expert opinion
Presentation: Recognize the accepted amount and defense range while allowing for factfinder uncertainty.
Risk: The $300,000 endpoint lacks a separately identified methodology.

8.5.3 Plaintiff medical-value acceptance risk

Range reference: $340,000–$390,000
Classification: Plaintiff expert opinion; contested
Presentation: High-side risk if plaintiff methodology survives challenge and appears more persuasive.
Risk: Plaintiff must still establish reliable source data, coding analysis, market relevance, and treatment connection.

No compromise medical value is selected.

8.6 FUTURE-CARE SCENARIOS

Future-care scenario	Amount	Medical predicate	Chapter 5–7 status	Inclusion rule	Principal risk
Low	$35,000	Hardware removal and limited follow-up	Broadly consistent with lower modeled future care	Excludes knee replacement	Probability and cost still require proof
Most likely	$45,000–$65,000	Hardware-related care, follow-up, and imaging	Upper portion exceeds visible $34,000–$52,000 components	May be used only as legacy modeled range	Unreconciled upper $13,000
High	$160,000–$220,000	Combined hardware-related care and future-knee exposure	Knee replacement remains held	High-side only	Arithmetic consistency may be mistaken for medical proof
Excess	Included within $1.00M–$1.25M aggregate economic damages	Full future-care and earning assumptions	Exact allocation absent	Scenario condition only	Double counting and unsupported allocation

8.6.1 Reconciliation

Visible hardware-removal and follow-up components:

$28,000–$42,000 + $6,000–$10,000 = **$34,000–$52,000**

Broader stated band:

$35,000–$65,000

Knee-replacement model:

$125,000–$180,000

Combined visible components plus knee replacement:

Lower: $34,000 + $125,000 = **$159,000**
Upper: $52,000 + $180,000 = **$232,000**

The high scenario’s $160,000–$220,000 range is arithmetically consistent with a combined-care concept. That arithmetic does not establish:

- medical probability;
- timing;
- causation;
- current degeneration;
- necessity;
- reasonable cost;

- or legal recoverability.

The knee-replacement predicate remains held.

8.6.2 Double-counting controls

Any future-care model must separately account for:

- hardware removal;
- physician follow-up;
- imaging;
- postoperative visits;
- postoperative therapy;
- knee replacement;
- knee-replacement rehabilitation;
- and wage absence related to future treatment.

A procedure cost may not be embedded within both the medical-care figure and an unitemized life-care aggregate.

Future lost earnings from surgery must not be included within medical costs.

8.7 WAGE AND EARNING-CAPACITY SCENARIOS

8.7.1 Past wage-loss scenarios

Scenario	Modeled amount	Current record support	Missing proof	Classification
Low	$61,000	$35 hourly rate, 46-hour historical average, return chronology	Exact absence, actual earnings, offsets	Legacy modeled scenario
Most likely	$61,000–$72,000	Same baseline	Restricted-duty rate and hours; paid leave; disability	Legacy modeled scenario
High	$78,000	Same baseline	Complete payroll calculation and offsets	Legacy modeled scenario

Chapter 6 does not establish a final past wage loss. Exact work-absence dates are missing. Restricted-duty earnings are missing. Paid leave, disability, wage continuation, workers' compensation, and other offsets are missing.

The month-11 restricted-duty return does not establish exactly eleven months of zero earnings.

None of the legacy amounts may be described as verified payroll loss.

8.7.2 Future earning-capacity scenarios

Scenario	Modeled amount	Assumption	Defense challenge	Current status
Low	$0	No compensable future capacity loss	Requires verified post-return earnings before treating as established	Defense boundary scenario
Most likely	$75,000–$175,000	Limited overtime, advancement, labor-market, or interruption effect	No formula, employer, vocational, or economist support	Legacy modeled only

Scenario	Modeled amount	Assumption	Defense challenge	Current status
High	$250,000–$425,000	Material future earning-capacity loss	Same-rate full-time return; no methodology	Held plaintiff high-side theory
Excess	Included in $1.00M–$1.25M aggregate economic damages	Full acceptance of future earnings and medical components	Exact allocation not supplied	Held scenario condition

Zero is a boundary scenario, not an established finding.

The $75,000–$175,000 central range is not tied to a supplied formula. It may represent some combination of reduced overtime, reduced job access, promotion loss, or interruption risk, but the record does not allocate the amount among those theories.

The $250,000–$425,000 range is the plaintiff high-side theory preserved in Chapter 6.

No approved vocational or economist source exists. The record does not supply:

- work-life duration;
- retirement age;
- growth rate;
- discount rate;
- present-value method;
- fringe benefits;
- verified overtime premium;
- post-return overtime history;
- employer demand;
- or a before-and-after labor-market analysis.

Full-time same-rate work materially limits a total-loss theory. It does not necessarily eliminate a narrower theory involving reduced overtime, advancement, labor-market access, or future interruption.

No new future-loss total is calculated.

8.8 NONECONOMIC-DAMAGES EXPOSURE

Every noneconomic range below is an **attorney exposure scenario—not derived from verified comparable verdicts**.

Scenario	Preserved noneconomic band
Low	$550,000–$750,000
Most likely	$800,000–$1,250,000
High	$1,200,000–$1,650,000
Excess	$1,750,000–$2,250,000

Noneconomic driver	Plaintiff use	Defense response	Current support	Potential effect
Open fractures	Objective severity	Acknowledge and focus on recovery	Strong synthetic support	Major
Multiple operative procedures	Pain and treatment burden	Require accurate, noncumulative presentation	Strong occurrence support	Major
Hospitalization	Prolonged acute suffering	Clarify actual course and complications	Approximately 21 days supplied	Major
Rehabilitation	Dependence and difficult recovery	Show improvement and mitigation	Inpatient and outpatient course supplied	Material
Visible scars	Permanent disfigurement	Require photographs, dimensions, and proportionality	General scarring supported	Material to major

Noneconomic driver	Plaintiff use	Defense response	Current support	Potential effect
Limp	Observable permanency	Show activity-dependent variability	General limp supplied	Material
Continuing pain	Long-term loss	Test frequency, severity, treatment, and function	Generally supported	Material
Reduced endurance	Daily and occupational effect	Require objective and vocational correlation	General support	Moderate to material
Impairment	Numerical permanency anchor	Methodology contested; not a multiplier	12% versus 7%	Conditional
Retained hardware	Continuing physical reminder and future care	Presence does not prove removal necessity	Supported	Material
No return to motorcycling	Specific loss of enjoyment	Test prior frequency and reason	F-PERS-006	Moderate
Family and household effects	Daily-life burden	Require actual claimant and spouse proof	General context; details unresolved	Conditional
Age and duration	Longer claimed residual period	Context only, not automatic multiplier	Age 33 supplied	Conditional
Work ethic	Credibility and perseverance	Also demonstrates retained capacity	Stable work history and return supplied	Bidirectional
Full-time return	Plaintiff may argue work despite pain	Strong evidence against total disability	Supported	Defense leverage
Travel and fishing	Plaintiff may show adaptation	Defense may calibrate claimed limitation	Contextual evidence only	Moderate
Light projects	Functional evidence	Require complete context	Contextual only	Moderate
Credibility	Restrained claimant may be persuasive	Inconsistencies remain proper subjects	Presentation not verified	Major uncertainty

The defense should acknowledge visible and objective injury. It should not attack ordinary family activity as proof of fraud. The better distinction is between:

- injury and total disability;
- pain and incapacity;
- selected activity and unrestricted function;
- impairment and economic loss;
- and permanent residuals and the plaintiff’s highest valuation assumptions.

No medical-bill multiplier is used.

Neither the 12% nor the 7% impairment rating is converted into a noneconomic formula.

No separate spouse-consortium award is added because the canonical record does not identify a separate consortium claim.

8.9 PRIMARY AND EXCESS COVERAGE CONSIDERATIONS

INTERNAL COVERAGE-LAYER DISCUSSION — NOT TRIAL EVIDENCE AND NOT A COVERAGE OPINION

The synthetic coverage structure is:

- **Primary limit:** $1,000,000
- **Excess limit:** $4,000,000
- **Total modeled tower:** $5,000,000

- **Coverage dispute:** None modeled

The coverage facts are internal-only classifications and remain excluded from trial-facing output.

Band	Gross amount	Primary-layer arithmetic	Excess-layer arithmetic	Coverage significance	Limitation
Defense target	$1.20M–$1.40M	First $1.00M	$200,000–$400,000	Excess participation likely	Subject to policy verification
Settlement zone	$1.30M–$1.60M	First $1.00M	$300,000–$600,000	Requires coordinated authority	Not a coverage conclusion
Likely trial exposure	$1.25M–$2.20M	First $1.00M	$250,000–$1.20M	Material excess risk	Gross band is not verdict prediction
High-side trial risk	$2.20M–$2.95M	First $1.00M	$1.20M–$1.95M	Significant excess involvement	Assumes contested plaintiff successes
Excess scenario	$2.75M–$3.50M	First $1.00M	$1.75M–$2.50M	Substantial excess payment model	Does not exhaust $5M tower
Above-$3M tail	Above $3.00M	First $1.00M	More than $2.00M	Excess-dominant risk	Upper boundary not defined by V8-BAND-005

Classification for all results: Carrier-layer arithmetic—subject to policy and claims verification.

The modeled $2.75M–$3.50M excess scenario does not exhaust the total $5M tower. Its upper endpoint leaves approximately $1.50M within the modeled tower before total exhaustion. That arithmetic does not address:

- policy wording;
- defense-cost erosion;
- interest;
- deductibles;
- self-insured retention;
- aggregate limits;
- exhaustion mechanics;
- exclusions;
- reservations of rights;
- consent provisions;
- settlement control;
- allocation;
- or bad faith.

8.9.1 Carrier coordination implications

The modeled ranges support:

- early excess engagement;
- a shared primary/excess view of the liability record;
- consistent treatment of knee-replacement and earning-capacity gates;
- coordinated mediation authority;
- prompt reporting of expert and evidentiary developments;
- and separation of internal coverage analysis from trial evidence.

No policy interpretation is issued.

8.10 DEFENSE TARGET RANGE

V8-BAND-001 — Defense target: $1.20M–$1.40M

Classification: Legacy negotiation posture—not settlement authority.

The Turner assessment associates the range with:

- defense medical-value proof;
- rejection or limitation of contingent future care;
- limited future earning loss;
- some comparative-fault leverage;
- and controlled noneconomic exposure.

The target is not:

- the low-scenario adjusted verdict range;
- a concession of legal value;
- settlement authority;
- a reserve;
- or a prediction of a mediator's proposal.

Target-range consideration	Support	Countervailing risk	Effect on use
Medical value	Defense $225,000–$255,000 range and accepted $247,800	Plaintiff $340,000–$390,000 range	Supports defense-oriented movement
Future care	Hardware and follow-up may be bounded	$35,000–$65,000 band partly unreconciled	Requires conditional treatment
Knee replacement	Contingent and held	Plaintiff may cure medical foundation	Exclude from target unless record changes
Past wages	Legacy $61,000–$72,000 range	No final payroll calculation	Use as scenario, not verified loss
Future capacity	Same-rate full-time work	Narrow loss may remain	Limits but does not eliminate
Comparative fault	5%–10% sensitivity	Causal foundation absent	Use cautiously
Noneconomic exposure	Retained function and activity	Severe injuries and claimant credibility	Prevents low-scenario-only posture
Liability	Some speed leverage	Primary truck exposure strong	Requires target above low adjusted scenario
Excess layer	Target exceeds $1M	Policy details absent	Requires coordinated authority

The target sits above the low-scenario adjusted range of $783,900–$963,900 because settlement posture accounts for risks not captured by the low case:

- substantial primary-liability exposure;
- severe objective injuries;
- claimant credibility;
- noneconomic unpredictability;
- litigation uncertainty;
- trial risk;
- and excess-layer involvement.

No litigation-cost amount is assigned.

8.11 RECOMMENDED SETTLEMENT ZONE

V8-BAND-002 — Recommended settlement zone: $1.30M–$1.60M

Classification: Legacy commercial-resolution zone—attorney and carrier approval required.

The zone overlaps the middle of the most-likely modeled scenario and reflects strong injury and liability proof while preserving meaningful defense leverage on future care, earnings, comparative fault, and noneconomic proportionality.

Settlement-zone factor	Directional effect	Present support	Unresolved item
Primary liability	Upward	Left-turn facts and reported misjudgment	Exact statement and reconstruction
Comparative fault	Downward if proven	Defense speed estimate	Causal methodology
Past medical value	Either direction	Competing expert ranges	Expert foundations
Hardware removal	Modest upward	Potentially supportable	Probability and cost
Knee replacement	Significant upward if admitted	Possible or contingent only	Imaging and probability
Past wages	Moderate upward	Work interruption and return chronology	Payroll and offsets
Future capacity	Potential upward	Physical occupation and residuals	Employer and vocational proof
Same-rate return	Downward	Full-time same-rate employment	Hours and overtime
Noneconomic damages	Major upward uncertainty	Fractures, scars, limp, recovery	No verified comparables
Claimant presentation	Potential upward	Stable work history and restrained presentation assessment	Actual testimony
Defense credibility	Bidirectional	Serious injury should be acknowledged	Risk of overreach
Evidence rulings	Bidirectional	Chapter 7 identifies major gates	Actual rulings absent
Mediation timing	Commercial consideration	Mediation approximately 60 days away	Expert completion status
Excess involvement	Supports coordination	All central bands exceed $1M	Authority and policy verification

Settlement within this range is not required. No single settlement number or preferred midpoint is selected.

8.12 LIKELY TRIAL-EXPOSURE RANGE

V8-BAND-003 — Likely trial exposure: $1.25M–$2.20M

Classification: Legacy analytical trial-exposure band—not a probability-weighted verdict forecast.

Range	Purpose	Lower-bound assumption	Upper-bound assumption	Comparative-fault treatment	Current status
Most-likely gross	$1.221M–$1.862M	Lower medical, limited future care/capacity, $800k noneconomic	Higher central components and $1.25M noneconomic	None before adjustment	Legacy modeled
Most-likely adjusted	$1.15995M–$1.7689M	Same	Same	5%	Legacy modeled
Likely trial exposure	$1.25M–$2.20M	Defense-middle proof	Some plaintiff success on disputed categories	Not fixed	Legacy analytical band
High adjusted	$1.9266M–$2.763M	High components reduced by 5% at lower boundary	High upper boundary with 0%	0%–5%	Legacy modeled
Settlement zone	$1.30M–$1.60M	Commercial risk management	Commercial risk management	Not a verdict calculation	Negotiation posture

The likely trial-exposure band is broader than the most-likely scenario and overlaps the lower part of the high scenario. That overlap is intentional. It reflects uncertainty regarding what evidence will be admitted, which expert views will be credited, and where the jury will value noneconomic loss.

8.12.1 Lower part of the band

A result near the lower portion would generally require:

- defense medical-value proof;
- no knee replacement;
- limited future earning loss;
- some comparative fault;
- bounded noneconomic damages;
- and strong retained-function evidence.

8.12.2 Middle of the band

A middle result would generally involve:

- accepted or moderate medical value;
- hardware-related future care;
- some past wage loss;
- limited future earning-capacity loss;
- meaningful noneconomic damages;
- and little comparative fault.

8.12.3 Upper part of the band

A result near the upper portion would generally require:

- plaintiff-favorable medical-value evidence;
- broader future care;
- stronger permanency proof;
- material earning loss;
- little or no comparative fault;
- and a strong jury response to scars, limp, pain, and recovery burden.

The band is not forced to equal the scenario arithmetic.

8.13 HIGH-SIDE AND EXCESS-VERDICT RISK

Preserved ranges:

- **V8-BAND-004 — High-side trial risk:** $2.20M–$2.95M
- **V8-BAND-005 — Excess-verdict tail:** Above $3.0M
- **S8-SCN-004 — Excess scenario:** $2.75M–$3.50M

High-side condition	Current status	What plaintiff must establish	Defense response	Effect if accepted
Plaintiff medical-value range	Contested	Reliable billing methodology	Defense expert and accepted-amount evidence	Raises past medical value

High-side condition	Current status	What plaintiff must establish	Defense response	Effect if accepted
Knee replacement admitted	Held	Sufficient medical probability, timing, causation, cost	Foundation and certainty challenge	Adds major future care
No care duplication	Unresolved	Itemized separate procedures	Component reconciliation	Protects full future-care award
$250,000–$425,000 capacity model	Held	Employer, vocational, economic, present-value proof	Same-rate return and methodology attack	Adds material economic loss
Lifetime overtime credited	Held	Long-term availability and premium proof	Historical-average and mitigation challenge	Raises future earnings
Plaintiff 12% impairment credited	Contested	Complete methodology	Defense 7% opinion	Strengthens permanency narrative
Social-media impeachment limited	Likely on current incomplete record	Authentication or exclusion dispute resolved	Obtain originals and context	Protects claimant credibility
Comparative fault rejected	Plausible	Undermine defense reconstruction	Establish causal speed link	Preserves gross damages
Driver admission admitted strongly	Potentially admissible	Exact statement and context	Completeness and scope	Strengthens primary liability
Citation-related evidence used adversely	Limited	Permitted purpose and foundation	Motion in limine and limiting instruction	May affect liability presentation
Scar and limp presentation	Potentially strong	Authentication and current condition	Accurate proportional response	Raises noneconomic value
High noneconomic response	Unpredictable	Credible testimony and demonstratives	Retained function and proportionality	Principal route above $2M
Defense credibility damaged	Conditional	Show unreasonable minimization or overreach	Concede core injury and exposure	Expands jury response
Plaintiff-favorable evidentiary rulings	Unknown	Survive expert and MIL challenges	Preserve objections and limit scope	Activates multiple high-side components

An excess result is not the central assessment. It requires several plaintiff-favorable conditions to occur together. No single issue—standing alone—establishes the excess scenario.

Primary exhaustion begins above $1M. The high and excess scenarios materially involve the excess layer. The $2.75M–$3.50M scenario does not exhaust the modeled $5M tower, and no uninsured exposure is modeled within that scenario ceiling.

That statement is arithmetic, not a coverage conclusion.

8.13.1 Excess-carrier alert items

- knee-replacement admissibility and medical probability;
- vocational and economic reports;
- post-return payroll and overtime;
- medical-value expert rulings;
- scar, limp, and hardware demonstratives;
- claimant credibility;
- defense credibility;
- comparative-fault expert foundation;
- and mediation-authority timing.

8.14 LIMITS ON THE NUMERICAL SCENARIOS

The scenarios do not account for or verify:

- actual comparable verdicts;
- settlement databases;
- jury probabilities;
- judge-specific rulings;
- current local trial tendencies;
- full venue analysis;
- final admissibility rulings;
- actual expert testimony;
- complete billing records;
- complete wage records;
- liens or subrogation;
- attorney fees;
- litigation costs;
- prejudgment or post-judgment interest;
- taxable costs;
- tax treatment;
- policy erosion;
- defense costs;
- policy wording;
- claimant demand;
- settlement history;
- mediator behavior;
- appeals;
- collectability;
- present value;
- inflation;
- or probability-weighted expected value.

The bands are structured scenario architecture.

The numbers do not establish a reserve.

The numbers do not create settlement authority.

The numbers do not predict a verdict.

The numbers do not substitute for trial-counsel judgment.

The numbers must change if material facts, evidence rulings, expert opinions, or damages proof change. Any movement must occur through Chapter 9’s controlled sensitivity, versioning, contradiction recheck, damages recalculation, replay, and authorization process.

The most important output is not a single number. It is the identification of the assumptions and evidentiary events that move the range.

SCENARIO ARITHMETIC VERIFICATION

C8-CALC-001 — Low-scenario gross range

Lower:

$225,000 + $35,000 + $61,000 + $0 + $550,000
= **$871,000**

Upper:

$225,000 + $35,000 + $61,000 + $0 + $750,000
= **$1,071,000**

Classification: Derived arithmetic confirming supplied legacy modeled scenario
Status: Gross
Comparative fault: Not yet applied
Export: Internal synthetic use only

C8-CALC-002 — Low-scenario 10% adjustment

Lower:

$871,000 × 0.90 = **$783,900**

Upper:

$1,071,000 × 0.90 = **$963,900**

Classification: Comparative-fault sensitivity
Status: Adjusted
Assumption: 10% Turner fault
Export: Internal synthetic use only

C8-CALC-003 — Most-likely gross range

Lower:

$240,000 + $45,000 + $61,000 + $75,000 + $800,000
= **$1,221,000**

Upper:

$300,000 + $65,000 + $72,000 + $175,000 + $1,250,000
= **$1,862,000**

Classification: Derived arithmetic confirming supplied legacy modeled scenario

C8-CALC-004 — Most-likely 5% adjustment

Lower:

$1,221,000 × 0.95 = **$1,159,950**

Upper:

$1,862,000 × 0.95 = **$1,768,900**

Classification: Comparative-fault sensitivity
Assumption: 5% Turner fault

C8-CALC-005 — High-scenario gross range

Lower:

$340,000 + $160,000 + $78,000 + $250,000 + $1,200,000
= **$2,028,000**

Upper:

$390,000 + $220,000 + $78,000 + $425,000 + $1,650,000
= **$2,763,000**

Classification: Derived arithmetic confirming supplied high scenario

C8-CALC-006 — High-scenario adjusted boundaries

Lower at 5%:

$2,028,000 × 0.95 = **$1,926,600**

Upper at 0%:

$2,763,000 × 1.00 = **$2,763,000**

Classification: Comparative-fault sensitivity
Preserved adjusted range: $1,926,600–$2,763,000

C8-CALC-007 — Excess-scenario addition

Lower:

$1,000,000 + $1,750,000 = **$2,750,000**

Upper:

$1,250,000 + $2,250,000 = **$3,500,000**

Classification: Derived arithmetic confirming supplied excess scenario

C8-CALC-008 — Excess layer above $1M primary

Lower:

$2,750,000 − $1,000,000 = **$1,750,000**

Upper:

$3,500,000 − $1,000,000 = **$2,500,000**

Classification: Carrier-layer arithmetic—not a coverage opinion

All supplied scenario arithmetic checks.

Comparative fault has not been applied twice. No lien, insurance payment, attorney fee, cost, interest, tax, or unsupported offset has been deducted.

REQUIRED SCENARIO RECONCILIATION

Scenario component	Turner assessment amount	Chapter 5–7 status	Support classification	Tension or gap	Permitted Chapter 8 use
Low past medical	$225,000	Lower endpoint of defense expert range	Contested damages input	Expert methodology incomplete	Low scenario only
Most-likely past medical	$240,000–$300,000	Overlaps defense range but extends above it	Legacy modeled scenario	$300,000 not a separate expert endpoint	Central sensitivity
High past medical	$340,000–$390,000	Matches plaintiff expert range	Contested damages input	Methodology incomplete	High-side scenario
Low future care	$35,000	Near lower broader band and visible components	Potentially supportable	Medical and cost foundation absent	Bounded future-care scenario
Most-likely future care	$45,000–$65,000	Lower portion within visible components; upper exceeds $52,000	Partly supportable; partly held	Unitemized upper difference	Central sensitivity with warning
High future care	$160,000–$220,000	Arithmetically consistent with hardware plus knee care	Held damages input	Knee replacement remains contingent	High-side only
Low past wages	$61,000	No final Chapter 6 calculation	Legacy modeled only	Payroll and offsets missing	Scenario input only
Most-likely past wages	$61,000–$72,000	No final Chapter 6 calculation	Legacy modeled only	Restricted-duty earnings missing	Scenario input only
High past wages	$78,000	No final Chapter 6 calculation	Legacy modeled only	Exact absence and compensation missing	High-side input only
Low future capacity	$0	Boundary scenario	Contested	Actual post-return earnings incomplete	Defense boundary
Most-likely future capacity	$75,000–$175,000	No supplied formula	Legacy modeled only	No vocational or economic foundation	Central sensitivity
High future capacity	$250,000–$425,000	Preserved plaintiff theory	Held damages input	Entire economic method absent	High-side only
Noneconomic ranges	$550,000–$2,250,000 depending on scenario	No verified comparables	Attorney exposure assessment	Not statistically validated	Scenario architecture only
Fault assumptions	0%, 5%, 10%, or minimal	No adjudicated percentage	Comparative-fault sensitivity	Reconstruction and causation absent	Sensitivity only
Settlement bands	$1.20M–$1.60M	Negotiation posture	Legacy modeled	Do not equate with scenario verdict total	Internal mediation planning
Trial bands	$1.25M–$2.95M plus tail	Exposure architecture	Legacy modeled	Not probability weighted	Internal risk assessment

SCENARIO CROSSWALK

Scenario ID	Liability assumption	Past medical	Future care	Past wages	Future capacity	Noneconomic	Gross range	Fault assumption	Adjusted range	Current support level
S8-SCN-001	Strong truck fault with limited rider fault	$225,000	$35,000	$61,000	$0	$550,000–$750,000	$871,000–$1,071,000	10%	$783,900–$963,900	Legacy modeled; several components contested
S8-SCN-002	Strong truck fault; modest rider fault	$240,000–$300,000	$45,000–$65,000	$61,000–$72,000	$75,000–$175,000	$800,000–$1,250,000	$1,221,000–$1,862,000	5%	$1,159,950–$1,768,900	Legacy modeled; central scenario
S8-SCN-003	Plaintiff success on major disputed damages	$340,000–$390,000	$160,000–$220,000	$78,000	$250,000–$425,000	$1,200,000–$1,650,000	$2,028,000–$2,763,000	0%–5%	$1,926,600–$2,763,000	Mostly contested or held
S8-SCN-004	Minimal fault; full plaintiff expert success	Included in aggregate	Included in aggregate	Included in aggregate	Included in aggregate	$1,750,000–$2,250,000	$2,750,000–$3,500,000	0% or minimal	Not separately recalculated	Legacy excess model; held

No fifth blended scenario is created.

SETTLEMENT-TO-TRIAL CROSSWALK

Assessment band	Amount	Relationship to scenarios	Negotiation or trial purpose	Principal assumption	Release state
V8-BAND-001 Defense target	$1.20M–$1.40M	Above low scenario; overlaps lower central risk	Mediation movement	Defense-oriented damages proof with commercial adjustment	Internal only
V8-BAND-002 Settlement zone	$1.30M–$1.60M	Inside central scenario and below much high-side risk	Commercial resolution	Strong injury and liability balanced by future-damages defenses	Attorney/carrier approval required
V8-BAND-003 Likely trial exposure	$1.25M–$2.20M	Covers central scenario and lower high scenario	Trial-risk assessment	Mixed evidentiary and expert outcomes	Internal only
V8-BAND-004 High-side trial risk	$2.20M–$2.95M	Upper high scenario and beyond	High-side planning	Plaintiff success on multiple disputed components	Held
V8-BAND-005 Excess tail	Above $3.0M	Upper excess scenario	Tail-risk alert	Minimal fault and strong economic/noneconomic awards	Held

Overlap is not inconsistency. Settlement bands incorporate commercial risk management. Trial bands describe modeled adjudicative exposure.

EXPOSURE TENSION REGISTER

Tension ID	Existing cross-reference	Proposition A	Proposition B	Classification	Required resolution	Valuation effect
C8-D001	D-001–003	Truck fault is substantial	Limited speed-based fault may exist	Valuation tension to test—not contradiction	Reconstruction and causation	Modest downward sensitivity
C8-D002	D-005–006; C5-D002–003	Serious permanent injury	Full-time same-rate return	Functional tension	Medical, employer, vocational proof	Broad noneconomic and earning range
C8-D003	D-004; C6-D001	Gross charges are $412,640	Lower reasonable-value evidence exists	Evidentiary and valuation distinction	Billing methodology	Past-medical swing
C8-D004	D-004	Most-likely medical range is $240,000–$300,000	Experts opine $225,000–$255,000 and $340,000–$390,000	Legacy-range tension	No silent expert compromise	Central scenario uncertainty
C8-D005	C5-D005; C6-D009	Future care modeled at $45,000–$65,000	Visible components total $34,000–$52,000	Accounting reconciliation gap	Itemization	Upper central range held
C8-D006	D-007; C5-D006	High future care is $160,000–$220,000	Knee replacement is contingent	Medical-predicate tension	Imaging and probability	Major high-side swing
C8-D007	C6-D006	Legacy past wages are $61,000–$78,000	Payroll loss is not calculable	Record-support gap	Payroll and offsets	Economic range uncertainty
C8-D008	D-008; C6-D007–008	Future capacity ranges reach $425,000	Turner works full time at same rate	Economic tension	Employer, vocational, economist evidence	Major high-side swing
C8-D009	D-011	Noneconomic bands reach $2.25M	No verified comparable data used	Valuation limitation	Trial-counsel assessment	Largest subjective uncertainty
C8-D010	V8-BAND-002–003	Settlement zone is $1.30M–$1.60M	Trial exposure is $1.25M–$2.20M	Different-purpose distinction	None required	Supports commercial resolution
C8-D011	F-COV-001–003	Central ranges exceed primary limit	No coverage dispute is modeled	Carrier-layer distinction	Policy verification	Requires excess coordination
C8-D012	S8-SCN-003–004	High-side risk is material	Numerous plaintiff-success conditions are required	Scenario-condition tension	Expert and evidentiary developments	Tail not central

EXPOSURE SOURCE-TO-SCENARIO AUDIT TABLE

Fact, dispute, calculation, or legal ID	Exposure proposition	Source	Scenario affected	Classification	Required foundation	Prohibited inference	Export state
F-LIAB-001–002	Eastbound motorcycle and passenger-side trailer impact	SYN-SCN-001	All	Canonical synthetic fact	Scene evidence	Automatic legal fault	Attorney review required
F-LIAB-003–004	Daylight, dry road, 45-mph limit	SYN-SCN-001	All fault scenarios	Canonical context	Scene and roadway proof	Actual speed	Attorney review required
F-LIAB-005	Cole observed and misjudged	SYN-DEP-DRV-001	All	Admissibility-qualified fact	Exact statement	Certified admission	Carrier-facing use held
F-LIAB-006–008	Speed ranges and 2.1-second model	Reconstruction sources	Fault sensitivities	Expert-dependent	Full methodology	Measured fact	Export denied
F-LIAB-009	Citation	SYN-POL-001	Liability presentation	Held	Citation and disposition	Negligence judgment	Trial-facing use prohibited
F-PERS-001	Turner age 33	SYN-INT-001	Noneconomic	Canonical fact	None beyond source	Automatic multiplier	Attorney review required
F-PERS-003–004	Physical occupation and stable work history	SYN-WAGE-001	Wage and credibility scenarios	Mixed fact/assessment	Employer and testimony	Guaranteed future earnings	Carrier-facing use held
F-PERS-005–006	Activity evidence and no motorcycling	SYN-SOC-001	Noneconomic and credibility	Contextual	Authentication and context	No pain or total incapacity	Mediation-facing use held
F-MED-001–004	Major injuries	SYN-MED-001	All damages scenarios	Canonical synthetic medical facts	Authenticated records	Final legal causation	Attorney review required
F-MED-005–010	Transport, procedures, hospitalization, rehabilitation	SYN-MED-001	Noneconomic and medical	Potentially supportable	Records and providers	Complication assumptions	Attorney review required
F-MED-011–014	MMI, impairment, scars, limp	Orthopedic and testimony sources	Permanency and noneconomic	Contested	Expert methodology	Disability or damages formula	Carrier-facing use held
F-MED-015–016	Hardware removal and follow-up	Orthopedic sources	Low and central future care	Potentially supportable	Probability and cost	Established recoverable care	Held
F-MED-017–018	Knee replacement and cost	Future-care sources	High and excess	Held	Probability, timing, cost	Expected future surgery	Export denied
F-WAGE-001–002	$35 rate and 46-hour average	SYN-WAGE-001	Past and future wage	Canonical baseline	Payroll	Verified annual earnings	Attorney review required
F-WAGE-003–004	Restricted-duty and full-time return	SYN-WAGE-001	All wage scenarios	Canonical timeline	Payroll and employer	Exact earnings	Attorney review required
F-WAGE-005–006	Competing future-capacity positions	Wage/vocational materials	Central, high, excess	Contested	Vocational/economic reports	Established future loss	Held
F-DAM-001–004	Billing, accepted, payments, balance	SYN-BILL-001	Past medical	Mixed accounting facts	Complete ledger	Interchangeable categories	Trial-facing use prohibited in part
F-DAM-005–006	Competing reasonable-value opinions	SYN-BILL-001	Low, central, high	Contested expert opinions	Methodology	Final reasonable value	Held
F-COV-001–003	$1M primary, $4M excess, no dispute modeled	SYN-COV-001	Coverage analysis	Internal synthetic facts	Actual policies	Coverage conclusion	Trial-facing use prohibited
C6-CALC-001–002	Billing reconciliation	Chapter 6	Past medical	Derived arithmetic	Ledger classification	Write-off or lien status	Internal synthetic use only
C6-CALC-007–009	Future-care component totals and gap	Chapter 6	Low and central	Derived arithmetic	Itemization	Additional care inferred	Held
C6-CALC-010	Knee cost model	Chapter 6	High and excess	Held model	Medical predicate	Supported future care	Export denied
C6-CALC-011	$250,000–$425,000 capacity model	Chapter 6	High and excess	Held model	Economic foundation	Verified loss	Export denied
L7-001–006	Medical-expense evidentiary issues	Chapter 7	Past medical	Record-dependent	Actual bills and experts	Automatic admissibility	Attorney review required
L7-008–014	Citation, admissions, and reconstruction	Chapter 7	Liability and fault	Record-dependent	Actual statements and reports	Fixed fault percentage	Held
L7-015–019	Medical experts and future care	Chapter 7	Medical and future care	Record-dependent	Reports and probability	Certain knee care	Held
L7-020–022	Future capacity and social media	Chapter 7	Wage and credibility	Record-dependent	Vocational and authentication proof	No loss or no pain	Held
D-001–003	Speed, avoidability, comparative fault	Chapters 1–3	Fault sensitivities	Contested	Reconstruction	Rider caused collision	Held
D-004–011	Medical value, impairment, function, future care, wages, pain, social media, noneconomic value	Chapters 1–7	All damages scenarios	Contested/held	Category-specific proof	Single resolved value	Export denied

SETTLEMENT AND EXPOSURE WORK QUEUE

Work item	Present status	Needed evidence or decision	Range affected	Responsible role	Timing
Reconstruction reports	Missing	Complete plaintiff and defense reports	Fault and all adjusted ranges	Reconstruction experts / counsel	Before mediation
Speed-to-causation opinion	Missing	Avoidability and alternative-speed analysis	Comparative fault	Defense expert	Before mediation
Driver statement source	Missing	Recording, notes, transcript, recipient	Liability and credibility	Discovery counsel	Immediate
Medical records	Missing	Authenticated complete chart	All damages	Medical-record team	Before expert finalization
Impairment reports	Missing	Reports, guides, worksheets	Noneconomic and permanency	Orthopedic experts	Before depositions
Hardware-removal opinion	Incomplete	Probability, timing, procedure	Low and central future care	Treating/retained expert	Before mediation
Knee-replacement probability	Missing	Imaging and sufficiently certain opinion	High and excess	Orthopedic experts	Critical high-side gate
Future-care cost support	Incomplete	Itemized cost source	All future-care scenarios	Medical-cost expert	Before mediation
Billing expert reports	Missing	Full methods and data	Past medical	Billing experts	Before mediation
Payment and lien records	Missing	EOBs, ledgers, liens, payoffs	Settlement administration	Claims/settlement team	Before authority approval
Payroll	Missing	Multi-year pre- and post-collision payroll	Past and future wages	Employer/records team	Immediate
Restricted-duty earnings	Missing	Hours, rate, benefits	Past wages	Employer	Before economist
Post-return overtime	Missing	Hours and compensation	Future capacity	Employer	Before vocational analysis
Employer testimony	Missing	Duties, restrictions, accommodations, promotion	Future capacity	Discovery counsel	Before mediation
Vocational report	Not assigned	Labor-market and capacity analysis	Central, high, excess	Vocational expert	Before future-loss use
Economic report	Not assigned	Calculation and present value	High and excess	Economist	Before future-loss use
Social-media originals	Missing	Native content and metadata	Credibility and noneconomic	E-discovery team	Before claimant deposition/MIL
Scar and gait demonstratives	Not developed	Authenticated current images	Noneconomic	Trial team	Before exhibit exchange
Motions-in-limine rulings	Not available	Citation, experts, social media, payment evidence	All bands	Trial counsel	Pretrial
Current jury instructions	Not verified	Official current instructions	Trial exposure	Trial counsel	Pretrial conference
Comparable-verdict decision	Not performed	Attorney decision whether later research is appropriate	Noneconomic	Lead counsel	Separate authorization required
Primary-carrier authority	Not completed	Internal evaluation and approval	Settlement zone	Primary carrier	Before mediation
Excess-carrier authority	Not completed	Internal evaluation and approval	All ranges above $1M	Excess carrier	Before mediation
Mediation strategy	Not approved	Movement plan and authority structure	Defense target and settlement zone	Defense team	Before mediation
Attorney review	Unassigned	Full Chapter 8 review	All outputs	Indiana counsel	Required
Replay validation	Incomplete	Chapter 9 controlled replay	All ranges	Review team	After material changes
Export authorization	Absent	Express approval	All external uses	Authorized reviewer	Final gate

CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Defense Exposure and Settlement Assessment
Artifact version	Synthetic Defense Exposure and Settlement Record v1.0
Controlling versions	Chapters 1–7 v1.0
Source expanded	SYN-MED-SET-001
Facts changed	None
New canonical facts	None
Existing valuation bands changed	None
Legacy settlement or exposure bands preserved	Five
Legacy damages scenarios preserved	Four
Scenario arithmetic checked	Pass; all supplied gross and adjusted scenario calculations reconcile
Comparative-fault assumptions preserved	0%, 5%, 10%, and 0%–5% or minimal as supplied
New sensitivity assumption	15%; analytical only
Coverage structure preserved	$1M primary plus $4M excess
Coverage opinion issued	No
Verified comparable verdicts used	No
Probability prediction issued	No
Reserve recommendation issued	No
Settlement authority issued	No
Exposure tensions	Twelve
Attorney reviewer	Unassigned
Carrier review	Not completed
Replay status	Structural and arithmetic only
Export status	Internal attorney-review demonstration only
VerdictReady	No
FilingReady	Not applicable

VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial defense and mediation evaluation

Runtime Mode: Defense exposure, settlement posture, and primary/excess risk assessment

Case / Motion / Trial Issue: Liability-adjusted damages exposure, settlement posture, trial-risk bands, and excess-layer sensitivity

Preliminary Result

The Turner assessment’s settlement and exposure architecture has been preserved and reconciled with Chapters 1–7 for synthetic attorney-review use.

VerdictReady: No

FilingReady: Not applicable

VerdictReady cannot be confirmed because required verification is incomplete.

Gatekeeper Findings

Runtime

Internal demonstration only.

Input normalization

Pass for Chapters 1–7 and the Turner assessment.

Contradiction

Valuation tensions are preserved. No medical, economic, liability, evidentiary, or coverage tension was silently resolved.

Evidence admissibility

Chapter 7 status is carried forward. Admissibility remains record-specific and incomplete.

Authority / fact support

The Indiana evidentiary overlay is preserved. Comprehensive treatment review, complete record foundations, and filing-specific verification remain incomplete.

Claim / defense elements

Primary truck liability and a limited comparative-fault structure are preserved.

Standard alignment

Pretrial settlement and mediation posture.

Damages

Supported, potentially supportable, contested, held, and legacy-modeled components remain separated.

Jury instructions

Not verified for trial-facing use.

Appellate record

Not applicable to the current posture. No trial record exists.

Coverage

Carrier-layer arithmetic is shown. No coverage opinion is issued.

Replay / audit

Scenario arithmetic and source mapping are established. Production replay remains incomplete.

Export

Internal attorney-review demonstration only.

Failed Gates / Runtime State

VerdictReady: No

Runtime state: EXPOSURE REVIEW REQUIRED / EXPORT HELD

The principal incomplete gates are:

- reconstruction foundation;
- driver-statement foundation;
- medical-record foundation;
- impairment methodology;
- reasonable-medical-value methodology;
- past wage proof;
- vocational and economic foundation;
- future-care probability;
- contingent knee replacement;
- noneconomic-comparable support;
- evidentiary rulings;
- current jury-instruction verification;
- carrier authority;
- attorney review;
- replay validation;
- and export authorization.

Export effect: No reserve-, authority-, carrier-, mediation-, filing-, or trial-facing reliance release is authorized.

Required Fixes Before VerdictReady

1. Complete factual and evidentiary record
2. Admissible liability evidence
3. Complete reconstruction reports

4. Authenticated medical records
5. Expert impairment and future-care reports
6. Billing and payment records
7. Payroll and employer records
8. Vocational and economic analysis
9. Lien and subrogation records
10. Social-media authentication
11. Dispositive evidentiary rulings where applicable
12. Current jury-instruction verification
13. Trial-counsel assessment
14. Primary and excess carrier review
15. Replay validation
16. Express export authorization

Adversarial Risk

The principal adversarial risks are:

- denying obvious primary exposure;
- advancing an unsupported comparative-fault percentage;
- treating billed charges as automatic damages;
- treating accepted amounts as conclusive value;
- treating same-rate work as proof of no injury;
- treating ordinary activity as fraud;
- denying all future care;
- presenting contingent knee replacement as certain;
- using unsupported wage-loss figures;
- presenting noneconomic ranges as database predictions;
- conflating settlement posture with trial exposure;
- presenting carrier-layer arithmetic as a coverage opinion;
- and overstating numerical precision.

Evidentiary Issues

The following remain active:

- traffic-citation use;
- driver-admission wording and context;
- reconstruction reliability;
- medical-expert foundation;
- medical-value evidence;
- collateral-source restrictions;
- future-damages certainty;
- social-media authentication;
- demonstrative accuracy;
- and motions in limine.

Coverage / Carrier Issues

- The central settlement and trial bands exceed the modeled $1M primary limit.
- Excess participation is therefore material.
- No coverage dispute is modeled.
- Primary and excess evaluation should use the same factual and expert assumptions.
- Carrier authority is not established.
- Coverage information is not trial-facing evidence.
- No policy-language analysis has been performed.

Confidence / Hallucination Risk

These ratings concern internal consistency and support, not probabilities of outcome.

Assessment category	Confidence
Consistency with Chapters 1–7	97/100
Scenario arithmetic	100/100
Primary-liability assessment	88/100
Comparative-fault assessment	55/100
Medical-value scenario support	63/100
Future hardware-care support	58/100
Future knee-replacement support	24/100
Past wage-loss support	38/100
Future earning-capacity support	28/100
Noneconomic scenario support	35/100
Settlement-posture reliability	53/100
Trial-exposure reliability	46/100
Excess-layer arithmetic	99/100
Coverage applicability	Not determinable
Real-world applicability	Not determinable

Hallucination risk is high if the analysis invents:

- new canonical facts;
- comparable verdicts;
- probability weights;
- medical predicates;
- wage assumptions;
- policy provisions;
- expert methodology;
- or settlement authority.

Attorney-review status: Not reviewed

Carrier-review status: Not completed

Release status: Held

FINAL CHAPTER STATUS

The existing defense target, settlement zone, likely trial-exposure range, high-side risk, excess-verdict tail, four damages scenarios, exposure drivers, defense leverage, comparative-fault sensitivities, coverage-layer arithmetic, valuation tensions, and settlement work queue are preserved for internal synthetic attorney review.

No canonical fact or existing valuation band was changed.

The numerical scenarios remain structured analytical models. Several components remain contested or held, including past wage loss, future earning capacity, the broader future-care band, knee replacement, and noneconomic valuation.

VerdictReady: No
FilingReady: Not applicable
Runtime state: EXPOSURE REVIEW REQUIRED / EXPORT HELD
Attorney and carrier review required.

CHAPTER 9

CONTROLLED SENSITIVITY, REPLAY, AND AUDIT RECORD

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Claimant:	Michael Turner, synthetic plaintiff
Artifact designation:	Synthetic Controlled Sensitivity and Replay Record v1.0
Controlling factual source:	Canonical Synthetic Record v1.0
Controlling collision source:	Synthetic Collision Record v1.0
Controlling driver-testimony source:	Synthetic Driver Deposition Record v1.0
Controlling claimant-testimony source:	Synthetic Claimant and Spouse Testimony Record v1.0
Controlling medical source:	Synthetic Medical, Causation, and Permanency Record v1.0
Controlling economic source:	Synthetic Economic Damages and Medical-Expense Record v1.0
Controlling evidentiary source:	Synthetic Indiana Evidence and Authority Record v1.0
Controlling exposure source:	Synthetic Defense Exposure and Settlement Record v1.0
Baseline parent version:	Chapter 8 v1.0
Replay date:	August 3, 2026
Facts changed:	None
New canonical facts created:	None
Existing valuation bands changed:	None
Existing Chapter 8 scenarios changed:	None
Controlled branches created:	Three
Release status:	Internal attorney-review demonstration only

SYNTHETIC CONTROLLED-SENSITIVITY, REPLAY, AND AUDIT DEMONSTRATION — NOT A NEW FACTUAL RECORD, EXPERT SUPPLEMENT, VERDICT PREDICTION, SETTLEMENT AUTHORITY, RESERVE CHANGE, COVERAGE DETERMINATION, OR RELEASE AUTHORIZATION.

All persons, records, calculations, policies, reviews, and change events are synthetic.

The baseline reproduces the controlled state of Chapters 1–8. Each change run is an isolated analytical branch. The change runs are not cumulative.

A change in evidentiary or support status does not alter unrelated canonical facts. A mathematically correct recalculation does not establish legal recoverability. A modeled change does not establish that the changed event occurred.

No probability of outcome is assigned. No valuation band is changed unless expressly authorized in a later approved version. No reserve, settlement offer, settlement authority, carrier directive, policy interpretation, or release authorization is created.

VerdictReady: No

FilingReady: Not applicable

Release status: Internal attorney-review demonstration only.

This chapter supplements but does not amend Chapters 1–8.

The three replay branches are independent one-change tests. A cumulative replay requires a separate attorney-approved change request and is outside Chapter 9 v1.0.

9.1 BASELINE RUN

R9-BASE-001 — Frozen Chapter 8 Baseline

R9-BASE-001 reproduces and classifies the controlled Chapter 8 state. It is not a new valuation, new exposure recommendation, new reserve analysis, or revised settlement assessment.

The five valuation bands and four legacy damages scenarios are frozen exactly as stated in Chapter 8. Chapter 8 itself classifies the bands as legacy analytical or negotiation architecture rather than statistically validated predictions.

9.1.1 Frozen valuation bands

Band ID	Band	Frozen amount	Classification
V8-BAND-001	Defense target	$1.20M–$1.40M	Frozen legacy modeled band
V8-BAND-002	Recommended settlement zone	$1.30M–$1.60M	Frozen legacy modeled band
V8-BAND-003	Likely trial exposure	$1.25M–$2.20M	Frozen legacy modeled band
V8-BAND-004	High-side trial risk	$2.20M–$2.95M	Frozen legacy modeled band
V8-BAND-005	Excess-verdict tail	Above $3.0M	Frozen legacy modeled band

Each band remains:

Frozen legacy modeled band — not a statistical prediction and not changed by Chapter 9.

9.1.2 Frozen legacy scenarios

S8-SCN-001 — Low-Damages Scenario

- Gross modeled range: **$871,000–$1,071,000**
- Comparative-fault assumption: **10%**
- Adjusted range: **$783,900–$963,900**

S8-SCN-002 — Most-Likely Scenario

- Gross modeled range: **$1,221,000–$1,862,000**
- Comparative-fault assumption: **5%**
- Adjusted range: **$1,159,950–$1,768,900**

S8-SCN-003 — High-Damages Scenario

- Gross modeled range: **$2,028,000–$2,763,000**
- Comparative-fault assumption: **0%–5%**
- Adjusted range: **$1,926,600–$2,763,000**

S8-SCN-004 — Excess-Verdict Scenario

- Gross modeled range: **$2,750,000–$3,500,000**
- Comparative fault: **0% or minimal**
- Excess-layer impact above the modeled $1 million primary layer: **$1,750,000–$2,500,000**

No scenario record is amended by Chapter 9.

9.1.3 Baseline field register

Baseline field	Frozen value	Source identifier	Support status	Change permitted in Chapter 9?
Truck movement	Left turn across two eastbound lanes	F-LIAB-001	Frozen baseline input	No
Impact geometry	Motorcycle struck passenger side of trailer	F-LIAB-002	Frozen baseline input	No
Cole observation	Cole reportedly saw motorcycle before impact	F-LIAB-005	Admissibility-qualified input	No
Cole judgment	Cole reportedly misjudged distance and speed	F-LIAB-005	Admissibility-qualified input	No
Plaintiff speed	Approximately 46–49 mph	F-LIAB-006	Contested expert opinion	No
Defense speed	Approximately 52–53 mph	F-LIAB-007	Contested expert opinion	Only in R9-CHG-001
Reaction interval	Approximately 2.1 seconds	F-LIAB-008	Expert-dependent; methodology unresolved	No
Comparative fault	No adjudicated percentage	D-003	Held baseline conclusion	Only sensitivity treatment in R9-CHG-001
Acute injuries	Multiple severe orthopedic and associated injuries	F-MED-001–004	Supported synthetic baseline	No
Hospitalization	Approximately 21 days	F-MED-009	Supported synthetic baseline	No
Operative care	Debridement, external fixation, ORIF, grafting, closure	F-MED-006–008	Supported synthetic baseline	No
Residual condition	Pain, hardware, scars, reduced motion, limp	F-MED-014	General support; extent disputed	No
Impairment	Plaintiff 12%; defense 7%	F-MED-012–013	Contested expert opinions	No
Restricted duty	Return around month 11	F-WAGE-003	Frozen baseline input	No
Full-time return	Around month 16 at same hourly rate	F-WAGE-004	Frozen baseline input	No
Gross bills	Approximately $412,640	F-DAM-001	Canonical synthetic financial fact	No
Accepted amount	Approximately $247,800	F-DAM-002	Canonical synthetic financial fact	No
Medical-value opinions	Defense $225,000–$255,000; plaintiff $340,000–$390,000	F-DAM-005–006	Contested expert opinions	No
Visible future care	$34,000–$52,000	C6-CALC-007–008	Derived arithmetic; foundation incomplete	No
Broader future-care band	$35,000–$65,000	F-MED-015–016; C6-D009	Partly unreconciled	No
Knee replacement	Possible or contingent	F-MED-017	Held baseline conclusion	Only in R9-CHG-002
Knee cost	$125,000–$180,000	F-MED-018	Held model	Only in R9-CHG-002
Final past wage loss	Not established	Chapter 6	Held baseline conclusion	No
Limited future capacity	$75,000–$175,000 legacy scenario	S8-SCN-002	Legacy modeled only	Only in R9-CHG-003
High future capacity	$250,000–$425,000	C6-CALC-011	Held plaintiff theory	No
Noneconomic bands	$550,000–$2,250,000 depending on scenario	S8-SCN-001–004	Attorney exposure scenarios	No
Primary layer	$1,000,000	F-COV-001	Internal synthetic fact	No
Excess layer	$4,000,000	F-COV-002	Internal synthetic fact	No
Coverage dispute	None modeled	F-COV-003	Synthetic internal assumption	No
Chapter 8 bands	V8-BAND-001–005	Chapter 8	Frozen	No
Export state	Held	Chapter 8 audit and Gatekeeper result	Frozen baseline conclusion	Branch status may be recorded but not released

Chapter 5 preserves the future-knee question as held, while Chapters 6 and 7 preserve the economic and evidentiary foundations as incomplete.

9.1.4 Baseline result

Baseline facts changed: None
Baseline calculations changed: None
Baseline valuation bands changed: None
Baseline export state: Held
Baseline VerdictReady: No

9.1.5 Baseline integrity check

Baseline integrity test	Result	Explanation
Chapter 8 bands reproduced exactly	Pass	Five bands preserved without amendment
Four scenario totals reproduced exactly	Pass	Low, most-likely, high, and excess scenarios unchanged
Comparative-fault assumptions reproduced	Pass	10%, 5%, 0%–5%, and 0% or minimal preserved
Coverage-layer arithmetic reproduced	Pass	$1M primary and $4M excess retained
Held medical conclusions preserved	Pass	Knee replacement and broader care reconciliation remain held
Held wage conclusions preserved	Pass	Past loss and future capacity remain incomplete
No new authority introduced	Pass	Chapter 7 controls
No canonical fact added	Pass	All changes are hypothetical branches
No cumulative branch created	Pass	Each branch uses R9-BASE-001 as parent
External release authorized	No	Export remains held

9.2 BASELINE INPUTS AND HELD CONCLUSIONS

9.2.1 Supported or potentially supportable baseline inputs

The baseline contains substantial support for the general collision configuration, acute injuries, treatment burden, recovery chronology, and return-to-work chronology.

Supported or potentially supportable inputs include:

- the tractor-trailer left-turn movement;
- the passenger-side trailer impact;
- daylight and dry roadway conditions;
- the 45-mph posted limit;
- serious acute orthopedic injuries;
- operative treatment;
- hospitalization and rehabilitation;
- retained hardware;
- visible scarring;
- an activity-dependent limp;
- return to restricted duty;
- return to full-time same-rate work;
- gross billed charges;
- accepted amounts;
- the approximately $35 hourly wage;
- the approximately 46-hour historical workweek;
- and the internal synthetic primary and excess limits.

These inputs remain subject to authentication and evidentiary foundation where used beyond the controlled demonstration.

9.2.2 Contested baseline inputs

The following remain contested:

- motorcycle speed;
- collision avoidability;
- comparative-fault allocation;
- reasonable medical value;
- impairment percentage;

- degree of functional restriction;
- chronic pain extent;
- interpretation of social-media activity;
- future medical probability;
- diminished earning capacity;
- and noneconomic characterization.

A contested proposition is not converted into a held conclusion merely because it appears in a scenario. It remains available for structured sensitivity, subject to its existing classification.

9.2.3 Held baseline conclusions

Held conclusion ID	Held conclusion	Reason held	Evidence or approval required	Downstream outputs affected
R9-BASE-HOLD-001	Fixed comparative-fault percentage	No adjudication or complete reconstruction	Reports, causal analysis, attorney review	Adjusted damages
R9-BASE-HOLD-002	Admissible 52–53 mph defense result	Methodology and source data absent	Complete reconstruction package	Comparative-fault leverage
R9-BASE-HOLD-003	Causal effect of excess speed	Speed alone does not establish causation	Avoidability and alternate-speed analysis	Fault allocation
R9-BASE-HOLD-004	Final past wage loss	Exact absence, earnings, and offsets absent	Payroll, benefits, employer proof	Economic damages
R9-BASE-HOLD-005	Fully reconciled $35,000–$65,000 future care	Visible components total only $34,000–$52,000	Itemized care and cost sources	Central future-care range
R9-BASE-HOLD-006	Future knee replacement	Probability, timing, and current imaging unresolved	Qualified orthopedic opinion and imaging	High-side medical exposure
R9-BASE-HOLD-007	Supported $125,000–$180,000 knee cost	Procedure predicate and cost source incomplete	Medical and cost foundation	High and excess scenarios
R9-BASE-HOLD-008	Final future earning-capacity loss	Employer, vocational, and economic proof absent	Complete source package	Central and high economic exposure
R9-BASE-HOLD-009	Lifetime overtime loss	Premium, availability, duration, and present value absent	Payroll and economic methodology	High future-loss model
R9-BASE-HOLD-010	$250,000–$425,000 future-capacity model	Formula and source foundation absent	Vocational and economic reports	High scenario
R9-BASE-HOLD-011	Final noneconomic value	No fixed formula or verified comparable dataset	Trial-counsel judgment and actual evidence	All exposure bands
R9-BASE-HOLD-012	Reserve	No authority and not a Chapter 9 function	Carrier process	Internal claims use
R9-BASE-HOLD-013	Settlement authority	No attorney or carrier authorization	Express approval	Mediation use
R9-BASE-HOLD-014	Carrier authority	Primary and excess reviews incomplete	Carrier approval	Settlement use
R9-BASE-HOLD-015	Export authorization	Replay and review incomplete	Express authorizer approval	All external use

The legacy scenarios contain held components. Inclusion of a held component in a scenario does not convert that component into a supported conclusion.

9.3 CONTROLLED CHANGE ONE: MOTORCYCLE SPEED

R9-CHG-001 / CR9-001 — Motorcycle-Speed Support-Status Change

Parent state

Parent: R9-BASE-001

At baseline:

- plaintiff speed estimate: approximately 46–49 mph;
- defense speed estimate: approximately 52–53 mph;
- posted limit: 45 mph;
- reconstruction methodology: unresolved;
- causal significance: unresolved;
- comparative-fault percentage: not adjudicated;
- Chapter 8's 5% and 10% percentages: analytical assumptions only.

Controlled change

For this isolated replay only, assume:

A complete and admissible defense reconstruction establishes a motorcycle-speed range of approximately 52–53 mph and supplies a reliable causal explanation sufficient to support a 10% comparative-fault sensitivity for internal scenario analysis.

Classification: Controlled hypothetical support-status change — not a canonical fact.

The 52–53 mph range does not become a canonical fact.

Ten percent does not become an adjudicated allocation.

The change does not establish that speed was the primary cause.

The change does not alter Cole's reported observation or misjudgment.

The change does not alter gross damages.

The change does not alter medical, wage, noneconomic, or coverage inputs.

The change does not alter V8-BAND-001 through V8-BAND-005.

9.3.1 Most-likely scenario at 10%

Baseline gross:

$1,221,000–$1,862,000

Changed branch:

$1,221,000 × 0.90 = **$1,098,900**
$1,862,000 × 0.90 = **$1,675,800**

Baseline 5%-adjusted range:

$1,159,950–$1,768,900

Delta from the baseline 5% run:

Lower: $1,098,900 − $1,159,950 = **−$61,050**
Upper: $1,675,800 − $1,768,900 = **−$93,100**

9.3.2 High scenario at 10%

$2,028,000 × 0.90 = **$1,825,200**
$2,763,000 × 0.90 = **$2,486,700**

The preserved Chapter 8 high adjusted range uses a mixed 5%-lower and 0%-upper treatment of $1,926,600–$2,763,000. Compared with that frozen range, the 10% branch is:

- $101,400 lower at the lower bound;
- $276,300 lower at the upper bound.

That comparison is a sensitivity demonstration, not a revised high scenario.

9.3.3 Speed-branch output table

Speed-change output	Baseline state	Changed branch state	Delta	Dependency	Release status
Most-likely gross	$1,221,000–$1,862,000	Unchanged	$0	Not dependent on fault reduction	Held
Most-likely adjusted	$1,159,950–$1,768,900 at 5%	$1,098,900–$1,675,800 at 10%	−$61,050 to −$93,100	Direct	Held
High gross	$2,028,000–$2,763,000	Unchanged	$0	Not dependent on fault reduction	Held
High adjusted sensitivity	$1,926,600–$2,763,000 mixed boundary	$1,825,200–$2,486,700 at 10%	Not a like-for-like frozen-range replacement	Direct	Held
Comparative-fault leverage	Limited and unresolved	Stronger internal sensitivity	Qualitative increase	Direct	Held
Primary truck fault	Substantial	Substantial	No change	Unrelated to support-status change	Held
Chapter 8 bands	Frozen	Frozen	No change	Prohibited dependency	Held

Classification: Branch-specific comparative-fault sensitivity — not a revised Chapter 8 scenario or valuation band.

Conclusions that may change

- comparative-fault leverage increases;
- adjusted scenario totals decrease;
- internal defense mediation leverage may increase;
- analytical likelihood of a zero-fault plaintiff result may decrease.

Conclusions that must not change

- primary truck fault remains substantial;
- gross damages remain unchanged;
- injury severity remains unchanged;
- future knee status remains held;
- future earning-capacity status remains held;
- reasonable medical value remains disputed;
- noneconomic bands remain legacy scenarios;
- coverage limits remain unchanged;
- Chapter 8 valuation bands remain unchanged;
- export remains held.

Change-containment statement

R9-CHG-001 changes only the internal support status of the defense speed and causal-comparative-fault proposition and the calculations directly dependent on a 10% sensitivity. It does not change damages inputs or any canonical collision fact.

9.4 CONTROLLED CHANGE TWO: FUTURE KNEE REPLACEMENT

R9-CHG-002 / CR9-002 — Future-Knee Support-Status Change

Parent state

Parent: R9-BASE-001

At baseline:

- knee replacement is possible or contingent;
- cost is modeled at $125,000–$180,000;
- medical probability is unresolved;
- timing is unresolved;
- current imaging is unresolved;
- the cost model is excluded from supported future care;
- visible hardware and follow-up components total $34,000–$52,000;
- the broader $35,000–$65,000 future-care band remains partly unreconciled.

Chapter 8 confirms that the combined visible components plus the knee model equal $159,000–$232,000, but also states that arithmetic consistency does not establish medical probability, necessity, or recoverability.

Controlled change

For this isolated replay only, assume:

A qualified orthopedic source supplies a sufficiently certain collision-related medical opinion supporting future knee replacement, and a properly founded cost source supports the existing $125,000–$180,000 cost range.

Classification: Controlled hypothetical support-status change — not a canonical fact.

No physician name, procedure date, hospital, implant, recovery duration, complication rate, probability percentage, or present-value adjustment is supplied or inferred.

The change affects only the knee-replacement predicate and the existing knee cost range.

The change does not automatically resolve the $35,000–$65,000 non-knee reconciliation issue.

The change does not alter motorcycle speed, comparative fault, past medical value, past wages, future earning capacity, impairment ratings, or coverage limits.

The change does not automatically alter noneconomic damages or Chapter 8 valuation bands.

9.4.1 Primary controlled future-care calculation

Visible non-knee components:

$34,000–$52,000

Knee replacement:

$125,000–$180,000

Changed future-care sensitivity:

Lower: $34,000 + $125,000 = **$159,000**
Upper: $52,000 + $180,000 = **$232,000**

Classification: Controlled future-care sensitivity using visible components — not a new canonical damages figure.

9.4.2 Secondary held sensitivity

Broader non-knee band:

$35,000–$65,000

Added to knee-replacement model:

Lower: $35,000 + $125,000 = **$160,000**
Upper: $65,000 + $180,000 = **$245,000**

Classification: Secondary held sensitivity — broader non-knee components remain unreconciled.

The $160,000–$245,000 range is not used as the primary replay result because the non-knee upper range remains insufficiently itemized.

9.4.3 Most-likely scenario recalculation

Replace only the baseline most-likely future-care input of $45,000–$65,000 with $159,000–$232,000.

Lower:

$240,000 + $159,000 + $61,000 + $75,000 + $800,000
= **$1,335,000**

Upper:

$300,000 + $232,000 + $72,000 + $175,000 + $1,250,000
= **$2,029,000**

At 5% comparative fault:

$1,335,000 × 0.95 = **$1,268,250**
$2,029,000 × 0.95 = **$1,927,550**

Delta from baseline most-likely gross:

Lower: $1,335,000 − $1,221,000 = **+$114,000**
Upper: $2,029,000 − $1,862,000 = **+$167,000**

Delta from baseline most-likely 5%-adjusted range:

Lower: $1,268,250 − $1,159,950 = **+$108,300**
Upper: $1,927,550 − $1,768,900 = **+$158,650**

The Chapter 8 high scenario already incorporates a future-knee concept. In that scenario, the principal branch change is the support classification of the knee component, not necessarily a numerical change.

9.4.4 Knee-branch output table

Knee-change output	Baseline state	Changed branch state	Delta	Dependency	Release status
Visible future care	$34,000–$52,000	Unchanged non-knee component	$0	Not changed	Held
Knee cost	$125,000–$180,000 held	Same range, support status hypothetically strengthened	$0	Direct classification change	Held
Combined visible care	Knee excluded	$159,000–$232,000	+$125,000–$180,000 relative to visible components	Direct	Held
Most-likely gross	$1,221,000–$1,862,000	$1,335,000–$2,029,000	+$114,000–$167,000	Direct	Held
Most-likely adjusted	$1,159,950–$1,768,900	$1,268,250–$1,927,550	+$108,300–$158,650	Direct	Held
Liability	Substantial truck exposure	Unchanged	$0	Unrelated	Held
Future capacity	Contested and held	Unchanged	$0	Unrelated	Held
Chapter 8 bands	Frozen	Frozen	$0	Prohibited dependency	Held

Conclusions that may change

- knee replacement moves from held to potentially supportable within the isolated branch;
- future-care exposure increases;
- high-side medical exposure becomes more credible;
- excess-layer involvement becomes more material;
- expert-foundation and motion-in-limine strategy changes.

Conclusions that must not change

- liability facts;
- motorcycle speed;
- comparative-fault assumptions;
- past medical value;
- past wages;
- future earning-capacity status;
- impairment ratings;
- noneconomic bands;
- coverage limits;
- Chapter 8 valuation bands;
- export authorization.

Change-containment statement

R9-CHG-002 changes only the support status of the future-knee predicate and cost component and the damages calculations directly dependent on that component. It does not change liability, wage loss, comparative fault, or the frozen Chapter 8 bands.

9.5 CONTROLLED CHANGE THREE: FUTURE EARNING CAPACITY

R9-CHG-003 / CR9-003 — Limited Future-Earning-Capacity Support-Status Change

Parent state

Parent: R9-BASE-001

At baseline:

- Turner historically earned approximately $35 per hour;
- he averaged approximately 46 hours per week;
- he returned to restricted duty around month 11;
- he returned to full-time same-rate work around month 16;
- post-return overtime is unresolved;
- employer evidence is absent;
- vocational evidence is absent;
- economic methodology is absent;
- $75,000–$175,000 is a legacy most-likely scenario component;
- $250,000–$425,000 remains a held high-side theory.

Chapter 7 confirms that same-rate full-time work is substantial evidence against total occupational displacement while leaving open a narrower, properly proven capacity claim.

Controlled change

For this isolated replay only, assume:

Authenticated employer, payroll, vocational, and economic evidence supports a limited future earning-capacity loss of $75,000–$175,000, with disclosed methodology, mitigation analysis, and present-value treatment.

Classification: Controlled hypothetical support-status change — not a canonical fact.

The change validates only the limited $75,000–$175,000 branch component.

It does not validate $250,000–$425,000.

It does not establish lifetime loss of six overtime hours per week.

It does not establish total occupational disability.

It does not alter Turner's same-rate full-time return.

It does not alter medical probability, comparative fault, noneconomic damages, coverage limits, or Chapter 8 valuation bands.

9.5.1 Support-constrained central subtotal

For comparison only, remove the unsupported future-capacity component from the most-likely scenario while leaving all other most-likely inputs frozen.

Inputs:

- past medical: $240,000–$300,000;
- future care: $45,000–$65,000;
- past wages: $61,000–$72,000;
- future earning capacity: $0 for this support-constrained comparison;
- noneconomic damages: $800,000–$1,250,000.

Lower:

$240,000 + $45,000 + $61,000 + $0 + $800,000
= **$1,146,000**

Upper:

$300,000 + $65,000 + $72,000 + $0 + $1,250,000
= **$1,687,000**

At 5%:

$1,146,000 × 0.95 = **$1,088,700**
$1,687,000 × 0.95 = **$1,602,650**

Classification: Replay-only support-constrained subtotal — not a new Chapter 8 scenario.

9.5.2 Changed branch with supported limited future capacity

Add the supported branch component of $75,000–$175,000.

Gross:

$1,221,000–$1,862,000

At 5%:

$1,159,950–$1,768,900

Gross delta from the support-constrained subtotal:

Lower: **+$75,000**
Upper: **+$175,000**

Adjusted delta:

Lower: $1,159,950 − $1,088,700 = **+$71,250**
Upper: $1,768,900 − $1,602,650 = **+$166,250**

9.5.3 Earning-capacity output table

Earning-capacity output	Baseline support state	Changed branch state	Delta	Dependency	Release status
Limited future capacity	Legacy modeled only	Potentially supportable in branch	Classification change	Direct	Held
Support-constrained gross	$1,146,000–$1,687,000	$1,221,000–$1,862,000	+$75,000–$175,000	Direct	Held
Support-constrained adjusted	$1,088,700–$1,602,650	$1,159,950–$1,768,900	+$71,250–$166,250	Direct	Held
High future-capacity theory	$250,000–$425,000 held	Held	$0	Not validated by branch	Export denied
Lifetime overtime	Held	Held	$0	Not validated by branch	Export denied

Earning-capacity output	Baseline support state	Changed branch state	Delta	Dependency	Release status
Same-rate full-time return	Material defense fact	Unchanged	$0	Unrelated fact	Attorney review required
Knee replacement	Held	Held	$0	Unrelated	Held
Comparative fault	Unresolved	Unchanged	$0	Unrelated	Held
Chapter 8 bands	Frozen	Frozen	$0	Prohibited dependency	Held

Conclusions that may change

- the limited future-capacity component becomes potentially supportable;
- central economic exposure increases from the support-constrained subtotal;
- employer and expert testimony become material trial evidence;
- the defense can no longer rely solely on the absence of vocational proof.

Conclusions that must not change

- full-time same-rate return remains a material defense fact;
- $250,000–$425,000 remains held;
- lifetime six-hour overtime projection remains held;
- medical facts remain unchanged;
- knee replacement remains held in this branch;
- comparative fault remains unchanged;
- noneconomic bands remain unchanged;
- coverage limits remain unchanged;
- Chapter 8 valuation bands remain unchanged;
- export remains held.

Change-containment statement

R9-CHG-003 changes only the support status of the limited $75,000–$175,000 future-capacity component and the calculations directly dependent on that amount. It does not validate the plaintiff high-side model or change medical or liability conclusions.

9.6 CHANGED AND UNCHANGED CONCLUSIONS

Conclusion or output	Baseline	Speed branch	Knee branch	Earning-capacity branch	Reason
Primary truck fault	Substantial	Unchanged	Unchanged	Unchanged	No branch changes left-turn facts or Cole statement
Comparative-fault leverage	Limited and unresolved	Increased for sensitivity	Unchanged	Unchanged	Direct speed dependency only
Gross damages	Frozen scenario amounts	Unchanged	Increased in recalculated central branch	Increased from support-constrained subtotal	Speed affects adjustment, not gross
Adjusted damages	Frozen	Lower at 10%	Higher due to future care	Higher due to supported limited loss	Direct arithmetic dependency
Acute medical causation	Strong synthetic support	Unchanged	Unchanged	Unchanged	No branch changes acute record
Impairment dispute	12% versus 7%	Unchanged	Unchanged	Unchanged	No change request concerns impairment
Visible non-knee care	$34,000–$52,000	Unchanged	Unchanged	Unchanged	Knee added separately
Broader future-care band	Partly unreconciled	Unchanged	Still unreconciled	Unchanged	Knee opinion does not cure non-knee gap
Knee status	Held	Held	Potentially supportable in branch	Held	Changed only by R9-CHG-002
Past wage loss	Held	Held	Held	Held	No branch supplies past-payroll calculation
Limited future capacity	Legacy modeled only	Unchanged	Unchanged	Potentially supportable in branch	Changed only by R9-CHG-003

Conclusion or output	Baseline	Speed branch	Knee branch	Earning-capacity branch	Reason
High future capacity	Held	Held	Held	Held	$75k–$175k does not validate $250k–$425k
Noneconomic bands	Frozen legacy scenarios	Unchanged	Unchanged	Unchanged	No automatic dependency
Defense target	$1.20M–$1.40M	Frozen	Frozen	Frozen	Requires separate attorney/carrier judgment
Settlement zone	$1.30M–$1.60M	Frozen	Frozen	Frozen	Not changed by branch arithmetic
Likely trial exposure	$1.25M–$2.20M	Frozen	Frozen	Frozen	No superseding version
High-side risk	$2.20M–$2.95M	Frozen	Frozen	Frozen	Support changes may inform later review only
Excess tail	Above $3M	Frozen	Frozen	Frozen	No automatic revision
Primary and excess limits	$1M and $4M	Unchanged	Unchanged	Unchanged	Policy inputs frozen
VerdictReady	No	No	No	No	Substantive verification incomplete
Replay status	Baseline frozen	Structural and arithmetic only	Structural and arithmetic only	Structural and arithmetic only	No production review
Export status	Held	Held	Held	Held	No approval

9.6.1 Dependency rules

- Speed may change comparative-fault-adjusted totals, not gross damages.
- Knee support may change future-care totals, not liability or wage loss.
- Earning-capacity support may change economic totals, not medical care or fault.
- No branch changes Chapter 8’s legacy valuation bands.
- No branch receives external release.
- No settlement band moves automatically because of a technical input change.
- Any discretionary change in negotiation posture requires a separate attorney and carrier decision.

9.7 CONTRADICTION RECHECK

Changed support status narrows the issue but does not resolve all related contradictions or dependencies.

Replay contradiction ID	Branch	Existing issue IDs	Baseline status	Changed input	Recheck result	Remaining gap	Downstream effect
C9-D001	Speed	D-001; D-002; D-003; C7-D005; C8-D001	Speed, causation, and fault unresolved	52–53 mph and causal support for 10% sensitivity	Speed support strengthened	Actual adjudication and complete avoidability record absent	Adjusted totals decrease
C9-D002	Knee	D-007; C5-D004–006; C6-D009–010; C7-D007; C8-D005–006	Knee possible; non-knee band unreconciled	Sufficient knee probability and cost support	Knee predicate strengthened	Timing, actual record, broader non-knee reconciliation, double counting	Future-care totals increase
C9-D003	Earning capacity	D-006; D-008; C4-D002–003; C5-D003; C5-D008; C6-D005–008; C7-D009; C8-D007–008	Limited and high models unsupported	$75,000–$175,000 limited loss supported	Limited model strengthened	High model, lifetime overtime, actual current earnings, promotion and market components	Central economic support increases

9.7.1 Speed recheck

Verification of the 52–53 mph estimate does not automatically establish:

- collision avoidability;
- stopping distance;
- available steering opportunity;
- whether impact would have occurred at 45 mph;
- whether speed affected occurrence or only severity;

- or a legally proper 10% allocation.

D-001 narrows within the branch. D-002 and D-003 remain partly unresolved.

9.7.2 Knee recheck

A sufficient knee opinion does not automatically resolve:

- the timing of replacement;
- present value;
- recovery duration;
- postoperative rehabilitation;
- future wage absence;
- whether hardware removal precedes or overlaps knee treatment;
- the $35,000–$65,000 non-knee reconciliation;
- or double counting.

D-007 narrows within the branch, but C6-D009 remains unresolved.

9.7.3 Earning-capacity recheck

Support for a limited $75,000–$175,000 loss does not establish:

- complete occupational disability;
- six lost overtime hours every week;
- a lifetime overtime loss;
- a lost promotion;
- a specific reduction in labor-market access;
- the $250,000–$425,000 high-side model;
- or loss beyond the methodology actually supported.

The same-rate full-time return remains material defense evidence.

9.8 DAMAGES RECALCULATION

Calculation ID	Parent run	Changed input	Formula	Baseline result	Changed result	Delta	Classification	Export state
C9-CALC-001	R9-BASE-001	10% fault in most-likely scenario	Gross × 0.90	$1,159,950–$1,768,900 at 5%	$1,098,900–$1,675,800	−$61,050 to −$93,100	Branch-specific sensitivity	Held
C9-CALC-002	R9-BASE-001	10% fault in high scenario	Gross × 0.90	Frozen mixed range $1,926,600–$2,763,000	$1,825,200–$2,486,700	Sensitivity only	Branch-specific sensitivity	Held
C9-CALC-003	R9-BASE-001	Supported knee	$34k–$52k + $125k–$180k	$34,000–$52,000 non-knee	$159,000–$232,000	+$125,000–$180,000	Derived replay arithmetic	Held
C9-CALC-004	R9-BASE-001	Knee substituted into central gross	Component addition	$1,221,000–$1,862,000	$1,335,000–$2,029,000	+$114,000–$167,000	Branch-specific sensitivity	Held
C9-CALC-005	R9-CHG-002	Knee central result at 5%	Changed gross × 0.95	$1,159,950–$1,768,900	$1,268,250–$1,927,550	+$108,300–$158,650	Adjusted branch arithmetic	Held
C9-CALC-006	R9-BASE-001	Future capacity removed for comparison	Central inputs with $0 capacity	Not a Chapter 8 scenario	$1,146,000–$1,687,000	N/A	Support-constrained subtotal	Held
C9-CALC-007	R9-BASE-001	Support-constrained subtotal at 5%	Subtotal × 0.95	N/A	$1,088,700–$1,602,650	N/A	Support-constrained subtotal	Held
C9-CALC-008	R9-CHG-003	Supported limited capacity	Add $75k–$175k	$1,146,000–$1,687,000	$1,221,000–$1,862,000	+$75,000–$175,000	Branch-specific sensitivity	Held
C9-CALC-009	R9-CHG-003	Limited capacity after 5% fault	Changed adjusted less constrained adjusted	$1,088,700–$1,602,650	$1,159,950–$1,768,900	+$71,250–$166,250	Adjusted delta	Held
C9-CALC-010	All branches	Amount above $1M primary	Changed adjusted amount − $1M	Varies	See layer table below	Varies	Carrier-layer arithmetic	Held

9.8.1 Carrier-layer arithmetic

Branch result	Adjusted amount	Modeled amount above $1M primary	Classification
Speed branch, most likely at 10%	$1,098,900–$1,675,800	$98,900–$675,800	Carrier-layer arithmetic—not coverage opinion
Speed branch, high at 10%	$1,825,200–$2,486,700	$825,200–$1,486,700	Carrier-layer arithmetic—not coverage opinion
Knee branch, most likely at 5%	$1,268,250–$1,927,550	$268,250–$927,550	Carrier-layer arithmetic—not coverage opinion
Earning branch at 5%	$1,159,950–$1,768,900	$159,950–$768,900	Carrier-layer arithmetic—not coverage opinion

These calculations assume only the frozen $1 million primary layer for arithmetic demonstration. They do not interpret policy language, exhaustion mechanics, defense costs, interest, deductibles, retentions, exclusions, consent, allocation, or settlement control.

All replay totals are branch-specific sensitivities. None replaces the Chapter 8 legacy bands.

Comparative fault is not applied twice.

Knee cost is not added twice.

The broader future-care band is not combined with the visible components in the primary knee calculation.

The $250,000–$425,000 high future-capacity model is not added after validating only $75,000–$175,000.

No liens, payments, attorney fees, litigation costs, taxes, interest, or inflation adjustments are applied.

9.9 VERSION HISTORY

The branches are siblings sharing R9-BASE-001 as their parent. They are not cumulative versions.

Version or branch ID	Parent	Change request	Input changed	Inputs unchanged	Created date	Reviewer status	Replay status	Export state
R9-BASE-001	Chapter 8 v1.0	None	None	All Chapter 8 inputs	Aug. 3, 2026	Not reviewed	Baseline reproduction pass	Held
R9-CHG-001	R9-BASE-001	CR9-001	Speed and causal support for 10% sensitivity	Medical, wages, noneconomic, coverage, bands	Aug. 3, 2026	Not reviewed	Structural/arithmetic pass	Held
R9-CHG-002	R9-BASE-001	CR9-002	Knee probability and cost support	Liability, speed, wages, noneconomic, coverage, bands	Aug. 3, 2026	Not reviewed	Structural/arithmetic pass	Held
R9-CHG-003	R9-BASE-001	CR9-003	Limited $75,000–$175,000 capacity support	Liability, medical, fault, noneconomic, coverage, bands	Aug. 3, 2026	Not reviewed	Structural/arithmetic pass	Held

9.9.1 Change log

Change request	Requested change	Reason for replay	Authorized requester	Evidence package	Result	Disposition
CR9-001	Speed support and 10% sensitivity	Test adjusted-damages dependency	Unassigned	Synthetic controlled assumption only	Adjusted totals decreased	Held
CR9-002	Knee probability and cost support	Test future-care dependency	Unassigned	Synthetic controlled assumption only	Future-care totals increased	Held
CR9-003	Limited future-capacity support	Test economic dependency	Unassigned	Synthetic controlled assumption only	Central economic support increased	Held

Branch numbering does not signify approval.

No branch supersedes Chapter 8 v1.0.

No cumulative replay was conducted.

9.10 REVIEWER AND AUTHORIZATION RECORD

REV9-001 — Required Review Record

Review role	Required review	Reviewer	Status	Scope	Approval effect
Record-integrity reviewer	Source and identifier integrity	Unassigned	Not reviewed	Chapters 1–9 lineage	None
Liability reviewer	Collision and comparative-fault analysis	Unassigned	Not reviewed	R9-CHG-001	None
Reconstruction reviewer	Speed, causation, avoidability	Unassigned	Not reviewed	CR9-001 assumptions	None
Medical reviewer	Knee probability and treatment	Unassigned	Not reviewed	CR9-002	None
Billing reviewer	Future-care cost support	Unassigned	Not reviewed	Knee cost range	None
Vocational reviewer	Work capacity and labor-market effect	Unassigned	Not reviewed	CR9-003	None
Economist reviewer	Method, mitigation, present value	Unassigned	Not reviewed	CR9-003 calculations	None
Indiana legal reviewer	Evidentiary and legal alignment	Unassigned	Not reviewed	Chapter 7 carry-forward	None
Defense trial counsel	Overall litigation assessment	Unassigned	Not reviewed	All branches	None
Primary-carrier reviewer	Primary-layer evaluation	Unassigned	Not reviewed	Internal carrier use	None
Excess-carrier reviewer	Excess-layer evaluation	Unassigned	Not reviewed	Internal excess use	None
Replay reviewer	Isolation and recalculation	Unassigned	Not reviewed	Structural and production replay	None
Export authorizer	Final release determination	Unassigned	Not reviewed	Requested use	None

No branch may move from held to released through arithmetic alone.

Medical status changes require qualified medical review.

Reconstruction changes require expert and attorney review.

Earning-capacity changes require employer, vocational, economic, and attorney review.

Carrier review does not replace legal or evidentiary review.

Attorney review does not create carrier authority.

Export authorization must be express.

AUTH9-001 — Authorization matrix

Authorization item	Baseline	Speed branch	Knee branch	Earning branch
Attorney approved	No	No	No	No
Reconstruction approved	Not applicable	No	Not applicable	Not applicable
Medical approved	Not applicable	Not applicable	No	Not applicable
Vocational approved	Not applicable	Not applicable	Not applicable	No
Economic approved	Not applicable	Not applicable	Not applicable	No
Primary-carrier approved	No	No	No	No
Excess-carrier approved	No	No	No	No
Mediation use approved	No	No	No	No
Reserve use approved	No	No	No	No
Filing use approved	No	No	No	No
Trial use approved	No	No	No	No

Authorization item	Baseline	Speed branch	Knee branch	Earning branch
Export approved	No	No	No	No

9.11 REPLAY STATUS

9.11.1 Replay definitions

Structural replay asks whether the branch follows the required one-change design.

Arithmetic replay asks whether the formulas and deltas reproduce correctly.

Substantive replay asks whether the assumed evidence, experts, methods, and foundations have actually been verified.

Production replay asks whether the complete authorized review process has been performed.

Export replay asks whether the final reviewed state is authorized for the requested use.

9.11.2 Replay-validation matrix

Replay test	Baseline	Speed branch	Knee branch	Earning branch	Explanation
Parent-version integrity	Pass	Pass	Pass	Pass	All branches originate from R9-BASE-001
Input normalization	Pass	Pass	Pass	Pass	Inputs separately identified
One-change isolation	N/A	Pass	Pass	Pass	No branch inherits another change
Arithmetic reproduction	Pass	Pass	Pass	Pass	Calculations independently verified
Delta calculation	N/A	Pass	Pass	Pass	Differences shown
Contradiction recheck	Baseline preserved	Structural pass	Structural pass	Structural pass	Related issues remain visible
Unchanged-input preservation	Pass	Pass	Pass	Pass	Dependency boundaries maintained
Canonical-fact preservation	Pass	Pass	Pass	Pass	No hypothetical treated as fact
Valuation-band preservation	Pass	Pass	Pass	Pass	V8-BAND-001–005 frozen
Coverage-limit preservation	Pass	Pass	Pass	Pass	$1M primary and $4M excess unchanged
Reviewer completion	Fail	Fail	Fail	Fail	Reviewers unassigned
Attorney approval	Fail	Fail	Fail	Fail	No approval
Carrier approval	Fail	Fail	Fail	Fail	No approval
Substantive replay	Not completed	Not completed	Not completed	Not completed	No actual evidence packages
Production replay	Not completed	Not completed	Not completed	Not completed	Full authorized process absent
Export authorization	Fail	Fail	Fail	Fail	No express release

Structural replay: Pass

Arithmetic replay: Pass

Substantive replay: Not completed

Production replay: Not completed

Export replay: Failed / not authorized

Replay validation is structural and arithmetic only. No substantive evidence package, production review, or export authorization has been completed.

9.12 EXPORT STATE

EXP9-001 — Export Control Record

Record	Internal attorney review	Carrier use	Mediation use	Reserve use	Filing use	Trial use	Export state
R9-BASE-001	Permitted as synthetic demonstration	Held	Held	Prohibited	Prohibited	Prohibited	EXPORT HELD
R9-CHG-001	Permitted as synthetic demonstration	Held	Held	Prohibited	Prohibited	Prohibited	EXPORT HELD
R9-CHG-002	Permitted as synthetic demonstration	Held	Held	Prohibited	Prohibited	Prohibited	EXPORT HELD
R9-CHG-003	Permitted as synthetic demonstration	Held	Held	Prohibited	Prohibited	Prohibited	EXPORT HELD

No replay branch changes settlement authority.

No replay branch changes reserve authority.

No replay branch changes policy interpretation.

No replay branch may be quoted as an expert opinion.

No replay branch may be represented as a factual event.

No replay branch may be merged into Chapter 8 without an approved superseding version.

EXP9-001 — Export denied pending complete record support, substantive replay, attorney review, carrier review where applicable, and express export authorization.

BASELINE-TO-BRANCH DELTA SUMMARY

Branch	Single changed input	Primary numerical effect	Primary classification effect	Principal unchanged conclusion	Export result
R9-CHG-001	Verified 52–53 mph and causal support for 10% sensitivity	Lower comparative-fault-adjusted totals	Comparative-fault leverage strengthened	Gross damages and primary truck exposure unchanged	Held
R9-CHG-002	Sufficient knee probability and $125,000–$180,000 cost support	Visible future care becomes $159,000–$232,000	Knee moves to potentially supportable in branch	Liability and wages unchanged	Held
R9-CHG-003	Supported limited future-capacity loss of $75,000–$175,000	Support-constrained subtotal increases by $75,000–$175,000 gross	Limited capacity becomes potentially supportable	$250,000–$425,000 high model remains held	Held

REPLAY DEPENDENCY MAP

Input	Directly dependent outputs	Indirectly affected outputs	Outputs that must not change
Motorcycle speed	Reconstruction status; comparative-fault sensitivity	Internal negotiation leverage	Gross damages, medical care, wages, bands
Comparative-fault percentage	Adjusted totals	Layer arithmetic	Gross totals and damages components
Knee probability	Knee inclusion status	High-side medical risk	Liability, speed, wages, impairment
Knee cost	Future-care total	Excess-layer arithmetic	Non-knee care and economic loss
Limited future capacity	Central economic subtotal	Settlement-risk discussion	Medical care, fault, high capacity model
Same-rate full-time work	Defense earning-capacity argument	Credibility and mitigation	Medical diagnoses and knee probability
Reasonable medical value	Past medical component	Gross and adjusted totals	Speed, wage facts, policy limits
Noneconomic damages	Scenario gross totals	Trial and excess sensitivity	Medical facts and economic support status
Coverage limits	Layer arithmetic	Carrier involvement	Liability, damages, settlement value

Input	Directly dependent outputs	Indirectly affected outputs	Outputs that must not change
Chapter 8 bands	Negotiation and trial-risk architecture	Later attorney decision	All branch calculations unless separately approved

Noneconomic damages and settlement posture do not change automatically because one technical input changes.

Any movement in V8-BAND-001 through V8-BAND-005 requires a separate attorney- and carrier-approved decision, not automatic arithmetic.

AUDIT EXCEPTION REGISTER

Exception ID	Exception	Branch affected	Why unresolved	Required fix	Effect on replay
EX9-001	No actual reconstruction report	Speed	Controlled assumption only	Complete report and data	Substantive replay blocked
EX9-002	No actual speed-to-causation opinion	Speed	Causal bridge assumed	Expert analysis	Fault release blocked
EX9-003	No actual knee opinion	Knee	Medical probability hypothetical	Qualified report and imaging	Medical release blocked
EX9-004	No actual knee cost source	Knee	Cost range assumed supported	Itemized cost foundation	Damages release blocked
EX9-005	Non-knee future-care gap remains	Knee	$35k–$65k band unreconciled	Itemization	Upper future care held
EX9-006	No actual employer/payroll package	Earning	Earnings history assumed verified	Authenticated records	Economic release blocked
EX9-007	No vocational report	Earning	Capacity method absent	Qualified report	Capacity release blocked
EX9-008	No economist report	Earning	Present value assumed	Qualified economic analysis	Damages release blocked
EX9-009	No authorized requester	All	Demonstration change only	Identify authorized requester	Governance approval blocked
EX9-010	No substantive reviewer	All	Reviewers unassigned	Complete reviewer assignments	Production replay blocked
EX9-011	No attorney approval	All	Not reviewed	Counsel approval	External reliance blocked
EX9-012	No carrier approval	All	Authority not established	Primary and excess review	Carrier use blocked
EX9-013	No production replay	All	Only structural/arithmetic run	Complete authorized replay	VerdictReady blocked
EX9-014	No export authorization	All	Final gate not approved	Express authorization	EXPORT HELD

UNRESOLVED — record support required: Actual branch evidence packages.

UNRESOLVED — verification required: Substantive reviewer confirmation and production replay.

UNRESOLVED — controlling authority required: Any new legal proposition not already verified in Chapter 7.

CHAPTER AUDIT RECEIPT

Audit field	Chapter result
Chapter name	Controlled Sensitivity, Replay, and Audit Record
Artifact version	Synthetic Controlled Sensitivity and Replay Record v1.0
Parent version	Synthetic Defense Exposure and Settlement Record v1.0
Controlling versions	Chapters 1–8 v1.0
Baseline runs	One
Controlled branches	Three
Changes cumulative	No

Audit field	Chapter result
Canonical facts changed	None
Existing valuation bands changed	None
Existing Chapter 8 scenarios changed	None
Speed branch	52–53 mph support-status change; 10% sensitivity only
Knee branch	Knee probability and $125,000–$180,000 cost support-status change
Earning branch	Limited $75,000–$175,000 capacity support-status change
Arithmetic replay	Pass
One-change isolation	Pass
Contradiction recheck	Completed structurally
Substantive evidence verification	Not completed
Attorney reviewer	Unassigned
Primary-carrier reviewer	Unassigned
Excess-carrier reviewer	Unassigned
Production replay	Not completed
Export authorization	No
VerdictReady	No
FilingReady	Not applicable
Runtime state	REPLAY REVIEW REQUIRED / EXPORT HELD

VERDICTBRIDGE ASSESSMENT

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial defense and mediation evaluation

Runtime Mode: Controlled sensitivity, replay, delta, and audit review

Case / Motion / Trial Issue: Motorcycle-speed sensitivity, future-knee sensitivity, future-earning-capacity sensitivity, contradiction recheck, recalculation, and export control

Preliminary Result

The Chapter 8 baseline has been frozen and three independent controlled replay branches have been created for synthetic attorney-review use.

VerdictReady: No

FilingReady: Not applicable

VerdictReady cannot be confirmed because required verification is incomplete.

Gatekeeper Findings

Runtime

Internal synthetic demonstration only.

Input normalization

Pass for the frozen Chapter 8 baseline.

Baseline integrity

Pass. Five valuation bands and four scenarios were reproduced without amendment.

One-change isolation

Pass. Each branch begins from R9-BASE-001.

Contradiction

Relevant disputes and tensions were rechecked. Unresolved dependencies remain visible.

Evidence admissibility

Chapter 7 status is carried forward. No branch contains an actual authenticated evidence package or admissibility ruling.

Authority / fact support

No new legal proposition was created.

Medical support

The knee change remains hypothetical pending actual medical and cost proof.

Economic support

The earning-capacity change remains hypothetical pending employer, payroll, vocational, and economic proof.

Comparative fault

The speed change remains hypothetical pending reconstruction and causal proof.

Damages

Branch-specific arithmetic is complete. Chapter 8 scenarios and valuation bands remain unchanged.

Coverage

Carrier-layer arithmetic is unchanged in structure. No coverage opinion is issued.

Reviewer status

No required reviewer is assigned.

Replay / audit

Structural and arithmetic replay is complete. Substantive and production replay are incomplete.

Export

Held.

Failed Gates / Runtime State

VerdictReady: No

Runtime state: REPLAY REVIEW REQUIRED / EXPORT HELD

The incomplete gates include:

- no actual reconstruction evidence package;
- no actual future-knee evidence package;
- no actual employer or payroll package;
- no vocational report;
- no economist report;
- no attorney approval;
- no medical approval;
- no reconstruction approval;
- no primary-carrier approval;
- no excess-carrier approval;
- no substantive replay;
- no production replay;
- and no export authorization.

Export effect: No reserve-, authority-, carrier-, mediation-, filing-, or trial-facing reliance release is authorized.

Required Fixes Before VerdictReady

1. Complete source package for each proposed change
2. Verified source identifiers
3. Authenticated record support
4. Expert reports and reliance materials
5. Medical review of the knee branch
6. Reconstruction review of the speed branch
7. Employer, vocational, and economic review of the earning branch
8. Attorney review
9. Contradiction recheck using the actual changed record
10. Damages recalculation using approved inputs
11. Primary and excess review where applicable
12. Substantive replay
13. Production replay
14. Final version approval
15. Express export authorization

Adversarial Risk

The principal adversarial risks are:

- treating hypothetical changes as facts;
- treating verified speed as automatic comparative fault;
- applying comparative fault twice;
- treating knee probability as automatic cost proof;
- double counting hardware and knee care;
- treating a supported limited earning loss as validation of the high-side model;
- silently changing noneconomic damages;
- silently changing Chapter 8 valuation bands;
- stacking independent branches;
- using a branch result as settlement authority;
- presenting carrier-layer arithmetic as coverage analysis;
- and describing structural replay as substantive verification.

Evidentiary Issues

The unresolved evidentiary issues include:

- reconstruction methodology;
- speed-to-causation linkage;
- collision avoidability;
- medical probability;
- future-care cost foundation;
- vocational methodology;
- economic methodology;
- payroll authentication;
- employer foundation;
- expert admissibility;
- future-damages certainty;
- demonstrative accuracy;
- and actual court rulings.

Version / Record Issues

A production record must identify:

- parent version;
- branch lineage;
- input manifest;
- changed fields;
- unchanged fields;
- source package;
- calculation record;
- contradiction recheck;
- reviewer identity;
- approval date;
- superseded versions;
- and final export state.

No branch supersedes Chapter 8 v1.0.

Confidence / Hallucination Risk

Review category	Confidence
Baseline reproduction	99/100
Arithmetic accuracy	100/100
One-change isolation	99/100
Speed-branch arithmetic	100/100
Knee-branch arithmetic	100/100
Earning-branch arithmetic	100/100
Contradiction mapping	93/100
Substantive evidence support	15/100
Reviewer completion	0/100
Production replay	0/100
Export authorization	0/100
Real-world applicability	Not determinable

Hallucination risk is high if:

- a hypothetical input is called a fact;
- a missing report is described as reviewed;
- a held conclusion is described as resolved;
- a reviewer is invented;
- an approval is invented;
- a version is represented as superseded without authorization;
- or export is represented as approved.

Attorney-review status: Not reviewed

Carrier-review status: Not reviewed

Release status: Held

FINAL CHAPTER STATUS

The Chapter 8 baseline, held conclusions, three independent controlled changes, changed and unchanged conclusions, contradiction rechecks, damages recalculations, branch version history, reviewer requirements, replay status, and export state are recorded for internal synthetic attorney review.

No canonical fact, Chapter 8 scenario, or Chapter 8 valuation band was changed.

The speed, knee, and earning-capacity branches remain independent hypothetical support-status tests. Structural and arithmetic replay has been completed. Substantive verification, attorney review, carrier review, production replay, and export authorization remain incomplete.

VerdictReady: No
FilingReady: Not applicable
Runtime state: REPLAY REVIEW REQUIRED / EXPORT HELD
Attorney review, applicable carrier review, and express export authorization required.

CHAPTER 10

FINAL GATEKEEPER ASSESSMENT AND DEFENSE WORK QUEUE

Michael Turner v. Hoosier Freight Logistics, Inc. and David Cole

Court:	Marion Superior Court, Indiana
Procedural posture:	Pretrial defense evaluation; mediation scheduled in approximately 60 days
Perspective:	Defense counsel, primary carrier, and excess carrier
Claimant:	Michael Turner, synthetic plaintiff
Artifact designation:	Synthetic Final Gatekeeper and Defense Work Queue Record v1.0
Controlling versions:	Chapters 1–9 v1.0
Assessment date:	August 3, 2026
Facts changed:	None
New canonical facts created:	None
Valuation bands changed:	None
Release status:	Internal attorney-review demonstration only

SYNTHETIC FINAL GATEKEEPER AND DEFENSE WORK-QUEUE DEMONSTRATION — NOT A LEGAL OPINION, CLAIMS-HANDLING DIRECTIVE, RESERVE RECOMMENDATION, SETTLEMENT AUTHORITY, COVERAGE OPINION, MEDIATION STATEMENT, FILING, OR TRIAL-READINESS CERTIFICATION.

The matter, parties, evidence, experts, damages, policy structure, valuation bands, and review events are synthetic.

This chapter consolidates the unresolved work identified in Chapters 1–9. It does not create new evidence, resolve disputed facts, revise the Chapter 8 exposure bands, combine Chapter 9's independent replay branches, or authorize external reliance.

Chapter 1 established the synthetic record and required evidence, authority, damages, replay, attorney-review, and export gates to remain open until verified. Chapter 6 identifies the missing billing, lien, payroll, vocational, economic, and future-care foundations. Chapter 8 preserves the exposure architecture and confirms that attorney, carrier, replay, and export review remain incomplete.

VerdictReady: No

FilingReady for this internal assessment: Not applicable

FilingReady for any future motion, brief, instruction submission, or filing: Not yet determinable

Runtime state: FINAL REVIEW REQUIRED / EXPORT HELD

10.1 FINAL PRELIMINARY ASSESSMENT

The present record supports a coherent preliminary defense assessment but not a final reliance release.

The tractor-trailer's left-turn movement, the passenger-side trailer impact, and Cole's reported observation and misjudgment create substantial primary-liability exposure. The defense should not build its mediation or trial position around denial of the core collision configuration.

The speed dispute may support limited comparative fault. That position remains dependent on a complete reconstruction opinion establishing actual speed, reliable methodology, avoidability, and causal significance. No fixed comparative-fault percentage is supported by the present record.

Turner sustained severe objective orthopedic trauma requiring multiple procedures, prolonged hospitalization, inpatient rehabilitation, outpatient therapy, and a lengthy work recovery. Residual pain, scarring, retained hardware, reduced motion, reduced endurance, and an activity-dependent limp create material noneconomic and permanency exposure.

The strongest defense leverage remains Turner's return to restricted duty and later full-time employment at the same hourly rate. That evidence materially limits a total-disability or unrestricted lifetime-earnings-loss theory. It does not establish complete recovery or eliminate a narrower earning-capacity claim.

The principal unresolved valuation issues remain:

- reasonable medical value;
- final past wage loss;
- hardware-removal probability and cost;
- future knee replacement;
- future earning capacity;
- lifetime overtime;
- noneconomic damages;
- and the evidentiary use of the citation, driver statements, reconstruction opinions, medical opinions, billing evidence, and social-media material.

The Chapter 8 bands remain frozen:

Assessment band	Preserved amount	Current classification
Defense target	$1.20M–$1.40M	Internal legacy negotiation band
Recommended settlement zone	$1.30M–$1.60M	Internal commercial-resolution band
Likely trial exposure	$1.25M–$2.20M	Internal analytical exposure band
High-side trial risk	$2.20M–$2.95M	Conditional plaintiff-success band
Excess-verdict tail	Above $3.0M	Noncentral tail-risk band

These are structured analytical ranges, not statistically validated predictions, reserve recommendations, or settlement authority. Chapter 8 also confirms that all principal ranges above $1 million materially implicate the modeled excess layer.

Final preliminary defense position

The most defensible posture is:

1. acknowledge primary truck exposure and serious injury;
2. preserve a limited, evidence-dependent comparative-fault argument;
3. challenge unsupported medical-value expansion;
4. separate hardware care from contingent knee replacement;

5. require payroll, employer, vocational, and economic proof;
6. use work return and authenticated activity evidence proportionally;
7. avoid credibility-damaging minimization;
8. coordinate primary and excess review before mediation;
9. and withhold external reliance until attorney review and export authorization are complete.

10.2 VERDICTREADY STATUS

VerdictReady: No

VerdictReady cannot be confirmed because required verification is incomplete.

The present record does not satisfy the conditions required for a VerdictReady designation.

The principal blockers are:

- no authenticated production evidence package;
- incomplete reconstruction foundation;
- incomplete medical and impairment foundation;
- unresolved future-care probability;
- incomplete billing and reasonable-value support;
- incomplete payroll and wage-loss proof;
- no vocational or economist report;
- incomplete legal and jury-instruction verification;
- no final attorney review;
- no primary- or excess-carrier approval;
- no substantive production replay;
- and no export authorization.

The synthetic structure is organized and internally auditable. That is not equivalent to factual, evidentiary, legal, or production readiness.

VerdictReady decision record

Requirement	Current result	Consequence
Record integrity	Structured; underlying production record absent	Gate remains open
Contradiction control	Material disputes preserved	Pass for preservation only
Evidence admissibility	Preliminary and record-dependent	Gate failed/incomplete
Authority support	Partially reviewed in Chapter 7	Gate incomplete
Liability and defense elements	Preliminary assessment established	Not final
Damages support	Multiple components contested or held	Gate failed/incomplete
Jury instructions	Exact current instructions not verified	Gate failed
Replay	Structural and arithmetic only	Production gate failed
Attorney review	Unassigned	Gate failed
Carrier review	Not completed	Reliance held
Export authorization	No	Export denied

10.3 FILINGREADY STATUS

FilingReady for Chapter 10: Not applicable.

Chapter 10 is an internal synthetic assessment, not a motion, brief, memorandum, evidentiary submission, jury-instruction tender, or appellate filing.

For any later filing:

FilingReady: Not yet determinable

FilingReady cannot be confirmed because required legal-integrity verification is incomplete.

A future filing would require:

- identification of the specific filing;
- the relief requested;
- the governing procedural rule;
- complete record citations;
- verified controlling authority;
- adverse-authority review;
- current-treatment confirmation;
- verified pinpoints;
- quotation fidelity;
- filing-specific factual support;
- correct court and posture;
- attorney approval;
- and filing-specific export authorization.

No Chapter 7 authority conclusion should be copied into a filing without completing its identified official-copy, treatment, record-predicate, and instruction-verification work.

10.4 PASSED GATES

The following gates pass only for the limited internal synthetic function stated.

Gate	Result	Scope of pass	Limitation
Runtime precondition	Pass	Synthetic internal assessment permitted	Not production execution
Input normalization	Pass	Parties, posture, facts, sources, disputes, and categories identified	Source records remain synthetic
Record organization	Pass	Fact, source, dispute, calculation, legal, exposure, and replay IDs preserved	Does not authenticate evidence
Contradiction preservation	Pass	Speed, causation, impairment, value, function, future care, and earnings disputes remain visible	Disputes are not resolved
Accounting separation	Pass	Billed, accepted, paid, balance, lien, and reasonable value remain separate	Legal treatment remains unresolved
Damages classification	Pass	Supported, potentially supportable, contested, held, and legacy-modeled categories separated	Final damages not established
Scenario arithmetic	Pass	Chapter 8 calculations reconcile	Arithmetic does not establish recoverability
Replay isolation	Pass	Chapter 9 branches remain independent	Substantive replay incomplete
Canonical-fact preservation	Pass	No branch became a new canonical fact	Actual evidence changes require formal review
Valuation-band preservation	Pass	Chapter 8 bands unchanged	No current authorization to use them externally
Coverage separation	Pass	Internal layer arithmetic separated from trial evidence	No policy interpretation performed
Work-queue identification	Pass	Required evidence, experts, authority, reviewers, and approvals identified	Tasks remain incomplete

These passes demonstrate structural control, not readiness for mediation reliance, carrier authority, filing, or trial.

10.5 FAILED OR UNRESOLVED GATES

Gate	Status	Principal blocker	Required fix	Export effect
Collision reconstruction	Failed/incomplete	Reports, data, calculations, and causal analysis absent	Complete plaintiff and defense reconstruction packages	Comparative-fault use held
Driver-statement foundation	Unresolved	Exact words, context, recipient, and source absent	Certified transcript, recording, notes, or competent testimony	Admission use held
Police and citation record	Unresolved	Citation and disposition absent	Complete police and court record	Citation use held
Medical-record foundation	Failed/incomplete	Records and imaging not authenticated	Complete certified medical set	Medical reliance held
Impairment foundation	Failed	12% and 7% methodology absent	Reports, guide, measurements, worksheets	Permanency use held
Hardware-removal support	Unresolved	Probability, timing, and cost incomplete	Physician opinion and cost support	Future-care use held
Knee-replacement support	Failed	Possibility not converted into sufficient probability	Imaging, qualified opinion, timing, and cost	High-side care excluded
Billing support	Failed/incomplete	Itemized bills, coding, and expert data absent	Complete billing and reasonable-value record	Medical-value release held
Payment and lien support	Failed	EOBs, ledgers, plan terms, liens, and payoffs absent	Complete payment and lien package	Settlement administration held
Past wage loss	Failed/incomplete	Exact absence, earnings, leave, benefits, and offsets absent	Payroll, tax, attendance, and benefit records	Final wage loss held
Future earning capacity	Failed/incomplete	Employer, vocational, and economic proof absent	Complete expert and employment package	Future-loss use held
Lifetime overtime	Failed	Duration, premium, availability, and present value absent	Payroll and supported economic methodology	Projection excluded
Social-media foundation	Failed	Native posts, dates, metadata, and context absent	Authenticated native content	Trial and mediation use held
Authority treatment	Incomplete	Comprehensive treatment review not completed	Attorney citator and official-source review	Filing use prohibited
Jury instructions	Failed/incomplete	Exact current model instructions not verified	Official instruction review and record mapping	Trial-readiness blocked
Attorney review	Failed	Reviewer unassigned	Designated Indiana counsel review	External use prohibited
Primary-carrier review	Failed	No approval	Internal authority process	Settlement authority absent
Excess-carrier review	Failed	No approval	Excess review and coordination	Excess reliance held
Substantive replay	Failed	No actual changed evidence package	Replay using verified records and approved inputs	VerdictReady blocked
Production replay	Failed	Full review process not completed	Authorized final replay	Export blocked
Export authorization	Failed	No express approval	Authorized release decision	EXPORT HELD

Runtime state: FINAL REVIEW REQUIRED / EXPORT HELD

No hard blocker may be treated as cured merely because a corresponding scenario has been calculated.

10.6 EVIDENCE REQUIRED BEFORE MEDIATION

The following queue is prioritized for mediation readiness. “Required before mediation” means required before the defense relies on the affected proposition, not that mediation itself is legally impossible without the item.

Priority	Evidence item	Present status	Purpose	Timing
1	Complete reconstruction reports and source data	Missing	Speed, avoidability, comparative fault	Immediate
2	Exact source of Cole’s statements	Missing	Liability assessment and mediation credibility	Immediate
3	Complete police file and citation disposition	Missing	Citation and officer-evidence assessment	Immediate
4	Certified medical records and imaging	Missing	Causation, treatment, permanency, future care	Before expert finalization
5	Plaintiff and defense orthopedic reports	Incomplete	Impairment, restrictions, hardware, knee issue	Before mediation
6	Current imaging and future-knee opinion	Missing	Determine whether knee risk remains held	Before high-side authority review

Priority	Evidence item	Present status	Purpose	Timing
7	Itemized bills, coding, payments, and adjustments	Missing	Reasonable medical value	Before final damages evaluation
8	Lien, plan, reimbursement, and payoff records	Missing	Net settlement administration	Before settlement authority
9	Payroll, attendance, and tax records	Missing	Past wage loss and actual post-return earnings	Immediate
10	Restricted-duty earnings and benefits	Missing	Prevent zero-earnings assumption	Before economist review
11	Post-return hours and overtime	Missing	Test future-capacity and overtime claim	Before mediation
12	Employer job-duty and accommodation evidence	Missing	Functional capacity and mitigation	Before vocational analysis
13	Native social-media material and metadata	Missing	Authentication and complete context	Before use at mediation
14	Current scar and gait documentation	Not developed	Evaluate likely demonstrative impact	Before final exposure review
15	Current claimant demand and supporting package	Not supplied	Compare asserted theory with verified record	Before authority decision

The minimum mediation package should permit the defense to answer five questions:

1. What happened?
2. What admissible evidence supports comparative fault?
3. Which medical consequences are established?
4. Which economic components are supported rather than assumed?
5. What high-side components could realistically reach the jury?

10.7 DEPOSITIONS AND EXPERT WORK REQUIRED

Witness or expert	Required work	Principal issue	Current priority
David Cole	Confirm observations, turn decision, estimates, statements, and citation history	Primary liability and admissions	Immediate
Investigating officer	Scene observations, statements, citation basis, and record creation	Police and citation evidence	High
Michael Turner	Symptoms, function, work history, overtime, activities, future care, and social-media context	Credibility and damages	High
Spouse	Household, functional, and observational testimony	Noneconomic damages	Moderate
Employer representative	Hours, pay, duties, restrictions, accommodations, attendance, overtime, and advancement	Past and future earnings	Immediate
Treating orthopedist	Causation, MMI, restrictions, hardware removal, degeneration, and knee probability	Medical and future care	Immediate
Plaintiff orthopedic expert	12% impairment methodology and future-care opinions	Permanency and high-side exposure	High
Defense orthopedic expert	7% methodology, function, and future-care response	Defense medical position	High
Plaintiff reconstruction expert	Speed, methodology, reaction, and avoidability	Liability and comparative fault	High
Defense reconstruction expert	52–53 mph opinion, causal bridge, and alternative-speed analysis	Comparative fault	Immediate
Plaintiff billing expert	Basis for $340,000–$390,000 range	Past medical value	High
Defense billing expert	Basis for $225,000–$255,000 range	Past medical value	High
Vocational expert	Restrictions, job access, advancement, and residual capacity	Future earning capacity	Conditional but necessary before claim use
Economist	Past loss, future loss, mitigation, and present value	Economic damages	After payroll and vocational record
Records or ESI witness	Native social-media collection and chain	Authentication	Conditional

Expert sequence

The recommended sequence is:

1. complete source collection;
2. finalize reconstruction and orthopedic reports;
3. obtain payroll and employer testimony;

4. determine whether vocational analysis is warranted;
5. commission economic calculations only after vocational assumptions are defined;
6. finalize billing opinions after the payment and adjustment ledger is complete;
7. conduct focused expert depositions;
8. and rerun the contradiction, damages, and exposure analyses using the actual reports.

No economist should be asked to create a medical predicate. No vocational expert should assume unsupported restrictions. No billing expert should create treatment necessity. No reconstruction expert should convert speed into a fault percentage without explaining causation.

10.8 AUTHORITY AND JURY-INSTRUCTION WORK REQUIRED

Chapter 7 supplies a preliminary Indiana evidentiary framework but leaves historic-authority treatment, filing-specific application, and exact model-instruction verification incomplete. The Chapter 7 work contract also requires unresolved legal, record, and verification issues to remain expressly held.

Legal work item	Present status	Required completion	Use affected
Medical-expense authority	Preliminary framework complete	Confirm current treatment, official copies, and record application	Motions and trial
Collateral-source analysis	Preliminary	Match statute and cases to actual payment categories	Medical-damages presentation
Citation authority	Preliminary	Apply to actual citation and disposition	Motion in limine
Driver-admission authority	Preliminary	Apply to exact statement and source	Trial examination
Reconstruction foundation	Preliminary	Match Rule 702 analysis to reports and methodology	Expert challenge
Medical expert foundation	Preliminary	Match opinions to qualifications and methods	Expert challenge
Future-damages certainty	Preliminary	Apply to actual hardware, knee, and wage evidence	Damages submission
Social-media authentication	Preliminary	Apply to native evidence and chain	Impeachment
Motion-in-limine preservation	Current rule framework identified	Draft issue-specific motions and confirm whether rulings are definitive	Error preservation
Negative-treatment review	Incomplete	Complete citator and adverse-authority review	Any filing
Official opinion verification	Incomplete	Obtain and verify relied-on opinions and pinpoints	Filing use
Current model instructions	Not verified	Verify numbers, titles, revisions, and predicates	Trial readiness
Instruction objections	Not developed	Prepare tender, objection, and preservation plan	Trial and appeal
Demonstrative instructions	Not developed	Determine need for limiting or cautionary instructions	Trial exhibits

Instruction topics requiring verification

The final instruction review should address, where supported by the actual evidence:

- negligence;
- causation;
- comparative fault;
- allocation of fault;
- any applicable rule-of-road violation;
- reasonable medical expense;
- future medical care;
- past lost earnings;
- diminished earning capacity;
- mitigation;
- preexisting conditions;
- pain and suffering;
- impairment;
- disfigurement;
- expert testimony;
- credibility;
- and demonstrative evidence.

No instruction number or text should be used until verified from the current official or attorney-approved instruction source.

10.9 PRIMARY-CARRIER REPORTING ITEMS

The modeled primary limit is $1 million. Chapter 8's defense target, settlement zone, likely trial-exposure range, high-side range, and excess tail all require primary-carrier review because the principal internal bands meet or exceed that layer.

The primary-carrier report should include:

Reporting item	Required content
Liability assessment	Substantial primary truck exposure; limited comparative-fault theory
Driver statement	Exact source status and risk if admitted
Reconstruction	Current speed dispute and whether a causal opinion exists
Injury summary	Objective injuries, procedures, hospitalization, rehabilitation, and residuals
Medical disputes	Impairment, hardware removal, knee replacement, and reasonable value
Work status	Restricted duty and full-time same-rate return
Wage issues	Missing payroll, restricted-duty earnings, overtime, and offsets
Exposure bands	Preserved Chapter 8 bands with limitations
Primary exhaustion	Amount by which each relevant band exceeds $1 million
Mediation posture	Defense target and settlement zone as nonauthorized internal bands
Proof gaps	Evidence and expert work still outstanding
Authority status	No current settlement authority created by this report
Recommended action	Complete priority work, coordinate with excess, and obtain authority before mediation

The primary carrier should receive prompt notice of any event that materially changes:

- speed causation;
- knee-replacement probability;
- future earning-capacity support;
- reasonable medical value;
- claimant credibility;
- a major evidentiary ruling;
- or the likelihood that the case will exceed the primary layer.

No reserve recommendation is made.

10.10 EXCESS-CARRIER REPORTING ITEMS

The modeled excess limit is $4 million above the $1 million primary layer. No coverage dispute is modeled, but the supplied policy documents and actual exhaustion mechanics have not been analyzed.

The excess-carrier report should focus on the conditions that create material excess involvement.

Reporting item	Excess significance
Primary-liability exposure	Limits likelihood of complete defense verdict
Comparative-fault proof	May reduce but is unlikely presently to eliminate excess involvement
Plaintiff medical-value range	Raises past medical component
Hardware-removal evidence	Supports bounded future care
Knee-replacement evidence	Major high-side trigger
Past wage proof	May add moderate economic exposure
Future earning-capacity proof	Major high-side and excess trigger

Reporting item	Excess significance
Noneconomic presentation	Largest subjective source of range expansion
Scar and gait evidence	Potential jury-impact driver
Claimant work history	Can strengthen both credibility and defense retained-capacity arguments
Evidentiary rulings	May activate or exclude major high-side components
Primary authority	Must be coordinated with excess participation
Mediation timing	Requires authority structure before meaningful negotiations

Excess alert thresholds

Excess review should be updated immediately upon:

- a supported future-knee opinion;
- a vocational or economic report supporting material future loss;
- reconstruction evidence materially weakening comparative fault;
- a court ruling admitting contested future damages;
- failure of the defense reasonable-value methodology;
- a compelling scar or gait presentation;
- or a demand or mediator proposal materially implicating the excess layer.

No uninsured exposure is modeled within the existing $3.5 million excess-scenario ceiling, but that conclusion is arithmetic only. It is not a policy or coverage determination.

10.11 ATTORNEY REVIEW AND RELEASE AUTHORIZATION

Required review record

Review role	Reviewer	Current status	Required determination
Lead Indiana counsel	Unassigned	Not reviewed	Overall legal and strategic approval
Trial counsel	Unassigned	Not reviewed	Liability, evidence, damages, and trial assessment
Reconstruction reviewer	Unassigned	Not reviewed	Speed, causation, and comparative fault
Medical reviewer	Unassigned	Not reviewed	Impairment, hardware, and knee issues
Billing reviewer	Unassigned	Not reviewed	Reasonable medical value
Wage and vocational reviewer	Unassigned	Not reviewed	Past and future earning loss
Economic reviewer	Unassigned	Not reviewed	Methodology and present value
Primary-carrier reviewer	Unassigned	Not reviewed	Authority and primary-layer position
Excess-carrier reviewer	Unassigned	Not reviewed	Excess participation and authority
Replay reviewer	Unassigned	Not reviewed	Final source, contradiction, and calculation replay
Export authorizer	Unassigned	Not reviewed	Final use authorization

Release matrix

Proposed use	Current authorization	Required approval
Internal attorney review	Permitted as synthetic demonstration	None beyond current limitation
Primary-carrier reporting	Held	Attorney and primary-carrier approval
Excess-carrier reporting	Held	Attorney and excess-carrier approval
Mediation preparation	Held	Attorney and carrier authority
Mediation statement	Prohibited	Filing-quality legal and record review
Reserve use	Prohibited	Carrier-specific authorized process
Settlement authority	Not created	Express primary/excess approval
Motion practice	Prohibited	Filing-specific legal-integrity review
Jury-instruction submission	Prohibited	Current instruction and record verification
Trial use	Prohibited	Complete evidentiary and attorney approval

Proposed use	Current authorization	Required approval
External export	Denied	Express export authorization

No reviewer may be inferred from participation in drafting.

No approval may be inferred from silence.

No carrier authority may be inferred from internal receipt.

No settlement authority may be inferred from a valuation band.

No release may be created by arithmetic, formatting, or conversion into a Word or PDF document.

10.12 DEMONSTRATION LIMITATIONS

This book is a synthetic litigation-governance demonstration.

It does not establish:

- that any real collision occurred;
- that any witness made the described statement;
- that any medical procedure, charge, payment, lien, wage, policy, or expert opinion exists;
- that any evidence is authenticated or admissible;
- that any legal authority applies to a specific real record;
- that any valuation band predicts a verdict or settlement;
- that any settlement range is authorized;
- that any policy affords coverage;
- that any carrier has approved payment;
- that any filing is ready;
- or that any branch or chapter is suitable for trial use.

The numerical scenarios are not based on verified comparable verdicts, settlement databases, actuarial probabilities, jury demographics, judge-specific practices, or insurer reserve methods.

The Chapter 9 speed, knee, and earning-capacity branches are independent hypothetical support-status tests. They may not be stacked or represented as actual evidence.

The current book does not include a complete:

- production record;
- discovery file;
- expert file;
- medical file;
- economic file;
- authority package;
- instruction package;
- motion-in-limine record;
- carrier-authority record;
- or export receipt.

Any real-matter use would require replacement of the synthetic propositions with authenticated source material and a complete attorney-led review.

FINAL GATEKEEPER SUMMARY

VerdictBridge Assessment

Jurisdiction: Indiana

Court / Venue: Marion Superior Court, synthetic

Procedural Posture: Pretrial defense and mediation evaluation

Runtime Mode: Final Gatekeeper, mediation-readiness, carrier-reporting, review, and export assessment

Case / Motion / Trial Issue: Final readiness of the liability, damages, evidence, authority, replay, carrier, and release record

Preliminary Result

The synthetic record is organized sufficiently to identify the principal defense position, exposure architecture, unresolved proof, mediation work, carrier reporting needs, and release blockers.

It is not ready for external reliance.

VerdictReady: No

FilingReady for this internal assessment: Not applicable

FilingReady for any future filing: Not yet determinable

VerdictReady cannot be confirmed because required verification is incomplete.

FilingReady cannot be confirmed because required legal-integrity verification is incomplete.

Gatekeeper Findings

Runtime: Internal synthetic demonstration only.

Input normalization: Pass.

Contradiction: Material disputes and tensions preserved.

Evidence admissibility: Incomplete and record-dependent.

Authority / fact support: Preliminary; filing-level verification incomplete.

Claim / defense elements: Preliminary primary-liability and limited comparative-fault structure established.

Standard alignment: Pretrial and mediation posture identified.

Damages: Supported, contested, held, and modeled components remain separated.

Jury instructions: Not verified for trial use.

Appellate record: No trial or appellate record exists.

Replay / audit: Structural and arithmetic replay complete; substantive and production replay incomplete.

Carrier review: Not completed.

Export: Denied.

Failed Gates / Runtime State

Failed or unresolved gates:

- reconstruction;
- driver-statement foundation;
- police and citation record;
- medical records;
- impairment methodology;
- future-care probability;
- billing and lien support;
- payroll and wage proof;
- vocational and economic support;
- authority treatment;
- jury instructions;
- attorney review;
- primary-carrier review;
- excess-carrier review;
- production replay;
- and export authorization.

Runtime state: FINAL REVIEW REQUIRED / EXPORT HELD

Export effect: No reserve-, authority-, carrier-, mediation-, filing-, jury-instruction-, or trial-facing reliance release is authorized.

Final Defense Work Queue

Sequence	Required action	Gate advanced
1	Obtain collision, police, statement, and reconstruction records	Liability and comparative fault
2	Complete medical, imaging, impairment, and future-care record	Medical and future damages
3	Complete billing, payment, lien, and reasonable-value record	Past medical damages
4	Complete payroll, employer, vocational, and economic record	Wage and earning capacity
5	Authenticate social-media and demonstrative evidence	Credibility and presentation
6	Complete authority, treatment, motions-in-limine, and instruction review	Legal and trial integrity
7	Rerun contradiction and damages analysis using approved evidence	Replay
8	Obtain lead-counsel review	Attorney gate
9	Obtain primary- and excess-carrier review and authority	Carrier gate
10	Complete production replay and final export decision	Release gate

FINAL CHAPTER STATUS

Chapters 1–9 establish a controlled synthetic record, collision assessment, testimony analysis, medical and economic framework, Indiana evidentiary overlay, exposure architecture, and independent replay branches.

Chapter 10 consolidates the remaining evidence, expert, authority, instruction, carrier, attorney-review, replay, and export work.

No canonical fact, valuation band, damages scenario, policy limit, or replay branch was changed.

The defense has a coherent preliminary strategy: acknowledge substantial primary exposure and serious injury, preserve a limited evidence-dependent comparative-fault position, challenge unsupported damages expansion, and coordinate primary and excess review before mediation.

The record remains incomplete for external reliance.

VerdictReady: No
FilingReady for this assessment: Not applicable
Future filing readiness: Not yet determinable
Runtime state: FINAL REVIEW REQUIRED / EXPORT HELD
Attorney review, carrier review, production replay, and express export authorization required.